



Macquarie Specialized Infrastructure Global 3 (USD) Fund

Private Placement Memorandum

February 2026

THE LIMITED PARTNERSHIP INTERESTS OF ANY PARTNERSHIP HAVE NOT BEEN REGISTERED UNDER THE U.S. SECURITIES ACT OF 1933, AS AMENDED, THE SECURITIES LAWS OF ANY STATE IN THE UNITED STATES OR ANY OTHER APPLICABLE SECURITIES LAWS IN RELIANCE UPON EXEMPTIONS FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT AND SUCH LAWS. LIMITED PARTNERSHIP INTERESTS MUST BE ACQUIRED FOR INVESTMENT ONLY AND ARE SUBJECT TO SIGNIFICANT RESTRICTIONS ON TRANSFERABILITY AND MAY NOT BE OFFERED FOR SALE, PLEDGED, HYPOTHECATED, SOLD, ASSIGNED OR TRANSFERRED WITHIN THE UNITED STATES OR TO ANY U.S. PERSONS AT ANY TIME EXCEPT IN COMPLIANCE WITH THE SECURITIES ACT, OR OTHERWISE IN COMPLIANCE WITH ANY APPLICABLE STATE SECURITIES LAWS AND ANY OTHER APPLICABLE SECURITIES LAWS AND THE TERMS AND CONDITIONS OF THIS PRIVATE PLACEMENT MEMORANDUM. THEREFORE, IN MAKING AN INVESTMENT DECISION, PROSPECTIVE INVESTORS MUST RELY ON THEIR OWN EXAMINATION OF THE LEGAL, TAXATION, FINANCIAL AND OTHER CONSEQUENCES OF AN INVESTMENT IN THE FUND AND THE TERMS OF THE OFFERING INCLUDING THE MERITS AND RISKS INVOLVED, INCLUDING THE RISK OF A PARTIAL OR TOTAL LOSS OF INVESTMENT.

DISCLAIMER

This Private Placement Memorandum (the “**Memorandum**”) is being circulated by Macquarie Asset Management Credit Advisers US, LLC (the “**Manager**”) or where applicable, another appropriately authorised member of the Macquarie Group on behalf of the Manager in respect of Macquarie Specialized Infrastructure Global 3 (USD) Lev Onshore Fund LP, a Delaware limited partnership (the “**Delaware Levered Partnership**”), Macquarie Specialized Infrastructure Global 3 (USD) Lev Offshore Fund SCSp, a Luxembourg special limited partnership (*société en commandite spéciale*) (the “**Luxembourg Levered Partnership**”) and, together with the Delaware Levered Partnership, the “**Levered Partnerships**”), Macquarie Specialized Infrastructure Global 3 (USD) UnLev Onshore Fund LP, a Delaware limited partnership (the “**Delaware Unlevered Partnership**”), Macquarie Specialized Infrastructure Global 3 (USD) UnLev Offshore Fund SCSp, a Luxembourg special limited partnership (*société en commandite spéciale*) (the “**Luxembourg Unlevered Partnership**”) and, together with the Delaware Unlevered Partnership, the “**Unlevered Partnerships**”) and any other Parallel Vehicle, and Alternative Investment Vehicles formed from time to time (the “**Fund**”). The Manager is acting on behalf of the Fund only and shall not be responsible to prospective investors in the Fund for providing them with the protections afforded to clients of the Manager or for advising them on an investment in the Fund. The Manager does not guarantee any particular rate of return or the performance of the Fund nor does it guarantee the repayment of any amounts invested. Each of the Luxembourg Levered Partnership, the Delaware Levered Partnership, the Luxembourg Unlevered Partnership and the Delaware Unlevered Partnership shall be referred to as, a “**Partnership**” and, together, the “**Partnerships**”.

As at the date of this Memorandum, the Luxembourg Partnerships do not yet qualify as alternative investment funds within the meaning of the AIFM Law.

The information contained in this Memorandum, which is to be used solely in connection with the consideration of the proposed terms for an investment in the Fund, is confidential to the person to whom it is addressed and should not be disclosed to or used or relied upon by any other person. Acceptance of this Memorandum by a prospective investor constitutes an agreement that neither it nor any of its employees or advisers shall use the information for any purpose other than for evaluating the proposed terms for an investment in the Fund. This Memorandum may not be photocopied, reproduced in whole or in part or distributed to others nor may any of the information contained herein be disclosed without the prior written consent of Macquarie. Each person accepting this Memorandum hereby agrees to return it promptly to Macquarie upon request without retaining any copies.

This Memorandum makes reference to the fund known as “Macquarie Specialized Infrastructure Global 3 (EUR) Fund”. However, this Memorandum does not relate to and should not be considered an offering of interests in, Macquarie Specialized Infrastructure Global 3 (EUR) Fund.

No person has been authorised to give any information or to make any representations not contained in this Memorandum and, if given or made, any such information or representation may not be relied on as having been authorised by the Manager.

In making an investment decision, prospective investors must rely on their own examination of the legal, taxation, financial and other consequences of an investment in the Fund and the terms of the offering including the merits and risks involved, including the risk of a partial or total loss of investment. Prospective investors should not treat the contents of this Memorandum as advice relating to legal, taxation or investment matters and are advised to consult their own professional advisers concerning the acquisition, holding or disposal of Interests.

The name “**Macquarie**” in this document refers to the Macquarie group of companies which comprises Macquarie Group Limited ABN 94 122 169 279 and its worldwide Associates. Macquarie comprises two separate sub-groups: a Banking Group, including Macquarie Bank Limited ABN 46 008 583 542 (“**MBL**”), and a Non-Banking Group. Macquarie Asset Management, a full-service asset manager, is part of the Non-Banking Group. References in this Memorandum to “**MIMEL**” or the “**Portfolio Manager**” are to Macquarie Investment Management Europe Limited company number 09612439 which will be appointed as portfolio manager of the Fund. The Manager has relied on input from the Portfolio Manager when preparing this Memorandum and certain statements made in this Memorandum which relate to the Fund’s investment strategy and prospective portfolio are therefore made by the Portfolio Manager. The Portfolio Manager is authorised and regulated by the FCA (FRN: 733534) and the SEC (SEC file no: 801-111954) and is a member of the Macquarie Group.

Investments in the Fund are not deposits with, or other liabilities of, MBL, or any other Macquarie company and are subject to investment risk, including possible delays in repayment and loss of income or capital invested. None of MBL, or any other Macquarie company guarantees any particular rate of return on, or the performance of, the Fund, nor do any of them guarantee the repayment of capital from the Fund.

IMPORTANT NOTICE

This Memorandum is being furnished solely to a limited number of sophisticated investors considering an investment in the Fund and may not be used for any other purpose. Capitalised terms not otherwise defined in this Memorandum shall have the meanings set forth in Section 8 entitled "Useful Definitions". This Memorandum and the information contained herein is confidential and may not be reproduced or provided to others (in whole or in part) without the prior written permission of the Manager. Each recipient of this Memorandum agrees to keep all information contained herein confidential (except as provided below) and to use this Memorandum for the sole purpose of evaluating a possible investment in limited partnership interests in the Partnerships, or units, limited partnership interests or similar interests in any Parallel Vehicle, as may be relevant ("**Interests**"). By accepting delivery of this Memorandum, each prospective investor agrees to the foregoing.

In making an investment decision, prospective investors must rely on their own examination of the Fund and the Interests and the terms of the offering of the Interests, including the merits and risks involved. The Interests have not been recommended, approved or disapproved by any securities commission or regulatory authority, and none of the foregoing authorities have passed upon or endorsed the merits of this offering or have confirmed the accuracy or determined the adequacy of this Memorandum. Any representation to the contrary may be a criminal offence. The Interests will be offered subject to the right of the General Partners to reject any subscription for Interests in the relevant Partnership in whole or in part. If a General Partner rejects a subscription, the relevant prospective investor will be notified as soon as is practicable.

An investment in the Interests will involve significant risks due, among other things, to the nature of the Fund's investments. Prospective investors should have the financial ability and willingness to accept the risks and lack of liquidity which are characteristic of the investment described herein. There will be no public market for the Interests, and they will not be transferable without the consent of the relevant General Partner. Prospective investors should pay particular attention to the information in Section 7 of this Memorandum entitled "Additional Information" under the heading "Risk factors".

Prospective investors should not construe the contents of this Memorandum as legal, tax, investment or other advice. Each prospective investor should make its own enquiries and consult its own advisers as to the Fund and the offering of the Interests and as to legal, tax and related matters concerning this investment. Prospective investors should inform themselves as to (i) the possible tax consequences; (ii) the legal and regulatory requirements; (iii) any foreign exchange restrictions or exchange control requirements; and (iv) any other requisite governmental or other consents or formalities which they might encounter under the laws of the countries of their incorporation, citizenship, residence, domicile or place of business and which might be relevant to the subscription, purchase, holding or disposal of Interests (including with respect to any currency issues that may be relevant thereto).

This Memorandum contains a summary of the Partnership Agreements and certain other documents referred to herein, which, as of the date of this Memorandum, have not yet been executed. However, the summaries set forth in this Memorandum do not purport to be complete. They, and the rest of the information contained herein, are subject to and qualified in their entirety by reference to the Partnership Agreements and such other documents, copies of which will be made available upon request and should be reviewed prior to subscribing for Interests in the Fund. In the event that the descriptions in or terms of this Memorandum are inconsistent with or contrary to the descriptions in or terms of the Partnership Agreements or such other documents, the Partnership Agreements and such other documents will prevail.

No person has been authorised in connection with this offering of the Interests to give any information or make any representations other than as contained in this Memorandum. Statements in this Memorandum are made as of February 2026, unless stated otherwise, and neither the delivery of this Memorandum at any time, nor any issuance of an Interest, shall under any circumstances create an implication that the information contained herein is correct as of any other time subsequent to such date. This Memorandum is dated February 2026. Macquarie reserves the right to modify any of the terms of the offering of the Interests and the Interests described herein.

The information in this Memorandum (including any financial information and information concerning past investments) has been obtained from published and non-published sources, but no representation or warranty, express or implied, is made by the Fund or Macquarie as to the accuracy or completeness of such information, other than those particular representations and warranties which may be made by the Fund and/or Macquarie in a definitive Subscription Agreement and/or a Side Letter, when and if such documents are executed, and subject to such limitations and restrictions as may be specified in such Subscription Agreement and/or Side Letter.

This Memorandum does not constitute an offer to sell to, or a solicitation of an offer to subscribe from, anyone in any country or jurisdiction: (i) in which such an offer or solicitation is not authorised; (ii) in which any person making such offer or solicitation is not qualified to do so; or (iii) in which any such offer or solicitation would otherwise be unlawful. No action has been taken that would, or is intended to, permit a public offering of Interests in any country or jurisdiction where any such action for that

purpose is required. Accordingly, Interests may not be offered or sold, directly or indirectly, and neither this Memorandum nor any other information, Subscription Agreement, advertisement or other document may be distributed or published in any country or jurisdiction except under circumstances that will result in compliance with any applicable laws and regulations. Prospective investors should review the information in Appendix 2 entitled "Certain Offering Notices". Persons into whose possession this Memorandum comes must inform themselves about and observe any legal restrictions affecting any subscription of Interests. The Fund is only suitable for professional or experienced investors, or those who have taken professional advice.

Each person who has received a copy of this Memorandum (whether or not such person acquires any Interests) is deemed to have agreed (i) not to reproduce or distribute the Memorandum, in whole or in part; (ii) if such person has not been accepted as an investor in the Fund, to return the Memorandum and any copies of the Memorandum (or part thereof) to the Manager upon its request; and (iii) not to disclose any information contained in the Memorandum except to the extent that such information was: (a) previously known by such person through a source (other than the Manager) not bound by any obligation to keep such information confidential; (b) in the public domain through no fault of such person; (c) later lawfully obtained by such person from sources (other than the Manager) not bound by any obligation to keep such information confidential; or (d) required to be disclosed by law or by any relevant regulatory authority.

The information contained herein does not purport to be all-inclusive and does not necessarily contain all the information necessary or that a prospective investor may desire in deciding whether or not to acquire or purchase Interests in the Fund. No representation or warranty, express or implied, is or will be made in relation to, and no responsibility or liability is or will be accepted by the Fund or Macquarie as to or in relation to, the accuracy or completeness of this Memorandum or any other information, written or oral, made available to any recipient of this Memorandum or its advisers.

Eligibility of Investors

Each investor and transferee of Interests will be required to complete the Subscription Agreement and to provide such representations, warranties or documentation as may be required to ensure that the Fund's eligibility requirements are met prior to the issue, the exchange or the registration of any transfer of Interests, including additional investments in Interests. The Subscription Agreement sets out the investor registration process in order to ensure compliance by the Fund with applicable anti-money laundering/counter-terrorism financing, FATCA and CRS obligations.

The General Partners reserve the right to impose restrictions on the direct or indirect holding of Interests by, and the transfer of Interests to, any person or entity who, in the opinion of the relevant General Partner, is prohibited from holding Interests under the relevant Partnership Agreement. The General Partners may reject, in their sole discretion, any application for Interests by any persons who are excluded from purchasing or holding Interests and, pursuant to the terms of the relevant Partnership Agreement, at any time redeem Interests held by investors who are so excluded from purchasing or holding Interests.

Investors should be aware that they will be required to bear the financial risks of this investment for an indefinite period of time. The Interests are not registered under the U.S. Securities Act of 1933, as amended, and all rules and regulations promulgated thereunder (the "**U.S. Securities Act**"), or any other applicable securities laws, and none of the Partnerships comprising the Fund intends to register any of the Interests under such laws, unless required to do so.

The Interests are being offered and sold: (i) outside the United States ("**U.S.**") to persons that are not "U.S. persons" (as defined in Regulation S promulgated under the U.S. Securities Act) in reliance on Regulation S promulgated under the U.S. Securities Act; and (ii) inside the United States, in reliance on Regulation D promulgated under the U.S. Securities Act. With respect to the Luxembourg Levered Partnership and the Luxembourg Unlevered Partnership, subscribers that are U.S. persons will be required to represent that they are (a) "accredited investors" as defined in Rule 501 of Regulation D promulgated under the U.S. Securities Act, and (b) either (I) "qualified purchasers" as defined in Section 2(a)(51) of the U.S. Investment Company Act of 1940 (as amended, and together with all the rules and regulations promulgated thereunder, the "**U.S. Investment Company Act**") or (II) "knowledgeable employees" as defined in Rule 3c-5 under the U.S. Investment Company Act. With respect to the Delaware Levered Partnership and the Delaware Unlevered Partnership, all subscribers will be required to represent that they are (i) "accredited investors" as defined in Rule 501 of Regulation D promulgated under the U.S. Securities Act, and (ii) either (a) "qualified purchasers" as defined in Section 2(a)(51) of the U.S. Investment Company Act or (b) "knowledgeable employees" as defined in Rule 3c-5 under the U.S. Investment Company Act. The Interests may not be sold, transferred, pledged or otherwise disposed of in the U.S. or to a U.S. person or otherwise unless the transaction relating thereto shall comply with or be exempt within the meaning of the U.S. Securities Act and the rules and regulations of the U.S. Securities and Exchange Commission ("**SEC**") adopted thereunder, and any other applicable securities laws. None of the entities comprising the Fund have been or will be registered as an "investment company" under the U.S. Investment Company Act. Accordingly, the Fund does not expect to be subject to the provisions of the U.S. Investment Company Act and investors will not be afforded the protections of the U.S. Investment Company Act.

CFTC Registration

Each of the General Partners and the Manager, as applicable, is exempt from registration with the U.S. Commodity Futures Trading Commission (“**CFTC**”) as a commodity pool operator (“**CPO**”) pursuant to CFTC Rule 4.13(a)(3). Therefore, unlike a registered CPO, neither the General Partners nor the Manager is required to deliver a CFTC disclosure document to prospective investors, and neither the General Partners nor the Manager is required to provide investors with certified annual reports that satisfy the requirements of CFTC rules applicable to registered CPOs.

The General Partners and the Manager, with respect to each relevant Partnership and other applicable entity comprising the Fund, each qualify for the exemption under CFTC Rule 4.13(a)(3) on the basis that, among other things: (i) each investor is an “accredited investor” as defined in Regulation D promulgated under the U.S. Securities Act or a “qualified eligible person” as defined under Rule 4.7 of the U.S. Commodity Exchange Act of 1936, as amended (the “**U.S. Commodity Exchange Act**”); (ii) the Interests are exempt from registration under the U.S. Securities Act and are offered and sold without marketing to the public in the United States; (iii) participation in the Fund is not marketed as, or in a vehicle for, trading in the commodity futures or commodity options markets; and (iv) at all times that the Fund establishes a commodity interest or security futures positions, either: (a) the aggregate initial margin and premiums required to establish such positions will not exceed 5% of the liquidation value of the Fund’s portfolio; or (b) the aggregate net notional value of the Fund’s commodity interests and securities futures positions will not exceed 100% of the liquidation value of the Fund’s portfolio. In addition, the Manager will rely on an appropriate exemption from registration as a commodity trading adviser under the U.S. Commodity Exchange Act.

The Interests will be subject to significant restrictions on transferability and resale, and may not be transferred or resold except as permitted under all applicable laws and the Partnership Agreements. Any resale or attempted resale or other transfer of Interests made other than in compliance with the transfer restrictions referred to herein and in the Partnership Agreements shall not be recognised by the relevant General Partner, any transfer agent or any other of the General Partners’ agents. For a further description of certain restrictions on the sale of the Interests and on distribution of this Memorandum, see Section 7.1.8 entitled “Risks related to investment in the Fund”.

Prospective investors should inform themselves as to the legal requirements and tax consequences within the jurisdiction of their residence or domiciled place of business with respect to the acquisition, holding or disposal of Interests and any foreign exchange or other restrictions that may be relevant thereto. See Appendix 2 entitled “Certain Offering Notices”. Notwithstanding anything in this Memorandum to the contrary, each recipient of this Memorandum (and any employee, representative or other agent thereof) may disclose to any and all persons, without limitation of any kind, the U.S. federal income tax treatment and U.S. federal income tax structure of the Fund or any transactions undertaken by the Fund, it being understood and agreed, for this purpose: (i) the name of, or any other identifying information regarding: (a) the Fund or any existing or future Investor (or any Associates thereof) in the Fund; or (b) any investment or transaction entered into by the Fund; (ii) any performance information relating to the Fund’s Investment Team members or their investments; and (iii) any performance or other information relating to prior funds or investments sponsored by the General Partners, the Manager or its Associates do not constitute such tax treatment or tax structure information.

For the avoidance of doubt, nothing herein is intended to or shall be interpreted as preventing or prohibiting any person from (i) engaging with or reporting actual or possible violations of U.S. federal or state law or regulation to any governmental agency or entity (including initiating any such communications with any such governmental agency or entity), including but not limited to the U.S. Securities and Exchange Commission, the U.S. Commodity Futures Trading Commission, the U.S. Department of Justice or the U.S. Financial Industry Regulatory Authority, or making other disclosures that are protected under the whistleblower provisions of U.S. federal or state law or regulation, without providing prior notice to, or obtaining authorisation from, the relevant General Partner, or (ii) receiving an award in connection with any such communications.

Each prospective investor is invited to meet with representatives of Macquarie and to discuss with, ask questions of and receive answers from such representatives concerning the terms and conditions of the offering of Interests, and to obtain any additional information necessary to verify the information contained herein, to the extent that such representatives possess such information or can acquire it without unreasonable effort or expense and are legally able to disclose it.

The Manager has taken all reasonable care to ensure that the facts stated in this Memorandum are true and accurate in all material respects and that there are no other facts the omission of which would make misleading any statement in this Memorandum, whether of fact or opinion. The Manager accepts responsibility accordingly. The views expressed herein with respect to future opportunities reflect the views and opinions of Macquarie given its experience. Neither Linklaters LLP nor Macquarie makes any representation as to the accuracy or completeness of such information.

This Memorandum is issued by the Manager and where applicable, another appropriately authorised member of the Macquarie Group on behalf of the Manager as further described in Appendix 2 entitled “Certain Offering Notices” below. It has not been issued by any other person.

Forward Looking Information

This Memorandum contains forward looking statements that relate to the Fund. This Memorandum also contains forward looking statements that relate to the financial and regulatory environments in which the Fund will operate and various other matters (collectively referred to as “**Forward Looking Information**”). Such Forward Looking Information is identifiable by words such as “anticipate”, “estimate”, “project”, “plan”, “intend”, “expect”, “believe”, “forecast” and similar expressions, and is located throughout this Memorandum. Prospective investors should be aware that these statements are estimates, reflecting only the judgment of the management of the Fund, and prospective investors should not place reliance on any Forward Looking Information. Actual results and events could differ materially from those contemplated by this Forward Looking Information as a result of factors such as those described in Section 7 of this Memorandum entitled “Additional Information” under the heading “Risk factors” and elsewhere in this Memorandum. Neither the Fund, the Manager, nor Macquarie undertakes any obligation to update or revise the information contained in this Memorandum to reflect events or circumstances occurring after the date of this Memorandum or to reflect the occurrence of unanticipated events.

Statements of Belief and Expectation

Statements set forth in this Memorandum expressing beliefs or expectations or views or opinions are those of Macquarie, unless stated otherwise.

Important Information Regarding Net Target Returns and Past Performance

Net Target Returns

This Memorandum contains information with respect to the net target return of the Fund. Target returns are hypothetical returns, not actual returns, and do not reflect the performance of any actual fund or returns of any actual investor. Such information is not intended to forecast or predict the actual returns that will be achieved by the Fund as a whole or in respect of any specific Investment but rather to indicate the target return that the Manager will seek to achieve in respect of the Fund. As such, any actual returns received by Fund Investors may be materially lower than the target net returns shown. The Manager has set the target return on the basis of its belief about the returns that may be achievable on Investments that the Fund intends to pursue in light of the experience of the Manager and its Associates, its view of credit market conditions as at the date of preparing this Memorandum and certain assumptions about investing conditions, interest rates and other market fluctuations believed by the Manager to be reasonable under the circumstances. There is no guarantee that the facts on which such assumptions are based will materialise as anticipated, that market conditions will not deteriorate or that the Manager or the Portfolio Manager will be able to source Investments in line with such target. Any changes in such assumptions, market conditions or availability of Investments may have a material and adverse impact on the target return presented. Actual events and conditions may differ materially from those used to establish such target. Returns for individual Investments acquired by the Fund may be greater or less than the target return. The target return of the Fund is not a guarantee or prediction of future performance by the Fund as a whole or with respect to any specific Investment. The target return is not necessarily indicative of, or correlated to, the returns or performance of an investment in the Fund, which will be impacted by a number of factors, including that (i) the target return is calculated on an Investment-by-Investment basis and reflects expectations as to defaults in respect of the overall portfolio of Investments held by the Fund; and (ii) the target return is calculated after giving effect to the highest Fund management fees, performance fees and Fund-level expenses that are expected to be borne by Investors in the Fund (including, for the avoidance of doubt, fund-level taxes but excluding taxes borne or to be borne by Investors or vehicles through which they participate in investments (including, for example, alternative investment vehicles, corporations and feeder funds) which would further reduce returns). There can be no assurances that Investors will receive a return of capital in respect of the Fund or any particular Investment. Further information about the criteria and assumptions used in the calculation of target returns can be provided upon request.

Past Performance

This Memorandum contains statements that relate to investment performance, including prior relevant investment experience of MAM Private Credit (defined below) since 2014. The past performance of other previous funds or investments managed or advised by MAM Private Credit is not a reliable guide to future performance of the Fund or any MAM Private Credit Product. There can be no assurance that the Fund’s Investment Objective, target return, or any other objectives of the Fund will be achieved or that any Investor will receive any return of capital or any income. The Manager and the Portfolio Manager may face materially different market, economic and tax conditions and will have substantially different investment opportunities than those that were available in the past. Economic and market conditions have been materially different during different periods from 2014 to date and therefore, any profits or losses generated during such periods may not be replicated. Further, the performance of these positions does not reflect the impact that material economic and market factors may have had on the Manager and the Portfolio Manager’s decision-making had they been actually managing the Fund during the same timeframe. The investment strategies and instruments reflected in MAM Private Credit’s prior relevant investment experience may not represent the opportunities that the Investment Team will see when they review and analyse opportunities for the

Fund. All of the above factors would likely affect the performance of the Fund. Investors may contact the Manager to request further information on the MAM Private Credit's prior relevant investment experience (including all relevant investments made by MAM Private Credit between 2014 and 2025).

Prospective investors should also review the on-page footnotes accompanying the performance information shown in this Memorandum for more detailed information regarding the calculation method and disclosures related to performance shown, including the impact of expenses, fees and other charges on the returns presented.

Certain figures in this Memorandum have been rounded and should be treated as approximate values rather than exact figures.

1. Executive Summary

The Fund

Investment Opportunity

Macquarie Asset Management (“MAM”) is establishing the Fund (defined below) with the objective to generate attractive risk-adjusted returns by primarily originating and investing into debt Investments where the underlying assets have infrastructure or infrastructure-like characteristics, meaning highly defensive positions within sustainable and long-term markets in which they operate. The Fund will primarily invest in secured Investments in North America, Europe and the United Kingdom, with a predominant focus on Investments within North America. The Manager therefore expects that Investments will provide capital preservation to Investors.

Levered and Unlevered Option

Macquarie Specialized Infrastructure Global 3 (USD) Fund offers both a levered and an unlevered option and is comprised of:

- **Levered Option:** Macquarie Specialized Infrastructure Global 3 (USD) Lev Onshore Fund LP, a Delaware limited partnership (the “**Delaware Levered Partnership**”) and Macquarie Specialized Infrastructure Global 3 (USD) Lev Offshore Fund SCSp a Luxembourg special limited partnership (*société en commandite spéciale*) (the “**Luxembourg Levered Partnership**”) and, together with the Delaware Levered Partnership, the “**Levered Partnerships**”);
- **Unlevered Option:** Macquarie Specialized Infrastructure Global 3 (USD) UnLev Onshore Fund LP, a Delaware limited partnership (the “**Delaware Unlevered Partnership**”) and Macquarie Specialized Infrastructure Global 3 (USD) UnLev Offshore Fund SCSp, a Luxembourg special limited partnership (*société en commandite spéciale*) (the “**Luxembourg Unlevered Partnership**”) and, together with the Delaware Unlevered Partnership, the “**Unlevered Partnerships**”),

and any other Parallel Vehicle and Alternative Investment Vehicles formed from time to time (together with the Levered Partnerships and the Unlevered Partnerships, the “**Fund**”).

The Levered Partnerships are expected to employ asset-based leverage, including for investment purposes.

The Levered Partnerships will target a net portfolio internal rate of return (“**IRR**”) of 10-12% per annum and the Unlevered Partnerships will target a net IRR of 8-10% per annum.¹

Hybrid Structure

Investors have the option to invest in the Fund, on a continuous basis (as an evergreen structure) or on a closed-ended basis with an expected term of 10 years (subject to permitted extensions). Please see further details in Section 3.4 entitled “Hybrid Structure”.

The Fund may reinvest proceeds from return of principal and prepaid Investments or other return of capital invested and proceeds from secondary sales (if any) until an Investor decides to opt-out from the reinvestment program by electing a run-off redemption at any time on or following the third anniversary of the quarter end date following the Final Closing Date. Alternatively, Investors can pre-elect, when committing to the Fund, to stop reinvesting on the first Withdrawal Date following the fifth anniversary of the Final Closing Date to replicate a closed-ended structure.

Macquarie Specialized Infrastructure Global 3 (EUR) Fund

The Manager, or an Associate thereof, intends to establish an alternative investment fund known as “Macquarie Specialized Infrastructure Global 3 (EUR) Fund” (hereafter, “**Macquarie Specialized Infrastructure Global 3 (EUR) Fund**” or “**MSIG 3 (EUR)**”, as applicable). It is intended that MSIG 3 (EUR) will invest in some but not necessarily all Investments of the Fund.

¹ Target net IRR figures are hypothetical returns, not actual returns, and do not reflect the performance of any actual fund or returns of any actual Investor. They represent the hypothetical, target IRR of the Fund, inclusive of the highest Fund management fees, performance fees and Fund-level expenses that are expected to be borne by Investors in the Fund (including fund-level taxes but excluding taxes borne or to be borne by Investors or vehicles through which they participate in investments). The net target returns referred to above will be influenced by base interest rates and have been determined by the Manager on the basis of estimates and assumptions about performance believed to be reasonable in light of both current market conditions as at the date of preparing this Memorandum and the Manager’s views on future market conditions. There can be no assurance that the Fund will achieve the net target returns referred to above or that the Fund will be able to implement its investment strategy or achieve its investment objectives. Actual returns received by Fund Investors can be lower than the target net returns shown. Actual realised returns will depend on, among other factors, future operating results, the value of the assets and the market conditions at the time of disposal, any related transaction costs and the timing and manner of sale, all of which may differ from the assumptions on which the returns forecasted above are based. Further information about the criteria and assumptions used in the calculation of target net IRR can be provided upon request.

MSIG 3 (EUR) will have a different geographical focus and therefore MSIG 3 (EUR)'s investment guidelines and restrictions will differ from those of the Fund. For the avoidance of doubt, MSIG 3 (EUR) will not be considered a Parallel Vehicle of the Fund, and the Fund will not be considered a parallel vehicle of MSIG 3 (EUR). For the purposes of this Memorandum, the Fund together with MSIG 3 (EUR) shall be referred to as the **"MSIG 3 Strategies"**.

Target Size and Minimum Commitment

MAM is targeting aggregate commitments across the MSIG 3 Strategies of USD 1.5-2.0 billion.

The minimum Commitment by each Investor is USD 10 million, or such lower amount as may be agreed by the Manager in its sole discretion.

Macquarie Group Overview

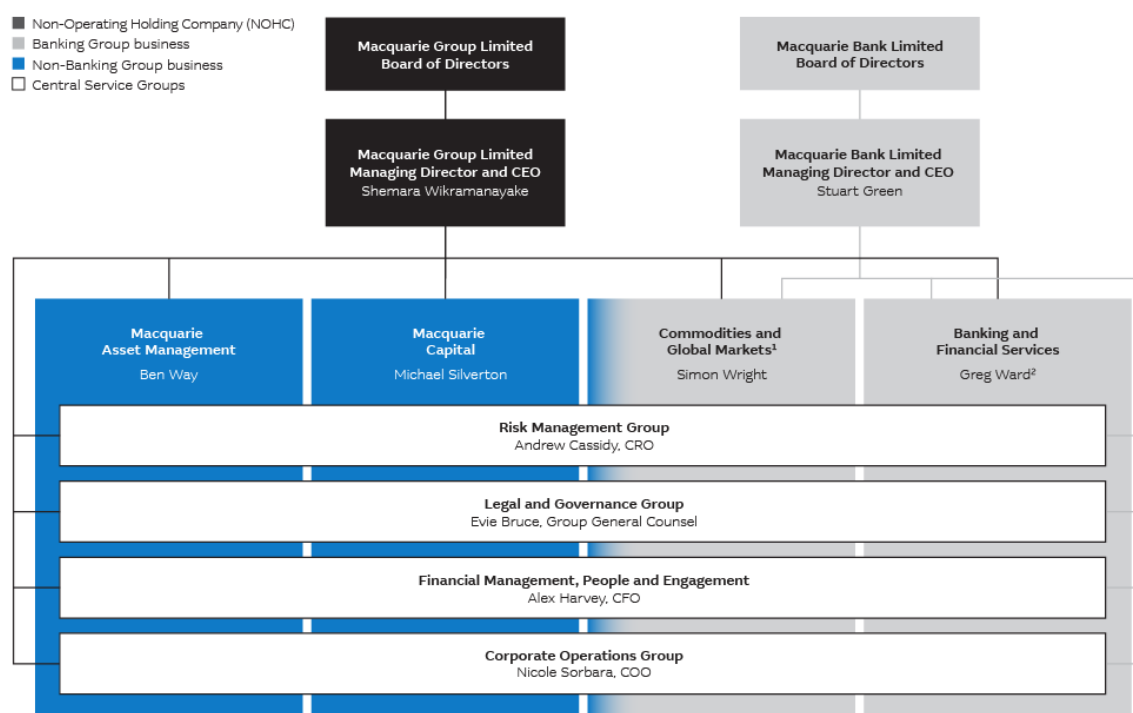
Macquarie Group Limited is a global financial services group headquartered in Sydney and listed on the Australian Securities Exchange. Macquarie Group's breadth of expertise covers asset management, retail and business banking, wealth management, leasing and asset financing, market access, commodity trading, renewables development, specialist advice, access to capital, and principal investment.

Macquarie Group works with institutional, corporate, government, and retail clients, as well as counterparties around the world, providing a diversified range of products and services. Macquarie Group has established leading market positions as a global specialist in a wide range of sectors, including resources and commodities, renewables, conventional energy, financial institutions, infrastructure, and real estate.

As of 1 December 2025, Macquarie Group had over 18,470 employees with offices in 31 markets around the world.

Organisation Structure of Macquarie Group

Please refer to the chart below and description which follows:



As at 1 January 2025.

1. Certain assets of the Credit Markets business, certain activities of the Commodity Markets and Finance business, and some other less financially significant activities are undertaken from within the Non-Banking group.

2. The current Group Head of BFS is also the Deputy Group CEO.

As shown in the chart above, Macquarie Group operates across four distinct operating businesses:

Macquarie Asset Management is a global asset manager, providing access to specialist investment expertise across a range of capabilities including fixed income, equities, multi-asset solutions, private credit, infrastructure, green investments, agriculture and natural assets, real estate, and transportation finance. As of 30 September 2025 it had USD 476 billion of assets under management.

Macquarie Capital provides advisory and capital raising services, investing alongside partners and clients across the capital structure, providing clients with specialist expertise, advice and flexible capital solutions across a range of sectors.

Commodities and Global Markets provides clients with an integrated, end-to-end offering across global markets including equities, fixed income, foreign exchange, commodities, technology, media and telecommunications. The platform covers over 30 market segments and more than 200 products, providing clients with access to markets, financing, financial hedging, physical execution, and research and market analysis.

Banking and Financial Services comprises Macquarie Group's retail banking and financial services businesses, providing a diverse range of personal banking, wealth management and business banking products, and services to retail clients, advisers, brokers and business clients in the Australian market.

These operating businesses benefit from institutional-quality shared services across four central functions: risk management, legal and governance, financial management and corporate operations.

About MAM Credit & Insurance and Private Credit

With approximately USD 154 billion of assets under management², MAM's Credit & Insurance division has a global team of approximately 200 investment professionals³ providing access to a broad range of investment solutions across fixed income, leveraged credit and private credit, with a focus on excellence in client service.

Through participating in the Fund, Investors gain access to the experience and credibility of MAM Private Credit, which the Manager considers integral to the successful investment outcome of an infrastructure debt strategy, such as the Fund.

Macquarie established its private credit capabilities ("**MAM Private Credit**") within Macquarie Asset Management ("**MAM**") in early 2012⁴. MAM Private Credit now forms part of MAM's Credit & Insurance division, a global credit platform offering focused expertise and solutions across the liquidity, risk and return spectrum.

MAM Private Credit has an established track record for sourcing, investing and managing investments across different geographies, transaction structures and risk profiles leveraging the team's deep and broad expertise across the sectors in which MAM invests. Since establishing the business and as of 30 September 2025, MAM's infrastructure debt business (which sits within MAM Private Credit) has been awarded mandates of approximately USD 22 billion, with significant investors from the insurance, pension and sovereign wealth fund sectors, and approximately USD 19 billion has been invested across a number of infrastructure sub-sectors.

Specialised Infrastructure Debt Strategy

Since 2014, MAM Private Credit has been investing in specialised infrastructure debt on behalf of a number of separate managed account clients and through the use of Macquarie Group's balance sheet. In 2018, Macquarie established its inaugural flagship specialised infrastructure debt fund, Macquarie Infrastructure Debt (Sub-Investment Grade) Fund 1 ("**MSIG 1**"), which focused on lending to infrastructure assets with credit spreads of ~450 basis points ("**bps**"). MSIG 1 raised USD 829 million and was deployed by mid-2022, delivering a weighted average credit spread⁵ at origination across the portfolio of 445bps.

Owing to the success of the strategy, MAM launched a successor fund, the Macquarie Specialised Infrastructure (Global) Debt Fund 2 ("**MSIG 2**") which had its first close in 2021. MSIG 2 followed a similar strategy to MSIG 1, with a slightly broader investment mandate. MSIG 2 raised USD 662 million and is delivering a weighted average credit spread⁵ at origination across its portfolio of 559bps.

The Fund will seek to capitalise on the growing opportunity by following a similar strategy to MSIG 2, whilst allocating to a higher proportion of infrastructure-like borrowers and greenfield assets in order to achieve a slightly higher return target.

² As at 30 September 2025.

³ As at 30 September 2025.

⁴ Any reference to "Private Credit" in this Memorandum means and includes teams and processes related to MAM's private infrastructure debt, portfolio financing, secure income real estate, and direct lending businesses only.

⁵ Weighted average credit spread is calculated by taking the average of the spreads achieved for each investment in the relevant fund, weighted by the face value of the fund's commitment to the relevant investment and including any upfront origination or similar fee pro-rated to the expected maturity of the investment. When determining the spread for each investment, MAM considers the all-in credit return, which includes (i) the contractual credit margin above the applicable base rate, (ii) any borrower paid fees amortised to the expected maturity, (iii) any commitment fees, amortised to the expected maturity and/or (iv) any purchase discount or premium amortised to the expected maturity.

Across the United States, United Kingdom and Europe, the Manager considers that there have been megatrends around decarbonisation, digitalisation and demographics, which are driving a strong pipeline of opportunity offering potentially attractive risk-adjusted returns in line with the Fund's target return profile. In addition, the Manager believes that there are tailwinds emanating from the withdrawal of traditional banks from infrastructure financing which has created significant opportunities for non-bank lenders which has resulted in infrastructure debt being the fastest growing segment of the infrastructure asset class with assets under management expanding at 14.4% compound annual growth rate since 2015.⁶

In line with the expansion in the asset class, MAM Private Credit has continued to enhance its specialised infrastructure debt capabilities through talent pool growth including strategic hires. In addition, MAM Private Credit has changed its structure by hiring and allocating dedicated senior members of the Investment Team who are primarily focused on investing into specialised infrastructure debt, with the support of the junior pool.

Why Macquarie for Specialised Infrastructure Debt?



Infrastructure Expertise

One of the largest infrastructure managers globally⁷ with ~453 investment professionals across 31 offices worldwide⁸, which provides an information advantage



Strong Origination Network

Wide-reaching origination network through our investment professional's direct relationships with borrowers, sponsors and advisers complemented by access to the Macquarie platform's broader origination network

MAM Private Credit has executed investments representing only 7% of opportunities originated (where an NDA has been signed)⁹



Proven Infrastructure Debt Track Record

Extensive experience in infrastructure debt, evidenced by approximately USD 22 billion in client commitments, over 180 investments, and transactions across 17 countries¹⁰



Experienced Investment Team

Average of 16 years of senior experience¹¹, significant structuring and workout expertise across multiple economic cycles, and access to the extensive knowledge and expertise available across the broader Macquarie platform



Strong Risk-Focused Culture

Risk-based due diligence to ensure investments are in the long-term interest of Macquarie clients

⁶ Preqin data April 2025.

⁷ The ranking presented herein is awarded in July 2025 and is the opinion of IPE Real Assets and not of Macquarie. No such person creating the ranking is affiliated with Macquarie or is an investor in Macquarie-sponsored vehicles. IPE Real Assets surveyed and ranked global infrastructure investment managers. The ranking is based on infrastructure AUM as of 31 March 2025. AUM is defined by IPE Real Assets as the total gross asset value of all assets managed and committed capital (including uncalled). There can be no assurance that other providers or surveys would reach the same conclusions as the foregoing. No compensation was provided directly or indirectly to IPE in connection with this ranking.

⁸ As at 31 December 2025.

⁹ As at 30 September 2025.

¹⁰ As at 30 September 2025.

¹¹ As at February 2026.

2. Summary of Key Terms

The following summary of key terms relating to the Fund is qualified in its entirety by, and should be read in conjunction with, Section 5 entitled “Summary of Terms” and the Partnership Agreements. The Partnership Agreements should be reviewed carefully for more complete information regarding each relevant Partnership. In the event of any inconsistency between this summary and the Partnership Agreements, the Partnership Agreements will prevail.

Term	Description
<i>Fund</i>	• Levered Partnerships: Macquarie Specialized Infrastructure Global 3 (USD) Lev Onshore Fund LP and Macquarie Specialized Infrastructure Global 3 (USD) Lev Offshore Fund SCSp. • Unlevered Partnerships: Macquarie Specialized Infrastructure Global 3 (USD) UnLev Onshore Fund LP and Macquarie Specialized Infrastructure Global 3 (USD) UnLev Offshore Fund SCSp.
<i>Legal Structure</i>	A series of Delaware limited partnerships and Luxembourg special limited partnerships (<i>société en commandite spéciale</i> , SCSp).
<i>Investment Objective</i>	To generate attractive risk-adjusted returns by originating and investing into debt Investments where the underlying assets have infrastructure or infrastructure-like characteristics, meaning highly defensive positions within sustainable and long-term markets in which they operate. The Fund will primarily invest in secured Investments in North America, Europe and the United Kingdom with a predominant focus on Investments within North America. See Section 3.3 entitled “Investment Strategy” for further information on target asset characteristics.
<i>Target size</i>	USD 1.5 billion – 2.0 billion, in aggregate, across the MSIG 3 Strategies.
<i>Target Return</i> ¹²	• Levered Partnerships: Target net IRR of 10-12% per annum. • Unlevered Partnerships: Target net IRR of 8-10% per annum.
<i>Term</i>	The Fund will operate on a continuous basis.
<i>Final Closing Date</i>	2 years following the First Closing Date. The Final Closing Date may be extended for an additional 6-month period to harmonise the Final Closing Date across the Fund vehicles.
<i>Reinvestment</i>	Subject to an Investor electing to be a Withdrawing Investor, all proceeds from return of principal or capital invested, prepaid Investments and proceeds from secondary sales will be reinvested.
<i>Lock-Up Period</i>	3 years from the quarter end date following the Final Closing Date.
<i>Withdrawal</i>	Investors may request to fully or partially withdraw from the Fund on or following the Lock-Up Period. See Section 3.4, entitled “Hybrid Structure” for further information.
<i>Automatic Withdrawing Investor</i>	Investors seeking to replicate a closed-ended fund investment may elect to be treated as an Automatic Withdrawing Investor at the time an investor commits to the Fund. See Section 3.4, entitled “Hybrid Structure” for further information on investor-optionality.
<i>Distribution Policy</i>	The Fund intends to make quarterly cash distributions to the Investors of all distributable income.

¹² Target net IRR figures are hypothetical returns, not actual returns, and do not reflect the performance of any actual fund or returns of any actual Investor. They represent the hypothetical, target IRR of the Fund, inclusive of the highest Fund management fees, performance fees and Fund-level expenses that are expected to be borne by Investors in the Fund (including fund-level taxes but excluding taxes borne or to be borne by Investors or vehicles through which they participate in investments). The net target returns referred to above will be influenced by base interest rates and have been determined by the Manager on the basis of estimates and assumptions about performance believed to be reasonable in light of both current market conditions as at the date of preparing this Memorandum and the Manager’s views on future market conditions. There can be no assurance that the Fund will achieve the net target returns referred to above or that the Fund will be able to implement its investment strategy or achieve its investment objectives. Actual returns received by Fund Investors can be lower than the target net returns shown. Actual realised returns will depend on, among other factors, future operating results, the value of the assets and the market conditions at the time of disposal, any related transaction costs and the timing and manner of sale, all of which may differ from the assumptions on which the returns forecasted above are based. Further information about the criteria and assumptions used in the calculation of target net IRR can be provided upon request.

Term	Description
<i>Sponsor Commitment</i>	In respect of (i) each Partnership, at least 10% of such Partnership's aggregate commitments on or before the respective First Closing Date; and (ii) the Fund, on or before the Final Closing Date, an aggregate amount (including made in or alongside any Partnership) equal to the lesser of: (a) 10% of Fund Commitments as at the Final Closing Date; and (b) an amount necessary to ensure that USD 150 million has been committed across the MSIG 3 Strategies. The Sponsor commitment may not be withdrawn or transferred (other than to an Executive Partner) until the third anniversary of the quarter end date following the Final Closing Date. Thereafter, withdrawal and transfer are permitted as set out in Section 5 entitled "Summary of Terms", subject to a minimum threshold. See Section 5 entitled "Summary of Terms" and "Sponsor Commitment reduction" and "Allocation of Sponsor Commitment" in Section 7.1.10 entitled "Conflicts of interest" for further information.
<i>Currency</i>	U.S. dollar. Additional parallel or feeder vehicles may be established to accept commitments in other currencies to meet the specific needs of Investors.
<i>Management Fee</i>	1.00% on Invested Capital.
<i>Hurdle</i>	• Levered Partnerships: 8% • Unlevered Partnerships: 6%
<i>Performance Fee</i>	Annual performance fee of 12.5% with an 80% catch-up and 3-year look-back calculation. The first performance fee period will commence on the date of the Initial Closing Date and end on 31 March 2031. Performance fee will thereafter be paid annually. See Section 5, entitled "Summary of Terms" for further information.
<i>Legal Counsel</i>	Linklaters LLP.

3. Investment Focus and Strategy

3.1 Investment Focus

The Fund will seek to generate attractive risk-adjusted returns by originating and investing into at least 15 Investments by the end of the Lock-Up Period. The assets will primarily be secured, and have infrastructure or infrastructure-like characteristics, meaning highly defensive positions within sustainable and long-term markets in which they operate.

Key target Investment characteristics will include the following:

- **Defensive and resilient:** The Manager will focus on Investments where the underlying assets have infrastructure or have infrastructure-like characteristics, including essential services and material barriers to entry. Key considerations of the Manager in this respect, will be to ensure such underlying assets are able to withstand the impacts, over the long term, of economic stress across multiple economic cycles. More generally, infrastructure assets observe lower levels of default rates compared to non-financial corporates¹³, as well as higher recovery rates¹⁴.
- **Predictable cashflows:** The Manager will focus on investing in Investments with underlying assets that have predictable / “sticky” cashflows. As part of the due diligence conducted, a key focus of the Manager will be on ensuring the **counterparties** (such as sponsors, suppliers, off-takers, construction contractors, concession providers, etc.) are of good quality.
- **Stable jurisdictions:** The Manager expects that the overall portfolio will have a focus on OECD jurisdictions, largely in North America, UK and Europe, with a maximum 20% allocation outside of countries in the OECD. The Manager will focus on making Investments in jurisdictions that the Manager believes are stable, safe and transparent.
- **Bilateral / club deals:** The Manager believes that a focus on bilateral or “club-style” Investments will provide it with greater negotiating influence both ahead of signing the Investment and in the event of a workout.
- **Other:** The Manager will take a strategic approach to the selective use of payment in kind (“PIK”), liquidity relief, as well as opportunistic inclusion of equity-linked instruments for growth-linked opportunities.

The Manager intends to structure Investments with appropriate protections to both minimise the risk of default and to maximise the recovery in the event of a default. Credit analysis will help to ensure that Investments are predicated on appropriate Investments case projections, and that in reasonable downside cases, the principal value of Investments is protected. These may include:

- **Detailed financial and risk analysis:** Transactions should be structured to ensure each Investment is robust in downside cases and that valuations of the underlying assets support the principal value of Investments.
- **Security over the business:** Transactions are generally expected to be structured with security interests in order to help ensure that the covenant package of subordinated lenders has sufficient “teeth” to enable lenders to take control in sufficient time to protect the value of capital invested.
- **Cash flow covenants:** The Manager will seek to ensure that covenants are generally included in Investments such that, in the event of underperformance against an expected situation, there are consequences giving lenders more control. This may relate to cashflows (for example, a dividend block) or the ability to “step in” and take additional control of the business prior to further deterioration in its performance.
- **Other covenants:** Covenants may also be included to help appropriately manage the risk profile of the underlying asset / company over time, such as restricting acquisitions and disposals, restricting additional leverage, ensuring businesses are managed in line with good industry practice, and to reduce operational and financial risk (such as hedging).

It is these core lender protections which have, in the Manager’s view, enabled Investments backed by infrastructure assets to demonstrate relative resilience in comparison to other asset classes historically and, in particular, during the COVID-19 pandemic¹⁵.

¹³ S&P Global (2025), “Default, Transition, and Recovery: 2024 Annual Infrastructure Default And Rating Transition Study”.

¹⁴ Moody’s Annual default studies (February 2024 and July 2024), “Annual default study: Corporate default rate to moderate in 2024 but remain near its long-term average” and “Infrastructure default and recovery rates, 1983-2023”. The comparable Moody’s corporate bond ratings are based on Moody’s proprietary database of ratings and defaults for unsecured corporate bond and loan issuers (including financial issuers).

¹⁵ Moody’s (2023), “Defaults and recovery rates for project finance bank loans, 1983-2021”. Comparison has been made against unsecured corporate bonds.

3.2 Management Approach

The Manager will seek to apply a risk-driven fundamental credit analysis approach to all Investments which aims to identify opportunities where the Manager believes that the return achieved for the risk taken will be maximised¹⁶.

The Manager believes this can be achieved through active involvement in the infrastructure market, leveraging the reputation and relationships of both MAM Private Credit and the broader Macquarie Group, engaging early in the origination process, providing Borrowers with a professional lending platform, delivering strong execution capabilities and benefiting from Macquarie's considerable experience in infrastructure lending, structuring and asset management capabilities.

The Manager will seek to generate strong deal flow by leveraging off:

- the infrastructure investing and advisory experience of the Investment Committee and Investment Team, including their depth of knowledge of borrower motivations for funding and lending structures and a flexible and innovative approach to structuring of lending transactions; and
- the external reputation of both MAM Private Credit and Macquarie and relationships generated by Macquarie as a leading participant in the infrastructure sector.

The Manager and the Portfolio Manager will seek to apply a disciplined approach to the investment process characterised by robust and detailed due diligence of proposed investments and incorporation of the Investment Committee's broad private credit experience in evaluating investment opportunities.

Once invested, the Manager, the Portfolio Manager and the Investment Team will seek to take an active approach to ongoing management of all positions, including by proactively monitoring Borrower compliance with obligations specified in legal agreements and actively engaging with, including making recommendations where appropriate, any broader lender group where it is necessary to take lender actions to protect the Fund's interests. The Investment Committee will monitor these activities via the active schedule of reports produced by the Investment Team and the Portfolio Monitoring Team.

The Manager and the Portfolio Manager can access large in-house operational scale and experience (including support functions outlined in Section 4.1 entitled "About the Manager"), which has been developed to support Macquarie's activities as a large global alternative fund manager and active corporate lender.

3.3 Investment Strategy

Target Return

The Fund will target Investments that generate an attractive risk-adjusted return. With the Fund primarily adopting a buy and hold strategy, an illiquidity premium is obtainable, and the complexity involved in structuring transactions attracts a further premium. Moreover, actively originating proprietary investments through Macquarie's sourcing channels will allow the Fund to participate in differentiated transactions, which will allow the Fund to lead on setting pricing and terms.

The Manager will seek to structure the majority of Investments to maintain current, cash-pay debt service throughout the life of the Investments. The Fund is expected to have the selective use of PIK features, temporary liquidity relief, and equity-linked structures where appropriate. Exposure to equity-linked structures is expected to be via assets where the core returns are from fixed income but have the potential to share in the upside (for example, in the form of warrants or equity participations). These structures are intended to be a small portion of the overall portfolio.

The Levered Partnerships will aim to achieve a target net IRR of 10-12%¹⁷ per annum. The Unlevered Partnerships will aim to achieve a target net IRR of 8-10%¹⁸ per annum.

For the avoidance of doubt, the target net IRR reflects the Manager's view of market conditions at the date of preparing this Memorandum. The actual net IRR achieved at the time of making an Investment may be below the target net IRR set out above, depending on market conditions at the time of making such Investment.

¹⁶ Participation of Macquarie personnel in the Fund's investment activities is subject to applicable law and inside information barrier policies and procedures, which may limit the involvement of such personnel in certain circumstances and the ability of the Private Credit team to leverage such personnel within Macquarie.

¹⁷ Target net IRR figures are hypothetical returns, not actual returns, and do not reflect the performance of any actual fund or returns of any actual investor. They represent the hypothetical, target IRR of the Fund, inclusive of the highest Fund management fees, performance fees and Fund-level expenses that are expected to be borne by investors in the Fund (including fund-level taxes but excluding taxes borne or to be borne by investors or vehicles through which they participate in investments). The net target returns referred to above have been determined by the Manager on the basis of estimates and assumptions about performance believed to be reasonable in light of both current market conditions as at the date of preparing this Memorandum and the Manager's views on future market conditions. There can be no assurance that the Fund will achieve the target net returns referred to above or that the Fund will be able to implement its investment strategy or achieve its investment objectives. Actual returns received by Fund investors can be lower than the target net returns shown. Actual realised returns will depend on, among other factors, future operating results, the value of the assets and the market conditions at the time of disposal, any related transaction costs and the timing and manner of sale, all of which may differ from the assumptions on which the returns forecasted above are based. Further information about the criteria and assumptions used in the calculation of target net IRR can be provided upon request.

¹⁸ As above

Diversification

The Fund will aim to invest in a portfolio of Investments which provide exposure to specific asset types and infrastructure sub-sectors in line with prudent portfolio management principles applied by the Portfolio Manager and subject to the Investment Restrictions and the pipeline of investment opportunities available.

The Manager seeks to assemble a diversified portfolio for the Fund across multiple levels:

- **Jurisdiction:** The Fund's global remit means investors can obtain the diversification benefits of having exposure to different regulatory regimes, subsidy regimes, off-takers and economic and monetary policy. Moreover, the economies of each country operate at different speeds, which means diversification across jurisdictions is important to mitigate against business cycles. The key jurisdictions targeted by the Fund are expected to be North America, Europe and the United Kingdom, with a predominant focus on Investments within North America.
- **Sub-sectors:** The Fund will aim to invest across different infrastructure market sub-sectors where the correlation to business cycles across various sub-sectors are different.
- **Technology:** As a result of the energy transition thematic, the Manager believes that there is a significant opportunity to invest in decarbonisation technologies. Having the Fund diversify across technologies is desirable as it means the Fund's performance will not be determined by the success of a concentrated number of technologies.

The Fund will limit exposures by individual Investment as outlined in Section 5 entitled "Summary of Terms".

Geographic Focus

A primary focus for the Fund will be North America, Europe and the United Kingdom, with a predominant focus on Investments within North America. Through the relationships and experience of MAM's Private Credit investment professionals, as supported by Macquarie's global network of offices, the Fund will benefit from the ability to access and underwrite across these jurisdictions, amongst others.

Sustainability

Where material and in line with our fiduciary duty, the identification, assessment and management of sustainability considerations are an integral part of the diligence process. Our approach to sustainability, including ESG, and assessment of sustainability risks in the investment process are outlined in detail in Section 4.3 entitled "Sustainability".

Permitted Investments

Provided a proposed Investment is consistent with the Investment Objective and Investment Restrictions, the Fund may, among other things:

- invest in instruments with fixed or floating interest rates;
- invest in a variety of securities including, but not limited to, loans (including, but not limited to, term loans and revolving loans), private and public notes or bonds (whether listed or unlisted), notes issued from a special purpose vehicle, sub-participations, securitisations (including synthetic securitisation), debentures, loan stocks, equity securities, letters of credit, leases, or borrowing facilities;
- invest in instruments with differing maturities and repayment schedules including, but not limited to, bullet, amortising, payment-in-kind, original issue discount, pay-if-you-can, zero coupon and/or a mixture of repayment schedules and may include revolving facilities as well as including features such as cash sweeps where desirable;
- invest in debt or debt-related instruments with a partial equity-linked component;
- invest in Investments of Borrowers whose business is the development, construction and/or operation of infrastructure;
- invest and/or commit to invest in Investments where funds are drawn down by the Borrower at the outset of the Investment, or over a period of time;
- invest and/or commit to invest in Investments which are senior, subordinated or any other ranking within the capital structure of a Borrower;
- participate in bilateral, small lender group and syndicated facilities;
- invest in Investments which are secured;
- invest in Investments which are unrated or have an external rating;

- invest in Investments which are financing special purpose vehicles (“SPVs”), holding companies and/or are guaranteed by holding companies which directly or indirectly own operating companies; and
- hold Investments through intermediate vehicles or SPVs established for the purpose of holding Investments, including, but not limited to, entities incorporated in the United States and/or Luxembourg.

Excluded Investments

If a proposed investment is consistent with the Investment Objective and Investment Restrictions, the Manager may determine not to invest in such investment where:

- (other than any equity investments) the instrument's aggregate interest payments (until maturity) are expected, from the investment date, to be paid entirely through PIK mechanisms;
- it is issued by a Borrower which the Portfolio Manager reasonably determines does not meet the following baseline environmental or social safeguards (as applicable):
 - derives a material part of its returns from the tobacco or adult entertainment industries;
 - has credible allegations or evidence of human rights breaches; or
 - has significant detrimental impacts on environmentally sensitive or protected areas.

The determination as to whether a proposed investment opportunity falls within the foregoing excluded categories of investment will be made in good faith by the Manager at the time that the Investment is entered into by the Fund based on the information reasonably available to the Manager at the time of determination.

Primary and Secondary Market

Whilst the Manager expects the Fund to primarily invest in bilateral or “club-style” Investments originated in the primary market, the Fund may also purchase existing Investments from the secondary market where such Investments meet the Fund's Investment Objective and Investment Restrictions. Similarly, whilst the Manager expects the Fund to primarily utilise a buy and hold strategy, the Fund may sell Investments on the secondary market subject to the Investment Restrictions.

Use of Derivatives and Hedging

The Manager may in its discretion put in place hedging arrangements including, but not limited to, foreign exchange hedging arrangements in the currency of each underlying Investment for which a drawdown is made that is not in the base currency of the Fund and to hedge risks directly or indirectly associated with any Investment or to protect the Fund's returns. Any expenses incurred in connection with any such transactions will be borne by the Fund. The Manager will not utilise derivatives for speculative purposes.

It is expected that the Manager will establish a hedging strategy at the Fund level in order to hedge the Fund's exposure to non-USD Investments. Investors in the Fund may be required to meet drawdowns to cover any costs or expenses associated with such hedging activity, including meeting margin requirements, provided that the total amount required to be advanced by an Investor will not exceed its Undrawn Commitment.

In addition, Feeder Partners may be denominated in currencies other than USD and the Manager may elect to hedge such currency against USD or other currencies. The cost of any such hedging programme will be borne by the relevant Feeder Partner.

There is no guarantee that the Fund will be able to hedge all currency exchange or any other risks.

Leverage

The Fund offers Investors both a levered and an unlevered option.

For those Investors who choose to participate in the levered option via an investment in a Levered Partnership, the Manager intends to utilise leverage that may enhance the Levered Partnerships' overall returns.

3.4 Hybrid Structure

The Fund offers Investors optionality to benefit from either an “evergreen” or a “closed-ended” investment experience:

- **Evergreen:** Repayments and prepayments of principal, or other return of capital invested, and proceeds from secondary sales will be reinvested on an ongoing basis, providing Investors with a permanent capital solution. The General Partners

generally expect to distribute Investment proceeds (e.g. interest payments) on a quarterly basis. Following the end of the Lock-Up Period (which is, as set out above in Section 2 entitled “Summary of Key Terms”, 3 years from the quarter end date following the Final Closing Date), the Investor can elect on an annual basis (with 45 calendar days’ prior written notice) to withdraw from the Fund. Investors admitted prior to the Final Closing Date can also request, on a semi-annual basis, to increase their Commitment (31 March and 30 September each year, with 10 Business Days’ prior written notice).

- **Closed-ended:** Investors can elect at the time it makes its Commitment (via election in its Subscription Agreement) to be treated as an Automatic Withdrawing Investor. Each Automatic Withdrawing Investor is treated as electing to withdraw its Commitment such that repayments of principal, return of capital invested and proceeds from secondary sales will not be reinvested from the first Withdrawal Date following the fifth anniversary of the Final Closing Date.

The ability to elect to be an Automatic Withdrawing Investor seeks to give Investors the opportunity to participate in the Fund in a way that replicates a closed-ended fund. Automatic Withdrawing Investors will only participate in Investments that have an Expected Maturity of less than 10 years from the Final Closing Date, seeking to replicate a 10 year fund term and a 3 year investment period (in each case, subject to permitted extensions). Please see further detail in Section 5 entitled “Summary of Terms”.

3.5 Comparison to Traditional Closed-Ended and Evergreen Structures

Compared to a traditional closed-ended structure, the Manager believes that the hybrid structure provides the following:

- **Flexibility:** Investors can elect to go into harvest mode (in full or partial) by submitting a Withdrawal Notice on an annual basis after the Lock-Up Period. Moreover, Investors can elect to top up their initial commitment on a semi-annual basis after the Final Closing Date.
- **Maintaining allocation size:** By staying invested, Investors can benefit from maintaining their capital at work and therefore not having their Investments running off and subsequently subject to ramp-up into a successor fund.

Compared to a traditional evergreen structure, the hybrid structure provides the following:

- **Mitigates crystallisation of losses:** The Fund does not provide immediate or guaranteed liquidity, rather it lets Investments run-off naturally, which can help avoid a scenario where assets are liquidated at potentially unfavourable prices.
- **Protection from asset liquidation:** Risk of forced asset liquidation is mitigated compared to a traditional evergreen structure which has to accommodate immediate or time-restricted redemption requests.

4. The Manager

4.1 About the Manager¹⁹

Macquarie Asset Management Credit Advisers US, LLC, a member of the Macquarie Group that is a Delaware limited liability company, or any successor thereto, will be appointed as the Manager by each General Partner with respect to each relevant Partnership. Each General Partner will have the power to replace MAMCA as the Manager of each relevant Partnership with another appropriately authorised member of the Macquarie Group. It is anticipated that MAMCA will act as Manager or adviser to all Feeder Partners, Parallel Vehicles and Alternative Investment Vehicles established with respect to the Fund. MIMEL will be appointed as Portfolio Manager of the Fund.

Investment Committee

The Fund's investment decisions will be made by the Fund's Investment Committee, as appointed by the Portfolio Manager. The Investment Committee is responsible for approving all investment decisions, within the parameters of the Investment Restrictions. The Investment Committee has significant experience in infrastructure transactions, as well as fiduciary experience in managing investor private credit portfolios.

The members of the Investment Committee will initially be:

- **Peter Glaser** – Head of Credit & Insurance;
- **Sophia Alison** – MAM Direct Lending Portfolio Manager (EMEA);
- **Tom Van Rijsewijk** – Head of Infrastructure and Investment Grade Credit (EMEA);
- **Harlan Cherniak** – Head of Infrastructure and Investment Grade Credit (Americas);
- **Stephen Allen** – Investment Committee Member; and
- **Vanessa Clarke** – Head of Portfolio Monitoring and Credit Risk.

The Investment Committee members represent a cross-functional mix of experience intended to challenge investment recommendations from the Investment Team from several different points of view. Additional members may be appointed to the Investment Committee and existing members may be replaced by the Portfolio Manager in its sole discretion from time to time.

The biographies of the initial Investment Committee members are provided below.

¹⁹ The description below is a summary of MAM Private Credit's organisation and investment management processes as at the date of this Memorandum. The activities described in this Memorandum may in the future be performed by different teams or personnel within MAM Private Credit as the Manager may determine in its sole discretion.



Peter Glaser

Head of Credit & Insurance

Peter is Head of Credit & Insurance for MAM, overseeing a global team that connects client capital with a full range of investment opportunities, including MAM's Fixed Income, Leveraged Credit, and MAM Private Credit capabilities. He is also Chair of the MAM Credit & Insurance Executive Committee, Chief Investment Officer of Private Credit and a member of the MAM Executive Committee.

Before joining Macquarie, Peter was Head of European Direct Lending for Alcentra, Portfolio Manager of its related funds, and Chair of the Investment Committee. He was also Vice Chair of Alcentra's Executive Management Committee. Peter has more than 35 years of diverse financial services experience across North America and Europe, including as a partner at KKR and senior positions at Barclays and Goldman Sachs.

Peter holds a Bachelor of Arts in history and political science from the University of Pennsylvania and a Master of Business Administration from Harvard Business School.



Tom Van Rijsewijk

Head of Infrastructure and Investment Grade Credit (EMEA)

Tom is the Head of Infrastructure and Investment Grade Credit for the EMEA region within MAM Credit, where he also serves as a member of the Private Credit Investment Committee. He has overall responsibility for the investment strategies, stewardship of investor capital, and overseeing business operations.

Since joining in 2013, Tom led many transactions within the private credit sector, introduced innovative investment structures, and led the development of a range of Private Credit funds and strategies. Prior to joining Macquarie, Tom was part of the Infrastructure Finance and Advisory Team at ING Bank and worked in offices located in London, Madrid, and Amsterdam.

Tom holds a Bachelor of Science (honours) in industrial engineering and management science from the Eindhoven University of Technology, and a Master of Philosophy in business from Tilburg University.



Harlan Cherniak

Head of Infrastructure and Investment Grade Credit (Americas)

Harlan is Head of Infrastructure and Investment Grade Credit for the Americas within MAM Credit, where he also serves as a member of the Private Credit Investment Committee. He has overall responsibility for the investment strategies, stewardship of investor capital, and overseeing business operations.

Harlan has more than 20 years of institutional principal investing experience across the global infrastructure landscape. He joined Macquarie after serving as Chief Business Officer at The Forest Road Company, a leading specialty and incentive tax credit finance business. Harlan led several key strategic initiatives and was responsible for the development of Forest Road's renewable energy and asset-based finance platform with a strategic and targeted focus on distributed generation.

Before that, he served as the Co-Head of the Americas Special Situations strategy at KKR Inc, responsible for helping build and lead the special situations strategy across North America, Europe, and Asia. Prior to KKR, Harlan held several senior investment and portfolio management roles, with experience that included investment banking, private equity, and investment management.

He currently serves as an Executive Committee Member of the Board of Directors for the Youth Renewal Fund, the largest network of schools across the socioeconomic periphery in Israel, as well as on the Board of Advisors for the Graduate School of Education at the University of Pennsylvania.

Harlan holds a Bachelor of Science in economics from The Wharton School at the University of Pennsylvania.



Sophia Alison

MAM Direct Lending Portfolio Manager (EMEA)

Sophia is the MAM Direct Lending Portfolio Manager for EMEA. She is responsible for leadership of the business and stewardship of investor capital. She is a member of the Direct Lending Investment Committee and the Infrastructure & Investment Grade Private Credit Investment Committee. She also sits on the European Management Committee.

Sophia has extensive experience in private credit investing, with close to 20 years in the industry. Directly prior to this role, she was Co-Head of Infrastructure & Investment Grade Private Credit and previously was Head of Credit Risk within MAM Private Credit, with decision-making responsibility and accountability for all investments on the MAM Private Credit platform. Before joining MAM, Sophia worked in Macquarie's Risk Management Group with responsibilities that included the assessment of direct lending investments made by the Macquarie balance sheet.

Sophia holds a Bachelor of Commerce (Liberal Studies) (First Class Honours) from the University of Sydney and an Executive Masters in Finance from INSEAD.



Vanessa Clarke

Head of Portfolio Monitoring and Credit Risk

Vanessa leads the Portfolio Monitoring and Credit Risk teams within Infrastructure and Investment Grade Credit for MAM Private Credit, where she serves as a member of the Private Credit Investment Committee.

Vanessa first joined Macquarie in 2002, where she held roles within the Credit division of Macquarie's Central Risk Management Group in Sydney and London, followed by a governance and risk oversight role for new business initiatives within Macquarie's Commodity and Global Markets Group in New York. Across these roles, Vanessa gained experience in the real estate, corporate finance, and energy markets sectors from a credit risk perspective, as well as broader expertise across new product and business development. Vanessa joined Private Credit in 2018 to lead the establishment of a dedicated portfolio monitoring capability for the Private Credit platform, with responsibility to oversee the performance of all investments.

She received a Bachelor of Business Administration in accounting and finance from Macquarie University.



Stephen Allen

Investment Committee Member

Stephen has been a member of MAM Private Credit's Investment Committee since 2018 and he currently assists a broad range of organisations enhance their risk management practices. He previously held a number of roles within Macquarie, serving as its Chief Risk Officer between 2009 and 2017. He was responsible for risk management across Macquarie through a period of rapid change in the financial services industry. Stephen managed a team of over 700 people in his role and was a member of all key Management Committees. He approved debt and equity investments across a number of sectors including infrastructure, real estate, corporate credit, fund lending and structured credit.

Stephen's previous roles included serving as Global Head of Macquarie's infrastructure advisory business; Chief Executive Officer of Macquarie Infrastructure Group (a top 30 ASX-listed infrastructure investor); Head of Credit in Macquarie's central Risk Management Group; Stephen also established and led Macquarie's EMEA Infrastructure Advisory business, initiating Macquarie's first infrastructure funds management business in the region. He started his career as a technology specialist.

4.2 Investment Management Expertise

MAM Private Credit is supported by approximately 50 investment professionals who specialise in infrastructure debt. This group comprises 28 members in the Investment Team, 15 in the Portfolio Monitoring Team, and 4 in the Legal Team.²⁰

Investment Team

In addition to the role of the Investment Committee, the Investment Team takes responsibility for advising with respect to the Fund's portfolio of Investments including but not limited to:

- sourcing, screening, due diligence and executing Investments; and
- ongoing monitoring and management of Investments.

There is deep expertise within the team across different sub-sectors, geographies and transaction types, enabling the Investment Team to actively source and execute high quality transactions across all key regions in which it invests and drive value in the portfolio. The Investment Team's experience is split across a mixture of structuring, lending and advisory transactions which, when combined with the broad range of relationships established by the Investment Team and the transaction experience across the Investment Team in sourcing and executing investments, provides the Fund, in the Manager's view, with a competitive advantage when setting funding strategy, negotiating terms and pricing, and engaging in detailed negotiation of legal documentation.

The Investment Team currently has 28 members of which 8 are directors. Investment Team members holding the position of Associate Director or above have an average experience in sourcing investments in the infrastructure market of 16 years.²¹

The Investment Team has primary responsibility for the investment and performance of all mandates. The Investment Team sources and evaluates each opportunity and has ongoing monitoring and asset management responsibilities alongside the Portfolio Monitoring Team.

Portfolio Monitoring Team

The Portfolio Monitoring Team oversees the monitoring of performance of every investment within the portfolio. Every investment within a private credit-managed portfolio will have a designated director from the Investment or Portfolio Monitoring Teams overseeing and managing the investment through to maturity or disposal. The Portfolio Monitoring Team also operates a dedicated governance capability which reinforces our asset management framework. The team comprises 15 professionals.²²

Additional Expertise

Additional professional staff from MAM and business aligned Macquarie central functions may assist the Manager, the Portfolio Manager and any Adviser with the following functions:

- **Client Solutions Group:** This team helps to solve the commercial, regulatory, tax and product design issues associated with developing non-traditional lending solutions for complex multi-faceted investment opportunities.
- **Legal:** In-house legal professionals may advise the Manager and Portfolio Manager on various legal aspects of the Fund, including Investments.
- **Fund Management Team:** This team monitors and services a portfolio of corporate and wholesale lending assets. This team also assists with the preparation of the Fund's regular reporting, annual financial reports, as well as providing cash forecasting and treasury management services.
- **Taxation:** Tax professionals can provide specialist tax structuring input on the establishment of the Fund and any Feeder Partners or Alternative Investment Vehicles.
- **Compliance:** The compliance team is involved in the oversight of the Manager and Portfolio Manager's compliance and governance framework.
- **Non-Financial Risk ("MAM Risk"):** MAM Risk are responsible for working with all relevant teams within MAM to ensure non-financial risks are identified and managed throughout the end-to-end investment lifecycle. MAM Risk is supported and overseen by Macquarie's Risk Management Group ("**RMG**"), an independent, central unit responsible for ensuring all risks are appropriately managed across Macquarie.

²⁰ As at February 2026.

²¹ As at February 2026.

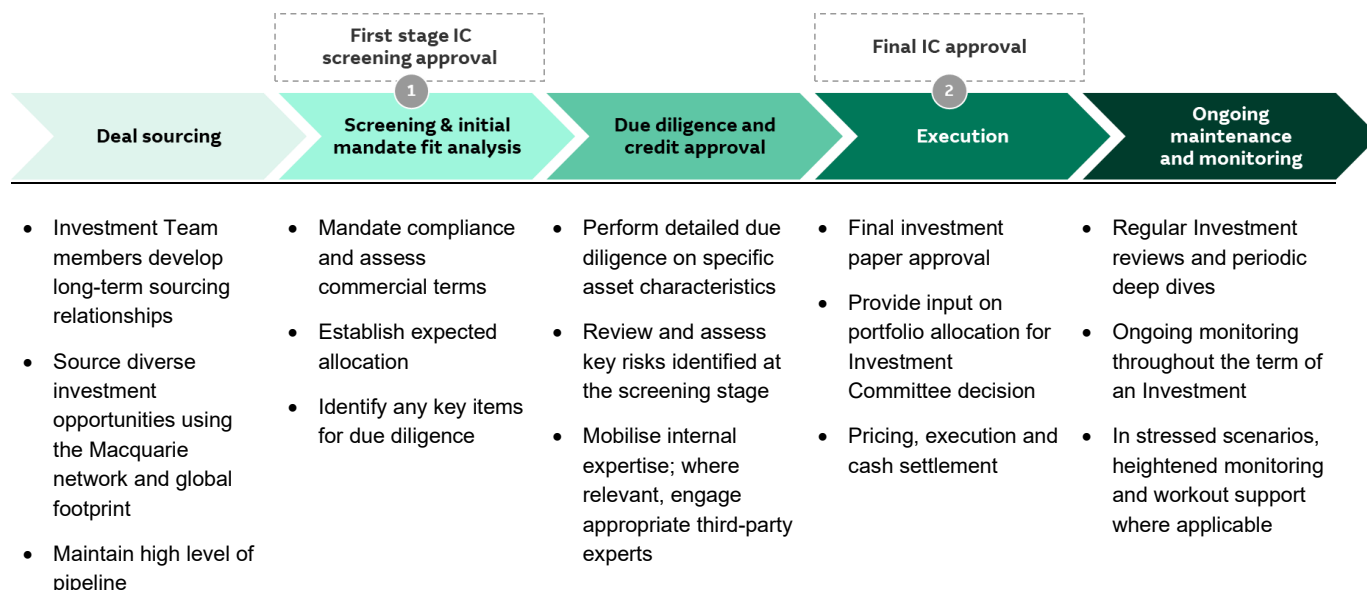
²² As at February 2026.

Participation of Macquarie personnel in the Fund's investment activities is subject to applicable law and inside information barrier policies and procedures, which may limit the involvement of such personnel in certain circumstances and the ability of the Manager to leverage such personnel within Macquarie. Please refer to "Limited Access to Information" in Section 7.1.8 entitled "Conflicts of interest" and "Limitations on Information Sharing within Macquarie" in Section 7.1.10 entitled "Conflicts of interest" for further information regarding such limitations.

Investment Process²³

Overview

The Manager is of the view that the investment process for the Fund is robust, from origination of investment, to credit assessment, to ongoing monitoring and management of Investments. There is a thorough, two-stage approval process.



Throughout each stage of the investment process, assessing and managing risks is a key focus of the Manager and the Portfolio Manager in carrying out their fiduciary duties. The key controls built into the investment process include:

- A detailed understanding of all material risks developed for each Investment during the screening and full credit approval phases.
- A strong risk culture, meaning risk assessment is thoroughly embedded throughout the investment process and all individuals within the team are responsible for managing risks appropriately.
- The Manager and Portfolio Manager aim to structure financing protections which mitigate transaction-specific risks.
- The Investment Team and Legal Team are responsible for ensuring that any material changes to the legal documentation compared to the terms set out in the investment paper approved by the Investment Committee are appropriately signed off.
- An active approach to monitoring each Investment is taken.

Approvals

All Investments must be approved by a unanimous Investment Committee decision. At any meeting of the Investment Committee, each Investment Committee member will have one vote, and a quorum for Investment Committee approvals and other key decisions will comprise of at least three Investment Committee members. The key steps in this approval are set out below:

- Transaction screening:** The Investment Team prepares a screening paper which includes key details on the transaction, expected transaction terms and a summary of key risks and areas to focus further diligence. This paper is then submitted to the Investment Committee for approval to move forward with detailed diligence.

²³ For illustrative purposes only. No binding effect. The description of the Manager's investment process herein is intended to be a representative but not comprehensive summary of a complex process that Manager may change from time to time. The Manager may not perform certain steps or may perform additional steps in its discretion. There can be no assurance that the Manager will be able to achieve its investment objectives.

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- **Development of investment paper:** The Investment Team undertakes detailed analysis of the transaction and the key counterparties involved. The results of this diligence process are set out in an investment paper.
 - **Investment decision:** A final decision is based on the investment paper which is presented to the Investment Committee. The Investment Committee will often require additional analysis or diligence following this meeting and will make a final investment decision once this has been completed to their satisfaction.

Joint Involvement of Investment Team and Portfolio Monitoring

The Manager has structured the investment process to leverage the expertise of the existing Investment Team, whilst ensuring there is sufficient expertise and oversight to recommend transactions on behalf of Investors. The Portfolio Monitoring Team works closely with the Investment Team once the deal is executed, monitoring the Investment until maturity.

The Portfolio Monitoring Team continually monitors and maintains investments, including any needed amendment, throughout their life to maturity. This structure ensures that Investments are aligned with the Fund's risk parameters, directly benefiting Investors through enhanced risk management practices.

With its established network of sponsors and advisers, the Investment Team spearheads interactions with sponsors and Borrowers, guiding the initial structuring and due diligence phases of transactions. Their relationships and sector expertise are instrumental in identifying and vetting potential investment opportunities, thereby enhancing the quality and potential return of the Fund's portfolio.

The Portfolio Monitoring Team, Investment Team and members of the Investment Committee, are integrally involved across the investment lifecycle. This ensures that investor requirements are consistently prioritised and reflected in investment decisions, providing an additional layer of reassurance and alignment with Investor interests.

There will be ongoing engagement and monitoring of all Investments underscoring a commitment to maintaining the integrity and performance of the Fund's Investments, directly benefitting investors through sustained diligence.

Origination

In the Manager's view, it is essential to maintain a comprehensive understanding of current market dynamics across the sectors and sub-sectors the Fund will invest in, in order to have access to the best opportunities for Investors. To facilitate this, regular and in-depth market research is conducted by the Investment Team. The process through which this is done is summarised below:

- **Deal origination strategy:** Strategies for sourcing transactions within each market sub-sector are developed and executed. This process will include identifying target borrower and other counterparty lists and developing strategic relationships with other market participants. The Investment Team uses customer relationship management software and has divided up the relevant market to ensure ongoing coverage.
- **Market segmentation:** Through a combination of background research and engagement with a broad range of market experts, the Investment Team develops views on the attractiveness of pricing, credit, deal-flow and commercial and competitive dynamics for market sub-sectors.
- **Background research:** Extensive desktop analysis is conducted. The Investment Team maintains prospective deal pipelines based on expected market activity, including forward refinancing requirements based on relationships and financing cycles.

The ability of the Investment Team to maintain personal relationships as a team throughout the industry and across countries and sub-sectors continually is an important contributor to deal flow. In addition, Macquarie's strong presence in global markets supports the Investment Team's ability to monitor market developments, identify new sectors or opportunities or establish relationships with new players.

In the Manager's view, a key feature of MAM Private Credit's offering which makes MAM Private Credit attractive to market counterparties is the Investment Team's ability to provide a high level of execution certainty on transactions. This is attributed to the experience and track record of MAM Private Credit but is supplemented by Macquarie's reputation as a market leading investor across the infrastructure, real estate, corporate lending and fund finance sectors.

Over its history, MAM has developed longstanding relationships with key stakeholders across the sectors MAM invests in, which provides access to a differentiated and highly diverse range of financing opportunities across sub-sectors, deal sizes and geographies. The key channels through which transactions are sourced are via the Investment Team direct, Macquarie leads, strategic partnerships, third party approach or syndication desks as detailed below. Certain channels may be more active depending on a given sector:

Channel	Description
Investment team direct	Investment Team members have many years of working in their relevant sectors across the world and therefore have long-standing relationships with private market fund managers, borrowers and other counterparties, banks and intermediaries who can be a source of regular flow of opportunities. The Investment Team maintains strong relationships with existing financing counterparties which has led to repeat issuance in a number of cases. The Investment Team also continually builds its relationships identifying unknown or new counterparties as being able to act early before they become too established and can also command a yield premium.
Macquarie leads	Macquarie is active in a broad range of asset classes, sectors and sub-sectors that MAM invests in. The Macquarie network and reputation for strong execution brings a number of investment opportunities and provides personal introductions to prospective transaction counterparties.
Strategic partnerships	Macquarie has significant group-level relationships with a range of private fund managers and sponsors, real asset operators or owners and lending banks all of which enhance access to deal flow. Macquarie has developed strategic partnerships with key market participants to support access to primary market opportunities and enable detailed discussions that are important for originating refinancing or follow-on transactions in particular.
Passive (third party approach)	MAM Private Credit is known as an active participant and bidder in primary and secondary market opportunities and therefore receive reverse enquiries on a regular basis.
Syndication desks	MAM Private Credit is a recognised institutional lender, well connected to syndication desks and bank advisory teams. Where banks are seeking advising borrowers to obtain credit or syndicate institutional markets MAM is recognised as an important market participant. Whilst MAM Private Credit predominantly invests in non-syndicated loans, it can provide good opportunities for portfolio construction and provides market insights.

The attractiveness of investment opportunities is determined based on the risk-adjusted returns on an absolute and relative basis. The suitability for MAM Private Credit clients is then assessed on a portfolio basis with regards to the client's investment objectives and guidelines. This is consistent with the Manager's investment philosophy and is a core element of the investment process of the Fund, forming part of the due diligence documented in both the screening paper and investment paper.

Transaction Screening

The screening process with the Investment Committee provides a first order assessment of potential risks in an investment opportunity and filters out those with unacceptable risk levels before committing to detailed due diligence. This also provides an early opportunity for the Investment Committee to indicate areas where they would wish to see particular focus during the due diligence process.

A screening paper will be prepared which includes key details on the investment opportunity, expected terms in respect thereof and a summary of key risks and areas for the Investment Team to focus further diligence on. This paper is then submitted to the Investment Committee for approval to move forward with detailed diligence.

Due Diligence

Risk assessment is a primary focus for every Investment made by the Fund. The Investment Team starts undertaking credit assessment of each Investment at the earliest possible stage, even before the screening process.

During the due diligence process of a primary transaction, the Investment Team typically engages with the counterparty, advisers and due diligence providers directly to ensure all aspects of the transaction are sufficiently reviewed. This can include involvement in setting independent due diligence experts' scopes of work and areas of focus. The Investment Team also conducts ongoing interrogation of the independent experts to ensure that key risks identified during screening are examined thoroughly.

The Investment Team also takes an active role in the negotiation and setting of transaction terms and conditions as reflected in the documentation. In addition to external legal counsel, the Investment Team is assisted by dedicated internal legal support to review documentation.

Using the Macquarie Platform for Broader Insight

As the Macquarie Group is a global financial institution with investments across a broad range of sectors, the in-house expertise the Macquarie Group has across the different specialisms can be drawn upon by the Investment Team to provide a competitive edge during investment due diligence.

- **Dedicated credit research team:** The credit research team sits within MAM Credit & Insurance, primarily analysing trends in the liquid fixed income and leveraged credit markets. Where relevant and appropriate, the Investment Team will leverage this in-house expertise and proprietary research as part of the due diligence process and to gain insight into sectoral trends.
- **Large commodities business:** The Investment Team will utilise the expertise within Macquarie's Commodities and Global Markets division to gain a competitive advantage in analysing various risk exposures and gain insight into market dynamics of opportunities in niche markets – for example, to fully understand the exposure a business has to commodities.
- **Real assets, infrastructure and real estate expertise:** Being a market leader in infrastructure investment and financing solutions, Macquarie has the in-house expertise to be able to be the lender of choice for transactions with a wide range of corporate transactions, from businesses with real asset exposure to transport, to commercial real estate, to green energy.

Investment Committee

The Fund's Investment Committee is responsible for approving all investment decisions, within the parameters of the Investment Restrictions.

The Investment Committee consists of six individuals²⁴. The biographies of the initial Investment Committee members are provided in Section 4.1 entitled "About the Manager" above.

Additional members may be appointed to the Investment Committee and existing members may be replaced by the Portfolio Manager in its sole discretion from time to time.

Importantly, the investment process is a holistic one, incorporating a broad range of expertise. In this sense, the Investment Committee is supported in all of its work by the MAM Private Credit team globally, as well as specialist expertise within Macquarie where it may be required. The quorum for meetings of the Investment Committee is generally three of the members of the Investment Committee at the time attending by video conference or in person except in the instance where the Investment Committee is considering a screening paper, in which case the quorum for that meeting will be two members. At any meeting of the Investment Committee, each member will have one vote, and all investment execution decisions must be unanimous.

The Investment Committee typically meets twice per week or additionally on an ad hoc basis as necessary, for example to consider matters for which the Investment Committee's approval or review is required in an expedient manner. Members attend meetings in person or by video conference.

Documentation and Execution

In addition to external legal counsel, the Investment Team is assisted by dedicated internal legal support to review documentation and legal opinions provided by the external counsel acting on behalf of the lenders.

Ongoing Monitoring and Management

To protect the Fund's Investments, the Manager shall take a proactive approach to the ongoing management of all positions via the review of documented covenant reporting and other information sources. Portfolio decisions are made in accordance with a discretions matrix, a structured framework for delegated portfolio decision making approved by the Investment Committee.

All Investments will be continually monitored and maintained throughout their life to maturity. The general principles of the investment monitoring process are:

- The Investment Team and Portfolio Monitoring Team take primary responsibility for monitoring performance of each Investment.
- Monitoring by the Investment Team and Portfolio Monitoring Team is dynamic (following general relevant market data via news subscription services for example, Bloomberg), and periodic (prompted by ongoing proactive engagement with counterparties as well as our counterparty reporting obligations) including internal quarterly investment monitoring meetings and reporting.
- Material changes to counterparty business or credit quality are escalated to the Investment Committee where it is determined that it is sufficiently material.

²⁴ As at February 2026.

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- Requests for waivers or amendments to investment terms are reviewed and approved in line with a discretions matrix, outlined in the Investment Committee charter, which categorises the necessary approvals according to the materiality of the proposal.
 - Maintenance of each Investment (loan, note, lease or otherwise) is undertaken by MAM's Fund Management Team and this process is documented on MAM's Fund Management Team's internal information sharing website.

Each individual Investment will be closely monitored by the relevant Investment Team or Portfolio Monitoring Team members, who will review investment reporting provided as part of the covenant compliance obligations including:

- monthly and quarterly financial reports and performance reviews;
- covenant compliance certificates; and
- other regular reporting (such as annual reports, management reports, the financial model, borrowing base and budgets, as applicable).

Covenant Monitoring

All covenant reporting is received at, or notified to, a central email address which is accessible by the Portfolio Monitoring Team as well as an investment specific distribution list for the Portfolio Monitoring Team and relevant Investment Team members. In addition, the Portfolio Monitoring Team and Investment Team receive weekly automatically generated notifications from a central reporting system whenever any covenant reporting is upcoming or overdue.

Annual Review

The relevant member of the Portfolio Monitoring Team or the Investment Team responsible for an Investment will complete a deep dive credit review on an annual basis. The exact date for the annual credit review will take into account the Investment closing date and timing of key information covenants which is agreed with the Portfolio Monitoring Team director. The annual review dates are then tracked and monitored in a central system for the life of the Investment.

The annual credit review will be reviewed and approved by a director within the Portfolio Monitoring Team and the Investment Team.

Waivers, Workouts and Restructuring Capabilities

Throughout the life of an Investment, there may be circumstances where a financing counterparty seeks consent, waiver or agreement to amend the documentation.

- The relevant members of the Investment Team and Portfolio Monitoring Team responsible for the Investment will consider the position and prepare the analysis and a recommendation.
- The nature or materiality of the request will then determine the required approval level, as detailed in the discretions matrix, which is outlined in the Investment Committee charter.
- Borrower consents will be monitored and decisions made by the Investment Team, Portfolio Monitoring Team or Investment Committee as appropriate.
- Each consent is tracked in a central system to record rationale applied and ensure appropriate governance of approvals.

The Investment Strategy (defined in Section 3.2 entitled "Investment Strategy") is a buy-and-hold strategy. It is not expected that an active exit of positions will be part of a performing portfolio.

Expertise and Resource for Workout Scenarios

The Manager is of the view that the Investment Team and Portfolio Monitoring Team will use proactive monitoring and management of Investments to identify potential issues in the portfolio of Investments early, then actively engage with Borrowers with the aim that issues can be managed before a workout or restructure is required.

The Investment Team has extensive breadth and depth of workout and restructuring capabilities and experience across:

- the workout & restructuring professionals in MAM Credit & Insurance;
- the Investment Committee;
- the Investment Team;
- the Investment Legal Team;
- the Portfolio Monitoring Team; and

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- the broader MAM Private Credit team.

In the event an Investment requires restructuring, the Investment Team will lead the internal analysis of the workout situation on behalf of the Fund with the benefit of the experience of all of the teams listed above.

The investment professionals and dedicated legal resources across the Investment Team and MAM Private Credit have experience and expertise with covenant compliance and waivers, liability management, amend and extend transactions, restructurings, in-court and out-of-court insolvency proceedings, rescue financing, debtor-in-possession facilities, turnaround and crisis management, post re-organised control equity and corporate governance.

The Manager and its Associates have a robust global network of restructuring advisers and legal counsel to leverage in the event of any material portfolio issues, such as payment defaults. Across the platform, Macquarie Group has significant structuring and workout experience across multiple economic cycles.

4.3 Sustainability

MAM Private Credit believes that the identification and management of material environmental, social and governance (“**ESG**”) factors reduces risk and creates economic value for investors and therefore is an important component of MAM Private Credit’s investment decision-making and active asset management practices.

MAM Private Credit’s philosophy is to engage with its investors, borrowers, industry groups and other stakeholders on sustainability matters, with the aim of promoting shared knowledge and experience and continuing to improve MAM Private Credit’s own frameworks and, ultimately, performance on these important matters.

This approach is supported by sustainability and risk experts, centralised policies and processes and the expertise of in-house asset management teams. A key component of MAM Private Credit’s approach is a philosophy of continuous improvement in risk management frameworks and practices.

MAM Private Credit operates within MAM, and is subject to the MAM Private Markets Environmental, Social and Governance Policy (“**MAM Private Markets ESG Policy**”), which outlines MAM’s responsible investment approach and provides a robust framework for embedding ESG risk management into MAM’s business activities.

4.4 Investment Allocation

Allocation of Investment Opportunities to the Fund

When allocating investment opportunities between the various funds managed or advised by MAM Private Credit, including the Fund, separately managed accounts and other vehicles (collectively, “**MAM Private Credit Products**”) and any other co-investors, MAM Private Credit will firstly consider whether or not a proposed investment is appropriate for a MAM Private Credit Product based on the relevant portfolio investment guidelines and objectives and investment limitations and restrictions of such MAM Private Credit Product.

To the extent that a potential investment is appropriate for more than one MAM Private Credit Product, MAM Private Credit will allocate the potential investment across the relevant MAM Private Credit Products in accordance with its allocation policy (the “**Allocation Policy**”).

Under the Allocation Policy, MAM Private Credit will generally seek to apply a simple pro rata allocation system to allocate the investment across the relevant portfolios based on the size of commitments available to be invested in the investment, taking into account the limits specified in the investment guidelines of the relevant MAM Private Credit Product. For any investment opportunity, MAM Private Credit may allocate an investment on a non-pro rata basis where, in MAM Private Credit’s opinion, a pro rata allocation would not be:

- permitted by the investment counterparty or investment documentation;
- commercially practical in relation to the relevant investment; or
- in the best interests of the relevant MAM Private Credit Product, taking into account (without limitation): (i) restrictions on the MAM Private Credit Product’s maximum allocation to a single investment; (ii) the relative impact on the diversification of a MAM Private Credit Product’s existing portfolio; (iii) the relative impact on the average credit rating across a MAM Private Credit Product’s existing portfolio; (iv) the relative impact on the buffer to a MAM Private Credit Product’s investment limits; and (v) future transactions on the horizon.

The rationale for any allocation of an investment sourced by MAM Private Credit between the Fund and other MAM Private Credit Products which is not on a pro rata basis based on size of commitments available to be invested is documented and reviewed by the Investment Committee at the time of investment approval.

Following the allocation of an investment opportunity between the MAM Private Credit Products, MAM Private Credit, in its absolute discretion, may then consider if it is appropriate to include co-investors in such allocation in accordance with the Allocation Policy.

4.5 Conflicts Policies and Protocols of the Manager

By acquiring an interest in the Fund, each Investor will be deemed to have acknowledged the existence of any such actual and potential conflicts of interest disclosed in this Memorandum and to have waived any claim with respect to any liability arising from the existence of any such conflicts of interest, to the extent permitted by applicable law. A summary of Macquarie's Conflicts of Interest Policy is available at: <https://www.macquarie.com/assets/macq/about/disclosures/EMEA-Conflicts-of-Interest-summary-policy.pdf>.

Nothing in the above should be construed as a waiver by the General Partners, the Manager, the Portfolio Manager, or their Associates of any non-waivable causes of action recognised by U.S. federal and state securities laws.

The key principles of the protocols and policies currently applied by the Manager in relation to potential conflicts relating to the Fund include:

- the Manager will not knowingly cause the Fund to:
 - purchase an Investment from a member of the Macquarie Group or a Macquarie Fund, other than a Seed Investment;
 - divest an Investment to a member of the Macquarie Group or a Macquarie Fund;
 - * lend to or otherwise invest in a Macquarie Affiliated Borrower; or
 - borrow from a member of the Macquarie Group or a Macquarie Fund (for the avoidance of doubt, excluding any short-term non-interest bearing borrowing from a member of the Macquarie Group for the purposes of incorporation of any Intermediate Vehicle);in each case, without having received the prior approval of the Advisory Committee;
- Unless otherwise approved by the Advisory Committee, any Related Party Transaction will be materially on arm's length terms, which shall be, as reasonably determined by the General Partner on an overall basis, no less favourable to the Fund than the overall terms which the Fund could likely obtain in connection with the provision of such services from an unaffiliated third party;
- * any Investment (other than a Seed Investment) which, to the Manager's knowledge, earns fees for a Macquarie Group entity (other than fees from acting as investment manager or adviser to a fund, collective investment scheme, investment vehicle or managed account participating in such Investment) will be notified to the Advisory Committee, which notification may be satisfied through regular reporting to the Investors or the Advisory Committee; and
- information protocols will be maintained between the Manager and Macquarie's infrastructure advisory business to restrict any information being provided to the Manager in relation to a Macquarie advised Borrower which is communicated to the broader lender group. As a result, the Manager will not have access to such information.

The restrictions marked with an asterisk (*) above will only apply as of the date of the Fund's initial participation in the Investment and shall not apply in respect of any Further Investments in such Investment.

4.6 Conflicts of Interest within the Macquarie Group

Macquarie Group Generally

As a global investment services organisation, Macquarie engages in a broad spectrum of activities, including securities underwriting, sales and trading, advisory, lending, merchant banking, financial advisory services, investment research, asset management and other activities. In the ordinary course of business, Macquarie and its Associates will engage in activities where their interests or the interests of their clients will conflict with the interests of the Investors. Macquarie has a significant presence across a broad range of disciplines in the global financial services and alternatives markets. As a consequence, Macquarie proprietary accounts may engage in activities that conflict with the interests of Investors. Managing such conflicts is complex, and different types of conflicts may subsequently arise.

MAM Private Credit benefits indirectly from the institutional understanding of the global financial services and alternatives markets within Macquarie; it also engages directly with employees of other Macquarie operating divisions on transactions and determining transaction pipeline.

Whilst the activities of Macquarie in the financial services and alternatives markets, and MAM Private Credit's engagement with other areas of Macquarie, have the potential to give rise to certain conflicts of interest risks (which are outlined in more detail in Section 7.1.10 entitled "Conflicts of interest"), the Fund and MAM Private Credit is subject to Macquarie's corporate conflict management policies. For further information in respect of Macquarie Group teams and resources, see Section 7.1.10 entitled "Reliance on the Related Persons".

Macquarie Group Entities and Other Macquarie Funds May Have Different Interests in the Fund's Investments

To the extent that members of the Macquarie Group or other Macquarie Funds hold interests in the same Borrower (or Borrower group) as the Fund, the Manager, the Portfolio Manager and their Associates may be presented with decisions involving circumstances where the interests of such other Macquarie entities or Macquarie Funds are in conflict with those of the Fund, including with respect to targeted returns for an Investment, the impact of (and interests in) refinancings, and the timeframe for and method of exiting an Investment. Furthermore, it is possible that in certain circumstances (including, for example, in a bankruptcy proceeding or other action relating to a distressed situation for the relevant Borrower), the Fund's interest may be subordinated or otherwise adversely affected by virtue of such other Macquarie entities' or Macquarie Funds' involvement and actions relating to their investments. In such circumstances, the Manager will take such action as it deems appropriate to address the conflict of interest.

Such conflicts may be particularly acute where such other Macquarie entities or Macquarie Funds hold interests in a different level of a Borrower's capital structure from those held by the Fund. As a result, other Macquarie Funds and members of the Macquarie Group may pursue rights, provide advice or engage in other activities, or refrain from pursuing rights, providing advice or engaging in other activities, with respect to different investments in, and different parts of the capital structure of, the same Borrower. As a result, decisions about what action should be taken in a troubled situation of a Borrower (including whether or not to enforce claims, whether or not to advocate for or initiate a restructuring or liquidation inside or outside of bankruptcy and the terms of any work-out or restructuring), may raise conflicts of interest and a risk to Investors in the Fund.

Information barriers exist between MAM Private Credit and other Macquarie businesses to (among other things) help manage and mitigate any such conflicts and maintain the independence of MAM Private Credit when making decisions on behalf of MAM Private Credit Products.

Nevertheless, some or all MAM Private Credit Products (including the Fund) may be precluded from participating in an investment because of the potential conflicts that could arise and if the Investment Committee reasonably determines that the potential conflict cannot be effectively mitigated with respect to the impacted MAM Private Credit Products (including the Fund). Items considered in determining whether a potential conflict can be effectively managed or mitigated include (amongst others), (i) the relative size and materiality of the investment in respect of voting rights and control, (ii) the possibility for different alignment of interests between classes of creditor, and (iii) the security and covenant package and ability for different lender groups to take independent action. In such circumstances, the investment opportunities available to the Fund may be reduced and the Fund may not be permitted to participate in an otherwise potentially advantageous investment opportunity for the Fund.

In certain conflict situations, the Manager may (without limitation) seek to agree voting protocols or other conflict mitigation measures with the Advisory Committee. For conflicts of interest which may arise as a result of different MAM Private Credit Products (including the Fund) having the potential to invest in both the junior and senior debt of the same Borrower, see Section 4.7 entitled "Other MAM Private Credit Products may have different interests in the Fund's investments" below.

For further information in respect of general conflicts of interest risks see Section 7.1.10 entitled "Conflicts of interest".

Different Interest in Structuring Debt and Equity Securities

The Fund and other Macquarie Funds or members of the Macquarie Group may have an interest in structuring debt and equity securities differently and any such structuring may be more beneficial for the other Macquarie Funds or Macquarie entities than for the Fund or Investors in the Fund. While these conflicts cannot be eliminated, the Manager will implement policies and procedures designed to be fair and reasonable to the investors in the Fund.

Restructurings

In connection with a restructuring of a financially distressed Borrower, any equity interests which the Fund may hold in the Borrower may be extinguished or substantially diluted while the creditors may receive a recovery of some or all of the amounts due to them and/or may receive equity in the Borrower. In this regard, as a debt holder in a Borrower subject to a restructuring, other Macquarie Funds, or other Macquarie entities sheet may receive a recovery of amounts owed to them as lenders while the Fund's equity interest may be extinguished or substantially diluted.

4.7 Conflicts of Interest within MAM Private Credit

Other MAM Private Credit Products May Have Different Interests in the Fund's Investments

Conflicts may arise where other MAM Private Credit Products or any co-investors have the potential to invest in the same Borrower as the Fund. The interests of the Fund may not be aligned with the interests of any other MAM Private Credit Products or any co-investors. Conflicts may arise in particular where such other MAM Private Credit Products or any co-investors invest in the Borrower group at different levels of the capital structure, for instance in tranches of debt which are junior or senior to the Fund's Investment. Such conflicts may be particularly acute where the relevant Borrower is in financial distress or more generally with respect to targeted returns for the relevant investments and the timeframe for and method of exiting such investments. Actions taken by the General Partners, the Manager, the Portfolio Manager or their Associates with respect to investments held by the Fund and any other MAM Private Credit Product or any co-investor in different tranches of debt of the same Borrower may be adverse to the Fund (and vice versa with respect to potential adverse consequences to such other MAM Private Credit Products or any co-investor relative to the Fund).

When determining which tranche of debt of any Borrower that a MAM Private Credit Product should participate in (including the Fund), the Investment Committee will first determine whether the relevant investment opportunity is appropriate for one or more MAM Private Credit Products (including the Fund) and in that regard, whether it views the relevant transaction credit risk as acceptable relative to the expected return of the potential investment. The Investment Committee will then assess which tranche is the most appropriate for any relevant MAM Private Credit Products (including the Fund) taking into account a number of factors including, but not limited to, the attractiveness of the proposed transaction relative to other transactions, the overall portfolio fit and diversification, the pipeline of visible alternative transactions and the ability and likelihood of being able to close the transaction.

The Investment Committee will seek to make its determination as to the tranche of debt in which any relevant MAM Private Credit Product (including the Fund) participates and the impact of any related conflict of interest or potential conflict of interest on a fair and equitable basis. Some or all MAM Private Credit Products (including the Fund) may be precluded from participating in an investment because of the potential conflicts that could arise and if the Investment Committee reasonably determines that the potential conflict cannot be effectively mitigated with respect to the impacted MAM Private Credit Products (including the Fund). Items considered in determining whether a potential conflict can be effectively managed or mitigated include (amongst others), (i) the relative size and materiality of the investment in respect of voting rights and control, (ii) the possibility for different alignment of interests between classes of creditor, and (iii) the security and covenant package and ability for different lender groups to take independent action. In such circumstances, the investment opportunities available to the Fund may be reduced and the Fund may not be permitted to participate in an otherwise potentially advantageous investment opportunity.

In certain conflict situations, the Manager may (without limitation) look to agree voting protocols or other conflict mitigation measures with the Advisory Committee.

Management of the Fund

Members of the Manager's and the Portfolio Manager's teams will devote such time to the Fund as the Manager and the Portfolio Manager, in each of their sole discretion, deem necessary to carry out the operations of the Fund effectively. A number of members of the Manager's and the Portfolio Manager's teams will spend a significant portion of their time on matters unrelated to the Fund and its Investments. Some members of the Manager and the Portfolio Manager's teams may spend a significant portion of their time on matters relating to the businesses of other parts of Macquarie. As a result of the foregoing, conflicts of interests will arise in allocating the time of the members of the Manager's and the Portfolio Manager's team between the Fund and the other matters in which such persons are involved.

For general risks related to investments and management of the Fund, see Section 7.1.10 entitled "Conflict risks relating to investments and management of the Fund" and for risks related to investments alongside other Macquarie Funds, see Section 7.1.10 entitled "Conflict risks relating to investing alongside other Macquarie Funds and third-party investors".

5. Summary of Terms

The following is a summary of the key terms relating to the Fund. The terms described in this summary, apply with respect to each Partnership, as applicable and as the context requires, except where otherwise expressly provided. In the event of any inconsistency between this summary and any of the Partnership Agreements, the relevant Partnership Agreement will prevail. Various documents and agreements have not yet been executed, as detailed in the summary.

The Fund	The Fund will be comprised of: (i) Macquarie Specialized Infrastructure Global 3 (USD) Lev Onshore Fund LP, a Delaware limited partnership (the “Delaware Levered Partnership”); (ii) Macquarie Specialized Infrastructure Global 3 (USD) Lev Offshore Fund SCSp, a Luxembourg special limited partnership (<i>société en commandite spéciale</i>, SCSp) (the “Luxembourg Levered Partnership” and, together with the Delaware Levered Partnership, the “Levered Partnerships”); (iii) Macquarie Specialized Infrastructure Global 3 (USD) UnLev Onshore Fund LP, a Delaware limited partnership (the “Delaware Unlevered Partnership”); (iv) Macquarie Specialized Infrastructure Global 3 (USD) UnLev Offshore Fund SCSp, a Luxembourg special limited partnership (<i>société en commandite spéciale</i>, SCSp) (the “Luxembourg Unlevered Partnership” and, together with the Luxembourg Unlevered Partnership, the “Unlevered Partnerships”), (each a “Partnership”) as well as any other Parallel Vehicle and Alternative Investment Vehicle that may be established by a General Partner to accommodate the legal, Tax or regulatory needs or preferences of certain Investors. As at the date of this Memorandum, the Luxembourg Partnerships do not yet qualify as alternative investment funds within the meaning of the AIFM Law.
Fund Size	The aggregate target size of the MSIG 3 Strategies is USD 1.5 billion – 2.0 billion. The Fund may raise and deploy Fund Commitments of greater or less than such amount in the discretion of the General Partners.
Investment Objective and Target Investments	The investment objective of the Fund (the “Investment Objective”) will be to generate attractive risk-adjusted returns by originating and investing into debt Investments where the underlying assets have infrastructure or infrastructure-like characteristics, meaning highly defensive positions within sustainable and long-term markets in which they operate. The Fund will primarily invest in secured Investments in North America, Europe and the United Kingdom, with a predominant focus on Investments within North America. Investments may have a floating or fixed rate of interest or generate lease income, and their repayment profile may be bullet repayment or amortising, lump sum or incorporated within lease payments, and in relation to debt investments may include revolving facilities. Investments may be in a variety of securities including, but not limited to, Lease Investments, debt and debt-related instruments, including those with a partial equity-linked component (whether or not subordinated), public or private bonds, loans (including but not limited to term loans and revolving loans), notes, shares, securitisation (including synthetic securitisation), debentures, letters of credit, convertible loan stock, options, warrants, or any other instruments, assets or obligations in or in respect of the capital of any Borrower as further described in Section 3.2 entitled “Investment Strategy” under the heading “Permitted Investments”.

Target Return	The Levered Partnerships will target a net IRR of 10-12% and the Unlevered Partnerships will target a net IRR of 8-10% per annum. ²⁵
Investment Structures	The ability of the Fund to invest in some jurisdictions will be impacted by regulatory and other considerations. As a result, the Fund may hold its interests in Investments directly, or indirectly via one or more intermediate vehicles (each, an “Intermediate Vehicle”). For a number of the key target markets, it is anticipated that Investments will be undertaken through one or more Intermediate Vehicles in order to efficiently invest in such markets. Different types of Intermediate Vehicles may be necessary for regulatory or other reasons, for example to comply with local regulatory restrictions on lending. Further consideration of the Tax implications arising from Intermediate Vehicles will be analysed on a case-by-case basis. In addition, a Feeder Partner may be required to participate in a particular Investment through a vehicle or investment structure other than the Fund for legal, Tax, regulatory or other efficiency reasons.
General Partner	The general partner of each Partnership (with respect to each Partnership, as applicable, the “General Partner”) is: (i) Delaware Levered Partnership: MSIG 3 (USD) Lev General Partner LLC, a limited liability company formed in the State of Delaware and registered as a limited liability company with the State of Delaware Division of Corporations. (ii) Luxembourg Levered Partnership: MSIG 3 (USD) Lev General Partner S.à r.l., a private limited liability company (société à responsabilité limitée), which will be incorporated in Luxembourg and registered with the Luxembourg Register of Commerce and Companies. (iii) Delaware Unlevered Partnership: MSIG 3 (USD) UnLev General Partner LLC, a limited liability company formed in the State of Delaware and registered as a limited liability company with the State of Delaware Division of Corporations. (iv) Luxembourg Unlevered Partnership: MSIG 3 (USD) UnLev General Partner S.à r.l., a private limited liability company (société à responsabilité limitée) incorporated in Luxembourg and that is registered with the Luxembourg Register of Commerce and Companies under number B295793. The General Partners will appoint the Manager as the external alternative investment fund manager (<i>gestionnaire de fonds d’investissement alternatifs</i>) within the meaning of the AIFM Law for the Luxembourg Levered Partnership and the Luxembourg Unlevered Partnership only, and as manager of the Delaware Levered Partnership and the Delaware Unlevered Partnership.
Manager	Macquarie Asset Management Credit Advisers US, LLC, is a member of the Macquarie Group that is a Delaware limited liability company. The Manager is registered as an investment adviser under the Advisers Act. The Manager will be appointed as manager of the Partnerships and, with respect to the Luxembourg Levered Partnership and the Luxembourg Unlevered Partnership only, the Manager shall be the external alternative investment fund manager (<i>gestionnaire de fonds d’investissement alternatifs</i>) within the meaning of the AIFM Law. The Manager will exercise certain powers, discretions and duties of the General Partners set forth in the Partnership Agreements and/or this Memorandum.

²⁵ Target net IRR figures are hypothetical returns, not actual returns, and do not reflect the performance of any actual fund or returns of any actual investor. They represent the hypothetical, target IRR of the Fund, inclusive of the highest Fund management fees, performance fees and Fund-level expenses that are expected to be borne by investors in the Fund (including fund-level taxes but excluding taxes borne or to be borne by investors or vehicles through which they participate in investments). The net target returns referred to above have been determined by the Manager on the basis of estimates and assumptions about performance believed to be reasonable in light of both current market conditions as at the date of preparing this Memorandum and the Manager’s views on future market conditions. There can be no assurance that the Fund will achieve the net target returns referred to above or that the Fund will be able to implement its investment strategy or achieve its investment objectives. Actual returns received by Fund investors can be lower than the target net returns shown. Actual realised returns will depend on, among other factors, future operating results, the value of the assets and the market conditions at the time of disposal, any related transaction costs and the timing and manner of sale, all of which may differ from the assumptions on which the returns forecasted above are based. Further information about the criteria and assumptions used in the calculation of target net IRR can be provided upon request.

	Each General Partner may replace the Manager from time to time with another appropriately authorised member of the Macquarie Group (including, where appropriate, the relevant General Partner) or, with Investor Special Consent as set out in the Partnership Agreements, a non-Associate of the General Partners.
Portfolio Manager	Macquarie Investment Management Europe Limited company number 09612439. The Portfolio Manager is authorised and regulated by the United Kingdom Financial Conduct Authority. The Manager will delegate certain portfolio management functions in respect of the Fund to the Portfolio Manager pursuant to the Portfolio Management Agreements. The role of the Portfolio Manager may at any time be performed by another appropriately authorised member of the Macquarie Group. The Portfolio Manager and/or the Manager may appoint a sub-adviser to provide sub-advisory services in relation to the Fund.
Investment Restrictions	Investment restrictions will be calculated separately with respect to each of the Levered Partnerships and the Unlevered Partnerships. Please refer to the definition of “Benchmark Threshold”, below. Unless approved by the advisory committee of the Fund (the “Advisory Committee”), each Partnership will not make an Investment if making such Investment would cause such Partnership and (1) in the case of the Unlevered Partnerships, any Unlevered Partnership (in aggregate) or (2) in the case of the Levered Partnerships, any Levered Partnership (in aggregate) to: (i) invest more than 10% of the Benchmark Threshold in a single Investment; (ii) invest more than 5% of the Benchmark Threshold in Investments that are instruments solely constituted of equity or that may be fully converted to equity, including without limitation, convertible bonds, on or before a specified date, but excluding any Lease Investment or significant risk transfer transaction (SRTs); (iii) invest more than 30% of the Benchmark Threshold in Lease Investments; (iv) invest more than 40% of the Benchmark Threshold in Borrowers Located outside of North America; or (v) invest more than 20% of the Benchmark Threshold in Borrowers Located outside of countries in the OECD. “Located” means, in relation to a Borrower, one or more countries or jurisdictions that the General Partners determine, at the time the binding commitment to the relevant Investment is made, to be the predominant countries or jurisdictions applicable to such Borrower, which may include taking into account (without limitation) the countries or jurisdictions in which the Borrower, or the group of entities to which a Borrower belongs: (a) is organised, established, domiciled or headquartered; (b) operates its business; (c) has its assets or operations; and/or (d) derives its revenues or cashflows. Unless otherwise approved by the Advisory Committee, the Fund will not invest in Investments that are issued by a Borrower which the Manager reasonably determines engages primarily in (a) the regulated water utility sector in the United Kingdom; or (b) the information technology asset disposition and electronic waste recycling sector. Unless otherwise approved by the Advisory Committee, the Fund will not invest in or otherwise acquire an interest in any blind pool fund or collective investment vehicle that provides for a performance related compensation or management fee to be paid by the Fund to any other fund manager or sponsor (except where such mode of investment is required or desirable in relation to a specific investment opportunity and due provision is made to avoid double charging of management fees and performance related compensation). Compliance with the foregoing investment restrictions will be determined by the Manager at the time a binding commitment to the Investment is made by the relevant Partnership other than for Rescue Investments, where compliance will only be determined at the time the initial

	binding commitment to the Investment is made by the relevant Partnership and shall not be determined at the time the Further Investment is made by the relevant Partnership. For the avoidance of doubt, the Fund will not be required to divest an Investment that satisfies the foregoing investment restrictions at the time the binding commitment to the relevant Investment is made but then later fails to satisfy such investment guidelines on or following the Final Closing Date. “Benchmark Threshold” means: (i) with respect to each Unlevered Partnership: (a) at any time prior to the Final Closing Date, the greater of: (A) Unlevered Commitments; and (B) USD 500 million; and (b) at any time on or following the Final Closing Date, the sum of: (A) the Unlevered Invested Capital; and (B) the Unlevered Undrawn Commitments; minus (C) amounts outstanding under any Subscription Line Financing (or equivalent with respect to any other Unlevered Partnership), in each case excluding amounts referable to any Withdrawing Account (or equivalent with respect to any other Unlevered Partnership); (ii) with respect to each Levered Partnership: (a) at any time prior to the Final Closing Date, the greater of: (A) Levered Commitments plus the aggregate amount that the relevant General Partner reasonably expects will be available to be drawn under a Credit Facility (or equivalent with respect to any other Levered Partnership) on the Final Closing Date; and (B) USD 1 billion; and (b) at any time on or following the Final Closing Date, the sum of: (A) the Levered Invested Capital; (B) the Levered Undrawn Commitments; and (C) without double-counting, any remaining amount that the relevant General Partner reasonably expects will be available to be drawn under a Credit Facility (or equivalent with respect to any other Levered Partnership), minus (D) amounts outstanding under any Subscription Line Financing (or equivalent with respect to any other Levered Partnership), in each case excluding amounts referable to any Withdrawing Account (or equivalent with respect to any other Levered Partnership).
Closings	The First Closing Date will occur at the discretion of the General Partners. Additional closings for new Investors may be held in the sole discretion of the General Partners until the final closing of the Fund (the “Final Closing Date”). Unless approved by the Advisory Committee, the Final Closing Date may occur no later than 2 years after the First Closing Date, or such earlier date as the General Partners may determine and notify to the Investors. The Final Closing Date may be further extended by the General Partners, in their discretion, for up to one additional six-month period to the extent required to provide that the Final Closing Date coincides with the final closing date of any Parallel Vehicle. Existing Investors are permitted to increase their Commitment after the Final Closing Date in accordance with “Closings after Final Closing Date” below. In order to participate in a closing, a prospective Investor must return a Subscription Agreement in accordance with the instructions therein prior to the relevant closing. Subscription Agreements will be made available to prospective Investors by the General Partners. Each General Partner may accept or reject any subscription in whole or part any time prior to an Investor’s admission to the Fund. Investors will be notified of the acceptance by the relevant General Partner of their subscription, following which Investors will be admitted to the Fund.
Closings on or before the Final Closing Date	Investors admitted to the Fund will generally participate in Investments, if any, made by the Fund prior to their admission, and will also bear their proportional share of fees and expenses

	of the Fund incurred prior to the admission, and will pay the Management Fee as though they were admitted on the Initial Closing Date. Such Investors will contribute to the Fund an amount equal to their proportionate share of Capital Contributions of Investors admitted at prior Closing Dates, together with: (i) in respect of the: (a) <u>Unlevered Partnerships</u>, interest on those amounts at a rate equal to SOFR (subject to a 0% floor) plus 4% per annum; or (b) <u>Levered Partnerships</u>, interest on those amounts at a rate equal to SOFR (subject to a 0% floor) plus 6% per annum, in each case, compounded annually from the date when such amount would have been payable had such Investor participated at the Initial Closing Date up to the date of payment, provided that the General Partners may make adjustments to the amounts payable as they believe would be fair to reflect a material change or significant event relating to the value of an Investment, such as distributions made to previously admitted Investors, accrued but unpaid interest or dividends, currency or exchange rate movements, prior distributions and/or the excuse or exclusion of any Investor from one or more Investments; and (ii) any applicable Taxes which may arise in connection therewith.
Closings after Final Closing Date	Following the Final Closing Date, each Investor may, on at least 10 Business Days written notice to the relevant General Partner prior to 31 March and 30 September each year (or such other date determined by the General Partners), request an increase to its Commitment which the General Partners may in their discretion accept such request with respect to the relevant Partnership (with respect to the portion of its Commitment accepted following the Final Closing Date, being a “Re-Up Investor”). Each Re-Up Investor will be drawn down to the relevant Partnership by reference to the latest available Net Asset Value. Re-Up Investors may be required by the General Partners to execute a new Subscription Agreement or amend their original Subscription Agreement to reflect the increased Commitment.
Capital Accounts	Upon each Investor’s admission to the Fund, a capital account will be established on the books and records of the relevant Partnership with respect to each such Investor (each, a “Capital Account”) in the amount of such Investor’s initial Capital Contribution. Each additional Capital Contribution made by an Investor will be credited to such Investor’s Capital Account. The Capital Accounts (or Income Accounts, as applicable) shall be adjusted by the General Partners taking into account the Sharing Percentage of each Investor, including to reflect net profits and net losses (adjusted to reflect Management Fees and Performance Fees) as set out in the Partnership Agreements. At the end of each fiscal quarter, net profits and net losses allocable for such fiscal quarter (adjusted to reflect Management Fees and Performance Fees) shall be allocated among the Investors’ Capital Accounts (or Income Accounts, as applicable) based on each Investor’s Sharing Percentage, taking into account both items and Investments that are specifically allocated or contributed to, or borne by, an Investor in respect of its Participating Capital Account and Withdrawing Account, as applicable, and items and Investments in relation to which an Investor is excused or excluded such that the Capital Account and Income Account of each Investor shall be equal to the respective net amount, positive or negative, that would be distributed to such Investor from the relevant Partnership. Additionally, within each Partnership, the relevant General Partner will establish Capital Accounts in respect of: (i) Investors participating in all Investments, other than as excused or excluded pursuant to the Partnership Agreements (the “Participating Capital Accounts”); and (ii) Investors electing to withdraw all or a portion of their Interests in the relevant

	Partnership (each Capital Account referable to such relevant portion) (the "Withdrawing Accounts"). The General Partners will utilise the separate Capital Accounts to account for the various economic interests of the Investors, including capital contribution obligations of Investors, entitlement to returns of Investors and exposure to economic loss of Investors. A new Capital Account may be established for each Re-Up Investor and the new Capital Account will begin to participate in the income, gain, losses and expenses of the Fund, including in respect of existing Investments, based on the Sharing Percentage of such Capital Account established in respect of such Re-Up Investor. Re-Up Investors will not participate in the income, gain, losses or expenses of any Withdrawing Accounts, including in respect of any portion of Investments attributable to any Withdrawing Accounts. "Sharing Percentage" means, with respect to any Investor and, where relevant, any Investment (whether drawn or undrawn) for which such Investor has made, or been deemed to make, a contribution, a fraction (expressed as a percentage): (i) the numerator of which is such Investor's Starting Quarterly Capital Account (or, where the case requires, portion referable to such Investment) for the relevant fiscal quarter; and (ii) the denominator of which is aggregate Starting Quarterly Capital Accounts for all Investors (or, where the case requires, portion referable to such Investment) as of such fiscal quarter and subject to any adjustments the General Partners may make in good faith to take into consideration any contributions made by an Investor (including any adjustments necessary pursuant to the Partnership Agreements), any drawdowns from a Credit Facility in lieu of a contribution from such Investor for Investments, or distributions made to such Investor during such fiscal quarter. With respect to each Partnership, "Starting Quarterly Capital Account" shall mean, with respect to each Investor (and, where relevant, any Investment for which such Investor has made, or been deemed to make, a contribution) in any fiscal quarter, the Investor's Capital Account balance as of the first day of such fiscal quarter (or, where the case requires, portion thereof referable to such Investment) excluding any accrued but unpaid Management Fees and Performance Fee in respect of such Capital Account (or, where the case requires, portion thereof referable to such Investment). "Income Account" means, in relation to each Investor, the income account maintained by the Partnership with respect to each such Investor.
Minimum Commitment	USD 10 million or such lesser amount as determined in each General Partner's sole discretion.
Sponsor Commitment	Each General Partner shall procure that Executive Partners will commit to invest, directly or indirectly in and/or alongside: (i) each Partnership, on or before the First Closing Date, an amount equal to at least 10% of the aggregate Commitments of each such Partnership as at the First Closing Date (the "Partnership Sponsor Commitment"); and (ii) the Fund, on or before the Final Closing Date, including any Partnership Sponsor Commitment, an amount equal to the lesser of: (a) 10% of Fund Commitments as at the Final Closing Date; and (b) an amount necessary to ensure that USD 150 million has been committed across the MSIG 3 Strategies by the Executive Partners (together with the Partnership Sponsor Commitment, the "Sponsor Commitment"). On or before the Final Closing Date, each General Partner may in its sole discretion re-allocate (in whole or in part) the Fund Sponsor Commitment in such proportion between the Partnerships, the Parallel Vehicles and any Alternative Investment Vehicles as the relevant General Partner may determine in its sole discretion. Subject to the foregoing, the apportionment of commitments of such Executive Partners among themselves may be adjusted from time to time as they deem appropriate. Interests issued in respect of the Fund Sponsor Commitment are not permitted to be (i) subject to a Withdrawal Notice (described in "Withdrawal" below) or (ii) transferred to a person

	other than an Executive Partner, in each case until the third anniversary of the quarter end date following the Final Closing Date (the “Sponsor Lock-Up Period”). After the Sponsor Lock-Up Period, the Fund Sponsor Commitment may be transferred (in whole or in part) to a Withdrawing Account, in each case in accordance with the Partnership Agreements, provided that, as of the relevant Requested Withdrawal Date, the Sponsor Commitment shall not equal less than the amount equal to: (i) 50% of the percentage resulting from: (a) the Fund Sponsor Commitment; divided by (b) the Fund Commitments at the Final Closing Date, multiplied by (ii) Fund Commitments, unless otherwise approved by the Advisory Committee (the “Minimum Fund Sponsor Commitment”). Any Sponsor Commitment in excess of the Minimum Fund Sponsor Commitment may be transferred, in whole or in part, to a person which is not an Executive Partner at any time. “Fund Sponsor Commitment” means, at any time, the amount of the Sponsor Commitment made by the Executive Partners directly or indirectly in and/or alongside the Fund at such time. For further information, please refer to “Sponsor Commitment reduction” and “Allocation of Sponsor Commitment” in Section 7.1.10 entitled “Conflicts of interest”.
Fund Currency	All distributions, advances by Investors pursuant to drawdown requests, calculations pursuant to the Fund’s governing documents and all accounts of the Fund will be in USD. Additional parallel or feeder vehicles may be established to accept commitments in other currencies to meet the specific needs of Investors.
Fund Term	The term of the Fund shall continue in perpetuity subject to earlier termination as further described in “Termination” below. For Automatic Withdrawing Investors, the mechanism is intended to limit such Automatic Withdrawing Investors’ investment in the Fund to a term of 10 years after the Final Closing Date (subject to permitted extensions).
Withdrawal	<u>Lock-Up Period and Notice Period</u> All Investors will be subject to a three-year lock-up period from the quarter end date following the Final Closing Date (the “Lock-Up Period”). The General Partners may agree to waive or modify the Lock-Up Period (or portion thereof) applicable to any Investor. Following the Lock-Up Period (or such earlier date as determined by the General Partners in their absolute discretion), an Investor may be permitted to fully or partially withdraw from the Fund (a “Withdrawing Investor”) by providing at least 45 calendar days’ written notice to the relevant General Partner (a “Withdrawal Notice”) in advance of the next Withdrawal Date of each year (or the Business Day immediately preceding if such day is not a Business Day) (such date, a “Requested Withdrawal Date”). The “Initial Withdrawal Date” of the Partnerships shall be the date of the third anniversary of the quarter end date following the Final Closing Date, as notified to Investors as soon as reasonably practicable following the Final Closing Date. A minimum requirement applies for partial withdrawal requests, equal to at least USD 10 million, provided that such minimum requirement may be waived by the General Partners in their sole discretion. “Withdrawal Date” means, following the end of the Lock-Up Period, a date on which a Withdrawal Notice is effective, being the initial Withdrawal Date and, thereafter, each 31 March (or the Business Day immediately preceding if such day is not a Business Day). Withdrawing Investors holding an interest in a Withdrawing Account remain at risk in the Partnership’s Investments and any related Credit Facilities until such Investor’s Withdrawing Account is fully liquidated. <u>Withdrawing Accounts</u> Each General Partner shall, with respect to each relevant Partnership, create a separate Capital Account in respect of each Withdrawing Investor’s accepted Withdrawal Notice.

	Following the Withdrawal Date the relevant General Partner will move the portion of the Withdrawing Investor's Participating Capital Account to a Withdrawing Account by reference to the latest available Net Asset Value. Existing Investments referable to a Withdrawing Account will be paid out to Investors as the relevant Investment returns principal and income proceeds. From the Withdrawal Date in respect of the Investor electing to withdraw, the relevant General Partner shall not issue Drawdown Notices to such Withdrawing Investor which relate to any Undrawn Commitments attributable to its Withdrawing Account(s), or reinvest proceeds in respect of such Withdrawing Investor's Withdrawing Account for the purposes of making new or Follow-On Investments and the Withdrawing Investor shall have no interest in new Investments or Follow-On Investments made by the relevant Partnership following the relevant Withdrawal Date. For the avoidance of doubt, a Withdrawing Investor will be required to comply with any Drawdown Notices for the purposes of making new or Follow-on Investments issued on or prior to the relevant Withdrawal Date. The relevant General Partner may also continue to require a Withdrawing Investor to make capital contributions to the Fund up to such Withdrawing Investor's Undrawn Commitments allocated to one or more Withdrawing Accounts after the relevant Withdrawal Date to: (i) fund Delayed Funding Investments held in the Withdrawing Investor's Withdrawing Account(s); (ii) complete a Committed Investment; (iii) make a Rescue Investment in respect of an Investment held in the Withdrawing Investor's Withdrawing Account(s); (iv) meet or fund indemnity obligations (including future and contingent obligations) pursuant to the relevant Partnership Agreement; (v) meet, reimburse or provide for working capital or creating reserves for the relevant Partnership or its direct or indirect subsidiaries, and fees, costs, expenses and liabilities including Management Fees, Performance Fees, Operating Expenses, Organisational Expenses and any other payments required to be made by or out of the relevant Partnership assets in accordance with relevant Partnership Agreement; and (vi) meet or provide for other fees, costs, expenses of the relevant Partnership, its business and its Investments, including the repayment of borrowing or funding of guarantees, any Credit Facility or in connection with any hedging transactions and other requirements associated with Investments. Any Undrawn Commitment relating to the portion of a Withdrawing Investor's Participating Capital Account that is moved to a Withdrawing Account shall remain in existence and shall not be cancelled upon any portion of Participating Capital Account(s) of the relevant Withdrawing Investor moving to a Withdrawing Account, subject to the relevant General Partner's right to cancel any such Undrawn Commitment in its sole discretion. If, following the end of the Lock-Up Period, the net asset value of the Fund is less than USD 300 million, the Advisory Committee may, by majority vote of its members, requisition the relevant General Partner to call a meeting of the Investors to approve the conversion of all Investors into Withdrawing Investors. If approved by Investors representing a majority of Fund Commitments, each Investor will be deemed to have delivered a Withdrawal Notice in respect of 100% of its Participating Capital Account, effective as at the quarter end date following the date on which such approval is obtained. In such circumstances, the Management Fee and Performance Fee attributable to each Withdrawing Investor will continue to be payable. <u>Automatic withdrawals</u> The relevant General Partner may, in its sole discretion and upon election by an Investor in its Subscription Agreement, admit an Investor to the relevant Partnership as an "Automatic Withdrawing Investor". Each Automatic Withdrawing Investor shall be deemed to have served a Withdrawal Notice in respect of its entire Interest at the first Withdrawal Date following the fifth anniversary of the Final Closing Date.
Capital calls and default	Commitments will be made and drawn down in USD from time to time to fund Investments and to meet fees, expenses and other liabilities of the Fund as set forth in the Partnership Agreements. Investors will receive a minimum of 10 Business Days' prior written notice or such shorter notice period as may be agreed between the relevant General Partner and an

	Investor for each drawdown, specifying the amount of the call, the date on which such call is payable and the bank account to which payment in case is to be made (provided that, in the case of any Investor's first Drawdown Notice, the relevant General Partner may give fewer than 10 Business Days' prior notice if it has previously notified such Investor of the due date for payment on or prior to such Investor's admission to the Fund or increase of Commitment, as the case may be). Commitments will generally be drawn down as follows: (i) Commitments accepted on or prior to the Final Closing Date ("Initial Commitments") (including amounts available for drawing down in respect of Initial Commitments as set out in the Partnership Agreements) will generally be drawn down from Investors pro rata to total Initial Commitments (as may be adjusted for excused Investors) as at the date of the relevant Drawdown Notice and in priority to commitments accepted after the Final Closing Date; and (ii) following the full drawdown, allocation or reserve of all Initial Commitments, Re-Up Commitments will be drawn in the order in which the relevant Re-Up Investor made such Commitments (including amounts available for drawing down in respect of such Re-Up Commitments pursuant to the Partnership Agreements), such that Re-Up Commitments made at the same Subsequent Closing Date shall be drawn down in priority to any Re-Up Commitment accepted at any later Subsequent Closing Date. For the purposes of limb (ii) above, Investors will be drawn down as closely as possible (in the sole determination of the relevant General Partner) pro rata to the Undrawn Commitments of the Investors who are being drawn down at the relevant Subsequent Closing Date (as may be adjusted for excused Investors). If an Investor's Capital Contribution of its pro rata portion would result, immediately after the applicable drawdown date, in such Investor having a de minimis amount of Undrawn Commitment (as determined by the relevant General Partner in its reasonable judgment), the relevant General Partner may, in its sole discretion, draw down Commitments from Investors who made Commitments at the same Subsequent Closing Date on a non-pro rata basis to reduce such Investor's Undrawn Commitment to zero. The General Partners may draw down Commitments on a different basis to the above to account for defaulting Investors or excused Investors, or as they deem necessary or advisable to meet any legal, tax, regulatory, accounting or other requirements applicable to the Fund or any Investor. If any Investor fails to pay to the Fund the amount specified in any Drawdown Notice or any other payment required to be paid to the Fund on or before the due date set out therein, the relevant General Partner may require the Investor to pay to the Fund (on an after-tax basis) interest on the outstanding amount at a rate of the lesser of: (i) the highest legally permitted rate, and (ii) SOFR plus 8% per annum calculated on a daily basis and compounded annually on the outstanding amount for the period from the due date until the date that the outstanding amount (plus interest accrued thereon) is paid to the Fund in full, along with all costs, Taxes expenses and liabilities incurred as a result of defaulting. If the Investor fails to pay the outstanding amounts and interest and costs thereon within 10 Business Days, the relevant General Partner may treat such Investor as a "Defaulting Investor" and implement certain provisions set forth in the relevant Partnership Agreement with respect to such Defaulting Investor, including, but not limited to, (i) forfeiture of the Defaulting Investor's Interest, (ii) suspension of the Defaulting Investor's right to receive distributions; (iii) cancellation of any Defaulting Investor's fee discounts (if any); (iv) suspend such Defaulting Investor's side letter provisions (if any); (iii) sale of the Defaulting Investor's Interest; and/or (iv) any other actions or consequences as further set out in the relevant Partnership Agreement. Following the default of an Investor, non-defaulting Investors may be required to fund additional drawdowns on 5 Business Days' prior written notice (up to but not exceeding their Undrawn Commitments and in the relevant proportion depending on the purpose for which
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	the Capital Contribution was to be used) to make good any shortfall in whole or in part arising as result of such default.
Distributions of Income	The General Partners generally intend to make quarterly distributions to the Investors of net distributable income <i>pro rata</i> in proportion to the respective positive balances of the relevant Income Account, Participating Capital Accounts and Withdrawing Accounts of Investors (as the case may be) at the time of such distribution, though such distributions may take place any time (and from time to time) and in such amounts as the General Partners determine in their absolute discretion and in good faith, taking into account factors that it determines to be necessary, appropriate or advisable.
Re-Investment	<u>Re-investment – Participating Capital Accounts</u> If the Partnerships are repaid or otherwise receive repayment of principal, capital, proceeds of secondary market sales or other cash proceeds (including proceeds from any restructuring or refinancing) with respect to an Investment, some or all of the amounts of such cash proceeds otherwise distributable to Investors may be reinvested in respect of Investments or Further Investments or, if distributed, shall increase an Investor's Undrawn Commitment and shall be available for subsequent drawdown. <u>Re-investment – Withdrawing Accounts</u> Capital proceeds as set out above that are distributable to each Withdrawing Investor shall not be reinvested and shall instead be distributed to such Investor.
Distributions in specie	Distributions in specie may be made during the life of the Fund or during its liquidation, provided that distributions in specie made during the life of the Fund are limited to marketable securities or are otherwise a readily realisable security in the reasonable opinion of the General Partners. Distributions in specie may otherwise be made with the consent of an Investor.
Excuse and Exclusion	Investors may be excused or excluded (in whole or partially) from participation in an Investment in a number of circumstances as set forth in the Partnership Agreements, including: (i) where their participation would result in such Investor being in violation of a statute, law, regulation, order, licence, permit or other similar approval of a governmental authority or a Tax authority, or order of a court of competent jurisdiction that is applicable to such Investor; (ii) where their participation would result in a breach of an investment policy binding on the Investor that the Investor has notified the relevant General Partner in writing of prior to the Investor's admission to the Fund and to which the relevant General Partner has agreed in writing; (iii) the proposed Investment is a Further Investment and the Investor was excused in respect of the original Investment; (iv) following a decision by the relevant General Partner that participation by the Investor through the Fund could create material legal, regulatory or Tax risks or would not be in the best interests of the Fund or Investors as a whole (including where the Investor's participation would cause a significant delay, extraordinary expense, material adverse effect on the Fund, the relevant General Partner, the Manager, the Portfolio Manager, any member of the Macquarie Group, any Intermediate Vehicle, any Investment or Investor) or where the Investor fails to provide certain information requested by the relevant General Partner which causes certain adverse consequences; or (v) in respect of any Automatic Withdrawing Investor, the relevant General Partner determines that the Expected Maturity of the Investment would exceed the tenth anniversary of the Final Closing Date. Any portion of the Undrawn Commitment of an excused or excluded Investor in respect of an Investment will, following full allocation of Initial Commitments, be treated as if such portion

	of Undrawn Commitments was made by a Re-Up Investor on the next 31 March or 30 September (as applicable) following the Investor being excused or excluded. Following the excuse or exclusion of an Investor, non-excused and non-excluded Investors may be required to fund additional drawdowns to make up any shortfall arising as a result of such excuse or exclusion. As a result, the excuse or exclusion of an Investor for any of the reasons described above may result in the Investors participating in such Investment making Capital Contributions in larger amounts and having greater sharing percentages in such Investment than if all Investors had made Capital Contributions toward such Investment <i>pro rata</i> in proportion to their respective Commitments.
Fund establishment costs	The Fund will bear all fees, costs and expenses relating to the formation and launch of the Fund and any Feeder Partner (the “Organisational Expenses”), provided that the amount of such costs and expenses will not exceed USD 3 million (exclusive of VAT or other applicable taxes thereon). Organisational Expenses may be capitalised at the point they are incurred and amortised on a straight-line basis over a 60 month period, unless such timeline would result in adverse regulatory or accounting consequences or is otherwise not advisable by the relevant General Partner, in its sole discretion, on a current or accelerated basis. Organisational Expenses will generally be allocated to the Partnerships on a pro rata basis. The General Partners will bear any expenses in excess of this amount, which may be used to reduce the Management Fees.
Fund Expenses	Save as provided in the relevant Partnership Agreement, the Manager, the Portfolio Manager and their Associates (excluding the General Partners) will bear all of their own overhead operating expenses including rent, salaries, furniture, fixtures, and other office equipment. Each Investor (or group of Investors) will be responsible, in addition to its Commitment, for fees, costs and expenses as further detailed in the relevant Partnership Agreement which are specifically attributable to that Investor or group of Investors. The Fund will be responsible for all other costs, fees, expenses and liabilities attributable to its, the relevant General Partner’s and any Intermediate Vehicles’ administration, activities and operations as detailed in Appendix 1 entitled “Fund Costs and Expenses” and such costs, fees, expenses and liabilities will generally be allocated to the Partnerships on a pro rata basis.
Borrower paid fees	“Borrower Paid Investment Fees” means any fees which are payable by a Borrower to, or for the benefit of, the Fund in respect of an Investment, which for the avoidance of doubt excludes the Service Fees. Borrower Paid Investment Fees will be for the benefit of the Fund. Service Fees may be retained by a member of the Macquarie Group or a Macquarie Fund.
Transaction Fees	The General Partners, the Manager, and any other Macquarie Group entity may accept and retain the following fees (whether in the form of cash, securities or otherwise) paid by Borrowers, Intermediate Vehicles and third-party investors in connection with the Partnerships and its Investments (“Transaction Fees”), which for the avoidance of doubt excludes the Service Fees, including administrative, accounting, Tax advisory and other fees received in connection with the formation and administration of Intermediate Vehicles, but excluding any profit share, management or advisory fees, carried interest payments, performance fees or similar fees or charges paid by persons (including Investors) in respect of co-investments with the Partnerships and/or paid by Parallel Vehicles. Where the relevant Partnership participates in an Investment alongside another person, separate account or co-investment vehicle, only the portion of fee income allocable to that Partnership (or that Partnership’s commitment to an Investment), as reasonably determined by the relevant General Partner, will constitute Transaction Fees.

	The Management Fee will be reduced as relevant for such Transaction Fees (in each case net of any VAT or other applicable Taxes).
Management Fee	From the establishment of the Fund and to (and including) the date on which the dissolution of the Fund is complete, the General Partners will be entitled to receive from the relevant Partnership a management fee (the “Management Fee”) calculated separately with respect to each Investor (other than any Executive Partner) accrued daily, calculated and payable monthly (or at such other less frequent intervals as the General Partner may determine in its sole discretion) in arrears until the final distribution of the relevant Partnership’s assets, in an amount equal to 1.00% per annum of each Investor’s Sharing Percentage of the Invested Capital (or portion thereof) that has not been realised, repaid, or otherwise disposed of, exclusive of any applicable VAT. The General Partners and/or Manager may adjust or waive the percentage for the purpose of calculating the Management Fee attributable to any Investor for a period and on such conditions as may be agreed in such Investor’s Side Letter without waiving or reducing the Management Fee allocable to any other Investor (“Fee Discount”). The Commitments of Investors who are associated (including by virtue of having a shared discretionary investment manager or investment adviser) may, in the relevant General Partner’s discretion, be aggregated for the purposes of determining the Fee Discount indicated above. The General Partners may direct all or part of their entitlement to the Management Fee instead to the Manager and/or Portfolio Manager in respect of their management services provided to the Fund (including for the avoidance of doubt that such fees may be paid directly by the Partnership to the Manager and/or the Portfolio Manager). If the General Partners so determine, all or part of the Management Fee (or other fees hereunder) may be paid instead by an Associate of the Fund (including an Intermediate Vehicle). The General Partners may cause all or part of the Management Fee and/or Performance Fee (as described below) to be paid by a direct or indirect subsidiary of the Partnerships in lieu of such amount being paid by the Fund.
General Partner Fee <i>Note: In relation to the Luxembourg Partnerships only</i>	In consideration for the performance of its management functions, the General Partners of the Luxembourg Partnerships will be entitled to an annual remuneration payable by the relevant Luxembourg Partnership based on its annual operating costs and expenses in relation to the relevant Luxembourg Partnership, including domiciliation, accounting, corporate and tax services, as well as the fees and expenses paid to its managers, subject to an arm’s length mark-up and exclusive of any applicable VAT, and such annual remuneration will be set out in the annual report made available to Investors in accordance with the Luxembourg Partnership Agreements. Unless otherwise approved by the Advisory Committee, the General Partner Fee shall not exceed an amount equal to \$250,000 per annum, exclusive of any applicable VAT.
Performance Fee	Unless otherwise agreed by the General Partners, the Fund shall pay to the Manager an annual performance fee (the “Performance Fee”) calculated and debited separately in respect of each Investor’s Capital Account for each Performance Fee Period in which: (i) the IRR exceeds the Hurdle Rate for that Performance Fee Period; and (ii) for all Performance Fee Periods after the first Performance Fee Period, the IRR over the preceding three-year period cumulatively exceeds the Hurdle Rate. On and from the relevant Withdrawal Date applicable to a Withdrawing Investor, the Participating Capital Account and any Withdrawing Account of such Withdrawing Investor will be aggregated and treated as one account for the purposes of calculating the Performance Fee. For each Performance Fee Period in which a Performance Fee is payable in respect of an Investor, amounts distributable to such Investor and payable to the Manager respectively will be allocated as follows:

	(i) first 100% to the Investor until the total amount allocated to such Investor equals the Hurdle; (ii) second, 20% allocated to the Investor and 80% payable to the Manager until the amount payable to the Manager under this paragraph (ii) is equal to 12.5% of the aggregate amounts distributable to the Investor and payable to the Manager pursuant to paragraphs (i) and (ii); and (iii) thereafter, 87.5% allocated to the Investor and 12.5% payable to the Manager. When calculating the IRR, the General Partners will apply the following principles: (i) the Opening NAV of its Capital Account(s) ((including unrealised gains and losses relating to any Credit Watch Asset), in each case, adjusted to exclude: (A) unrealised gains and losses associated with currency hedging activities; and (B) Performance Fee) will be a negative number; (ii) all distributions and rebates paid to such Investor during the relevant Performance Fee Period prior to the calculation of the Performance Fee and all payments to the Manager of Performance Fees referable to that Investor for prior Performance Fee Periods will be a positive number; (iii) all capital contributions made by that Investor during that Performance Fee Period will be a negative number; and (iv) the Closing NAV of its Capital Account(s) ((including unrealised gains and losses relating to any Credit Watch Asset), in each case adjusted to exclude: (A) unrealised gains and losses associated with currency hedging activities; and (B) Performance Fee) will be a positive number. The Manager may direct all or part of its entitlement to the Performance Fee instead to the General Partner and/or Portfolio Manager (including for the avoidance of doubt that such fees may be paid directly by the Partnership to the General Partner and/or the Portfolio Manager). For the purposes of calculating the Performance Fee: "Closing NAV" means, for each Capital Account, the balance of such Capital Account as at the last day of each Performance Fee Period. "Hurdle" for each Performance Fee Period and each Capital Account, means the amount equal to the Hurdle Rate multiplied by each Opening NAV of such Capital Account (adjusted to take into account any accrued but unpaid Performance Fees and unrealised gains and losses allocatable to such Capital Account) and each Capital Contribution made by the relevant Limited Partner during the relevant Performance Fee Period, taking into account both the date on which such Capital Contribution was made and any distributions of capital proceeds made during such Performance Fee Period. "Hurdle Rate" means 6.00% per annum for the Unlevered Partnerships and 8.00% for the Levered Partnerships. "IRR" means the discount rate which, when applied to the Investor's Capital Accounts' cash inflows and outflows over the specified period results in a net present value of zero. "Opening NAV" for each Capital Account, means the balance of such Capital Account as at the first day of the relevant Performance Fee Period. "Performance Fee Period" means: (i) for the first Performance Fee Period, the period commencing on the Initial Closing Date and ending on 31 March 2031; (ii) for the last Performance Fee Period for each Investor, the period commencing on the immediately prior 1 April and ending on the date on which such Investor receives its final distribution following the liquidation of, or its withdrawal from the Fund; and (iii) for each other Performance Fee Period, each period of 12 months ending on 31 March each year.
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Investor Giveback	Investors may be required to return amounts distributed to them to meet any actual or potential obligations or liability of the Fund. The aggregate amount of distributions repayable by an Investor is limited to 25% of the aggregate distributions made to it or its predecessors in title by the Fund, and which are not otherwise recallable in accordance with the Partnership Agreements, and an Investor will not be required to contribute amounts pursuant to this after the second anniversary of the date on which the relevant distribution was made, unless the relevant General Partner has notified Investor's within 10 Business Days of the second anniversary of a pending or threatened legal action, suit or proceeding that has been made against the Fund, in which case the Investor's obligation to return distributions shall survive until the date that the claim is resolved or satisfied.
Borrowing	Subject to the limitations set out below in respect of the Unlevered Partnerships and Levered Partnerships respectively, the Fund may enter into borrowings, or obtain other financings, guarantee arrangements or other extensions of credit, provide credit support, grant security interests and liens on and otherwise encumber any or all of the relevant General Partner's and the Fund's rights and entitlements under the Partnership Agreements or the Fund's assets on a short-term basis where such borrowing remains outstanding for no longer than 12 months, including by entering into revolving credit facilities or any other debt or leverage facility or other facilities (a "Credit Facility") for any purpose relating to the activities on the Fund, including to provide financing on a short-term basis prior to the call or receipt of capital contributions ("Subscription Line Financing"). (i) <u>With respect to the Unlevered Partnerships:</u> Any Credit Facility shall be short-term in nature and the aggregate principal amount of all borrowing will not exceed the lesser of (a) 100% of Undrawn Commitments for each Unlevered Partnership (including for these purposes any amounts that remain available to be reinvested) and (b) either of (x) prior to the Final Closing Date, 30% of the Benchmark Threshold; or (y) following the Final Closing Date, 30% of total Commitments of such Partnership, except as otherwise agreed by the Advisory Committee. (ii) <u>With respect to the Levered Partnerships:</u> A Credit Facility may be short-term or a long-term in nature. Such Credit Facility may be for the purpose of incurring permanent leverage ("Asset Backed Financing") and may be used to benefit any Investment or any vehicle formed for the effect of making such Investment. Unless otherwise approved by the Advisory Committee, following the Final Closing Date the Levered Partnerships will not incur borrowings for the account of the Levered Partnerships that would result in the ratio of (i) the amount of Asset Backed Financing undertaken by the Levered Partnerships in aggregate (excluding Subscription Line Financing) and (ii) the Capital Contributions made by the Investors to the Levered Partnerships in the aggregate (including Subscription Line Financing), exceeding a ratio of 2.5:1. The foregoing restrictions will not apply to, or prevent the Fund from entering into (i) any non-recourse asset-backed financing below each Partnership level; (ii) agreements to indemnify or provide funds in the event of breaches of contractual provisions by the Fund, its subsidiaries or their Investments (whether such agreement is described as a guarantee, performance undertaking or otherwise); (iii) letters of credit, equity commitment letters or similar commitments; (iv) hedging transactions; or (v) any borrowing incurred by any Borrower, Investment or any entity through which an Investment is held. In connection with any borrowing, guarantees or other forms of credit support to be provided by the Fund, the General Partners may grant security to a lender over the Fund's right to receive Undrawn Commitments; the right to issue Drawdown Notices to enforce such security; the right to receive payment of Capital Contributions, including the rights and remedies available to the General Partners in relation to Defaulting Investors; the Fund's

	bank accounts; or shares, partnership interests or any other ownership interests in (or any held by) the Fund, any Parallel Vehicle or Intermediate Vehicle. There will be no cross-collateralisation of indebtedness between the Levered Partnerships and the Unlevered Partnerships.
Investor Credit Support	Investors may be required upon request to confirm the terms of their Commitment to lender(s) and provide financial and other information and execute such documents with such lender(s) or as each General Partner may reasonably require in connection therewith, including, without limitation, any investment confirmation letter (howsoever described) confirming, among other things, the Investor's identity and Commitments and addressed to the lender. If the Fund has outstanding obligations under a Credit Facility, Investors will be required to fund any remaining portion of their Undrawn Commitment without defence, counterclaim or offset of any kind and any excuse right, exclusion right or other limitation with respect to any Capital Contribution shall not be applicable with respect to any Drawdown Notice the purpose of which is to repay amounts due under a Credit Facility.
Hedging	The General Partners may, in their discretion and without obligation, select and appoint, or terminate the appointment of and replace, providers of services in relation to the management of currency exposures (including the FX Manager) and enter or require the relevant Partnerships (either directly or indirectly) to enter into forward exchange contracts, invest in currency or currency futures or currency options or contracts for differences or such other instruments or arrangements in connection with hedging Investments or income receipts therefrom but not for speculative purposes. Any expenses incurred in connection with any such transactions will be borne by the Fund. There is no guarantee that the Fund will be able to hedge all currency exchange or any other risks.
Key Persons	"Key Persons" means each of Peter Glaser, Tom Van Rijsewijk, Harlan Cherniak, Sophia Alison, Stephen Allen and Vanessa Clarke, and any other person nominated by the General Partners, and confirmed by the Advisory Committee, as a Key Person. A "Key Person Event" will occur if, for any reason, fewer than three Key Persons are meeting their Key Person Responsibilities. In order to meet their "Key Person Responsibilities", a Key Person must have spent: (i) in respect of Peter Glaser: devoting the majority of his business time and attention to the affairs of Macquarie Asset Management Credit & Insurance Division; (ii) in respect of Tom Van Rijsewijk, Harlan Cherniak, Sophia Alison, Stephen Allen and Vanessa Clarke: devoting the majority of their business time and attention to the affairs of Macquarie Asset Management Private Credit Division; and (iii) for any other person nominated by the General Partners and confirmed by the Advisory Committee to be a Key Person: as agreed between the General Partners and the Advisory Committee. If a Key Person Event occurs prior to the end of the Lock-Up Period, a "Suspension Period" shall commence and the relevant General Partner will, as soon as reasonably practicable, inform Investors and during the Suspension Period, unless otherwise approved by the Advisory Committee, will not issue any Drawdown Notices for the purposes of making any new Investments, provided that the relevant General Partner may issue Drawdown Notices for certain limited purposes as set forth in the Partnership Agreements. The Advisory Committee may agree to end the Suspension Period.
Advisory Committee	The General Partners will establish an Advisory Committee for the Fund, which will meet upon written request of a majority of members of the Advisory Committee on at least an annual basis, or when convened by the General Partners to review proposals and discuss matters presented to it, which may include conflicts of interest, waiving or agreeing to modifications to the Investment Restrictions, any matters specified in the Partnership Agreements and giving consents on behalf of the Partnerships under the U.S. Investment Advisers Act of 1940, as amended (and together with the rules and regulations promulgated

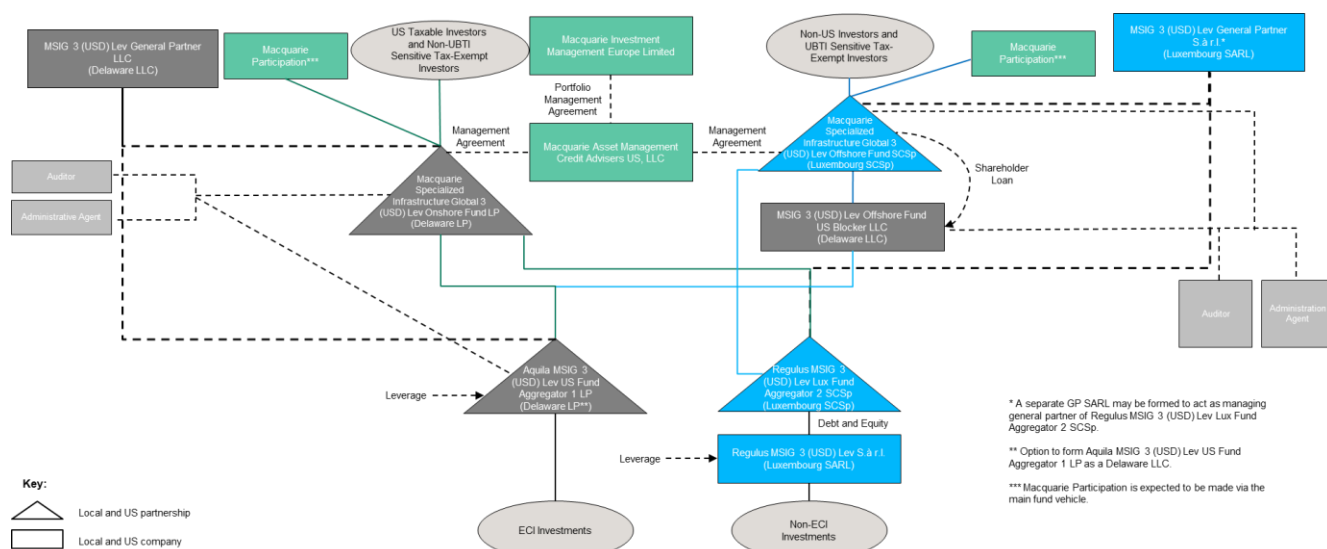
	thereunder, the “Advisers Act”), including Section 206(3) thereof and consents for the assignment (within the meaning of Section 202(a)(1) thereof) of the Management Agreements, when requested to do so by the General Partners in their discretion. The Advisory Committee will consist of members selected by the General Partners in their discretion, each being representatives of Investors or Feeder Investors, but excluding Feeder Partners and Executive Partners. Decisions of the Advisory Committee will be made by a majority of members present and who are entitled to participate in the vote, or by written resolution, and each member of the Advisory Committee will be entitled to one vote. Representatives of the General Partners, the Manager and any Special Limited Partner will not have the right to vote. The General Partners may, in their reasonable discretion, restrict any member of the Advisory Committee from voting on a matter submitted to the Advisory Committee in respect of an Investment that the Investor appointing it has no direct exposure to as a result of being wholly or partially excused or excluded in relation to such Investment or being a Withdrawing Investor, provided that such restriction shall not apply where the Limited Partner would be materially affected by the outcome of such vote. The Advisory Committee will not take part in the management or control of the business or affairs of the Fund, and its function is consultative only in nature (except for specified approval rights). For the avoidance of doubt, the Advisory Committee will not be able to override decisions that require approval of the Investors. Advisory Committee members may take into account only their own interests or the interests of the Investor they represent when conducting their role on the Advisory Committee. Reasonable out-of-pocket expenses related to attending the meetings of the Advisory Committee will be paid by the Fund (with each Partnership bearing its portion, on a fair and equitable basis, as between each of the relevant Partnership and any Parallel Vehicles and Alternative Investment Vehicles). The Advisory Committee may engage external counsel or consultants in relation to matters outside the ordinary course of business of the Fund for a common objective in connection with the Fund, as further detailed in the Partnership Agreements. The reasonable costs of such external counsel or consultants will be an Operating Expense to be borne by the Fund, provided that such costs are reasonably incurred for the benefit of the Investors as a whole (including those not represented on the Advisory Committee).
Seed Investments	Prospective investors should refer to the additional information provided to Investors in the Fund’s data room relating to Seed Investment disclosure(s) prior to their admission to the Fund.
Indemnification	To the fullest extent permitted by law, the General Partners, the Manager, the Portfolio Manager, any Adviser and their Associates and/or their respective officers, directors, partners, members, shareholders, agents, delegates and employees, and any person who serves on the Investment Committee or the board of directors or advisory board or equivalent of any Intermediate Vehicle, or any person who serves on the Advisory Committee and only in respect of liability arising out of the membership of the Advisory Committee, the Investor or Feeder Investor whom such member of the Advisory Committee represents (each, an “Indemnified Party”) will not be liable for any loss incurred by them in connection with the services provided by any of them and will be entitled to be indemnified out of the assets of the Fund, unless a final judgment of the courts of the Grand Duchy of Luxembourg determined the matter to have resulted from (i) in the case of an Indemnified Party who is not a member of the Advisory Committee or the Investor or Feeder Investor such member represents, such Indemnified Party’s: (A) fraud, gross negligence, bad faith or wilful default; or (B) substantial material breach of the relevant Partnership Agreement or Management Agreement resulting in material financial disadvantage to the Fund (other than in each case where the Indemnified Party was acting in good faith upon the opinion or advice as to legal matters of legal counsel or as to accounting matters of accounting selected by any of them with reasonable care), and

	(ii) in the case of an Indemnified Party who is a member of the Advisory Committee or the Investor or Feeder Investor such member represents, such member's fraud or bad faith.
Termination	Investors representing a majority of Fund Commitments can vote within 90 days to terminate the Fund if the courts of the Grand Duchy of Luxembourg make a final determination that the relevant General Partner and/or Manager (as applicable) is guilty of a Cause Event. "Cause Event" shall include (as fully detailed in the Partnership Agreements) fraud, wilful illegal act, wilful default, wilful misconduct, bad faith, reckless disregard, substantial and material breach of the Partnership Agreement or Management Agreement and gross negligence, which in each case has resulted in a material adverse economic effect on the Fund or the Investors as a whole and, in circumstances of breach of the Partnership Agreement or Management Agreement or gross negligence that are capable of remedy, has not been remedied within three months of written notice having been served on the relevant General Partner by the Advisory Committee requiring such remedy. The Investors may, by notice served on the relevant General Partner pursuant to Investor Special Consent at any time following the end of the Lock-Up Period, elect to terminate the Fund. In such circumstances, the relevant General Partner shall (in addition to and without prejudice to any other sum owed to such General Partner pursuant to the relevant Partnership Agreement) immediately be entitled to receive by way of compensation an additional amount equal to the Management Fee paid or payable for the proceeding 18 month period, which will be an amount equal to the product of (i) the amount of Management Fee paid in respect of the most recently completed fiscal quarter of the Partnership; and (ii) six (6). The General Partners may elect in their discretion to terminate the Fund in certain circumstances as further set out in the Partnership Agreements, including (but not limited to) if, following the end of the Lock-Up Period, (i) all Investments have been disposed of or otherwise realised by the Partnerships and all distributable proceeds have been distributed, or (ii) the amount of Withdrawing Investors is such that in the reasonable determination of the General Partners, following the satisfaction of all such withdrawals, the net asset value of the Fund would be equal to or less than the lesser of: (a) an amount equal to one third of the Fund Commitments as at the Final Closing Date and (b) USD 300 million (in making such determination, the General Partner shall consider the commercial viability of the Fund and the interests of Investors as a whole in good faith), or if the General Partners reasonably determine that the continued operation of the Partnerships would not be economically viable.
Side Letters	The General Partners, the Manager or any of their Associates may (on their own behalf and/or on behalf of any Partnership, Parallel Vehicle or Feeder Partner), enter into side letters or other agreements ("Side Letters") that may provide certain Investors or Feeder Investors with the right to invest on terms that may differ from or supplement those set forth in the Partnership Agreements (or any applicable governing agreement of any Feeder Partner). The General Partners shall, as soon as reasonably practicable after the Final Closing Date, disclose to each Investor and Feeder Investor all other Side Letter provisions which the General Partners determine in good faith would be eligible for election by the Investor or Feeder Investor and which has the effect of establishing rights and other benefits in a manner which is materially more favourable than rights and benefits granted to other Investors, and each Investor and Feeder Investor that indicates to the relevant General Partner in writing within 30 Business Days of such disclosure will be entitled to avail itself of any such side letter provisions on substantially those terms to the extent not already in receipt of an equivalent provision in its own Side Letter, provided that (i) such terms are applicable to the Investor or Feeder Investor and the Investor or Feeder Investor meets all the required conditions to be entitled to receive such rights (including where a Side Letter provision is conditioned upon the overall relationship with a member of the Macquarie Group, including commitments to other Macquarie Funds and/or co-investment arrangements); and (ii) the Investor or Feeder Investor has made a commitment for an amount equal to, or in excess of, the amount committed by the original Side Letter recipient.

	Investors and Feeder Investors will not be entitled to elect Side Letter provisions relating to the Advisory Committee and rights relating thereto, co-investment opportunities, any credit facility or other borrowing entered into by the Fund, transfers, excuse rights, associated investors, Executive Partners, the Sponsor Commitment, representations and warranties relating to a particular point in time, confirmations provided by the General Partner, the Manager, the Portfolio Manager and/or any of their Associates, Tax and regulatory reporting and the use and disclosure of any confidential information, and any other Side Letter provisions that relate to an Investor or Feeder Investor's particular legal, Tax, regulatory, ERISA status or public policy characteristics or to statutory or regulatory provisions applicable to such Investor or Feeder Investor, or to administrative, operational or written policy requirements applicable to and/or binding upon such Investor or Feeder Investor.
Restrictions on Transfers	Investors may not transfer their Interests without the prior written approval of the relevant General Partner (which may be given or withheld in such General Partner's discretion for any reason). Proposed transferees will be required to satisfy the same eligibility requirements as the transferor and transfers will be subject to certain formalities as further described in the Partnership Agreements. Subject to the section above on "Withdrawal", no Investor may withdraw from the Fund other than as set out in the relevant Partnership Agreement. The General Partners may require an Investor to compulsorily withdraw from the Fund, in whole or in part, in certain circumstances as set out in the Partnership Agreements.
Reporting	Investors will receive: (i) an annual report, including the audited accounts of the relevant Partnership for each full year ending 31 March; and (ii) quarterly reports for each quarter period ending 31 March, 30 June, 30 September and 31 December setting out a statement of such Investor's capital account, a statement of the relevant Partnership's Net Asset Value and a summary of the relevant Partnership's activities over the relevant quarter. The General Partners will aim to distribute to Investors quarterly reports within 30 Business Days and the annual report within 120 calendar days, in each case after the relevant period end.
Valuations	The General Partners shall procure that the Manager or any of its Associates will determine the fair value of all Investments in accordance with the applicable valuation methodology. The Manager may appoint an independent valuer to assist it with any valuations required to prepare the accounts and reports.
Co-investment	The General Partners and their Associates may, but shall not be obliged to, offer co-investment opportunities from time to time to certain Investors or other persons as the General Partners may in their discretion decide. The terms of any such co-investment opportunity will be defined by the General Partners or their Associates in their sole discretion.
Tax Considerations	Each Partnership intends to be classified as a partnership (or, in certain circumstances, a disregarded entity) for U.S. federal income tax purposes. Please see Section 7.2 entitled "Certain Tax Considerations". INVESTORS SHOULD CONSULT WITH THEIR OWN TAX ADVISERS AS TO THE CONSEQUENCES OF BECOMING AN INVESTOR IN THE FUND.
Amendments	Each Partnership Agreement may be amended by the relevant General Partner with the approval of Investors representing a majority of Fund Commitments. However, where the amendment would have a disproportionate material adverse effect on a particular Investor or class of Investors or would impose an obligation on any Investor to make payments beyond its Undrawn Commitment, reduce any Investor's share of allocation and distributions, or increase the liability of an Investor to release the relevant General Partner or Manager from any responsibility to any material extent, the consent of such affected Investor or Investors is also required. The relevant General Partner may also amend the relevant Partnership

	Agreement in circumstances where an amendment does not materially and adversely affect the interests of any Investor or as otherwise provided in the relevant Partnership Agreement.
ERISA	The General Partners expect to operate the Fund in such a manner that the assets of the Fund do not and will not constitute “plan assets” of any Investor within the meaning of the U.S. Employee Retirement Income Security Act of 1974, as amended.
Governing Law	The Partnership Agreements of the Luxembourg Partnerships will be governed by Luxembourg law. The Partnership Agreements of the Delaware Partnerships will be governed by Delaware law.
Administrator	SEI Investments – Luxembourg S.A. will be appointed as the administrator for the Luxembourg Partnerships. SEI Investments – Global Fund Services Limited will be appointed as the administrator for the Delaware Partnerships.
Auditor	PricewaterhouseCoopers.
Legal Counsel	Linklaters LLP (as to the laws of Luxembourg, England and Wales and the United States). Linklaters LLP will represent the General Partners, the Manager, the Portfolio Manager and the Fund, but will not represent any Investor in connection with the organisation of the Fund, the preparation of the organisational documents of the Fund or the investment by such Investor in the Fund.

Levered option



It is generally expected that Investors will make a Commitment to a Partnership. However, one or more partnerships or other investment vehicles may be established to operate alongside the Partnerships (each, a **"Parallel Vehicle"**) or through which certain Investors will indirectly invest in the Partnerships or a Parallel Vehicle (each, a **"Feeder Partner"**) to accommodate the legal, Tax or regulatory needs or preferences of such Investors or Feeder Investors.

Additional vehicles, including Alternative Investment Vehicles may be established, as necessary.

6.2 Fund Management

General Partner

The general partner of each Partnership (with respect to each Partnership, as applicable, the **"General Partner"**) is:

- **Delaware Levered Partnership:** MSG 3 (USD) Lev General Partner LLC, a limited liability company formed in the State of Delaware and registered as a limited liability company with the State of Delaware Division of Corporations.
- **Luxembourg Levered Partnership:** MSG 3 (USD) Lev General Partner S.à r.l., a private limited liability company (*société à responsabilité limitée*), which will be incorporated in Luxembourg and registered with the Luxembourg Register of Commerce and Companies.
- **Delaware Unlevered Partnership:** MSG 3 (USD) UnLev General Partner LLC, a limited liability company formed in the State of Delaware and registered as a limited liability company with the State of Delaware Division of Corporations.
- **Luxembourg Unlevered Partnership:** MSG 3 (USD) UnLev General Partner S.à r.l., a private limited liability company (*société à responsabilité limitée*) incorporated in Luxembourg and that is registered with the Luxembourg Register of Commerce and Companies under number B295793.

With respect to each Partnership, the General Partner is ultimately responsible for the management of the relevant Partnership and will have unlimited personal liability for the unsatisfied debts and obligations of the relevant Partnership (and any other limited partnership of which it is the unlimited partner).

The General Partners' duties, acting on behalf of the relevant Partnership, include, among others, the appointment of the Manager, the control of the relevant Partnership's business and affairs, the convening and organisation of Investor and/or Feeder Investor meetings, the execution of Subscription Agreements and Side Letters with Investors and Feeder Investors, as applicable.

Manager

The Manager of the Fund will be Macquarie Asset Management Credit Advisers US, LLC. The Manager is registered as an investment adviser under the Advisers Act.

The Manager will be responsible for the management and administration of the Fund. It has the powers, functions and duties, and is entitled to the limitations on liability and indemnification set out in the Management Agreement.

The Manager's appointment may be terminated by the General Partners in accordance with the provisions of the Management Agreements. As limited partners the Investors have no right to participate in the business of the Fund or in making investment decisions in respect of the Fund.

The Manager's duties under the Management Agreements will be owed to the Fund as a whole and not directly to Investors, whether individually or in groups. As under the Partnership Agreements only the relevant General Partner (in the absence of the Manager) is entitled to participate in the business of the Fund, and only it can bring an action or make a claim against the Manager.

Portfolio Manager

MIMEL will be appointed as the Portfolio Manager of the Fund. The Portfolio Manager is authorised and regulated by the FCA and the SEC and is a member of the Macquarie Group. The Portfolio Manager will provide a defined range of services including originating, assisting with appraising investment opportunities for the Fund, monitoring such investment activities and assisting with any divestments made by the Fund.

The Portfolio Manager's duties under the Portfolio Management Agreements will be owed to the Manager and not directly to Investors, whether individually or in groups, as under the Partnership Agreements only the relevant General Partner or the Manager is entitled to participate in the business of the Fund. The Portfolio Manager will have the powers, functions and duties, and will be entitled to the limitations on liability and indemnification set out in the Portfolio Management Agreements.

Administrator

The Administrator of each Partnership (with respect to each Partnership, the "**Administrator**") will be:

- **Luxembourg Partnerships:** SEI Investments – Luxembourg S.A. will be appointed by the Luxembourg Partnerships as **administrator**, loan administrator, registrar and transfer agent of the Luxembourg Partnerships pursuant to an administration agreement ("**Luxembourg Administration Agreement**"). SEI Investments – Luxembourg S.A. is a public limited company incorporated in Luxembourg under Trade and Company Register number B257752 and is regulated as a Specialised Professional of the Financial Sector by the *Commission de Surveillance du Secteur Financier*. The duties of SEI Investments – Luxembourg S.A. will be set forth in the Luxembourg Administration Agreement governed by Luxembourg law which covers the duties set out in this Section 6.2 under the heading entitled "Administrator" below.
- **Delaware Partnerships:** SEI Investments – Global Fund Services Limited will be appointed by the Delaware Partnerships as administrator, registrar and transfer agent of the Delaware Partnerships pursuant to an administration agreement ("**Delaware Administration Agreement**" and together with the Luxembourg Administration Agreement, the "**Administration Agreements**"). SEI Investments – Global Fund Services Limited is a private limited liability company incorporated in Ireland and is regulated as an investment business firm by the Central Bank of Ireland under section 10 of the Investment Intermediaries Act, 1995. The duties of SEI Investments – Global Fund Services Limited will be set forth in the Delaware Administration Agreement governed by Irish law which covers the duties set out in this Section 6.2 under the heading entitled "Administrator" below.

Each of the Administrators is engaged in the business of providing administration and accounting services to investment funds. Each of the Administrators' ultimate parent company is SEI Investments Company, a corporation organised under the laws of the State of Pennsylvania, USA and listed on the NASDAQ.

The duties and functions of the Administrators will include, *inter alia*, the calculation of the Net Asset Value, the preparation and maintenance of the Fund's financial books and accounts, preparation of the financial statements of the Fund, loan administration services, and registration and transfer agency services. The Administrator's and/or its delegate(s) will also provide assistance to the Manager, the General Partners, and the Fund in connection with communicating with Investors and other persons with respect to the Fund.

In the event that: (i) an Administration Agreement is terminated; or (ii) SEI Investments – Luxembourg S.A. resigns as Administrator of the Luxembourg Partnerships; or (iii) SEI Investments – Global Fund Services Limited resigns as Administrator of the Delaware Partnerships, the relevant affected Partnership has the authority to appoint one or more different or replacement administrators, in its sole discretion at any time without notice to the Investors.

Each Administrator will have the powers, functions and duties, and is entitled to the limitations on liability and indemnification set out in the relevant Administration Agreement.

Auditor

The Partnerships will appoint PricewaterhouseCoopers as the first auditor (the “**Auditor**”) of the Partnerships. The Partnerships shall be responsible for payment of the Auditor fees which shall be based on arm’s length terms and in line with market practice as agreed between the General Partners and the Auditor. Such fees will be borne by the Fund as Operating Expenses.

FX Manager

The Partnerships may appoint a member of the Macquarie Group or a third party provider to provide services in relation to the management of currency exposures in respect of the Fund (“**FX Manager**”). These services may include calculating hedge levels, providing best execution of trades, regulatory reporting, cashflow management and trade monitoring. Such fees will be borne by the Fund as Operating Expenses.

The FX Manager will be entitled to the limitations on liability and indemnification as set out in the relevant service provider agreement.

7. Additional Information

7.1 Risk Factors

7.1.1 General

An investment in the Fund will involve a significant degree of risk and will only be suitable for those persons who are able to bear the economic risk of the investment, understand the high degree of risks involved, believe that the investment is suitable based upon their investment objectives and financial needs, and have no need for liquidity of investment. There can be, and is, no assurance that the Fund's Investment Objective will be achieved, that its investment strategy will be able to be implemented or will be profitable, or that an Investor will receive a return on its capital.

Before making an investment decision, prospective investors should carefully consider all of the information set out in this Memorandum and the terms and provisions of the relevant Partnership Agreement, as well as their own personal circumstances. The risk factors referred to in this Memorandum, alone or collectively, may reduce the return achieved by the Fund and could result in the loss of all or a proportion of an Investor's investment. The risk factors set out herein are not exhaustive. There may be other risks that a prospective investor should consider that are relevant to its own particular circumstances.

7.1.2 Risks Associated with Lending Generally

Limited control over Borrower's assets/business

The ability of the Fund to control the assets or business activities of a Borrower is considerably less than the control that can be exercised by an equity investor.

Lender co-ordination

When lending jointly or as part of a consortium, an individual lender may not be in a position to control the enforcement and other actions to be taken under a loan. In particular, infrastructure projects may be subject to complex intercreditor arrangements which can mean that amendments, waivers, consents and the ability to take or direct enforcement action, including the acceleration of debt, are outside of the control of a single creditor. As financings may have very diverse creditors (including but not limited to public bondholders, banks, financial institutions, hedging providers, the European Investment Bank, monoline insurers (whether active or non-active), supra-national lenders and insurance companies), and as such creditors may have different payment rankings, the interests of creditors operating such intercreditor arrangements are not necessarily aligned.

Enforcement

The Fund's Investments are subject to the risk of non-payment of scheduled interest, lease payments or principal by the relevant Borrower. Such non-payment would likely result in a reduction of income to the Fund and a reduction in the value of the Investment experiencing non-payment. A non-performing loan may require substantial work-out negotiations or in- or out-of-court restructuring that may entail, among other things, substantial legal and other fees and expenses. There can be no assurance that the liquidation of any collateral would satisfy the Borrower's obligation in the event of non-payment of scheduled interest, lease payments or principal payments with respect to such Investment, or that such collateral could be readily liquidated.

In addition, in the event of a bankruptcy of a Borrower, the Fund could experience delays or limitations with respect to its ability to realise the benefits of the collateral securing an Investment and, in certain circumstances, collateral securing an Investment may be released without the consent of the Fund. Moreover, the Fund's security interests may be unperfected for a variety of reasons, including the failure to make required filings by Borrowers and, as a result, the Fund may not have the priority over other creditors as anticipated.

Prepayment

Loans are generally prepayable in whole or in part at any time at the option of the obligor at par plus accrued and unpaid interest thereon, and occasionally plus a prepayment premium. Prepayments on loans may be caused by a variety of factors which are often difficult to predict. When credit market conditions become more attractive to obligors, the rate of prepayment

of the Fund's assets would be expected to increase as obligors refinance to take advantage of such improved conditions, which may negatively impact the Fund.

In particular, in the event that an Investment is pre-paid in advance of its maturity date, capital may not be able to be reinvested at the same rate of return. A break fee may be payable by the Borrower in some instances which may wholly or partially compensate for the prepayment having occurred. In the event a break fee is not paid or not payable this may have a negative impact on the expected duration of the Investment by the Fund and the duration of returns received by an Investor.

Inability to source Investments for the Fund

There is no guarantee that the Fund will be able to deploy available capital. The Fund will compete with a broad spectrum of credit providers and lenders for Investments. These competitors, which include financial institutions (which could in some circumstances include Macquarie subject to Macquarie's Conflicts of Interest Policy), private funds and financial investors, may have significant financial resources and may be able to provide debt finance with competitive terms.

As a result of such competition, the Fund may have difficulty in making certain Investments or, alternatively, the Fund may be required to make Investments on economic terms less favourable than anticipated and such competition for, or a diminution in the available supply of, qualifying loans could result in lower yields on such loans, which could reduce returns to Investors.

There can be no assurance as to the amount and timing of payments with respect to the loans; the loans could become non-performing and possibly go into default, and Borrowers could enter into bankruptcy or liquidation. If the Fund is unable to make Investments within a reasonable timeframe or makes Investments under less favourable terms, the Fund's performance could be materially and adversely affected. Although the Manager will attempt to manage this investment risk, there can be no assurance that the Investments will maintain their value or that the Fund will not incur significant losses.

Because of the unique and customised nature of a loan agreement and the private syndication of a loan, certain loans may not be purchased or sold as easily as publicly traded securities and historically, the trading volume in the loan market has been small relative to other markets. Loans may encounter trading delays due to their unique and customised nature, and transfers may require the consent of an agent and/or Borrower.

If the Fund desires to sell or assign a loan that it originates, but is unable to sell, assign or successfully close transactions for assignments or participations in such loan, the Fund will be forced to hold such loan until such time as it can be disposed of, during which time the Fund may be "overweighted" with respect to a particular Borrower.

Loans to medium-sized or closely held companies

As part of its investment strategy, the Fund may commit to the origination or purchasing of loans or other debt exposures to both public and privately owned businesses. With respect to the origination or purchasing of loans from medium-sized or privately owned businesses, compared to larger, publicly owned firms, such companies may have limited financial resources and access to capital as well as higher funding costs. They may be in a weaker financial position and may need more capital to expand or compete. These companies frequently have shorter operating histories, narrower product lines and smaller market shares than larger businesses, which render them more vulnerable to competitors' actions and market conditions, as well as general economic downturns. There may not be as much information publicly available about these companies as would be available for public companies, and such information may not be of the same quality. These companies are also more likely to depend on the management talents and efforts of a small group of persons and, as a result, the death, disability, resignation or termination of one or more of these persons could have a material adverse impact on these companies' ability to meet their obligations. The above challenges increase the risk of these companies defaulting on their obligations.

Different parts of a Borrower's debt capital structure

Investments may be contractually or structurally subordinated to other obligations of a Borrower. Such subordinated Investments may be characterised by greater credit risks and higher loss given default than those associated with the senior obligations of the same Borrower.

Adverse changes in the financial condition of a Borrower, general economic conditions, or the terms of other financings may impair the ability of a Borrower to make payments on a subordinated Investment and result in defaults on such Investments more quickly than in the case of the senior obligations of such Borrower. As a result, to the extent the Fund invests in such Investments, the Fund would potentially receive payments after, and would bear the effects of losses or defaults on its Investments before, the holders of other more senior tranches of debt. In the absence of an intercreditor arrangement with senior creditors, the Fund may have limited protections or rights following an event of default. In addition, the ability of the Fund to influence a Borrower's affairs may be substantially less than that of senior creditors.

Mezzanine debt

Mezzanine obligations are subject to the same risks as the loans otherwise described herein. In addition, mezzanine obligations may provide that all or a part of the interest accruing thereon will not be paid on a current basis but will be deferred. Mezzanine obligations also generally involve greater credit and liquidity risks than those associated with senior secured loans. They are often entered into in connection with leveraged acquisitions or recapitalisations in which the obligors thereunder incur a substantially higher amount of indebtedness than the level at which they previously operated and such loans sit at a subordinated level in the capital structure of such Borrower.

Unitranche loans

Unitranche loans provide leverage levels comparable to a combination of first lien and second lien or subordinated loans, and may rank junior to other debt instruments issued by the underlying issuer. Unitranche loans generally allow the Borrower to make a large lump sum payment of principal at the end of the loan term, and there is a heightened risk of loss if the Borrower is unable to pay the lump sum or refinance the amount owed at maturity.

Minority positions

The Fund may hold minority positions in Investments. While the Fund will seek to obtain appropriate governance and exit rights at the time of investment, there may be instances in which the Fund may not be able to exercise control over such Investments. In addition, in certain situations, including where businesses are in bankruptcy or undergoing a reorganisation, Investments with a minority position may be subject to the decisions taken by the majority, and the outcome of the Fund's Investment may depend on such majority-controlled decisions, which decisions may not be consistent with the Fund's objectives.

Unfunded loans

The Investments of the Fund may include loan commitments that are unfunded at the time of investment. A loan commitment is a written agreement in which the lender commits itself to make a loan or loans up to a specified amount within a specified time period. The loan commitment sets out the terms and conditions of the lender's obligation to make the loans. The portion of the amount committed by a lender under a loan commitment that the Borrower has not drawn down is referred to as "unfunded". A lender typically is obligated to advance the unfunded amount of a loan commitment at the Borrower's request, subject to certain conditions regarding the creditworthiness of the Borrower. Borrowers with deteriorating creditworthiness may continue to satisfy their contractual conditions and therefore be eligible to borrow at times when the lender might prefer not to lend. In addition, a lender may have assumptions as to when a Borrower in which the Fund invests may draw on an unfunded loan commitment when the lender enters into the commitment. If the Borrower does not draw as expected, the commitment may not prove as attractive an investment as originally anticipated. Further, any failure to advance requested funds to a Borrower in which the Fund invests could result in possible assertions of offsets against amounts previously lent.

Concentration

Some concentration with respect to particular obligors, regions and industries is expected to exist in the Fund's investment portfolio. In addition, because redemptions and repayments of assets will occur, a concentration in any one obligor, region or industry may occur or increase over time. Any such concentration would subject the Fund to a greater degree of risk with respect to the impact of a default by such obligor, or a greater degree of risk related to adverse business conditions in such region or industry.

Participation in secondary market debt purchases

Although the Fund intends to focus on originating new loan transactions, the Fund is permitted to invest in loans acquired through assignment or participations. These obligations are subject to various unique risks, including: (i) the possible invalidation of an investment transaction as a fraudulent conveyance under relevant laws; (ii) lender-liability claims of breach of contract, breach of fiduciary duty and of sales of collateral at non-commercially reasonable terms by the underlying obligor; (iii) environmental liabilities that may arise with respect to any collateral securing the underlying obligations; and (iv) limitations on the ability of the Fund to enforce its rights directly with respect to participations.

In purchasing participations, the Fund will have a direct contractual relationship only with the selling institution, and not the Borrower. Thus, in the case of a participation interest, the Fund will generally have the right to receive payments of principal, interest and any fees to which it is entitled only from the institution selling the participation and only upon receipt by such selling institution of such payments from the Borrower. As a result, the Fund will assume the credit risk of both the Borrower and the selling institution. The Fund generally will have no right to enforce compliance by the underlying Borrower with the terms of the loan agreement, nor any voting rights or rights of set-off against the underlying borrower, nor will it have the right

to object to certain changes to the loan agreement agreed to by the selling institution. The Fund may not benefit from the collateral supporting the related secured loan and may not be subject to any rights of set-off the Borrower has against the selling institution.

In addition, in the event of the insolvency of the selling institution, under the laws of certain jurisdictions the Fund may be treated as a general unsecured creditor of such selling institution, and may not have any exclusive or senior claim with respect to the selling institution's interest in, or the collateral with respect to, the secured loan. Consequently, in such circumstances, the Fund will be subject to the credit risk of the selling institution as well as that of the Borrower. Certain of the secured loans or loan participations may be governed by the law of a foreign jurisdiction which may present additional risks as regards the characterisation of such transaction as a participation under such laws of such participation in the event of the insolvency of the selling institution or the Borrower.

Administration and amendment of underlying loans

If the Fund is a holder of a syndicated loan or an interest therein, the Fund may have limited consent and control rights and such rights may not be effective in view of the expected proportion of such loan held by the Fund. The Manager may exercise or enforce, or refrain from exercising or enforcing, any or all of the Fund's rights in connection with any of its Investments. However, due to the size of the Fund's investment position, the Fund may have limited influence over any amendment, waiver or modification of such loan.

Additionally, as a provider of debt financing or holder of equity securities, the Fund will not be in a position to control any Borrower. As a result, the Fund is subject to the risk that a Borrower in which the Fund invests may make business decisions with which the Fund disagrees and the management of such Borrower may, as representatives of holders of their common equity, take risks or otherwise act in ways that do not serve the interests of the Fund as a minority stakeholder or creditor.

Unrated debt obligations

The Fund may invest in Investments which constitute obligations that may be unrated by a recognised credit rating agency, which may be subject to greater risk of loss of principal and interest than higher-rated debt obligations or debt obligations which rank behind other outstanding instruments and obligations of the obligor, all or a significant portion of which, may be secured on substantially all of that obligor's assets. The Fund may also invest in Investments which are not protected by financial covenants or limitations on additional indebtedness. Any of these factors could have a material adverse effect on the performance of the Fund, and, by extension, the Fund's business, financial condition, results of operations and the value of the Interests in the Fund.

Fraud

Of paramount concern in purchasing loans and other assets is the possibility of material misrepresentation or omission on the part of a counterparty. Such inaccuracy or incompleteness may adversely affect the valuation of the collateral underlying the loans or other asset, or may adversely affect the ability of the lender of record to perfect or effectuate a lien on the collateral securing the loan or other assets. The Fund relies upon the accuracy and completeness of representations made by companies in which the Fund invests or other counterparties to the extent reasonable, but cannot guarantee that such representations are accurate or complete. Under certain circumstances, payments to the Fund may be reclaimed if any such payment or distribution is later determined to have been made with intent to defraud or prefer creditors.

Lender liability claims and equitable subordination

A number of judicial decisions have upheld judgments of obligors against lending institutions on the basis of various evolving legal theories, collectively termed "lender liability". Borrowers in which the Fund invests may be located in jurisdictions where lenders may have legal exposure on the basis of lender liability. Generally, lender liability is founded on the premise that a lender has violated a duty (whether implied or contractual) of good faith, commercial reasonableness and fair dealing or a similar duty owed to the obligor or has assumed an excessive degree of control over the obligor resulting in the creation of a fiduciary duty owed to the obligor or its other creditors or equityholders. Because of the nature of the Fund's assets, the Fund may be subject to claims of lender liability. Any such claim, if determined adversely to the Fund, could have a material adverse effect on the Fund's returns to investors.

In addition, under certain legal principles that in some cases form the basis for lender liability claims, if a lender, bondholder or other creditor (i) intentionally takes an action that results in the undercapitalisation of an obligor to the detriment of other creditors of such obligor, (ii) engages in other inequitable conduct to the detriment of such other creditors, (iii) engages in fraud with respect to, or makes misrepresentations to, such other creditors or (iv) uses its influence as an equityholder to dominate or control an obligor to the detriment of other creditors of such obligor, a court may elect to subordinate the claim of the

offending lender, bondholder or other creditor to the claims of the disadvantaged creditor or creditors, a remedy called “equitable subordination”. Because of its nature, the Fund’s assets may be subject to claims of equitable subordination.

In addition, because affiliates of, or persons related to, the Manager may hold equity or other interests in obligors of the Fund’s assets, the Fund could be exposed to claims for equitable subordination, lender liability or both based on such equity or other holdings.

The preceding discussion is based upon general principles of United States federal laws. The laws of non-U.S. jurisdictions may impose liability upon lenders, bondholders or other creditors under factual circumstances similar (or additional) to those described above, with consequences that may or may not be analogous to those described above.

General market and credit and interest rate risks that affect debt instruments

Investments will be subject to general credit and interest risks. Credit risk refers to the likelihood that a Borrower will default on the payment of principal, interest or other amounts owed on an Investment. Certain Investments may have an interest-only payment schedule with the principal amount remaining outstanding and at risk until the maturity of the Investment. Financial strength and solvency of a Borrower are the primary factors influencing credit risk, but other factors, including, but not limited to, negative economic conditions affecting a Borrower may also contribute to credit risk.

In addition, lack of, inadequacy of, or a deterioration in the value of, collateral or other assets expected to be the source of repayment or credit enhancement for an Investment may affect its credit risk. Some of the Fund’s Investments may be subordinated to, or rank *pari passu* with, other indebtedness including, but not limited to, a Borrower’s hedging liabilities or other borrowing liabilities. In such instances, the Fund’s interest in any collateral may be subordinate to or equal with another creditor of the Borrower.

Credit risk may change over the course of the life of an Investment and Investments that are rated by rating agencies may be subject to downgrade at a later date. There can be no assurance that the Fund will be successful in assessing the credit risk of the different Investments or mitigating the impact of credit risk changes on the Fund.

Interest rate risk refers to the risks associated with market changes in interest rates. Interest rate changes may affect the value of a debt instrument indirectly (especially in the case of fixed rate securities) and directly (especially in the case of instruments whose rates are adjustable). In general, rising interest rates will negatively impact the price of a fixed rate debt instrument and falling interest rates will have a positive effect on price. Adjustable rate instruments also react to interest rate changes in a similar manner although generally to a lesser degree (depending, however, on the characteristics of the reset terms, including the index chosen, frequency of reset and reset caps or floors, among other factors). Interest rate sensitivity may be more pronounced and less predictable in instruments with uncertain payment or prepayment schedules.

Credit / default cycle

Financial markets have historically experienced cycles in the accessibility of credit in the lending market. Such cycles have a propensity to commence where lending is widely available and access to funds for borrowing is easily obtained by borrowers. Periods of increased credit availability are characterised by lower interest rates, higher utilisation and borrowing amounts and less stringent lending criteria.

Historically periods of credit availability have been superseded by periods of contraction in the lending market leading to a reduction of the funds available for borrowing, increased interest rates and application of stricter lending requirements. The result of this credit contraction period is a reduction in the numbers of borrowers able to obtain funds for borrowing. During this period borrowers may find it difficult to find new financing in the market, impacting economic growth, increasing market instability and default rates on existing debt financing (for example, where lending is not available for borrowers to refinance existing debt obligations).

The contraction period continues until such time as lenders perceive that the risks associated with lending have been sufficiently reduced and lending becomes more attractive.

In periods of increased competition and accessibility to credit, the credit cycle may negatively impact the rates and terms on which investments are offered in the market, constraining the Fund’s ability to identify attractive investment opportunities and reducing the returns available for the Fund. In contrast, in periods of credit contraction in the market, the availability of investments will be reduced, the Fund may experience increased competition with other funds with similar investment strategies for investments and sourcing investment opportunities with attractive returns may be problematic.

Base interest rate impact on target IRR

The target IRRs set out in this Memorandum are based on a number of factors believed to be reasonable in light of both current market conditions as at the date of preparing this Memorandum and the Manager’s views on future market conditions.

Given that the margin on the Investments will in most cases have a floating rate the ability to achieve the target IRR will depend on movement of base interest rates. The Manager and its Associates are unable to predict with accuracy the movements of base rates during the term of the Fund and such movements could have an adverse impact on the target IRR.

Bankruptcy

The Fund may hold Investments in obligors that are experiencing, or are expected to experience, severe financial difficulties, which may never be overcome and may lead to uncertain outcomes. The bankruptcy courts of the various jurisdictions in which any such obligor may file bankruptcy would have broad discretion to control the terms of a reorganisation, and political factors may be of significant importance in high profile bankruptcies or bankruptcies in particular jurisdictions.

There are a number of significant risks inherent in the bankruptcy process. While creditors are generally given an opportunity to object to significant actions, there can be no assurance that a bankruptcy court, in the exercise of its broad powers, would not approve actions that would be contrary to the interests of the Fund. For example, to protect net operating losses of an obligor in bankruptcy, a bankruptcy court might take any number of actions, including prohibiting or limiting the transfer of claims held by certain classes of creditors. Such a prohibition could have a material adverse effect on the value of certain Investments made by the Fund. For example, the Fund might be prohibited from liquidating Investments which are declining in value.

In addition, under certain circumstances, a lender who has inappropriately exercised control of the management and policies of an obligor may have its claims subordinated or disallowed or may be found liable for damages suffered by parties as a result of such actions. In addition, under certain circumstances, payments to the Fund and distributions by the Fund to Investors may be reclaimed if any such payment or distribution is later determined to have been a fraudulent conveyance, a preferential payment or similar transaction under applicable bankruptcy or other insolvency laws. Furthermore, Investments may be adversely affected by statutes related to, among other things, fraudulent conveyances, voidable preferences, lender liability or the bankruptcy court's discretionary power to disallow, subordinate or disenfranchise particular claims or recharacterise Investments made in the form of debt as equity contributions.

The possibility of litigation between the participants to a reorganisation is another consideration that makes any evaluation of the outcome of an Investment uncertain. Such uncertainties may also be increased by legal or other factors that limit the ability of the Manager to obtain reliable or timely information concerning material developments affecting an obligor or that may lengthen a reorganisation or liquidation proceeding.

In addition, obligors located in certain jurisdictions may be involved in restructurings, insolvency proceedings and/or reorganisations that are not subject to laws and regulations that are similar to the laws and the rights of creditors afforded in U.S. or European jurisdictions. To the extent that such laws and regulations do not provide the Fund with equivalent rights and privileges necessary to promote and protect its interest in any such proceeding, the Fund's Investments in any such obligors may be adversely affected. For example, insolvency law and process in such other jurisdiction may differ substantially from that in the United States or large European markets, resulting in greater uncertainty as to the rights of creditors, the enforceability of such rights, reorganisation timing and the classification, seniority and treatment of claims. In certain developing countries, although insolvency laws have been enacted, the process for reorganisation remains highly uncertain.

Obligors' ability to refinance

A significant portion of the Fund's assets will consist of loans for which most or all of the principal is due at maturity. The ability of the obligor(s) under such loan to make such a large payment upon maturity typically depends upon its ability to refinance the loan prior to maturity. The ability of an obligor to consummate a refinancing will be affected by many factors, including the availability of financing at acceptable rates to such obligor, the financial condition of such obligor, the marketability of the collateral (if any) securing such loan, the operating history of the obligor and related businesses, tax laws and prevailing general economic conditions. Consequently, such obligor may not have the ability to repay the loan at maturity and, unless it is able to refinance such loan, it could default in payment at maturity, which could result in losses to the Fund and, indirectly, to the Investors.

Service on creditors' committees and other portfolio-level service

The Fund may elect to appoint a representative to serve on creditors' committees, official or unofficial, equity holders' committees or other groups (in addition to boards of directors) to ensure preservation or enhancement of the Fund's position as a creditor or equity holder. A member of any such committee or group may owe certain obligations generally to all parties similarly situated that the committee represents. If the representative concludes that its obligations owed to the other parties as a committee or group member conflict with its duties owed to the Fund, it may resign from that committee or group, and the Fund may not realise the benefits, if any, of participation on the committee or group. In addition, and also as discussed above, if the Fund is represented on a committee or group, it may be restricted or prohibited under applicable law from disposing of or increasing its investments in such obligor while it continues to be represented on such committee or group and potentially

thereafter. Participation on a creditors' committee and/or such other representation may also subject the Fund to additional liability to which it would not otherwise be subject as an ordinary course, third-party investor. The Fund may be required to indemnify the representative for claims arising from such board and/or committee representation, which could adversely affect the return on the Investments. The Fund will attempt to balance the advantages and disadvantages of such representation when deciding whether and how to exercise their rights with respect to such Investment, but changes in circumstances could produce adverse consequences in particular situations.

In-kind repayments

An infrastructure debt investment may have a contractual return that is not paid entirely in cash, but rather partially in-kind or as an accreting liquidation preference, thus lengthening the time before cash is received, and increasing the Fund's risk exposure. While the Manager seeks to achieve the Fund's targeted returns for a given Investment, other factors, such as overall economic conditions, the competitive environment and the availability of potential purchasers of the securities, may shorten or lengthen the Fund's holding period and some Investments may take several additional years from the initial investment date to achieve a realisation. In some cases, the Fund may be prohibited by contract from selling certain securities for a period of time. If the Fund is required to liquidate all or a portion of its portfolio positions quickly, then the Fund may realise significantly less than the value at which the Fund previously recorded those investments.

Sustainability and ESG considerations

The application of any sustainability and ESG considerations which may be disclosed in this Memorandum could result in performance that is better or worse than the performance of a similar fund. There can be no assurance that any sustainability or ESG considerations which may be taken into account by the Fund will reflect the sustainability or ESG preferences of any particular Investor. The Fund's sustainability and ESG considerations may effectively accommodate the requirements of certain Investors but not others, and may be more or less restrictive than a particular Investor might otherwise prefer, and the Manager does not represent that any sustainability or ESG considerations and policies will conform, adhere or satisfy any particular Investor's policies.

Regulators globally have been increasingly focused on the disclosure of the use of Sustainability considerations in investment strategies by investment advisers and managed funds. If the Fund is unable to implement its sustainability or ESG considerations as disclosed, or if its disclosures regarding sustainability or ESG considerations are perceived as insufficient, the Manager or the Fund may be subject to increased regulatory scrutiny, reputational harm, negative public sentiment, litigation and reduced investor confidence, which could adversely affect the Fund's business, reduce the income received by the Fund and impact the value of an Investor's Interest therein. In the United States, different states have adopted and may continue to adopt diverging laws and regulations on ESG-related matters (including so called "anti-ESG" laws and regulations) which raises further uncertainties and could create additional complexities for the Fund's fundraising efforts and the implementation of the Fund's operational strategies and any ESG-related strategies which may be disclosed in this Memorandum.

Equity and equity-like investments

Subject to the terms of the Partnership Agreements, the Fund may in limited circumstances invest in structured and/or preferred equity interests, convertible securities, warrants and otherwise in securities that have equity-like features and may otherwise end up owning equity securities as part of making or owning a debt instrument (e.g., in the case of foreclosure). Any equity interest owned by the Fund will generally rank junior to all existing and future indebtedness, including commercial mezzanine loans and senior debt. Further, in the event of a bankruptcy, liquidation, reorganisation or other winding-up with respect to an issuer in which the Fund holds an equity interest, the Fund will bear a risk of loss of principal as such interests are not generally secured.

The acquisition of control or the exercise of control over a Borrower can impose additional risks of liability for environmental damage, failure to supervise management, pension plan liabilities, violation of government regulations (including securities laws) or other types of liability. The acquisition of control or the exercise of control and/or significant influence over a Borrower could expose the assets of the Fund to claims by such Borrower, its security holders and its creditors.

Moreover, if the Fund holds equity positions, the holding period for such investments may increase and may extend the Fund's liquidation period. If the Fund fails to execute exit strategies successfully prior to its liquidation, the Fund may be forced to liquidate such investments on terms less favourable than anticipated and the proceeds from such investments may be materially and adversely affected. Additionally, in order to protect such equity investments, it may be necessary to invest additional funds and the Fund may need to dedicate a significant amount of time and attention to the management of such investments. Such equity investments may be in stressed or distressed assets which may impact the Fund's return of capital.

7.1.3 Risks Associated with Lending to Infrastructure Projects

Project risk

The Fund's objective is to acquire (with the intention generally to hold), and to earn income from, a diversified portfolio of investments in the debt of companies which directly or indirectly own infrastructure projects. These debt Investments (whether senior or subordinated) will necessarily be subject to the risks incidental to the Borrowers' ownership and operation of infrastructure projects, including risks associated with the general economic climate, government policy and economic regulation.

The long lead-time between the inception of an infrastructure project and its completion means that a well-conceived project may, as a result of changes in investor sentiment, the financial markets, economic or other conditions prior to its completion, become an economically unattractive proposition to which to provide debt finance.

In addition, the successful completion of a profitable project is reliant on the performance by counterparties to the Borrower of their obligations. These counterparties include building and other contractors whose services are essential in order to ensure the delivery of the infrastructure asset on time and budget. To the extent these counterparties do not perform their obligations, or costs escalate in connection with the performance of those obligations, the economic viability of the project may be adversely affected. Furthermore, a subcontractor's liability to a project may be subject to limits and it is possible that these limits may be exceeded, with any additional loss or expenses being borne by the project and adversely affecting returns to the Fund.

Construction risk

The Fund may provide debt to finance the construction of an infrastructure project which may not produce income until such construction is completed and the project is operational. The Fund and such Investments may also be subject to the risks normally associated with such construction activities. Such risks include: (i) the cost and timely completion of construction (including risks beyond the control of the Borrower such as weather, labour conditions, force majeure, changes in law, material shortages and cost overruns); (ii) risk of litigation with contractors, subcontractors, suppliers, guarantors, partners and others involved in the construction of the project; (iii) the financial strength of contractors and the exposure of those contractors to financial risks outside of the project, including the potential for contractors, or their subcontractors, to become insolvent during the construction of the project; and (iv) where more than one contractor is involved in the construction, as is often the case, the inherent interface risk of activities or liabilities not being fully transferred to each of the contractors.

These risks could result in substantial unanticipated delays or expenses and, under certain circumstances, could prevent completion of construction activities, any of which could have an adverse effect on the Borrower and consequently the Fund. Delayed completion may also result in reduced revenues or potentially even the loss of associated subsidies, concessions or offtake contracts. If cost overruns arising from project construction are significant, this could reduce the availability of capital for the completion of the project and for the Borrower to satisfy its debt repayment obligations. Projects under construction may receive little or no cash flow until the date of completion of construction and may still experience operating deficits well after the date of completion.

The Manager may seek to mitigate the Fund's exposure to construction risk by investing in projects where some or all of such risks are transferred to the relevant construction contractors under the terms of the construction contract, including to the extent possible a requirement for payment of liquidated damages by the construction contractor and for appropriate financial security and insurance to be provided.

In addition to construction risk, newly-completed projects do not have an operating history. The Manager's decision to acquire debt in that project will be based upon, in part, projections as to expected operating results. This may subject the Fund to the risk that such projects may not achieve their anticipated operating results or may not achieve such results within the anticipated timeframe.

Development risk

The Fund may provide debt to infrastructure projects which are still in the development phase, prior to the start of construction. These Investments will be subject to the risks normally associated with project development activities. Depending on the stage of development, such risks include risks relating to the availability, expense and timely receipt of zoning, permitting and other regulatory approvals, the cost and timely completion of construction (see above) and the availability of both construction and permanent and/or bridge financing on favourable terms. These risks could result in substantial unanticipated delays or expenses and, under certain circumstances, could prevent completion of development activities once undertaken, any of which could have an adverse effect on the Investments if a Borrower's ability to service its loans were affected by any of the foregoing. If cost overruns arising from project developments are significant, the cost overruns may reduce the investment returns from those projects.

Lifecycle costs

An infrastructure project will often provide for the replacement or refurbishment of certain items of equipment. The timing of such replacements or refurbishments is a key aspect of the cashflow forecasting assumed by the Fund in assessing the ability of the infrastructure project to service its debts. Where such replacements or refurbishments occur earlier than projected or cost more than expected, the free cashflow arising in the project may be reduced, potentially impacting its ability to service its debt. This may adversely affect the income received by the Fund and the value of its Investments.

Termination of revenue generating arrangements

Agreements or regulatory arrangements which underpin all or part of a project's revenue (including, without limitation, concession agreements, licences, offtake agreements or subsidy arrangements) may be terminated in certain circumstances. Shorter-term revenue generating arrangements which expire before the maturity of relevant Investments may not be renewed.

In some circumstances there will be no compensation on termination or the compensation received will be insufficient to repay the acquisition cost of the relevant Investment. Equally, non-renewal of expired revenue contracts may leave the project with insufficient funds to fully service and repay its debts. In each case, such an event may adversely affect the ability of the Fund to recoup its Investments.

Operational, maintenance and technical risks

The infrastructure assets of a Borrower may be subject to operating and technical risks, including the risk of mechanical breakdown, spare parts shortages, failure to perform according to design specifications or design defects, labour strikes, labour disputes, work stoppages and other work interruptions, weather and other unanticipated events which adversely affect operations. There is also a risk that, as a result of these events or as a result of inaccurate forecasting there may be cost overruns in relation to scheduled maintenance expenses or unexpected additional expenses. While the Fund intends to ensure that the Borrowers have passed on many of these risks to creditworthy and, if applicable, appropriately bonded and insured third parties where practical, there can be no assurance that any or all such risks can be mitigated or that such third parties, if present, will perform their obligations or that insurance will be available on commercially reasonable terms. An operating failure suffered by a Borrower may lead to loss of a licence, concession or contract, or a reduction of performance-based fees. The long-term ability of infrastructure assets to generate cashflows and being able to service their debts is accordingly dependent upon the efficient operation and maintenance of the assets. Inefficient operations and maintenance, or limitations in the skills, experience or resources of operating companies, may reduce returns to the Borrowers and this may have a negative impact on the Investments.

Operator expertise

Infrastructure projects may be heavily dependent on the operator of the assets, including specific management teams within operator entities and there may be a limited number of operators and management personnel with the expertise necessary to successfully maintain and operate infrastructure projects. The loss of an operator of an infrastructure project or the loss of particular key personnel from an operator entity could significantly impair the financial viability of that project, which could in turn impair the relevant Borrower's ability to repay any debt owed to the Fund. The level of liability of an operator following its breach is also unlikely to be sufficient to service and/or repay any debt owed to the Fund.

Demand pricing and user risk

Demand, pricing, usage and throughput risk can affect the performance of certain Investments. To the extent that the Manager's assumptions regarding the demand, pricing, usage and throughput of a Borrower's assets prove incorrect, and this risk is not passed to a creditworthy and, if applicable, appropriately bonded and insured, third party returns to the Fund could be adversely affected.

Risks related to external counterparties

Borrowers will face counterparty performance risk with a number of different parties under various contracts, including but not limited to offtake contracts, operation and maintenance contracts, financing arrangements, interconnection agreements, asset management agreements, construction agreements and equipment supply agreements. If the contract counterparties do not perform their obligations, it could materially impact the performance of the Borrowers and the Borrowers may have to enter into alternative arrangements that may result in increased overall costs to the applicable Investments.

The operation and management of the projects will often be performed by an operation and management contractor under contract with the Borrower. The operations of a project may be materially and adversely affected by the performance of such contractor. In the event that an operation and management contractor fails to perform to a required standard, the applicable Borrower may be forced to either replace the operation and management contractor or assume the operation and management responsibilities itself at higher costs or with less effectiveness than expected.

Borrowers equally face credit risk in relation to their project counterparties.

Borrowers often enter into warranty and bonding arrangements with project counterparties, such as equipment suppliers, construction, operational and maintenance counterparties. Such warranties and bonds typically cover the non-performance of the counterparty or the relevant equipment under certain conditions and are typically subject to time limits, maximum pay-out clauses and other contractual restrictions. Payments under warranties and bonds will ultimately depend on the relevant counterparty's ability to satisfy its financial obligations.

Government counterparties

Some infrastructure assets to which the Investments are exposed may rely on a concession or lease from the relevant government and such concession or lease may restrict the operation of the asset. Leases or concessions may also contain clauses more favourable to the government counterparty than would a typical commercial contract (for example, enabling the government to terminate a lease or concession in certain circumstances without paying adequate compensation). If an asset fails to comply with any regulation or contractual obligation, the Investment could be subject to monetary penalties, loss of the right to operate affected businesses or both. Furthermore, government permits, licences, concessions, leases and contracts are generally very complex and may result in a dispute over interpretation or enforceability. In addition to any contractual rights they may enjoy, government counterparties may also have the independent discretion to implement or change laws, regulations or treaties affecting the operations of Investments.

Competing energy and infrastructure assets

Once an infrastructure asset becomes operational, it may face competition from other equivalent assets, the presence of which will depend in part on government plans and policies. This could impact on such Borrower's revenue and therefore its ability to meet its interest repayments which could, in turn, materially and adversely affect the Fund's performance.

Health and safety in respect of infrastructure assets

Health and safety is a key risk area in the operation and maintenance of many infrastructure assets. Failure to protect the health and safety of workers in, and users of, infrastructure assets, or incidents affecting the health and safety of third parties (such as traffic accidents involving vehicles related to assets) could result in personal injury or similar claims by private parties or even criminal liability. Furthermore, the costs associated with the failure to protect the health and safety of workers in, and users of, infrastructure assets, or incidents affecting the health and safety of third parties could adversely impact the Borrower which could, in turn, have a corresponding effect on the Fund's performance.

Impact of unforeseen events on infrastructure assets

Events outside of the control of the Borrower may have a significant adverse impact on relevant infrastructure projects and the Borrower's business.

The use of the infrastructure assets may be interrupted or otherwise affected by a variety of events outside the Borrower's control, including serious weather events, natural disasters (such as fire, floods, earthquakes and typhoons), man-made disasters (including contaminations, damages caused to key sites or infrastructure, terrorism or defective design and construction), fuel prices, environmental legislation or regulation, changes in law, general economic conditions, labour disputes, pandemics and other unforeseen circumstances and incidents.

If the use of the infrastructure assets operated by a Borrower is interrupted in whole or in part for any period as a result of any such events, the revenues of such Borrower could be reduced and the costs of maintenance or restoration as well as the overall public confidence in such infrastructure asset could be reduced. A Borrower may not be able to source adequate insurance to cover such risks and there can be no assurance that any insurance cover would be sufficient to cover any potential loss in revenue or damage to key assets. This could therefore impact on the Borrower's ability to make payments on its debt and thus negatively impact on the Fund's interests.

Project regulatory risk

Many infrastructure projects are subject to substantial regulation by governmental agencies. In addition, their operations may rely on governmental licences, concessions, leases or contracts. Allowed regulatory rates of return may differ from market-set returns and may be lower than expectations, adversely impacting Investments.

Regulated Borrowers in particular must operate in accordance with the conditions of a governmental licence. Such licences sometimes contain mechanisms to allow for modifications to be made to the licence by government agencies with the consent of the relevant Borrower, or in very limited circumstances, without the consent of the relevant Borrower. Any modification to the conditions of a relevant licence could have a material adverse impact on the business, financial condition or operational performance of the relevant Borrower which could in turn have a material adverse impact on Investments.

If any Borrower fails to comply with the regulations, licence or contractual obligations to which it is subject, it could be subject to monetary penalties or it may lose its right to own or operate the underlying infrastructure assets, or both. Where such Borrower's ability to operate an infrastructure asset is subject to a licence, concession or lease from the government, that

licence, concession or lease may restrict its ability to operate the asset in a way that maximises cash flows and profitability. The licence, concession or lease may also contain clauses more favourable to the government counterparty than a typical commercial contract. For instance, the licence, concession or lease may enable the government to terminate the licence, concession or lease in certain circumstances (such as default by the Borrower) without requiring it to pay adequate compensation. The termination, non-renewal or transfer of a licence, concession or lease could have a material adverse impact on the relevant Borrower and consequently on Investments

In addition, government counterparties also may have the discretion to change or increase regulation of the operations of the Borrower's assets or to implement laws, regulations or policies affecting their operations, separate from any contractual rights that the government counterparties may have. The profitability of renewable energy projects in particular may be dependent on applicable regulatory frameworks and policies. The profitability of Investments made by the Fund in relation to renewable energy projects may be in part dependent on the continuation of a favourable regulatory climate with respect to the ongoing operations and the future growth and development of renewable energy production.

Finally, the Fund may wish to invest in certain infrastructure projects and utilities which are to operate in new regulatory environments, with no precedent or previous practice to indicate how such regimes will work in practice. As such, it would not be possible to predict how such regulatory regimes may be operated by the relevant regulators.

Accordingly, governments have considerable discretion in implementing regulations and policies that could impact the infrastructure assets to which the Fund is exposed, and may be influenced by political considerations and make decisions that adversely affect these infrastructure assets, their operation and, ultimately, the Fund's performance.

Interest rate and inflation rate risk

In addition to infrastructure projects being exposed to adverse interest rate movements on their debt, the regulatory regimes governing some regulated infrastructure assets may use prevailing market interest and inflation rates in determining the allowed revenue that can be generated from these assets. As a result, unless effectively hedged, revenue may fluctuate with interest rate and inflation rate movements. Furthermore, a substantial portion of the Investments may bear interest at per annum rates equal to the applicable interbank lending rate, adjusted periodically, plus a spread. The manner of administration of benchmarks may change, with the result that they may perform differently than in the past, or benchmarks could be eliminated entirely, or there could be other consequences which cannot be predicted. Any such change or actions could adversely affect the returns from an Investment.

Leverage in infrastructure projects

Infrastructure projects are generally highly leveraged. This increases the exposure of such projects to adverse economic factors such as rising interest rates, changes in regulation, reduced operational performance and downturns in the economy and may impair such project's ability to finance future operations and capital needs. Additionally, restrictive financial covenants may limit such a Borrower's flexibility to respond to changing business and economic conditions. This may result in a Borrower being unable to generate sufficient cash flow to meet principal and/or interest payments on the Investments which, in turn, may affect the performance of the Fund.

Legal disputes over infrastructure projects

Infrastructure projects are usually governed by a complex series of legal documents and contracts. As a result, the risk of a dispute over the interpretation and enforceability of legal documents or contracts may be higher than for other Borrowers. In addition, infrastructure projects often involve a significant impact on local communities and the surrounding environment.

It is not uncommon for infrastructure assets to be exposed to a variety of legal claims including, but not limited to, environmental claims, legal action arising out of acquisitions or dispositions, workers' compensation claims, third party losses related to disruption of the provision of infrastructure services by an infrastructure provider and legal action from special interest groups seeking to impede particular infrastructure projects to which they are opposed. For example, interest groups may use the legal processes to seek to impede particular projects to which they are opposed. If a Borrower becomes involved in material or protracted litigation, the litigation expenses and the liability threatened or imposed could have a material adverse effect on the Borrower and accordingly on the Fund.

Political and public risks of privatisation

Privatisation of public infrastructure assets and development of infrastructure assets traditionally owned by the public sector are subject to a variety of political and public opinion pressures that could adversely affect the Fund's exposure to a particular infrastructure project. The success of infrastructure projects is highly dependent on the political environment and the willingness of state and local governments to support and encourage initiatives such as PPPs through enabling legislation. There can be no guarantee that Borrowers will enjoy political support of privatisation efforts in the future. For instance, there is a risk that negative public opinion generated by the privatisation of infrastructure assets may put pressure on the government to restrict these transactions. In certain cases, development of infrastructure projects may require the exercise of politically

sensitive governmental action, such as eminent domain (compulsory purchase), in order to acquire privately owned land, or rights to use such land through easements, which can cause long delays or even an inability to complete projects due to legal challenges or negative public publicity.

As some infrastructure assets have a high public profile and serve a material public good, the risk of nationalisation or expropriation of such assets may be higher than for other asset classes. If all or a material part of a project is subject to nationalisation or expropriation, it's possible that compensation (if any) paid by nationalising or expropriating states will be insufficient to repay the acquisition cost of the relevant Investment.

Uncertainty of estimates

Estimates or projections/forecasts of natural resources reserves (e.g., hydrocarbon reserves or mineral reserves), factors such as solar energy intensity, wind resource and water flow, market or consumer demand and conditions, construction costs and supply availability and market prices made by qualified consultants or engineers are often key factors in establishing debt capacities and valuations in respect of a range of infrastructure projects. The process of making these estimates is complex, often requiring significant market and technical assumptions by the relevant consultants who may take account of a wide range of factors and data sets. These estimates are subject to wide variances based on changes in numerous market and technical assumptions. Their accuracy is a function of, among other things, the quality of available data and the experience and expertise of the relevant consultants. Failure by relevant consultants to achieve a sufficient level of accuracy in respect of key estimates, projections or forecasts may result in projects generating lower revenues than anticipated which could adversely affect the financial returns of the Fund.

New technology risk

A change could occur in the way a service or product is delivered rendering the existing technology obsolete. Any technology change that occurs over the medium term could threaten the profitability of an Investment in a project relying solely on that technology. In addition, historically, technology changes in the infrastructure sector have resulted in gradual incremental improvements with no disruptive technology impacts. However, new technologies may be developed in the future which do have disruptive impacts on existing infrastructure projects. In the event that a disruptive technology in the infrastructure sector is successfully developed and implemented, the Investments might be adversely affected. While the Investments may benefit from such technologies, there can be no assurance that technology innovation will not favour infrastructure projects or assets of a type not held by the Fund, which would place the Fund at a competitive disadvantage and drive down the value of its assets.

Commodity price risk

Borrowers may be subject to commodity price risk, including, without limitation, the price of electricity, fuel or other inputs necessary to operate an infrastructure project. The operation and cash flows of any infrastructure project may depend, in some cases to a significant extent, upon prevailing or improving market prices for energy commodities (such as oil, gas, coal, electricity and other commoditised fuel sources). Commodity prices have been, and are likely to continue to be, volatile and subject to wide fluctuations in response to any of the following factors: (i) changes in the supply of and demand for oil, gas, coal and other fuel sources; (ii) market uncertainty; (iii) political conditions in international commodity producing regions; (iv) the extent of domestic production and importation of oil, gas, coal and other fuel sources in certain relevant markets; (v) the level of consumer and industrial demand; (vi) the price of steel and the outlook for steel production; (vii) weather conditions; (viii) the competitive position of certain other fuel sources as compared with other fuel sources; (ix) the industry-wide refining or processing capacity for oil, gas, coal or other fuel sources; (x) the effect of foreign federal, state and local regulations on the production transportation and sale of commodities; and (xii) the amount and character of excess electric generating capacity in a market area.

Availability of insurance against certain catastrophic losses

Borrowers may be required to maintain liability, fire, flood, extended coverage and rental loss insurance with insured limits and policy specifications that the Manager believes are appropriate.

A Borrower may not be able to source adequate insurance to cover all relevant risks and there can be no assurance that any insurance cover would be sufficient to cover all potential loss in revenue or damage to key assets. Insufficient insurance coverage could impact on the Borrower's ability to make payments on its debt and thus negatively impact on the Fund's interests.

Further, certain losses of a catastrophic nature, such as wars, natural disasters, terrorist attacks or other similar events, may be either uninsurable or insurable at such high rates that to maintain such coverage would cause an adverse impact on the Borrower. In general, losses related to terrorism are becoming harder and more expensive to insure against. Many insurers are excluding terrorism coverage from their all-risk policies. In some cases, the insurers are offering significantly limited coverage against terrorist acts for additional premiums, which can greatly increase the total costs of casualty insurance for a

Borrower. As a result, not all Borrowers may be insured against terrorism. If a major uninsured loss occurs, the Borrower and accordingly the Fund could be adversely impacted.

Terrorism in respect of infrastructure assets

Terrorist attacks of unprecedented scope in recent years have caused instability in the world financial markets and may generate global economic instability. The continued threat of terrorism and the impact of military or other action have led to and may in future lead to increased volatility in prices for electricity, ethanol/biodiesel, coal, oil and gas and could affect a Borrower's financial results. In addition, infrastructure assets may be strategic assets that have a national or regional profile and may have monopolistic characteristics. The nature of these assets could expose them to a greater risk of being the subject of a terrorist attack than other assets or businesses and as described above, a Borrower may not be able to insure itself against such risk.

Correlation risk

Infrastructure investments have historically displayed relatively low levels of correlation to asset classes such as equity markets, though this correlation may have been affected by the prevailing market conditions of recent years. There is no guarantee that the correlation will return to the low levels experienced in the past, nor that any level of correlation will necessarily offer a benefit to Investors.

Investment illiquidity risk

Investments in infrastructure debt are highly illiquid. The ability for the Fund to vary its Investments in response to changes in economic conditions will be limited. Whilst the Manager will consider the maturity date when making an Investment the maturity date of such Investment may exceed the Expected Maturity. In addition, should the Fund be terminated, it may be left with a considerable number of Investments which are still to mature. Investments may require a substantial length of time to be liquidated and may be capable of being sold only at a discount from Investments that are more liquid. There can be no assurances as to the timing and amount of distributions from the Fund during the liquidation period.

Holding companies and financing special purpose vehicles

The Borrower may be a special purpose financing entity with no business operations other than raising external funding for the Borrower's group through the issuance of Investments and other debt finance.

Alternatively, the Borrower may be a holding company with no material, direct business operations and no source of generating income directly. The principal assets of the Borrower may be the equity interests it directly or indirectly holds in its operating subsidiaries. As a result, the Borrower may be dependent on loans, interest, dividends and other payments from its subsidiaries to generate the funds necessary to meet its financial obligations.

In case of a holding company financing, the relevant operating company may be subject to certain restrictions in paying dividends to the Borrower as part of its covenant-based ring-fencing and/or regulatory ring-fencing. In addition, if share security in relation to the relevant operating company is enforced following a default, the Borrower may no longer be an indirect shareholder of the operating company and therefore have no assets and no source of repayment of its borrowings.

Supply chain risk

Infrastructure projects often involve complex, multi-tiered supply chains that may make it difficult to detect any harmful practices that may be persisting, such as labour rights abuses or environmental impacts. Any allegations of, or findings of material issues in relation to, such harmful practices may result in a material adverse effect on a company's business, financial status and results of operations and limit the success of the Fund's Investment.

Public ways and easements

Certain underlying infrastructure assets may need to use public ways or may operate under easements. Under the terms of agreements governing the use of public ways or easements, government authorities may retain the right to restrict the use of such public ways or easements or to require investments to remove, modify, replace or relocate their facilities at an investment's expense. If a government authority exercises these rights, an Investment could incur significant costs and its ability to provide service to its customers could be disrupted, which could adversely impact the performance of the relevant Investment and its ability to service its debt and other liabilities.

Environmental risk

Environmental liabilities may arise with respect to Investments as a result of a large number of factors, including changes in laws or regulations and the existence of conditions that were unknown at the time of making the Investment. Any liability of a Borrower resulting from non-compliance or other claims relating to environmental matters could have a material adverse effect on the value of the Investments. Regulated utilities face changing expectations from consumers, regulators and environmental agencies, and fines or penalties for failure to meet these expectations, which could reduce profitability of Investments.

Physical risks associated with climate change

Investments may be affected by the physical risks associated with climate change. These risks include the increased occurrence of extreme weather events, such as hurricanes, floods and forest fires, as well as longer term phenomena such as global sea level rise. Such occurrences have the potential to adversely impact the return of Investments.

7.1.4 Risks Associated with Lending to Renewable Energy Projects

Uncertainty of renewable energy market

The market for renewable energy products is rapidly evolving, and its future success is uncertain. In addition, demand for renewable energy products in the markets and geographic regions the Fund targets may not develop or may develop more slowly than anticipated. Many factors will influence the widespread adoption of renewable energy technology and demand for renewable energy products, including the cost effectiveness, performance and reliability of renewable energy technology, power prices, competing and complementary technologies and availability of government subsidies and incentives.

Risks associated with availability of renewable resources

Some of the companies or projects in which the Fund may invest may have as their principal activity the production of electricity from renewable sources, including in the solar photovoltaic and wind sectors, and also in other renewable energy sectors including biomass, biogas, geothermal, hydropower, landfill gas, sewage treatment plant gas, solar thermal, tidal wave sectors and waste to energy, each of which are potentially affected by different resource specific risks, including climatic conditions and/or supply risks. Specific examples of such risks are set out below.

Solar and wind power generation is highly dependent upon climatic conditions. Solar energy can only be effectively harvested during daylight hours and irradiation levels are affected by cloud cover, seasonality and atmospheric pollution levels. Wind strength and direction can be highly variable over the short term, and wind power in general will always be an intermittent form of electricity generation. In both cases, investment decisions are typically taken on long-term average statistical forecasts prepared by independent consultants. Due to, among other factors, meteorological, geographical, or climatic reasons, these may not prove correct in practice or over any given period. In addition, few legal systems offer rights to radiation or wind to mitigate how nearby projects can affect the access to wind or radiation. However, even if rights are granted, it does not guarantee climatic conditions. As a result, no assurances can be given as to the accuracy of such reports or the preservation of the immediate environs for an Investment and, accordingly, assumed output levels cannot be guaranteed.

Biomass plants require a feedstock of organic matter in order to produce electrical output. The availability of feedstock may be affected by supply constraints, for example competition with food and animal feed producers and transportation logistics and costs. Further, long-term contractual arrangements with local suppliers may be hard to obtain and may be subject to a range of typical supply risks, including counterparty default, force majeure and market price exposures. In many cases, the quality of the feedstock (for example, moisture content) will be material to performance and/or eligibility for renewable incentives and losses associated with non-compliant feedstock may not be fully compensated under supply arrangements. Movements in the commodity prices on the supply side, if unhedged, may reduce or eliminate generation profit margins where power prices are fixed or otherwise not correlated to feedstock pricing.

Landfill gas facilities operate on gas produced by decomposition of waste at landfill sites. The volumes and reliability of such gas supplies may be affected by a variety of factors such as the composition of waste at a landfill site, including waste added over time, and the size, depth, age, moisture content, exposure to air and compaction of that waste and whether a landfill is "open" or "closed" and the condition of the collection system used to capture the gas. Investment decisions are typically made based on forecast gas curves prepared by independent consultants but these may not prove correct in practice or over any given period. No assurances can be given as to the accuracy of such reports and assumed output levels cannot be guaranteed.

Geothermal heat is available at all times, irrespective of season, weather or climatic conditions. Revenues in respect of geothermal facilities may, however, be significantly affected by geological events and temperature gradients. The yield can therefore be estimated but variations in flowrates and temperature will affect the production capacity.

Certain Borrowers which are involved with renewable energy may be particularly sensitive to weather and climate conditions, which may impact on the Borrower's ability to meet principal and/or interest and/or lease payments on Investments which in turn may adversely affect the performance of the Fund. For example, companies specialising in hydroelectric power may be subject to variations in precipitation and the flow of the watersheds upon which their power plants are situated. An extended drought in a region where such a portfolio company operates could reduce the operating effectiveness of the portfolio company and its assets. Likewise, companies focused on wind and solar energy also are subject to variations in weather patterns and climate change.

Risks deriving from domestic and international policies in support of renewable energy

The current development and profitability of renewable energy investments are highly dependent on the existence of regulatory frameworks and policies in support of such development. The profitability of any renewable energy Investments made by the

Fund will be in part dependent on the continuation of a favourable regulatory climate with respect to the ongoing operations and the future growth and development of renewable energy production.

As a result, there is a risk that the basis of regulatory support for a renewable project may change. In many jurisdictions, existing regulatory frameworks contain assurances as to the maintenance of existing benefits for assets which have reached a certain stage of development (grandfathering), so that any changes would apply only to new projects. Such assurances may have only qualified legal effect (as a subsequent law will generally repeal such assurances) but administrative law principles may give rise to rights to compensation which, in established markets, make it likely, though not guaranteed, that governments will in practice comply with any legislative grandfathering assurances. Even where legislative assurances are not given, many governments have complied with these principles in practice. Nevertheless, adverse regulatory change remains a material risk factor for investments in the sector, particularly for investments in early development opportunities which are unlikely to be protected by grandfathering until they are further advanced.

In addition, to benefit from regulated tariffs, renewable generators may be obliged to contract on standard terms with counterparties determined by the locality of the generation facility (such as the local distribution company). This may expose the projects to a credit risk which they are unable to control or mitigate (as could be achieved with credit support in a freely contracted market), and eligibility for such contracts may be subject to approval by local, state, provincial or national utilities commissions or other regulatory authorities.

Risks deriving from public opposition

There are certain persons, associations and groups that may oppose renewable energy investments, using arguments such as degradation of the landscape, noise pollution, disruption to ecology and general environmental damage. These factors become more sensitive as the deployment of renewable energy investments increases.

Although the development of renewable energy investments generally requires an environmental impact study and public hearing prior to grant of the corresponding governmental permits, a company cannot guarantee that a given renewable energy facility will be accepted. Furthermore, where renewable energy facilities are near residential areas, the opposition of the local population may result in adoption of restrictive regulations or measures regarding the facilities after they become operational.

If a part of the population or any company opposes construction of a renewable energy investment or brings legal action, it could make it more difficult to obtain the corresponding governmental permits. In addition, legal actions could stop construction, which could prevent commissioning of the project within the contemplated term or the meeting of the Fund's investment objectives.

As a result, public opposition, an increase in challenges to the issue of governmental permits or unfavourable outcomes from such challenges could have a material adverse effect on a company's business, financial status and results of operations and limit the success of the Fund's Investment.

Grid connection interface

Power generators will often be required to comply with the codes and standards of their grid operators, who may require generators to curtail or cease generation in order to balance the overall demand and supply of electricity within grid systems.

Government interference risk

Owing to the location of certain renewable projects such as offshore wind farms, government entities may have overarching powers to curtail or cease generation in the interests of national security or prevention of ecological damage. Any such exercise typically leaves the project with the risk of a loss of revenue upon such curtailment.

Risks associated with nascent technology

Although the market for some forms of renewable energy is by now well developed, other markets are less so, and almost all forms of renewable energy see the continuous research and development of new technology. Projects may utilise technology that has not been utilised on a large scale before, which carries the operational risk of this new technology not working as intended. This risk will be mitigated by certification processes and lenders' technical advisers' review.

Similarly, the manufacturing market for many of these technologies is comparatively small, with only a limited number of international entities having the knowledge and expertise to be able to participate in the construction, operation and maintenance of renewable energy technology. Some projects may therefore be reliant on the expertise of a small pool of companies for the ongoing operation of their renewable portfolios. This also leads to a certain amount of political risk based on the jurisdiction of such companies, in addition to the risk of a major counterparty becoming insolvent in future.

7.1.5 Risks Associated with Lending to Utilities

Increasing competition in regulated utilities

Regulators in the utility sector have sought and continue to seek to introduce increased competition into the market for the provision of regulated utility services (including the separation of wholesale and retail businesses). The introduction of increased competition could lead to a reduction in the revenue of the relevant utility Borrower which could have a material adverse impact on the Borrower's business, operational performance, profitability or financial condition and thus the Fund's Investments.

Revenue risks

The turnover, profitability and cashflow of many regulated utilities are substantially influenced by the service levels, regulatory targets and price limits established by the relevant regulator, and such regulator's assessment of delivery against those factors.

Inadequate allowed cost of capital or regulatory assumptions concerning operating expenses and required capital expenditure as well as turnover forecasts proving not to be sufficiently accurate, unforeseen financial obligations or costs (for example, as a result of ensuring regulatory compliance or changes to legislation or regulatory requirements) which are not taken into account by the relevant regulator in setting price limits and are consequently not compensated for, could materially adversely affect the financial performance and profitability of such utilities.

Non-recovery of consumer debt

Non-recovery of consumer debt is a risk to many regulated utility businesses and may cause such utility's profitability to suffer. The risk is often exacerbated as a result of regulatory regimes which may limit the sanctions or other options available to such regulated utility in reducing its bad debts. The relevant regulator may make allowances in the price limits for a proportion of debt deemed to be irrecoverable, however, the utility Borrower may not be able to recover all bad debts through this mechanism (or such recovery may be subject to a time delay). The Borrower may therefore suffer losses from its inability to recover its debts fully, which could adversely affect the Borrower's business, operational performance, profitability or financial condition which could in turn impact on the Fund's Investments.

Capital expenditure program risk

The business of utility companies requires significant capital expenditure by a Borrower. The price limits set by the relevant regulator as part of price controls will take into account such regulator's view of the level of capital expenditure expected to be incurred and the associated funding costs and operating costs (on an efficient basis). If a Borrower is unable to deliver its capital investment program at expected expenditure levels, or is unable to secure the expected level of efficiency savings on its capital investment program, or the program falls behind schedule or contains incorrect assumptions by the Borrower as to the capital investment required, the Borrower's available cashflow might suffer because of a need for increased capital expenditure. A regulator of such a Borrower may take such failings into account which could lead to a Borrower being unable to recover its costs or reduction in its revenue due to the Borrower's failure to meet targets (for example in relation to environmental compliance and output).

Regulators have also introduced incentive mechanisms for capital expenditure allowing regulated utilities to recover their actual capital expenditure for specific outputs, plus or minus revenue rewards or penalties that depend on how closely their expenditure forecasts compare to the regulator's expectations and the regulated utility's actual expenditure. Any penalty deducted from the allowed capital expenditure may have a material adverse effect on the regulated utility's cashflow and thus on the Fund's Investments.

Limitations on security

In certain jurisdictions, a regulated utility's ability to grant security over its assets and the enforcement of such security may be restricted through statute and/or the regulatory regime applicable to such Borrower. In these circumstances, the security to be provided over the assets of the regulated company affords significantly less protection to the secured creditors (including the Fund) than would be the case if such a company were not a regulated utility.

7.1.6 Risks Associated with Lease Transactions in the Transportation Sector

The Fund may make Investments in the form of leases in the transportation sector, which may include without limitation aircraft, ships, barges, containers, rail rolling stock or motor vehicles. As such, in addition to the risks associated with lending generally and the risks associated with the transportation sector more broadly set out in this Section 7.1, the Fund may be exposed to risks specific to lease transactions and lease transactions in the transportation sector.

Lease transactions generally

Investments structured as leases may require the acquisition, leasing and re-leasing of assets. The Fund may encounter difficulties in acquiring such assets on favourable terms or at all, which could reduce future acquisition opportunities or cause

the Fund to pay higher prices. Furthermore, the Fund may face competition from competitors with greater resources, lower capital costs or providing financial or maintenance services, or other inducements to potential lessees or buyers that the Fund cannot, which could make them able to compete more effectively in certain markets the Fund seeks to operate in.

The Fund's Lease Investments will be dependent on the ability of the lessee to perform their payment and other obligations under the lease arrangements. Defaults by one or more lessees could adversely affect the revenue of an Investment. The Fund may further be required to commence legal proceedings against a lessee to recover such outstanding payments, thereby incurring costs which may not be wholly recoverable.

Investments will be subject to the risks incidental to the ownership, creation and operation of transportation assets, including risks associated with the general economic climate, geographic or market concentration, the ability of the Fund to manage the investment, technical problems, financial failures of operating or construction sub-contractors, government regulations, and fluctuations in interest rates.

Lease transactions in the transportation sector

Investments structured as leases in the transportation sector are exposed to the risks associated with the transportation sector itself, including fluctuation in demand, supply-chain disruptions, volatility in the price of fuel and key raw materials and regulatory changes (such as environmental, safety or other regulations), which may affect the value and lease rental rates of such assets and, therefore, the Fund's Investments. Furthermore, transport assets such as aircrafts are long-lived assets requiring long lead times to develop and manufacture, with particular types and models becoming obsolete or less in demand over time when newer, more advanced aircraft are manufactured. As such assets age, they will depreciate and will typically generate lower revenues and cash flows. As a result, the Fund's Lease Investments may be particularly affected by technological innovation and have exposure to obsolescence, particularly if new technologies are introduced or if unanticipated events occur that shorten the life cycle of such asset types and the relevant lease.

In addition, general economic conditions in relevant jurisdictions, as well as conditions of domestic and international financial markets, may adversely affect transportation assets.

In addition, lease transactions in the transportation sector may be subject to the risk of the relevant asset not being at all times be adequately insured either as a result of lessees failing to maintain sufficient insurance during the course of a lease or insurers being unwilling to cover certain risks.

Failure to obtain certain required licenses and approvals

Lessees are subject to extensive regulation under the laws of the jurisdictions in which they are registered and in which they operate. As a result, certain aspects of Lease Investments may require licenses, consents or approvals, including consents from governmental or regulatory authorities for certain payments under Lease Investments and for the import, export, registration and/or deregistration of certain transportation assets. Subsequent changes in applicable law or administrative practice may increase such requirements and governmental consent, once given, could be withdrawn. Furthermore, consents needed in connection with the future lease, re-lease or sale of a transportation asset may not be forthcoming. Any of these events could adversely affect the Fund's ability to lease, re-lease or sell transportation assets, which could have a material adverse effect on the Fund's returns.

Failure to appropriately discharge liens on Lease Investments

In the normal course of business, liens that secure the payment of fees and taxes, custom duties, navigation charges, landing charges, port charges, crew wages, repairer's charges, salvage or other charges may attach to transportation assets that the Fund has leased. These liens may secure substantial sums; in certain jurisdictions and for certain types of liens (particularly fleet liens), the sums secured may exceed the value of the particular asset to which the liens have attached. Although lessees are normally contractually obligated to pay any amounts secured by these liens, if a lessee fails to fulfil its obligations to pay the amounts secured by any such liens, then those liens may ultimately become the financial responsibility of the Fund. In some jurisdictions, such liens may give the holder thereof the right to detain or, in limited cases, sell or cause the forfeiture of the transportation asset. Until they are discharged, these liens could impair the Fund's ability to repossess, re-lease or sell an affected transportation asset. If the Fund is obliged to make a significant payment to discharge a lien or if it is unable to take possession of a transportation asset subject to a lien in a timely and cost-effective manner, it could have a material adverse effect on the Fund's returns.

7.1.7 Risks Related to the Structure and Management of the Fund

Relationship with MSIG 3 (EUR)

The Fund is expected to operate contemporaneously with MSIG 3 (EUR), and the investment programs and investment strategies of the Fund and MSIG 3 (EUR) are expected to overlap significantly, albeit with distinctly different geographic focuses. Accordingly, it is expected that MSIG 3 (EUR) will target and invest in many of the same Investments as the Fund

(notwithstanding that the MSIG 3 (EUR) will have a predominant focus on investments in the EEA). For the avoidance of doubt, however, MSIG 3 (EUR) will not be considered a Parallel Vehicle of the Fund and the Fund will not be considered a parallel vehicle of MSIG 3 (EUR), and the Fund and MSIG 3 (EUR) will each make independent determinations concerning the acquisition and disposition of Investments. As a result, the Fund may invest in or dispose of some but not all of the Investments held by MSIG 3 (EUR) and, conversely, MSIG 3 (EUR) may invest in or dispose of some but not all of the Investments held by the Fund. If both the Fund and MSIG 3 (EUR) wish to invest in a particular investment opportunity, the Fund's share of the relevant opportunity may be less than if MSIG 3 (EUR) was not investing as a result of the allocation policies of the Manager and its applicable affiliates. Further, the relative performance of the Fund and MSIG 3 (EUR) may differ materially as the composition of the Fund's and MSIG 3 (EUR)'s portfolios will differ, to the extent the Fund and MSIG 3 (EUR) dispose of investments at different times or on different terms, and/or as a result of other differences including the use of leverage and the term of the Fund and MSIG 3 (EUR).

Disclosure of Investor information

The General Partners, the Manager or the Portfolio Manager may be required to disclose certain information in relation to Investors to regulatory, tax, governmental or other authorities. The General Partners, the Manager and the Portfolio Manager will endeavour to keep information in relation to the Investors confidential but may disclose such information, including if required by or advisable pursuant to law and/or regulation applicable to the Fund, the General Partners, the Manager or the Portfolio Manager or its Associates or if the relevant General Partner determines that such disclosure is in the best interests of the Fund or otherwise necessary or desirable to conduct the day-to-day management of the Fund.

Service providers

The Fund will be reliant upon the performance of the service providers, including the Manager, for the functions delegated to them and they will be integral to the operation of the Fund. The failure of any service provider could have a materially detrimental impact on the operation of the Fund.

No Investor will be a contractual party to the agreements with service providers, including the Management Agreements and the Portfolio Management Agreements, and so an Investor will not be able to bring any action against a service provider. Only the Fund will have a right to enforce its contracts with service providers. Any action sought to be taken by an Investor directly against a service provider may result in the service provider calling on its indemnity from the Fund.

Manager termination risk

Termination of the Manager's appointment may only occur in limited circumstances pursuant to the terms of the Partnership Agreements and the Management Agreements. Any termination of the Manager's appointment as manager of the Fund may have material adverse consequences for the Fund in certain circumstances including, but not limited to, situations where lending or other Fund counterparties have imposed conditions of ongoing Macquarie involvement with the Fund.

Side letters

The General Partners, the Manager or any of their Associates may enter into Side Letters with Investors or Feeder Investors that grant the right to invest on terms that may differ from or supplement those set forth in the Partnership Agreements or any applicable governing agreement of any Feeder Partner, without obtaining the consent of any other Investor or Feeder Investor and without entitling any other Investor or Feeder Investor to such additional rights.

Such rights or terms in any such Side Letters may include, without limitation, (i) reporting obligations of the relevant General Partner or the Manager, (ii) rights relating to confidential information, (iii) consent to certain transfers and transfer arrangements by such Investors, (iv) excuse rights applicable to particular Investments (which may increase the percentage interest of other Investors in, and contributions of other Investors with respect to, such Investments) or withdrawal and/or related rights with respect to the Fund generally or in certain limited regulatory and/or policy-related circumstances, as well as rights relating to participation in alternative investment vehicles (v) rights relating to the Advisory Committee, (vi) rights or terms necessary in light of particular legal, Tax, regulatory, ERISA status or public policy characteristics of an Investor or administrative, operational or written policy requirements applicable to and/or binding upon an Investor, (vii) preferential access to co-investment and secondary opportunities or successor funds, (viii) additional notification, reporting or information rights for such Investors, (ix) representations and warranties relating to a particular point in time, or other confirmations and undertakings including in relation to compliance, legal and tax matters, (x) other rights in relation to taxation, including in relation to filings, information, reporting obligations and notification rights, (xi) rights or confirmations in relation to borrowing or obligations to lenders of the Fund, (xii) Investor or Advisory Committee consent rights, (xiii) reduction or elimination of an Investor's Undrawn Commitments or arrangements with respect to waivers or modification of certain obligations, including obligations set forth in the Partnership Agreements or an Investor's subscription agreement, (xiv) rights with respect to distributions in specie to such Investors or (xv) any other matters deemed appropriate by the General Partners, the Manager or any of their Associates.

Certain Investors or Feeder Investors may be offered Management Fee discounts (among other preferential terms) if they satisfy certain conditions including conditions relating to participating in the Fund on or before a specified date, as a result of their status as a “founding investor” and/or the size of their Commitment to the Fund and/or other funds managed or advised by the Macquarie Group.

Such Side Letters may result in different Investors or Feeder Investors assuming different levels of risk in relation to their investment in the Fund. The risks related to an investment in the Fund may be amplified to the extent that some Investors or Feeder Investors may be entitled to more favourable rights than others. For example, such Side Letters may establish, among other things, excuse rights applicable to particular Investments, which may increase the percentage interest of other Investors in, and contributions of other Investors with respect to, such Investments. In general (and save as required by applicable law or regulation or pursuant to the Partnership Agreements or any applicable governing agreement of any Feeder Partner, as applicable), the Fund will not be required to notify Investors or Feeder Investors of any such Side Letters and/or agreements or any of the rights and/or terms or provisions thereof, nor will the Fund be required to offer such additional and/or different rights and/or terms to any or all of the other Investors or Feeder Investors.

The General Partners, the Manager or any of their Associates may enter into any such Side Letters with any party as they may determine in their sole and absolute discretion at any time consistent with the Manager’s policy to treat investors fairly.

Other Investors or Feeder Investors may request to see such Side Letters and obtain certain of the rights under such Side Letters, subject to, and only to the extent permitted under, the Partnership Agreements or any applicable governing agreement of any Feeder Partner. The other Investors or Feeder Investors will have no recourse against the Fund, any Feeder Partner, the General Partners, the Manager, the Portfolio Manager and/or any of their Associates in the event that certain Investors or Feeder Investors receive additional and/or different rights and/or terms as a result of such Side Letters.

Investor excuse rights

The General Partners may agree with an Investor or a Feeder Investor in its Side letter that the Investor has a right to be excused from certain or all further Investments pursuant to the terms agreed in such Side Letter. If an Investor or a Feeder Investor elects to be excused from certain or all further Investments, it may result in the Fund being unable to make certain Investments and/or Investors participating in Investments in larger amounts and having a greater percentage of an Investment than if all Investors had participation in the relevant Investment(s).

Dilution from subsequent closings

The Fund may admit additional capital throughout the term of the Fund and, in particular, the Fund may permit existing Investors to increase their Commitment following the Final Closing Date. Investors subscribing for Interests at subsequent closings and existing Investors increasing their Commitment following the Final Closing Date will dilute the interest of existing Investors and existing Investors who are not increasing their Commitment following the Final Closing Date.

Sub-account dilution or other consequences

Investors who have decided to withdraw all or a portion of its interest from the Fund and hold such interest through a sub-account may have such interest diluted if the Fund participates in a Follow-On Investment. For example, if an Investor has elected to withdraw from the Fund prior to the Fund making a Follow-On Investment in an existing Investment in which such Investor currently holds an interest through a sub-account, such Investor will not participate in the Follow-On Investment and will not receive any profits resulting from such Follow-On Investment.

Additionally, the Investor’s interest held through the sub-account may be negatively impacted by the actions of the General Partners or the Manager in respect of the Fund as a whole and not taking into account the interests of any Investor holding an interest through a sub-account. For example, the Fund may make an Investment in a different part of the capital structure of an issuer than the interest that is held in such issuer through the sub-account. The General Partners and Manager may, in this situation and in other similar situations, make choices that may negatively impact the rights, performance or value of a sub-account, while having the effect of benefitting the Fund and current Investors. Investor holding an interest in a sub-account may be withdrawn in the discretion of the relevant General Partner prior to the investments comprising such Investor’s sub account are fully realised. As such, certain Investors in a redemption class may have their sub-account interests realised while other Investors remain in the sub-account and the sub-account shall remain subject to the performance of the Fund.

Impact of withdrawals on remaining partners

To the extent the Fund experiences a large amount of withdrawal requests following the Lock-Up Period (or such earlier date as determined by the General Partners in their absolute discretion), this may have a negative impact on the Fund effectively continuing to implement its investment strategy, impair the Fund’s ability to take advantage of investment opportunities, or make it difficult for the Fund to maintain leverage at attractive rates. For Limited Partners that have not withdrawn from the

Fund, it may become increasingly more expensive to remain in the Fund and they may be subject to a materially more concentrated exposure to Investments. The General Partners may determine after a large amount of withdrawal requests to terminate the Fund, including if the General Partners determine it is not economically or practically viable to continue the Fund.

Automatic Withdrawing Investors Expected Maturity

The General Partner intends that the procedure applicable to Automatic Withdrawing Investors mechanism will limit such Automatic Withdrawing Investors' investment in the Fund to a term of 10 years after the Final Closing Date (subject to permitted extensions). However, there can be no assurance that the Investments of the Fund, and particularly those allocated to an Automatic Withdrawing Investor's Withdrawing Account perform and mature in a manner that guarantees such Automatic Withdrawing Investor's participation in the Fund to be limited to 10 years after the Final Closing Date.

The determination of each Investment's Expected Maturity is solely based on the information available to the General Partner at the time the investment decision is made. In respect of Lease Investments, the Expected Maturity is determined by reference to the exit plan applicable to the individual lease or portfolio of leases, which may not reflect the timing or terms of the actual exit of the Lease Investment.

Withdrawals do not result in liquidity

None of the Fund, the General Partners, the Manager nor the Portfolio Manager will be obligated to sell, finance or refinance any Investments or take any other action to satisfy withdrawal requests.

Investors who have decided to withdraw from the Fund will only be able to do so following termination of the Lock-Up Period, and will no longer participate in new Investment or Follow-On Investments made by the Fund, but are not assured liquidity for their withdrawing interest on any particular time frame or at all. The Investments relating to an Investor's withdrawal request will be realised, if at all, at the same time as the Fund is realising such Investments and, given the Fund is an evergreen structure, the Fund is not seeking to realise Investments in line with any particular term or timeline and, as such, the interests of the Investors in the Fund may be different from the interests of the Investors who have submitted a withdrawal request in respect of the manner in which Investments are realised.

Holdbacks

The Fund could hold back such portion of the withdrawal proceeds payable to an Investor in respect of the Interests being withdrawn to satisfy contingent or expected liabilities. Such holdbacks will reduce the withdrawal proceeds paid to a withdrawing partner. The unused portion of any holdback, without interest, will be distributed to the Investors to which the holdback applied after the Fund has determined that the need for such holdback has ceased. It is possible that the General Partners could not hold back a sufficient amount to satisfy contingent or expected liabilities, which could have an adverse effect on the Fund, including its ability to satisfy subsequent withdrawal requests.

Cross collateralisation risks

Each Partnership is a single legal entity and there is no limited recourse protection. Accordingly, all of the assets of each Partnership will be available to meet all of its liabilities regardless of the Investment(s) to which such assets or liabilities are attributable. It is possible that losses sustained by one Investment will be charged against the assets attributable to other Investments. For instance, liabilities attributable to Investments that a withdrawing Investor will not participate in (by virtue of such Investment having been made after such withdrawing Investor submitted a withdrawal request) could exceed the value attributable to such Investment. Any such excess liability will be debited, but not below zero, against the Interests of all Investors (including withdrawing Investor who have not yet fully withdrawn from the relevant Partnership) on a pro rata basis or in another manner the relevant General Partner determines to be equitable.

Uncertainty of Net Asset Values

Among the Fund's important features are the provisions relating to the funding of commitments (including where existing Investors increase their Commitments following the Final Closing Date) and withdrawal of Interests. The valuation of Interests upon the funding of commitments (including any reinvestment of cash distributions in additional Interests), the amount payable upon withdrawal to redeeming investors and the amount of interests issued to existing Investors who increase their Commitment after the Final Closing Date (if any), as well as certain other valuations, including those used to compute any management fee and performance fee, are generally based upon the Fund's net asset value applicable to such funding, withdrawal or other event (subject to any applicable adjustment with respect to distributions, contributions or other material events occurring thereafter). The Fund will primarily hold securities and other assets that will not have readily assessable market values.

The Fund will rely on the General Partners, the Manager and their affiliates for valuation of its assets and liabilities, which valuations will be determined in as set out herein. Such valuations could vary from similar valuations performed by independent third parties for similar types of securities or assets. The valuation of illiquid securities and other assets is inherently subjective and subject to increased risk that the information utilised to value such assets or to create the price models could be inaccurate or subject to other error.

The value of the Fund's portfolio could also be affected by changes in accounting standards, policies or practices as well as general economic, political, regulatory and market conditions and the actual operations of the issuers of portfolio investments, which are not predictable and can have a material impact on the reliability and accuracy of such valuations. Due to a wide variety of market factors and the nature of certain securities and assets to be held by the Fund, there is no guarantee that the value determined by the Fund will represent the value that will be realised by the Fund on the eventual realisation of the Investment or that would, in fact, be realised upon an immediate realisation of the Investments.

Accurate valuations are more difficult to obtain in times of low transaction volume because there are fewer market transactions that can be considered in the context of the appraisal. As such, the carrying value of an Investment may not reflect the price at which the Investment could be sold in the market, and the difference between carrying value and the ultimate sales price could be material. Accordingly, such values may not accurately reflect the actual market values of the properties, and, thus, Investors may make decisions as to whether to invest in or redeem Interests without complete and accurate valuation information. In addition, Investors could be adversely affected by higher management fees and performance fees if the Fund's net asset value is overstated.

Amendment of withdrawal rights

Pursuant to the terms of the Partnership Agreements, a majority in interest of the Investors could consent to any amendment that would restrict or prevent the withdrawal rights of all such Investors. Accordingly, the withdrawal rights of any Investor as described herein and as set forth in the Partnership Agreements are subject to change at any time. Withdrawal rights that could be affected include, without limitation: the notice period for withdrawals; the frequency of withdrawals, generally; and the time and mechanism that the Fund could require to pay withdrawal proceeds. The amendment of the withdrawal rights could adversely affect the value of a non-consenting Limited Partner's interests if the value of the Fund's Investments depreciates following the time such Investor would have withdrawn all or a portion of its Interests but was prevented from doing so by the new, more restrictive withdrawal rights.

7.1.8 Risks Related to Investment in the Fund

Currency risks

The Fund will be denominated in USD but may structure many or all of its Investments in other currencies. Therefore, there is a risk that exchange rate movements may have an adverse effect on the Fund's economic performance and Investors may recognise foreign currency gains or losses on their investment in general. The Fund intends to implement hedges against the majority of currency risk on principal on an ongoing basis but there is no guarantee that such hedges will be fully effective which may lead to Investors suffering foreign currency losses on the repayments of principal and interest (or other income) on Investments. Further, there can be no assurance regarding the stability of the USD during the life of the Fund.

The General Partners may draw capital and convert it from USD to acquire an Investment in another currency that does not ultimately proceed to completion. In these circumstances, Investors will bear any foreign currency fluctuation where the unused proceeds are reconverted into USD and returned to Investors. The General Partners may also call capital from Investors to cover movements in foreign currency. These risks could cause Investors Interests to fall in value below their Capital Contributions.

In addition, the Fund may be subject to foreign exchange controls, which may affect its ability to repatriate income, capital and the proceeds of sales. Additionally, such repatriation may require governmental consents. The Fund could be adversely affected by the refusal or delay of any such approval for the repatriation of funds or by any official intervention which would affect the process of the settlement of transactions. Economic or political conditions could cause the revocation or variation of consents granted prior to investment in any particular country or the imposition of new restrictions.

Whilst an Investment may be denominated in the same currency as the investment made by the relevant Borrower, there can be no assurance regarding this and there can be no assurance as to whether a Borrower has put in place any or appropriate hedging arrangements in respect of such foreign exchange risk. Such foreign exchange risk may affect the financial ratios and other credit risk factors of such an Investment in its denominated currency.

Derivative risks

If the Fund enters into derivative contracts, the effectiveness of those instruments will depend on an entity, including the Manager and/or Portfolio Manager or a counterparty, to perform the obligations set out in those instruments. There is a risk

that the entity will fail to perform the particular obligation or will not perform in a timely or optimal manner. If there is a default by the counterparty to such a transaction, the Fund will under most normal circumstances have contractual remedies pursuant to the agreements related to the transaction. However, exercising such contractual rights may involve delays or costs which could result in the Net Asset Value of the Fund being less than if the Fund had not entered into the transaction.

Hedging risks

The Fund may utilise a variety of derivative financial instruments for risk management purposes, the use of which is a highly-specialised activity that may entail greater than ordinary investment risks. The Manager may adjust the techniques, instruments, durations and other aspects of the foregoing as it determines appropriate. Any such hedging transactions may not be effective in mitigating risk in all market conditions or against all types of risk (including unidentified or unanticipated risks), thereby resulting in losses to the Fund. Engaging in hedging transactions may result in a poorer overall performance for the Fund than if it had not engaged in any such hedging transaction. In addition, the Fund's investment portfolio will always be exposed to certain risks that cannot be fully or effectively hedged, such as credit risk relating both to particular securities and counterparties. The Fund will utilise hedging transactions only for those positions determined by the Manager and/or Portfolio Manager in its sole discretion.

There can be no assurance that the Fund will be able to execute hedging transactions in the over-the-counter ("OTC") derivatives markets on commercially reasonable terms, including due to increased costs arising from regulatory and structural reforms following the global financial crisis of 2008. Regulators in the United States and the European Union have implemented broad regulatory and structural requirements in OTC derivative markets that include, but are not limited to: requirements that the most liquid OTC derivatives be executed on qualifying, regulated exchanges or trading facilities and submitted for clearing at a registered clearinghouse; requirements for swap market participants to post variation margin in respect of exposures arising in respect of their uncleared OTC derivatives; and the imposition of trade reporting, recordkeeping, compliance and disclosure requirements for dealers offering OTC derivatives to their clients. These changes could significantly increase the costs to the Fund utilising OTC derivatives, reduce the level of exposure that the Fund is able to obtain for hedging purposes through OTC derivatives, and, to the extent that the Fund is required to post margin or pay additional fees to its swap counterparties, potentially reduce the amounts available to the Fund to make non-derivative Investments or increase the liquidity requirements of the fund. Transactions in OTC derivatives may involve additional risk, as there is no exchange market on which to close out an open position. The Fund may also be exposed to the risk of a counterparty defaulting under a derivative contract and therefore exposed to risk of losses in the event of the bankruptcy of a derivative counterparty.

Differential returns between Fund vehicles

While the Partnerships (and any other Parallel Vehicle, and Alternative Investment Vehicles) generally are expected to (directly or indirectly) make each Investment on a side-by-side basis, in accordance with the terms of the Partnership Agreements, the specific investment allocations between the Levered Partnerships and the Unlevered Partnerships may be adjusted by the relevant General Partner, in accordance with the Partnership Agreements, due to the operation of excuse rights, applicable investment or borrowing restrictions and/or an insufficiency of investable capital (including due to reserves for expenses or other liabilities, specific terms and features and applicable legal, tax, accounting, regulatory and other considerations). In addition, the Levered Partnerships are generally expected to incur long-term indebtedness for purposes of making Investments and any such long-term indebtedness, if incurred, would be expected to increase the total capital available for investment by the Levered Partnerships. In contrast, the Unlevered Partnerships are not generally expected to incur any long-term indebtedness and investors in the Unlevered Partnerships will likely experience differing investment returns than investors in the Levered Partnerships and such differences may be substantial. As such, investors subscribing to different vehicles comprising the Fund may receive unequal returns and profits.

Borrowing risk

The Fund may use borrowing in the circumstances described in Section 5 entitled "Summary of Terms", section entitled "Borrowing". These borrowing arrangements generally include recourse to the Undrawn Commitments of Investors and/or recourse to assets of the Fund in order to secure the financing and will incur costs which will impact returns. In particular, the Levered Partnerships are expected to employ asset-based leverage, including for investment purposes in order to increase investment exposure. Further, these financing arrangements may allow the lender to require repayments from the Fund, which may have the consequence of requiring the Fund to finance the repayments delivered to the lender. To the extent that the Fund does employ borrowing, Investors and Feeder Investors may be required to honour their Capital Contributions to permit the Fund to pay debt rather than to make Investments or to make Capital Contributions directly to a lender, and lenders may require the Fund to make certain representations and warranties, and to indemnify the lenders against any of the representations and warranties being inaccurate (including, where applicable, on a cross-collateralised or joint and several basis). If a lender fails to fund any bank financing or credit subscription facilities, this may also restrict the Fund's abilities to make Investments in the short term.

Basis for any investment in the Fund

Any investment in the Fund will be accepted solely on the basis of the Subscription Agreement, the final form of this Memorandum and the relevant Partnership Agreement. To the extent that any statements are made in this Memorandum, they are qualified in their entirety by the terms of the Subscription Agreement, the final form of this Memorandum and the Partnership Agreements.

Limited number and nature of Investments

While the Manager will seek to diversify the Investments across a number of jurisdictions, sub-sectors, industries and managers, the Fund will participate in a limited number of Investments and its Investments may be concentrated in the same industry or business sectors and the same geographies. As a result, the Fund's portfolio could become concentrated in a few Investments and the performance of a few Investments or a particular industry or geography may affect the Fund's aggregate return.

Failure to achieve Investment Objective of the Fund

The performance of the Fund relies on the ability of the Manager and the Portfolio Manager to source and assist in the making of new Investments. There is no assurance that Investments will be repaid in a timely manner or that the Investments will be profitable for the Investors.

The past performance of other previous funds or investments managed or advised by MAM Private Credit is not a reliable guide to future performance. The Fund will make different investments than prior MAM Private Credit Products. There is no assurance, guarantee or representation that the Investment Objective, target return or any other objectives of the Fund will be achieved or that any Investor will receive any return of capital or any income distribution from the Fund. Actual economic conditions may differ from the assumptions used to establish the target return, and such differences could be material. Accordingly, an investment in the Fund should be considered only by persons who can afford the loss of their entire investment.

In addition, prospective investors should be aware that payment of the Management Fee may be by way of (i) a deduction of the relevant sum from net proceeds allocable to each Investor, (ii) a drawdown by the Manager to allow the Fund to fund such amounts, with each such drawdown being made on each Investor in respect of the relevant amounts so attributable to such Investor or (iii) such Investor being invoiced directly by the General Partners in respect of its portion. Any Management Fee or other fees, expenses and taxes paid by the Fund and ultimately borne by the Investors may be significant and, as a result, offset any investment gains of the Fund.

Failure to fund Commitments; consequences of default or excuse

If an Investor fails to satisfy a Drawdown Notice when due or is excused from an Investment, and the contributions made by non-defaulting Investors or non-excused Investors and borrowings by the Fund are inadequate to cover the shortfall, the Fund may be unable to meet its obligations when due. As a result, the Fund may be subjected to significant penalties that could limit opportunities for investment diversification and materially adversely affect the returns of the Investors. The Partnership Agreements will provide for significant adverse consequences in the event that an Investor fails to comply with a Drawdown Notice. If an Investor defaults, it may be subject to various remedies, including, without limitation, the loss of future distributions from the Fund, a forced transfer of its Interest at less than fair market value and/or forfeiture of a portion of its Interest.

No market for Interests; restrictions on transferability

The Interests have not been registered under the U.S. Securities Act or the securities laws of any state of the United States, and cannot be resold unless they are subsequently registered under the U.S. Securities Act and other applicable securities laws or an exemption from registration is available. It is not contemplated that the Interests will ever be registered under the U.S. Securities Act or other securities laws. There is no public market for the Interests and none is expected to develop. Accordingly, there are no quoted prices for interests in the Fund. An Investor will not be permitted to assign its Interests in the Fund without the prior written consent of the relevant General Partner, which may be withheld in its sole discretion. Consequently, Investors may not be able to liquidate their Interests prior to the termination of the Fund and must be prepared to bear the risks of owning Interests for an extended period of time.

Forward looking information

Investors should be aware that the forecasts and projections included in this Memorandum have been based on the analysis of the Related Persons. Whilst the Related Persons consider this Forward Looking Information to be reasonable and prepared in good faith, such information does contain an element of subjectivity and there can be no guarantee that it will be correct. Prospective investors are cautioned not to place undue reliance on such Forward Looking Information which speaks only as

of the date thereof. None of the Fund or the Related Persons undertake any obligation to provide Investors with revisions to any Forward Looking Information to reflect events or circumstances after the date hereof or to reflect the occurrence of unanticipated events.

Distributions

There can be no assurance that the operations of the Fund will be profitable, that the Fund will be able to avoid losses or that cash from its operations will be available for distribution to the Investors. The Fund will have no source of funds from which to pay distributions to the Investors other than income (and gains, where applicable) received from Investments.

Distribution of In specie assets

Distributions in specie may be made during the life of the Fund to the extent that such distributions are capable of being traded on a stock exchange or otherwise readily realisable or with the consent of the relevant Investor. In addition, there may be circumstances where a liquidator, in its absolute discretion, after the termination of the Fund, deems it appropriate to make in specie distributions to certain Investors. Such distributions of in specie assets will be made in accordance with the terms of the Fund applicable to a distribution of assets in specie, and may have adverse tax consequences that may not otherwise apply to an equivalent cash distribution. In addition, in the event of a distribution of in specie assets, there may be restrictions on disposals of assets so distributed, and consequently an Investor to whom such assets are distributed may not be able to realise the full value of these assets. Distributions made during the life of the Fund will generally take the form of cash. Distributions in specie may be made during the life of the Fund provided that (i) the assets to be distributed are capable of being traded on a stock exchange or otherwise a readily realisable security in the reasonable opinion of the Manager, or (ii) the circumstances justifying such distribution are exceptional. The value of any assets distributed in specie will be determined in accordance with fair value and in conjunction with a third-party valuer, following the applicable valuation methodology.

Subject to applicable laws and regulations, the Manager shall be responsible for realising an Investment on termination, without the need for a liquidator to be appointed. If, upon the termination of the Fund, there are securities and other assets to be distributed, the Manager may make distributions in specie in accordance with the Partnership Agreements.

Lack of operating history

The Fund will be a newly-formed entity with no prior operating history upon which a prospective investor can base its prediction of future success or failure. As at the date of this Memorandum, the Fund does not have any assets, although prospective investors should refer to the additional information provided to Investors in the Fund's data room relating to Seed Investment disclosures prior to their admission to the Fund. Other than with respect to the Seed Investments, for which prospective investors have been provided with additional information, Investors will be relying solely on the Manager's ability to identify and make investments for the Fund.

Use of Alternative Investment Vehicles

The Fund may use Alternative Investment Vehicles and cause the Investors to transfer a portion of their Commitments into such entities. The use of Alternative Investment Vehicles may involve additional costs of formation, structuring and operating such entities in a manner that provides similar economic terms, management terms and the liability protection afforded by Investments made through the Fund. Because of the wide reach of the investments proposed by the Fund, these Alternative Investment Vehicles could be of a type with which the Manager has less familiarity and, therefore, provide additional informational and operational uncertainty or difficulties in managing and disposing of Investments through such entities.

Term of Fund risk

In limited circumstances, the maximum maturity of an Investment in the Fund's portfolio may exceed the date on which the Fund is dissolved, either by expiration of the Fund's term or otherwise. Although it is expected that Investments will be repaid prior to dissolution or be suitable for in specie distribution at termination, the Fund may have to sell, distribute or otherwise dispose of Investments at a disadvantageous time as a result of dissolution and there is no guarantee that the liquidation price will be reflective of the fair value of the Investment at that time. In addition, there can be no assurances with respect to the timeframe in which the winding-up and the formal distribution of proceeds to the Investors will occur.

Valuation risk

The Fund will rely upon the Manager and the Administrator for valuation of its Investments and determination of its Net Asset Value. The Manager may engage qualified valuation professionals to assist in this determination: however, it is not required to do so other than as expressly provided by the Management Agreement.

The market value of the Fund's Investments will generally fluctuate with, among other things, general economic conditions, world political events, developments or trends in any particular industry, the conditions of financial markets and the financial condition of the Borrowers. It is expected that many of the Fund's Investments will be investments for which there is no, or a limited, liquid market. As a result, the fair value of such Investments may not be readily determinable.

Because such valuations are inherently uncertain, they may fluctuate over short periods of time and may be based on estimates. As a result, the Manager's and the Administrator's determination of Net Asset Value may differ materially from the actual values obtainable in an arm's-length sale of such Investments to a third party. The Fund's financial condition and results of operations could be adversely affected if the Fund's valuation determinations were materially higher than the values that the Fund ultimately realises upon the realisation of such Investments.

Passive investment risk

The Investors will be relying entirely on the Manager to manage the affairs of the Fund in accordance with applicable law and the terms of the Management Agreement. The Investors cannot engage in the active management and business of the Fund. Investments (other than Seed Investments) to be made by the Fund have not yet been identified. As a result, the Investors must rely on the ability of the Manager to make appropriate Investments for the Fund and to manage and dispose of such Investments. Investors will not have the opportunity to evaluate the relevant economic, financial and other information which will be utilised by the Fund in deciding whether or not to make a particular Investment.

Limited recourse

To the extent permitted by applicable local law, the Partnership Agreements will seek to limit the circumstances under which the General Partners, the Manager, the Portfolio Manager, Macquarie Group affiliates and Macquarie Group personnel performing central functions, any Adviser and their Associates and any of their respective officers, directors, partners, members, shareholders, agents, delegates and employees, any person who serves on the Investment Committee or is nominated by the relevant Partnership, the General Partners or the Manager who serves on the board of directors or advisory board or equivalent body of any Intermediate Vehicle, or any person who serves on the Advisory Committee and the Investor whom such member of the Advisory Committee represents (each, an **"Indemnified Party"**) can be held liable to the Fund. Each Indemnified Party generally will not be held liable with respect to their actions or inactions unless determined by a final judgment of the courts of the Grand Duchy of Luxembourg to have resulted from (i) in the case of an Indemnified Party who is not a member of the Advisory Committee or the Investor or Feeder Investor such member represents, (A) such Indemnified Party's fraud, gross negligence, bad faith or wilful default or (B) substantial material breach of the relevant Partnership Agreement or Management Agreement resulting in material financial disadvantage to the Fund, other than, in each case, where the Indemnified Party was acting in good faith upon the opinion or advice as to legal matters of legal counsel or as to accounting matters of accountants selected by any of them with reasonable care, and (ii) in the case of an Indemnified Party who is a member of the Advisory Committee or the Investor or Feeder Investor such member represents, such member's fraud or bad faith. Nothing in this paragraph should be construed as a waiver by the Investor of non-waivable causes of action recognised by U.S. federal and state securities laws as applicable to Indemnified Parties. The Fund may be required to indemnify each Indemnified Party for any and all claims, liabilities, damages, losses, costs and expenses of any nature whatsoever, that arise out of or in connection with the affairs of the Fund. Such liabilities may be material and have an adverse effect on the returns to the Investors. The indemnification obligations of the Fund will be payable from the assets of the Fund, including the Undrawn Commitments of the Investors. If the assets of the Fund are insufficient, the General Partners may require Investors to return distributions made to it for the purpose of meeting its pro rata share of the Fund's obligations (subject to certain limitations set forth in the Partnership Agreements and/or applicable laws).

Fund expenses

The Fund will pay and bear all expenses related to its operations. The amount of the Fund's Operating Expenses will be substantial and will reduce the actual returns realised by Investors on their investment in the Fund (and may, in certain circumstances, reduce the amount of capital available to be deployed by the Fund in Investments). Operating Expenses include recurring and regular items, as well as extraordinary expenses for which it may be hard to budget or forecast. As a result, the amount of Operating Expenses ultimately called or called at any one time may exceed expectations. As described further in the Partnership Agreements, Operating Expenses encompass a broad range of expenses and include all expenses of operating the Fund. Although the Fund's Organisational Expenses are separately categorised and subject to a limit under the Partnership Agreements, ongoing Operating Expenses to be borne by the Investors and not classified as Organisational Expenses include costs that relate to organisational matters, such as costs and expenses of negotiating and administering Side Letters entered into with Investors (including the process of distributing and implementing applicable elections pursuant to any "most-favoured nations" clauses in Side Letters). Expenses to be borne by the General Partners, the Manager, the Portfolio Manager or their respective Associates are only limited to those items specifically enumerated in the Partnership Agreements, and all other costs and expenses in operating the Fund will be borne by the Investors.

From time to time, the Manager will be required to decide whether costs and expenses are to be borne by the Fund, on the one hand, or the General Partners, the Manager, the Portfolio Manager or their respective Associates, on the other, and/or whether certain costs and expenses should be allocated between or among the Fund, on the one hand, and other MAM Private Credit Products or co-investors, on the other. The Manager will make such judgments notwithstanding its interest in the outcome and may make corrective allocations if, based on periodic reviews, it determines that such corrections are necessary or advisable. The allocation of such expenses may not be proportional in all cases, and any such determination involves inherent matters of discretion. The Manager also expects from time to time to face conflicts in allocating fees, expenses and liabilities that could be considered specific to one or more, but not all, Investors. Given the nature of these conflicts, there can be no assurance that the resolution of these conflicts will be beneficial to the Fund or an Investor.

The Manager will employ the same procedures and principles when allocating fees and expenses incurred in connection with “broken deals” or potential investments that the Manager actively considers but does not consummate. The Manager makes fee and expense allocation decisions while a transaction is pending based on its best judgment of the Fund or other investment vehicles (including other MAM Private Credit Products) and co-investors to which the Manager will ultimately allocate the transaction. This judgment is necessarily subjective, especially when a transaction is terminated at a particularly early stage. An Investor bears its pro rata share of fees and expenses for any transactions that are terminated, including those terminated before the Investor’s admission to the Fund.

Liability for return of distribution risk

Under the Partnership Agreements and applicable law, if the Fund is otherwise unable to meet its obligations, the Investors may be obligated to return cash distributions with interest previously received by them. In addition, an Investor may be liable under applicable laws to return a distribution made during the Fund’s insolvency. Investors also may be required to return amounts distributed to them to fund the Fund’s indemnity obligations, as well as for other expenses.

Public disclosure

Some of the interests in the Fund may be held, directly or indirectly, by Investors or Feeder Investors, such as public pension plans and listed investment vehicles, that are subject to public disclosure requirements. The amount of information about their investments that is required to be disclosed has increased in recent years, and that trend may continue. To the extent that disclosure of confidential information relating to the Fund or the Fund’s Investments results from interests being held by public investors, the Fund may be adversely affected. The General Partners may, in order to prevent any such potential disclosure, withhold all or any part of the information otherwise to be provided to such public investors.

Limited access to Information

Investors’ (including prospective investors) rights to information regarding the Fund will be specified, and strictly limited, in the Partnership Agreements. In particular, it is anticipated that the Manager and/or the Portfolio Manager will obtain certain types of material information from Borrowers (including material non-public information) that will not be disclosed to Investors (or prospective investors) because such disclosure is prohibited for contractual, legal or similar obligations outside of the Manager or the Portfolio Manager’s control. Decisions by the General Partners, the Manager or the Portfolio Manager to withhold information may have adverse consequences for Investors in a variety of circumstances. For example, an Investor that seeks to transfer its Interests may have difficulty in determining an appropriate price for such Interests. Decisions to withhold information also may make it difficult for Investors to monitor the Fund and its performance. Additionally, it is expected that Investors or Feeder Investors who designate representatives to participate on the Advisory Committee may, by virtue of such participation, have more information about the Fund and the Fund’s Investments in certain circumstances than other Investors or Feeder Investors generally and may be disseminated information in advance of communication to other Investors or Feeder Investors generally.

Misconduct of Individuals, Macquarie and of third-party service providers

Misconduct by employees, directors, officers and other personnel of the General Partners, the Manager, the Portfolio Manager, their Associates, or by third-party service providers could cause significant losses to the Fund. Such misconduct may include binding the Fund to transactions that exceed authorised limits or present unacceptable risks and unauthorised trading activities or concealing unsuccessful trading activities (which, in either case, may result in unknown and unmanaged risks or losses). Losses could also result from actions by third-party service providers, including, without limitation, failing to recognise trades, misappropriating assets or a failure of a custodian that holds securities of the Fund. In addition, employees, officers, directors, personnel and third-party service providers may improperly use or disclose confidential information, which could result in litigation or serious financial harm, including limiting the Fund’s business prospects or future marketing activities. No assurances can be given that the due diligence performed by the Manager will identify or prevent any such misconduct.

Litigation

In the ordinary course of its business, the Fund may be subject to litigation from time to time. The outcome of such proceedings may materially adversely affect the value of the Fund and may continue without resolution for long periods of time. Any litigation may consume substantial amounts of the Manager's and MAM Private Credit's professionals' time and attention, and that time and the devotion of these resources to litigation may, at times, be disproportionate to the amounts at stake in the litigation.

Force majeure

The Fund and Borrowers are subject to the risk of loss arising from exposure that they may incur, directly or indirectly, due to the occurrence of various events such as acts of God, unplanned interruptions caused by potentially catastrophic force majeure events and conditions, including, without limitation, wars, terrorist attacks, labour strikes, cyclones, earthquakes, landslides, floods, explosions, fires, breakdowns, technology failures, design and construction defects, biohazard, outbreaks of infectious diseases, pandemics, epidemics and other new viruses (including, for example, COVID-19), accidents, social instability and fire. Some force majeure risks are uninsurable and the occurrence of uninsurable force majeure events in respect of a Borrower may adversely affect the value of the Fund's Investments.

Cybersecurity risks; system failures

The Fund, the General Partners, the Manager, the Portfolio Manager and their Associates and their service providers are subject to risks associated with a breach in cybersecurity. Cybersecurity is a generic term used to describe the technology, processes and practices designed to protect networks, systems, computers, programs and data from both intentional cyber-attacks and hacking by other computer users, as well as unintentional damage or interruption that, in either case, can result in damage and disruption to hardware and software systems, loss or corruption of data and/or misappropriation of confidential information. Cybersecurity attacks are evolving and include, but are not limited to, malicious software, attempts to gain unauthorised access to data, and other electronic security breaches that could lead to disruptions in critical systems, unauthorised release of confidential or otherwise protected information, including, without limitation, information regarding Investors and the Fund's investment activities, and corruption of data. Such damage or interruptions to information technology systems may cause losses to the Fund or Investors, without limitation, by interfering with the processing of transactions, affecting the Fund's ability to conduct valuations or impeding or sabotaging Investments. The Fund may also incur substantial costs as the result of a cybersecurity breach, including those associated with forensic analysis of the origin and scope of the breach, increased and upgraded cybersecurity, identity theft, unauthorised use of proprietary information, litigation, adverse investor reaction, the dissemination of confidential and proprietary information and reputational damage. Any such breach could expose the Fund, the General Partners, the Manager, the Portfolio Manager and their Associates to civil liability as well as regulatory inquiry and/or action. Investors could also be exposed to losses resulting from unauthorised use or dissemination of their personal information.

The Fund, the General Partners, the Manager, the Portfolio Manager and their Associates rely extensively on computer programs and systems (and may rely on new systems and technology in the future) for various purposes, including settling transactions, evaluating certain Investments, monitoring the Fund's portfolio and net capital and generating risk management and other reports that are critical to oversight of the Fund's activities. Certain of the Fund's, the General Partners' the Manager's, the Portfolio Manager's and their Associates' operations will be dependent upon systems operated by third parties, including prime-brokers, administrators, market counterparties and their sub-custodians and other service providers. The Fund's service providers may also depend on information technology systems and, notwithstanding the diligence that the General Partners, the Manager and their Associates may perform on their service providers, the General Partners or the Manager may not be in a position to verify the risks or reliability of such information technology systems. The General Partners, the Manager and the Portfolio Manager's controls and procedures, business continuity systems, and data security systems could prove to be inadequate. These problems may arise in the General Partners, the Manager or the Portfolio Manager's internally developed systems and the systems of third-party service providers.

In addition to the above cybersecurity related issues, information and technology systems of the Fund, the General Partners, the Manager, the Portfolio Manager and their Associates may otherwise be vulnerable to damage or interruption from computer viruses, network failures, computer and telecommunication failures, infiltration by unauthorised persons and security breaches, usage errors by their respective professionals, power outages and catastrophic events such as fires, tornadoes, floods, hurricanes and earthquakes. Although the General Partners, the Manager, the Portfolio Manager and their Associates have implemented various measures to manage risks relating to these types of events, if these systems are compromised, become inoperable for extended periods of time or cease to function properly, the General Partners, the Manager, the Portfolio Manager and their Associates may have to make a significant investment to fix or replace them. The failure of these systems and/or of disaster recovery plans for any reason could cause significant interruptions in the operations of the General Partners, the Manager, the Portfolio Manager and their Associates and result in a failure to maintain the security, confidentiality or privacy of sensitive data, including personal information relating to the Investors. Such a failure could harm the reputation of the

General Partners, the Manager, the Portfolio Manager and their Associates, subject the General Partners, the Manager, the Portfolio Manager and their Associates to legal claims and otherwise affect their business and financial performance.

The above considerations also apply to the Borrowers and other counterparties with which the Fund conducts investment activities.

Sustainability risk

Sustainability risks linked to environmental aspects include, but are not limited to, climate risk, both physical and transition risk and may negatively impact the Fund and the Borrowers.

Climate physical risk arises from the physical impacts of climate change including extreme weather events, heat waves, droughts, floods, storms, hailstorms, forest fires, avalanches, long-term climate change, decreasing amounts of snow, changed precipitation frequency and volumes, unstable weather conditions, rising sea levels, changes in ocean currents, changes in winds, changes in land and soil productivity, reduced water availability (water risk), ocean acidification, and global warming including regional extremes.

The value of the Fund's Investments may also be affected by transition to low carbon economies. Measures may include bans and restrictions, the phasing out of fossil fuels, other political measures related to the transition to a low-carbon economy, technological change linked to the transition to a low-carbon economy and changes in customer preferences and behaviour.

Environmental liabilities may arise with respect to Investments as a result of a large number of factors, including changes in laws or regulations and the existence of conditions that were unknown at the time of investment. Investments and the performance of the Fund in general may be adversely affected to the extent that any such environmental liabilities arise.

These are only examples of sustainability risk factors and sustainability risk factors do not solely determine the risk profile of the Investment. The relevance, severity, materiality and time horizon of sustainability risk factors and other risks can differ significantly between Investments.

Sustainability risk can manifest itself through different existing risk types (including, but not limited to, market, liquidity, concentration, credit, asset-liability mismatches etc.). As a result, sustainability risk factors may have a material impact on an Investment, may increase the volatility, affect liquidity and may result in a decrease in the value of Interests in the Fund.

The impact of those risks may be higher for Investments with particular sectoral or geographic concentrations e.g., with geographical concentration in locations susceptible to adverse weather conditions where the value of the Fund's Investments may be more susceptible to adverse physical climate events, or funds with specific sectoral concentrations such as investing in industries or issuers with high carbon intensity or high switching costs associated with the transition to low carbon alternatives, may be more impacted by climate transition risks.

All or a combination of these factors may have an unpredictable impact on the Fund and the Borrowers. Under normal market conditions, such events could have a material impact on the value of Interests in the Fund.

The impacts of sustainability risks are likely to develop over time and new sustainability risks may be identified as further data and information regarding sustainability factors and impacts become available and the regulatory environment regarding sustainable finance evolves. These emerging risks may have further impacts on the value of Interests in the Fund.

Custodian risk

One or more banks or broker-dealers may act as custodians for certain assets of the Fund. Custodians could provide certain clearing, including prime brokerage, margin financing or other financing facilities in addition to custodial functions. If a custodian were to become insolvent, the Fund would, in respect of financial assets credited to securities accounts and held in street name, have only rights in common with other customers of the custodian and would not have ownership of, or rights with respect to, any specific financial assets maintained by the custodian. If any custodian has insufficient financial assets to satisfy all of its customers and its secured creditors, the Fund could suffer losses. Furthermore, if the Fund uses a broker-dealer as custodian (or prime broker), the bankruptcy of such custodian might have a greater adverse effect on the Fund than would be the case if the Fund used a bank as custodian. This is because, subject to certain limitations, a prime broker generally has the ability to loan, pledge and rehypothecate the securities in its customers' accounts, as is typical market practice, and therefore may have insufficient assets to meet all of its obligations to "customers" in the event of insolvency of the broker-dealer. Even if a custodian has sufficient assets to meet all "customer" claims, there may be a substantial delay in proceedings against a custodian and the assets of the Fund may become substantially impaired during such proceedings.

7.1.9 Market, Economic and Political Risks

Market and economic risks

The Fund and the Borrowers may be materially affected by market, economic and political conditions globally and in the jurisdictions and sectors in which they invest or operate, including factors affecting interest rates, the availability of credit and currency exchange rates. These factors are outside the control of the General Partners, the Manager, the Portfolio Manager and any Adviser and could adversely affect the liquidity and value of the Investments, and may reduce the ability of the Fund to make attractive new Investments or extend the time for the Fund to be able to acquire or dispose of Investments.

Epidemics, pandemics, outbreaks of disease and public health risks

Epidemics, pandemics and other widespread public health problems, including outbreaks of infectious diseases such as SARS, H1N1/09 flu, avian flu, Ebola and COVID-19, have and are resulting in market volatility and disruption on a regional and global scale and may affect investment sentiment. In addition, any such outbreaks may result in restrictions on travel and public transport and prolonged closures of workplaces which may have a material adverse effect on the regional or national economies which have imposed such restrictions and which, in turn, may have a wider impact on the global economy. Accordingly, a significant outbreak of a health epidemic or contagious disease could result in a widespread health crisis and restrict the level of business activity in affected areas, which may in turn give rise to significant costs to the Fund's financial results.

The impact that public health events will have on the performance of the Fund is uncertain, and will depend to a large extent on future developments and new information that may emerge regarding the duration and severity of the health crisis, and the actions taken by authorities and other entities to contain such crisis or treat its impact, on a national, regional and global level, all of which are beyond the control of the General Partners, the Manager, the Portfolio Manager and any Adviser.

Implications of global economic uncertainty

Various social and political tensions around the world may contribute to increased market volatility, may have long-term effects on worldwide financial markets and may cause further economic uncertainties worldwide. Market disruptions and the dramatic increase in the capital allocated to alternative investment strategies during recent years have led to increased governmental as well as self-regulatory scrutiny of the private investment fund industry in general. Certain legislation proposing greater regulation of the industry periodically is considered by various jurisdictions. It is impossible to predict what, if any, changes in the regulations applicable to the Fund, the General Partners, the Manager and the Portfolio Manager, the markets in which they trade and invest, or the counterparties with which they do business, may be instituted in the future. Any such regulation could have a material adverse impact on the profit potential of the Fund. Populist and anti-globalisation movements, particularly in Western Europe and the United States, may result in material changes in economic, trade and immigration policies, all of which could lead to significant disruption of global markets and could have materially adverse consequences on the Investments of the Fund.

These challenging market conditions increase the likelihood of, and possible impact of, a number of the risks including those referred to in this Section 7.1.9.

In addition, digitalisation and social media may also increase the risk to the Macquarie Group and financial industry more widely, given the speed at which negative public opinion can travel and be acted upon.

Inflation

Inflation and rapid fluctuations in inflation rates have had, and may in the future have, negative effects on the economies and credit markets of certain economies including by contributing to declines in business and consumer spending in addition to other adverse market conditions. Recently, inflation has increased to comparatively high levels across the U.S., the United Kingdom, Europe and global economy, driving up the costs of goods and services. As a result of the high-inflationary environment, governments and central banks throughout the world have undertaken remedial actions including changes in policies to stabilise markets, combat inflation and/or restart or encourage economic growth. Governmental efforts to curb inflation in the past have included changes to interest rates, wage and price controls, as well as more drastic economic measures that have had a materially adverse effect on the level of economic activity in the affected country. These measures may have a significant effect on interest rates, inflation and on the world economies generally, which in turn may affect the performance of the Fund and its Investments on an absolute and/or relative basis. In particular, central banks increased interest rates, which may present attractive investment opportunities stemming from market dislocations, but also may make it riskier and more difficult for the Manager and/or Portfolio Manager to execute on the Fund's investment strategy successfully, including finding attractive investments and executing on opportunities for realising value from Investments. It is possible that Investments with floating interest rate loans may become unable to meet their payment obligations if their benchmark interest

rates were to rise materially, or if these Investments' lenders or debt holders generally are unwilling to extend or refinance their loans or debt securities on similarly attractive terms. There can be no assurance that inflation will not continue to be a problem in the future and have an adverse impact on the value of the Fund's Investments in impacted countries, or the Fund's returns from such Investments.

Eurozone

The functioning of the Euro as a single currency across the Eurozone has been under considerable pressure in recent years. The situation, particularly in those countries where sovereign default is perceived to be more likely, may deteriorate during the life of the Fund. It is possible that the Euro may cease to be the national currency of some or even all of the countries currently comprising the Eurozone. If this were to occur, it could have a significant adverse effect on the Fund, the performance of certain Investments (in particular any Euro-denominated Investments or Investments with exposure to Eurozone economies) and its ability to fulfil its Investment Objective.

Geo-political risk, including Russian invasion of Ukraine

Commencing in 2021, Russian President Vladimir Putin ordered the Russian military to begin massing thousands of military personnel and equipment near its border with Ukraine and in Crimea. President Putin has since initiated a military invasion of Ukraine. In response, the United States and other jurisdictions, including the European Union, European Union member states, and the United Kingdom announced sanctions and other measures against Russia, Belarus, certain Ukraine territories, certain state affiliates and other persons with actual or expected ties to the state and/or President Putin. In response, Russia announced certain "counter-sanctions". Other governmental and non-governmental bodies and organisations, and various companies with interests in and/or related to Russia and/or Ukraine, have also taken measures in response to Russia's invasion of Ukraine, including divesting assets and restricting trade and activities with Russia and its businesses. The invasion of Ukraine, and actions taken in response thereto, are having a material negative impact on the economy and business activity globally (including in the countries in which the Fund invests), and therefore could adversely affect the performance of the Fund's Investments. The conflict is rapidly evolving and the varying involvement of the United States, the United Kingdom, the European Union and other NATO countries presents material uncertainty and risk with respect to the impact on global economic and market conditions and therefore to the Fund and the performance of its Investments or operations, and the ability of the Fund to achieve its Investment Objective. Additionally, to the extent that any third parties, Investors, or related customer bases have material operations or assets in Russia or Ukraine, the ongoing conflict may present actual risks and result in adverse consequences with respect to their dealings and/or obligations with respect to the Fund and Borrowers. The global response and repercussions arising out of Russia's invasion of Ukraine is ever-changing and the ramifications on markets, business activity and the global economy more generally are not yet capable of being fully identified or understood.

Other ongoing conflicts (such as the Israel-Hamas conflict which broke out in October 2023) or the potential for such conflict may result in significant instability in regional and global financial markets and increase the threat of cyberattacks, nuclear incidents, terrorism, environmental damage and further escalation of geopolitical tensions. Global and local macroeconomic impacts may arise, including increased inflationary pressures, volatility in the price and supply of energy and other commodities, disruption to supply chains, economic pressure caused by movement of displaced persons, the imposition of sanctions and embargoes and significant uncertainty in the commercial, legal and political environment, which are likely to further adversely impact individuals and businesses.

Furthermore, geopolitical relations may further worsen between the U.S. government (as well as other governments) and China over Taiwanese sovereignty, which may have significant macroeconomic effects on the global economy (including, but not limited to, currency fluctuations and/or other adverse effects on international markets, international trade agreements and/or other existing cross-border co-operation arrangements (whether economic, tax, fiscal, legal, regulatory or otherwise)). To the extent that this situation escalates, there could be additional significant impacts on the industries and sectors in which the Fund seeks to make investments, the jurisdiction of Investments and other adverse impacts on Investments or the Fund more generally. In addition, geopolitical and trade disputes may develop between other countries, which may have similar or more pronounced risks and consequences for the Fund and/or its Investments.

7.1.10 Conflicts of Interest

Conflicts generally

As a global investment services organisation, Macquarie engages in a broad spectrum of activities including securities underwriting, sales and trading, advisory, lending, merchant banking, financial advisory services, investment research, asset management and other activities. In the ordinary course of business, Macquarie and its Associates will engage in activities where their interests or the interests of their clients will conflict with the interests of the Investors. In addition to the discussions below, Investors should refer to Section 4.5 entitled "Conflicts policies and protocols of the Manager", Section 4.6 entitled "Conflicts of Interest within the Macquarie Group" and Section 4.7 entitled "Conflicts of Interest within MAM Private Credit"

above. The discussion below, together with the conflicts disclosures set out in Section 4.5 entitled “Conflicts policies and protocols of the Manager”, Section 4.6 entitled “Conflicts of Interest within the Macquarie Group” and Section 4.7 entitled “Conflicts of Interest within MAM Private Credit” above, enumerates certain risks associated with actual and potential conflicts of interest that will or could arise. However, the following list is not, and is not intended to be, exhaustive. There can be no assurance that Macquarie, the General Partners and the Manager will resolve all conflicts of interest in a manner that is favourable to the Fund. By acquiring Interests, each Investor will be deemed to acknowledge the existence of such actual and potential conflicts of interest and, to the extent permitted by applicable law, to have waived any claim with respect to any liability arising from the existence of any such conflicts of interest or to resolution thereof as described herein. The foregoing should not be construed as a waiver by the General Partners, the Manager, the Portfolio Manager, or their Associates of non-waivable causes of action recognised by U.S. federal and state securities laws.

There will be occasions when the General Partners, the Manager, the Portfolio Manager and their Associates encounter conflicts of interest in connection with the Fund's activities. For example, the Manager, the Portfolio Manager and their employees will continue to devote such time and attention to their existing business activities as is required to discharge their duties relating to such activities. Also, as a result of existing investments and activities, the Manager, the Portfolio Manager and their employees may from time to time acquire confidential information that they will not be able to use for the benefit of the Fund. Conflicts will also arise in circumstances where an employee of Macquarie acts as a director of a General Partner, the Manager, the Portfolio Manager and/or a director of any Intermediate Vehicle through which the Fund makes Investments.

Conflict risks relating to investments and management of the Fund

Sponsor Commitment reduction

Pursuant to the terms of the Partnership Agreements, the Sponsor Commitment may, following the third anniversary of the quarter end date following the Final Closing Date, be subject to a withdrawal request or may otherwise be transferred to a third-party who is not affiliated with Macquarie. While there are limitations on the amount of the Sponsor Commitment which can be subject to a withdrawal request or transferred in this way, these limitations no longer apply following the termination of the Final Closing Date. This means that, over the term of the Fund, the Sponsor Commitment could be reduced materially (or completely) which would have the effect of reducing the alignment of commercial interests between the General Partners, the Manager, the Portfolio Manager, the Executive Partners and any of their Associates on the one hand, and the Limited Partners who are not affiliated with such persons on the other hand.

Allocation of Sponsor Commitment

As described in Section 5 entitled “Summary of Terms”, the amount of Sponsor Commitment required to be made will be calculated based on the aggregate commitments across the Fund and MSIG 3 (EUR). However, there is no obligation for the Sponsor Commitment to be allocated on a pro rata basis to the Fund and MSIG 3 (EUR) and, accordingly, the Sponsor Commitment allocated to the Fund may be a proportionally smaller or negligible amount as compared to the amount allocated to MSIG 3 (EUR). Independent investment decisions will be taken with respect to each of the Fund and MSIG 3 (EUR). As such conflicts of interest may arise in respect of how they are managed by the Manager as a result.

Impact of levered and unlevered strategies

The use of leverage by the Levered Partnerships compared to the Unlevered Partnerships may adversely affect the Unlevered Partnerships or the value of the Investments more generally and therefore a conflict of interest may arise as a result of the coexistence of the levered and unlevered options. For example, if the Levered Partnerships experience a default event as defined under the applicable credit agreement relating to such leverage, the lender may have the right to certain Investments held by the Levered Partnerships as collateral in connection with such default event. The lender taking possession of and likely selling such assets will likely have negative consequences to the Unlevered Partnerships because the Unlevered Partnerships hold the same assets as the Levered Partnerships and such sale would likely negatively affect the value of such assets.

Costs resulting from conflicts of interests

As a result of the various conflicts and related issues described above in Section 4.6, entitled “Conflicts of Interest within the Macquarie Group”, and the fact that conflicts will not necessarily be resolved in favour of the interests of the Fund, the Fund could sustain losses during periods in which other Macquarie Funds achieve profits generally or with respect to particular holdings in the same Borrower, or could achieve lower profits or higher losses than would have been the case had the conflicts described above not existed. The negative effects described above may be more pronounced in connection with transactions in, or the Fund utilising, small capitalisation, emerging market, distressed or less liquid strategies.

Limitations on information sharing within Macquarie

Macquarie has adopted information-sharing policies and procedures that address both (i) the handling of confidential information, and (ii) the information barrier that exists between the public and private sides of Macquarie. In particular, Macquarie has put in place (i) systems and controls such as information barriers between Macquarie entities which restrict the flow of confidential or non-public price sensitive information including physical separation and system access restriction, (ii) segregation of duties and supervision of staff engaged in different Macquarie business activities ensuring appropriate communication between businesses, and (iii) the use of “deal trees” which restrict the flow of information to competing bidders in a transaction. Macquarie has compliance functions to administer Macquarie’s information-sharing policies and procedures and monitor potential related conflicts of interest.

Advisory Committee

The General Partners or the Manager may in certain situations choose to seek the approval of the members of the Advisory Committee using established guidelines with respect to potential conflict of interest situations. If the Advisory Committee waives the conflict of interest or Macquarie, the General Partners and/or the Manager acts in a manner, or pursuant to the standards and procedures, approved by Advisory Committee with respect to the conflict of interest, then such decision will be binding on all Investors, the General Partners, the Manager and their respective Associates will not have any liability to the Fund or the Investors for such actions taken by them and will be deemed to have satisfied their fiduciary duties with respect thereto. As noted above, members of the Advisory Committee may have various business and other relationships with the Manager or its Associates and their employees. These relationships may influence their decisions as members of the Advisory Committee.

In addition, notwithstanding that the Advisory Committee may have approved an investment in debt issued by a Macquarie Affiliated Borrower, the Fund may be precluded from investing as a result of the policies and approval processes followed by the Macquarie Affiliated Borrower or associated Macquarie company or Macquarie Fund.

Cross trades

The General Partners, the Manager or the Portfolio Manager may effect “cross trades” (i.e., a transaction or proposed transaction between the Fund and any person or entity for which the General Partners, the Manager or the Portfolio Manager acts as discretionary investment manager). Cross trades may be effected directly between clients advised by the General Partners, the Manager or the Portfolio Manager or through open market transactions. Effecting cross trades may increase brokerage commissions and may result in the Fund holding less of a profitable asset, or more of an unprofitable asset, than would be the case if there were no cross trades.

Such cross trades may create a potential conflict of interest between the duties of the General Partners, the Manager or the Portfolio Manager to the Fund and its desire to maximise its own profits or obtain other benefits with respect to its proprietary trading activities. However, such cross trades shall, where appropriate, be subject to the requirements set out in Section 4.5 entitled “Conflicts policies and protocols of the Manager”.

Responsibility of the Legal Adviser

Linklaters LLP (as to English, Luxembourg, and United States law) (the “**Legal Adviser**”) will act as counsel to the Fund, the Manager and the General Partners in connection with this offering of Interests. In connection with this offering of Interests and ongoing advice to the Fund, the Manager and the General Partners, the Legal Adviser will not be representing the Investors. No independent counsel has been retained by the Manager to represent the Investors. The Legal Adviser may be removed by the Manager at any time without the consent of, or notice to, the Investors. In addition, the Legal Adviser does not undertake to monitor the compliance of the Fund, the General Partners, the Manager and their Associates with the investment program, investment strategy, valuation procedures, Investment Restrictions and other guidelines and terms set forth in this Memorandum and the Partnership Agreements, nor will the Legal Adviser monitor compliance with applicable laws or material contracts.

The Legal Adviser may represent Associates of the General Partners and Manager in the future. In the course of advising the Fund there are times when the interests of Investors may differ from those of the Fund. The Legal Adviser does not represent the Investors’ interests in resolving these issues.

In assisting in the preparation of this Memorandum, the Legal Adviser has relied on information provided by the Manager, the Portfolio Manager and other service providers to the Fund (including, without limitation, biographical data, summaries of market conditions and the planned investment strategy of the Fund) and the Legal Adviser has not investigated or verified the accuracy and completeness of information set forth in this Memorandum, including information concerning the Fund, the General Partners, the Manager, the Portfolio Manager and their Associates and personnel. The Legal Adviser may also act as counsel to a Borrower, equity sponsors of a Borrower, other creditors of a Borrower or an agent therefore, a party seeking to acquire

some or all of the assets or equity of a Borrower, or a person engaged in litigation with a Borrower. Prospective investors should seek their own legal, tax, and financial advice before making an investment in the Fund.

Conflict risks relating to Fund services and activities

Advisory activities

In the regular course of business, Macquarie may be engaged to act, or may seek to act, as a financial adviser to potential Borrowers in connection with raising or arranging debt financing meeting the Fund's Investment Objective and Investment Restrictions. If Macquarie is so engaged, the Fund may be precluded from investigating, investing in or acquiring the debt financing being arranged. If the Fund was permitted to invest in such Borrower notwithstanding such Borrower's retention of Macquarie or its Associates, certain conflicts of interest would be inherent in such transaction, including those involved in negotiating terms and conditions, including spreads. Such circumstances will create conflicts of interest for both Macquarie and its Associates and for the Fund.

In the event that Macquarie or its Associates are unable to mitigate such conflict of interest, the Manager may determine that the Fund may not participate in the relevant investment opportunity, which may result in the Fund not participating in an otherwise advantageous investment. Also, in the regular course of business, Macquarie may be engaged to act, or may seek to act, as a financial adviser to third parties in connection with the acquisition of a potential Borrower or bidding for an asset or project. Other Macquarie Group entities may also be seeking to acquire, invest in or bid for a potential Borrower, asset or project. If the Fund is seeking to provide financing to a competing bidder in connection with the same transaction, certain conflicts of interest may arise. The Manager will seek to resolve conflicts in accordance with the conflicts of interest protocols and processes outlined in Section 7.1.10 entitled "Conflicts of interest".

Macquarie employees (including employees within the MAM Private Credit business and Macquarie's infrastructure advisory business) are required to comply with internal Macquarie policies which seek to manage conflicts. These policies include procedures intended to manage internally and externally imposed confidentiality requirements, restrict the dissemination of price sensitive information and restrict the sharing of information which would lead to conflicts. The operation of such policies could lead to circumstances where employees of Macquarie's infrastructure advisory business are conflicted to the extent that they possess information which cannot be disclosed to the Manager in accordance with such requirements and which information could benefit the Fund. In the event that Macquarie or its Associates are unable to mitigate such conflicts of interest, the Fund may be restricted from participating in one or more investment opportunities that would otherwise have been advantageous for the Fund.

Service providers

Certain service providers to the Fund, or its Associates, may also provide goods or services to or have other relationships with Macquarie. These other services and relationships may influence the General Partners and/or the Manager in deciding whether to select such a provider to perform services for the Fund and its Investments (the cost of which will generally be borne directly or indirectly by the Fund).

Affiliated services providers

In certain circumstances, the General Partners, the Manager, the Portfolio Manager and/or their Associates may provide certain services, such as hedging advisory services, that the General Partners, the Manager or the Portfolio Manager determines would otherwise be performed with respect to the Fund or its Investments by third parties, and, to the extent permitted in accordance with the terms of the Partnership Agreements, the Fund will bear its share of any fees, costs, expenses and liabilities in respect of such services as Operating Expenses of the Fund, so long as any such fees, costs, expenses and liabilities chargeable to the Fund do not exceed the rate that the General Partners or Manager determines, acting reasonably, would be payable by the Fund if such services were provided by a third party. Nevertheless, the General Partners and/or Manager will have a conflict of interest in determining the costs of such services that will be charged and in determining allocations of such fees, costs, expenses and liabilities among Macquarie Funds. In addition, such use or retention may create an incentive for the General Partners and Manager to favour its Associates over more qualified service providers.

In certain circumstances, advisers and service providers, or their Associates, will potentially charge different rates or have different arrangements for services provided to the Manager or Associates of the Manager as compared to services provided to the Fund, which may result in more favourable rates or arrangements than those payable by the Fund.

Conflict risks relating to investing alongside other Macquarie Funds and third-party investors

Investments alongside other Macquarie Funds

Subject to the requirements indicated in Section 4.7, entitled “Conflicts of Interest within MAM Private Credit”, certain other Macquarie Funds may be given the opportunity to invest alongside the Fund in certain Investments made by the Fund and/or. Allocations of investment opportunities present conflicts of interest particularly in circumstances where the availability of such investment opportunities is limited, and investment opportunities that are suitable for the Fund may nonetheless be pursued and consummated by other Macquarie Funds. In addition, the Investment Committee may determine not to pursue all or a portion of an investment opportunity for various reasons, including such opportunity's risk / return profile and the Fund's diversification, among others. The Fund may invest or divest of an Investment prior to or after the time that another Macquarie Fund invests in or divests of its investment in the same Borrower, potentially resulting in different rates of return and profit and loss on the Investment and, possibly, adverse consequences for the Fund and the other Macquarie Fund.

If an Investment represents a follow-on Investment for the Fund or another Macquarie Fund, there can be conflicts of interest, including the determination of the economic terms of the new Investment. Follow-on investment opportunities may be available to the Fund with no existing investment in the applicable Borrower, creating an incentive to use the assets of the Fund to support investments of other Macquarie Funds. In addition, conflicts of interest in recapitalisation transactions arise between the Fund or other Macquarie Funds with existing investments with respect to a Borrower and other Macquarie Funds making an initial investment with respect to a Borrower, which have opposing interests regarding pricing and other terms.

Allocation of investment opportunities

An Associate of the Manager is expected to be appointed as the manager for MSIG 3 (EUR). As a general matter, allocation of investment opportunities will be conducted in accordance with the Allocation Policy. The Manager expects that, in many cases, the application of the Allocation Policy will result in the pro rata allocation of investment opportunities between the Fund and the MSIG 3 (EUR) based on each vehicle's capital available for such investment (and taking into account leverage, as applicable) and each of the Fund and MSIG 3 (EUR)'s investment restrictions. The outcome of any such allocation determination may result in the allocation of all, part, or none of an investment opportunity to the Fund, including a non-pro rata allocation between the Fund and MSIG 3 (EUR). Therefore, such allocations may be more advantageous to the Fund relative to MSIG 3 (EUR) or vice versa. Investors should note that the inherent conflicts of interest in making these and any other allocation decisions may not always be resolved to the advantage of the Fund.

Terms and conditions of the MSIG 3 Strategies

The Fund and MSIG 3 (EUR) are expected to have different investors that are subject to a variety of legal, tax, regulatory, internal policy and other requirements and considerations. By virtue of the different characteristics and negotiating positions of their respective investors, the Fund and MSIG 3 (EUR) will be subject to different terms and conditions, including with respect to fees and other expenses borne by the Fund and MSIG 3 (EUR) and the anticipated use of leverage. In addition, the duration and timing of the Fund's and MSIG 3 (EUR)'s terms and capital deployment objectives may differ and the Fund and MSIG 3 (EUR)'s investment guidelines are expected to differ, which could in each case give rise to inherent conflicts of interest concerning the pricing, timing and priority of Investment acquisitions and dispositions. Accordingly, there can be no assurance that the Fund's return on any Investment will be equivalent to, or better than, the returns attained by MSIG 3 (EUR) in respect of the same Investment. In addition, MSIG 3 (EUR) is expected to disclose under Article 8 of the EU Sustainable Finance Disclosure Regulation (“SFDR”). While the Fund and MSIG 3 (EUR) are expected to pursue a substantially similar investment strategy, the Fund will not be categorised under Article 8 of the SFDR and will not be subject to the investment guidelines and/or investment restrictions applicable to MSIG 3 (EUR) with respect to Investments that do not exhibit positive or improving ESG characteristics.

Separate MSIG 3 (EUR) Advisory Committee

As described in more detail in Section 5, entitled “Summary of Terms”, the General Partners will establish the Advisory Committee with respect to the Fund and MSIG 3 (EUR) to (i) review potential conflicts of interest as requested by the General Partners; (ii) authorise exceptions to certain investment limitations; and (iii) review or consult on certain other matters as further described in the Partnership Agreements. MSIG 3 (EUR) will have a separate advisory committee comprised of representatives of limited partners of MSIG 3 (EUR) and its additional funds (the “**MSIG 3 (EUR) Advisory Committee**”). While the MSIG 3 (EUR) Advisory Committee will have substantially similar responsibilities in respect of MSIG 3 (EUR) to those of the Advisory Committee in respect of the Fund, the MSIG 3 (EUR) Advisory Committee will be comprised of different representatives and will be independent of the Advisory Committee. The Advisory Committee and the MSIG 3 (EUR) Advisory Committee may be required to opine on the same conflict, investment limitation or other matter in respect of an investment held by both the Fund and MSIG 3 (EUR) or generally to consider a conflict that applies equally to the Fund and MSIG 3

(EUR). In such cases, there is no guaranty that the Advisory Committee and the MSIG 3 (EUR) Advisory Committee will make the same decision in respect of the same matter.

Provision of portfolio-level information

The terms of other Macquarie Funds investing alongside the Fund in some or all of its Investments, or the investment terms otherwise agreed by Macquarie with specific investors investing in other Macquarie Funds, could include making available to investors in such other Macquarie Funds greater and/or more frequent information with respect to such Investments than is provided to Investors. While the Manager and/or Portfolio Manager will generally take the interests of the Fund and other impacted funds, vehicles and accounts into account in agreeing to such terms, and will not agree to such terms where they believe that the provision of such information would materially adversely impact the Fund and/or such other funds, vehicles or accounts, the receipt of such information could nonetheless put such investors in a favourable position relative to Investors. Such investors will, in particular, be in a more favourable position with respect to the exercise of any liquidity rights relating to their interests in such Macquarie Funds (e.g. their right to seek consent to withdraw or sell such interests) which they could seek to exercise ahead of the Investors on the basis of the enhanced information made available to them, which for example could in turn result in such investors being better positioned to mitigate losses on their interests where the enhanced information relates to non-performing Investments.

Co-investors

To the extent that a particular investment opportunity exceeds the desired allocation or concentration limitations applicable to the Fund, the Manager may, in its absolute discretion, offer the opportunity to co-invest alongside the Fund to any co-investor in accordance with the Allocation Policy. In any event, no Investor should have any expectation of receiving a co-investment opportunity or to be owed any duty or obligation in connection therewith. In such circumstances, the size of the investment opportunity otherwise available to the Fund will be less than it would otherwise have been. Certain co-investors co-investing with the Fund may invest on different (and more favourable) terms than those applicable to the Fund (for example with respect to their liquidity requirements, available capital, the timing of acquisitions and disposals or control rights).

In addition, the Manager, the Portfolio Manager or any of their Associates may also, in their sole discretion, charge a management fee and obtain a “performance fee” in respect of any such co-investment. Since co-investments will not be made through the Fund, any compensation received in connection with a co-investment does not arise out of the investment activities of the Fund or actions taken directly or indirectly by the Manager, the Portfolio Manager or their Associates on behalf of the Fund and, therefore, none of such fees and other co-investor-related compensation reduces the Management Fee.

The commitment of co-investors to a co-investment fund may be substantial and such investments may involve risks that are not present in investments where such co-investors are not involved. Co-investors will typically bear their pro rata share of fees, costs and expenses related to the discovery, investigation, development, acquisition or consummation, ownership, maintenance, monitoring, hedging and disposition of their co-investments and may be required to pay their pro rata share of fees, costs and expenses related to potential investments that are not consummated, such as break-up fees or abort expenses. Although the Manager endeavours to allocate such fees, costs and expenses on a fair and reasonable basis, there can be no assurance that such fees, costs and expenses will in all cases be allocated appropriately. In addition, co-investors may not agree to pay or otherwise bear fees, costs or expenses related to unconsummated co-investments or may not contribute in whole or in part to Further Investments. In such event, such fees, costs and expenses will be considered Operating Expenses of and be borne by the Fund. Some of the co-investors with whom the Fund may co-invest have pre-existing investments with Macquarie, and the terms of such pre-existing investments may differ from the terms upon which such persons may invest with the Fund.

It is possible that a co-investor may experience financial, legal or regulatory difficulties, may at any time have economic or business interests or goals that are inconsistent with those of the Fund, may take a different view from the Manager as to the appropriate strategy for an Investment, or may be in a position to take action contrary to the Fund's Investment Objective. In addition, the Fund may in certain circumstances be liable for the actions of its co-investors. Further, the Fund's ability to exercise control or significant influence in connection with these co-operative arrangements may be limited and will depend on the nature of the relevant documentation.

Diverse membership

The Investors may have conflicting investment, tax and other interests with respect to their investments in the Fund. The conflicting interests of individual Investors may relate to or arise from, among other things, the nature of the Investments made by the Fund, the structuring or the acquisition of Investments and the timing of disposal of Investments. As a consequence, conflicts of interest may arise in connection with the decision made by the General Partners or the Manager, including with respect to the nature or structuring of Investments that may be more beneficial for one Investor than for another Investor especially with respect to Investors' individual tax situations. In selecting and structuring Investments appropriate for the Fund,

the General Partners and the Manager will consider the investment and tax objectives of the Fund and its Investors as a whole, not the investment, tax or other objectives of any Investor individually.

To the extent that members of the Advisory Committee vote on any matter regarding conflicts (including conflicts between the Fund and the other Macquarie Funds) or otherwise participate in matters involving any vote or action thereby, any such Investors or Feeder Investors may have an interest in other Macquarie Funds and, as a result, may not be motivated to vote solely in accordance with their interests related to the Fund. In addition, Investors or Feeder Investors may have various business or other relationships with Macquarie and its shareholders, employees and Associates. The presence of these other relationships may influence their decisions on matters submitted to a vote of the Investors in the Fund or the Advisory Committee.

Reliance on the Related Persons

The success of the Fund will depend on the skill, expertise and ability of Related Persons to identify and consummate suitable Investments. The loss or change in the role of key personnel could have an adverse impact on the Fund's ability to realise its Investment Objective. There can be no assurance that any employees of the Related Persons, or members of the Investment Committee (or other expert committees) will continue or continue in the same role to be affiliated with the Related Persons or provide services to the Fund throughout its term.

The Investors will be relying entirely on the Related Persons to conduct and manage the affairs of the Fund. Except as otherwise described herein, the Investments have not yet been identified and, as a result, the Investors must rely on the ability of the Related Persons to make appropriate Investments for the Fund and to monitor performance of such Investments. Investors will not have the opportunity to evaluate the relevant economic, financial and other information which will be utilised by the Related Persons in deciding whether or not to make a particular Investment.

In addition to relying on the Related Persons, the Fund may make Investments through holding companies or other entities which are established to take into account regulatory, tax, operational and logistical considerations. These entities may be wholly or partly owned by the Fund, the Manager or its Associates or may be owned by third parties including charitable trusts, service providers or individuals related to such service providers. To the extent any of these individuals, any Related Persons or officers, employees or agents of such Related Persons commit acts of fraud or dishonesty, the Fund's ability to achieve its Investment Objective may be adversely affected. The Manager will appropriately diligence the Related Persons, employees and other individuals who are involved in the Fund's activities and the manner in which it holds its Investments and will continue to monitor the performance and actions of all such individuals to mitigate the chances of any such instances occurring.

Management of the Fund

Members of the Manager's and the Portfolio Manager's team will devote such time to the Fund as the Manager and the Portfolio Manager, in its sole discretion, deems necessary to carry out the operations of the Fund effectively. A number of members of the Manager's and the Portfolio Manager's team will spend a significant portion of their time on matters unrelated to the Fund and its Investments. Some members of the Manager's team may spend a significant portion of their time on matters relating to the businesses of other parts of Macquarie. As a result of the foregoing, conflicts of interests will arise in allocating the time of the members of the Manager's and the Portfolio Manager's team between the Fund and the other matters in which such persons are involved.

Conflict risks relating to fees

Macquarie fees

Macquarie or its Associates may receive fees from the Fund, its Investments, Borrowers and other parties involved in transactions with the Fund. Such fees could be paid for providing services in connection with:

- the acquisition, disposal or sale of Borrower assets;
- restructuring advice or support;
- hedging arrangements;
- cash management, depositary or account services; or
- other banking, financial advisory or similar services.

None of the Manager, Macquarie or any of its Associates will be required to account to the Fund or the Investors for fees received by such persons for the provision of the foregoing services and the Management Fee shall not be reduced on account of the receipt of such amounts. Conflicts of interest will arise in circumstances where the Fund transacts with a party who has engaged Macquarie or its Associates to provide such services. In particular, the fee potential for Macquarie or its Associates

inherent in a particular Investment by the Fund or any related action by the General Partners or the Manager (if any) could be viewed as an incentive for the General Partners or the Manager to seek to enter into the relevant transaction or take such related actions. The General Partners and the Manager will seek to manage these potential conflicts of interest in accordance with the conflicts of interest protocols and policies outlined in Section 4.5 entitled “Conflicts policies and protocols of the Manager” above.

Management Fees

The Manager will be responsible for calculating the Invested Capital. The Manager has a conflict of interest with respect to such valuations because the amount of Management Fee to which the General Partners are entitled with respect to the Fund (and which the General Partners may direct to be paid instead to the Manager) will depend on such calculations. If the calculations made by the Manager are incorrect, the Management Fee paid to the General Partners would also be incorrect. In addition, Invested Capital is reduced by an amount equal to any impairment in value of an Investment. The General Partners will determine, in their reasonable discretion, when an Investment is to be declared impaired, including for purposes of calculating the Management Fee. Although the General Partners may consider a number of factors when determining if and when to impair an Investment, in making this determination, the General Partners will have an inherent conflict of interest as they will be incentivised to delay impairing an Investment in order to maintain a higher level of Invested Capital, thereby generating a higher Management Fee for the Manager.

Performance Fee

The existence of the Performance Fee may create an incentive for the Manager to approve and cause the Fund to make more speculative investments than it would otherwise make in the absence of such performance-based distributions. In addition, the manner in which the Performance Fee is determined may result in a conflict between its interests and the interests of Investors with respect to the sequence and timing of disposals of Investments.

Credit facilities and performance

The Manager expects the Partnerships comprising the Fund to enter into credit facilities for various purposes, including to enable the Fund to make Investments or pay expenses through borrowings in lieu of, or in advance of, Capital Contributions. The presence of a credit facility secured by a pledge of the right to drawdown from Investors will present conflicts of interest for the Manager to the extent that the interest rates and other expenses associated with borrowing under such a credit facility are in the aggregate lower than the Hurdle for each Performance Fee Period. When a credit facility is used to fund Investments in lieu of or in advance of Capital Contributions, the Fund's internal rate of return will be higher than it would have been had the credit facility not been used (and therefore the Hurdle with respect to each Performance Fee Period will be more easily exceeded) because the calculation of the Fund's internal rate of return will be determined by reference to the date on which capital is called from the Investors to repay the credit facility and not from the date that funds are drawn from the credit facility to make Investments. As a consequence, the Manager will be incentivised to rely on credit facilities, rather than calling for capital from Investors.

7.1.11 Legal, Regulatory and Tax Risks

Enhanced scrutiny and the regulation of the private funds industry

As alternative asset managers have become more influential participants in the global financial markets and economy generally, and as the private funds industry and the reach of transactions consummated by its participants has continued to grow, the private funds industry has become subject to enhanced political, governmental and regulatory scrutiny around the globe. This increased scrutiny was particularly acute during the global financial crisis, over the course of which the performance of private industry participants was viewed by certain political, governmental and regulatory commentators as evidence of business practices and the employment of economic incentives that contributed to the market and economic volatility that ultimately resulted in the crisis. Generally, this enhanced scrutiny has prompted governmental and public action with respect to the private funds industry and its practices.

This enhanced oversight and regulation, and the need for significant additional rule-making by various governmental bodies, has created uncertainty in the financial markets and, in particular, the private funds industry. Many of the regulators to which the Fund is expected to be subject globally, including governmental agencies and self-regulatory organisations, are empowered to conduct investigations and administrative proceedings that can result in fines, suspensions of personnel or other sanctions, including censorship, the issuance of cease-and-desist orders or the suspension or expulsion of applicable licences and members. There is also a material risk that regulatory agencies will continue to adopt burdensome new laws or regulations (including tax laws or regulations), or change existing laws or regulations, or enhance the interpretation or enforcement of existing laws and regulations. Any such events or changes could occur during the Fund's term and may

adversely affect the Fund and its ability to operate and/or pursue its investment strategies. Such risks are often difficult or impossible to predict, avoid or mitigate in advance.

In summary, regulation generally as well as regulation more specifically addressed to the private funds industry, including tax laws and regulation, could increase the cost of acquiring, holding or divesting of Investments, the profitability of enterprises and the cost of operating the Fund. There can be no assurance that any such enhanced scrutiny will not have an adverse impact on the Fund or not otherwise impede the Fund's activities.

Certain effects of potential regulatory changes in the United States

It is possible that further scrutiny or regulation could have an adverse impact on the Fund's operations or its ability to achieve its investment objectives. The combination of recent scrutiny of private fund sponsors (along with other alternative asset managers) and their investments by various politicians, regulators and market commentators may complicate or prevent the Fund's efforts to consummate investments, both in general and relative to competing bidders outside of the alternative asset space. As a result, the Fund may invest in fewer transactions or incur greater expenses or delays in completing investments than it otherwise would have. The Manager may also be required to comply with a variety of other additional periodic reporting and compliance-related obligations under applicable U.S. federal and state securities laws. Any increase in the regulations applicable to private funds generally and/or their advisers may result in increased expenses associated with the Fund's activities and additional resources of the Manager being devoted to such regulatory reporting and compliance-related obligations, which may have an adverse effect on the ability of the Fund to effectively achieve its Investment Objective.

Conversely, Donald J. Trump took office as the U.S. president in January 2025 and his administration has signalled certain uncertainties as to deregulation and a changing regulatory landscape generally in the United States. The impact of the change of administration is expected to be wide-ranging, with a broad pullback expected in federal rulemaking, alongside the reversal of several policies implemented by the prior administration. These changes could cause disruption and impact the Fund's investments, the Manager and the Fund, and at this stage the extent or impact of such changes is uncertain.

Shadow banking

Current regulatory developments and recommendations emanating from national regulators and supranational institutions and organisations (including the EU and G20) may result in increased oversight and regulation of shadow "banking activities", including loan origination and secondary debt trading activities undertaken by alternative lenders, non-bank financial institutions and credit funds. The extent of the proposed regulations is not certain and may impact on the ability of the Fund to carry out its Investment Objective and/or increase the operational and compliance costs of the Fund.

Bank recovery and resolution directive

The EU Bank Recovery and Resolution Directive (2014/59/EU) (collectively with secondary and implementing EU rules, and national implementing legislation, and as subsequently amended the "**BRRD**") equips national authorities in EU Member States (and, since the incorporation of BRRD into the EEA Agreement, the EEA Member States) (the "**Resolution Authorities**") with tools and powers for preparatory and preventive measures, early supervisory intervention and resolution of credit institutions and investment firms (collectively, "**relevant institutions**"). If such a relevant institution enters into an arrangement with the Fund and is deemed likely to fail in the circumstances identified in the BRRD, the relevant Resolution Authority may employ such tools and powers in order to intervene in the relevant institution's failure (including in the case of derivatives such as hedging transactions, powers to close out such transactions or suspend any rights to close out such transactions). In particular, liabilities of relevant institutions arising out of the Fund documents or any underlying instruments (for example, liabilities arising under participations or provisions in underlying instruments requiring lenders to share amounts) not otherwise subject to an exception could be subject to the exercise of "bail-in" powers of the relevant Resolution Authorities. If the relevant Resolution Authority decides to "bail-in" the liabilities of a relevant institution, then subject to certain exceptions set out in the BRRD, the liabilities of such relevant institution could, among other things, be reduced, converted or extinguished in full. As a result, the Fund and ultimately the Investors may not be able to recover any liabilities owed by such an entity to the Fund. In addition, relevant Resolution Authorities may exercise their discretions in a manner that produces different outcomes amongst institutions resolved in different EU Member States or EEA Member States.

The resolution mechanisms under the BRRD correspond closely to those available to the Single Resolution Board (the "**SRB**") and the European Commission under the single resolution mechanism provided for in Regulation (EU) No. 806/2014 (the "**SRM Regulation**"). The SRM Regulation applies to participating EU Member States (including EU Member States outside the Eurozone that voluntarily participate through a close co-operation agreement). In such jurisdictions, the SRB will take on many of the functions that would otherwise be assigned to national Resolution Authorities by the BRRD. If an EU Member State outside the Eurozone has chosen not to participate in the single supervisory mechanism, relevant institutions established in such EU Member State will not be subject to the SRM Regulation, but to the application of the BRRD by the Resolution Authorities. It is possible, on the specific facts of a case, that resolution plans and resolution decisions made by the SRB may differ from those that would have been applied by Resolution Authorities. Therefore, the way in which a relevant institution is

resolved and, ultimately, the effect of any such resolution on the Fund and the Investors may vary depending on the authority applying the resolution framework.

It should also be noted that similar powers and provisions have been implemented or are being considered in the context of financial institutions of other jurisdictions, including the United Kingdom. The UK's Banking Act 2009 was introduced to provide a bespoke framework to facilitate the resolution of banks which, broadly, are failing or are likely to fail to meet their regulatory threshold conditions and which cannot be assisted through normal regulatory action or market-based solutions. The legislation conferred significant new powers on HM Treasury, the Bank of England (as the Resolution Authority in respect of relevant institutions in the UK) and the United Kingdom Prudential Regulatory Authority and UK Financial Conduct Authority to deal with and stabilise credit institutions and investment firms suffering financial difficulties by placing them into what is referred to as a resolution pursuant to the special resolution regime (the "**SRR**"). It also established two new insolvency procedures for banks. The Banking Act 2009 provides an extended range of stabilisation options under the SRR (including bail-in generally), including the power of the Bank of England (as the Resolution Authority in respect of relevant institutions in the UK) to impose a write-down or conversion of capital instruments in certain circumstances. As a precursor to the EU's BRRD, the Banking Act 2009 was amended largely to implement BRRD in the UK with effect from January 2015.

Licensing requirements

Certain federal and local banking and regulatory bodies or agencies may require the Fund, the General Partners, the Manager, the Portfolio Manager and/or certain employees of Macquarie to obtain licences or authorisations to engage in many types of lending activities including the origination of loans. It may take a significant amount of time and expense to obtain such licences or authorisations and the Fund may be required to bear the cost of obtaining such licences and authorisations. There can be no assurance that any such licences or authorisations would be granted or, if granted, whether any such licences or authorisations would impose restrictions on the Fund. Such licences may require the disclosure of confidential information about the Fund, Investors or their respective Associates, including financial information and/or information regarding officers and directors of certain significant Investors. The Fund may not be willing or able to comply with these requirements. Alternatively, the General Partners or the Manager may be compelled to structure certain potential investments in a manner that would not require such licences and authorisations, although such transactions may be inefficient or otherwise disadvantageous for the Fund and/or any relevant Borrower. The inability of the Fund, the General Partners or the Manager to obtain necessary licences or authorisations, the structuring of an investment in an inefficient or otherwise disadvantageous manner, or changes in licensing regulations, could adversely affect the Fund's ability to implement its investment program and achieve its intended results.

LIBOR and wider benchmark reform

To the extent that: (i) the Fund's Investments (whether made, acquired or otherwise) and/or (ii) the Fund's and/or its Associates credit arrangements or facilities, hedging activities, derivatives or other structures, in each case, are subject to, utilise or otherwise reference whether directly or indirectly a variable interest rate that is based on (or calculated with reference to) the London Interbank Offered Rate ("**LIBOR**"), the Euro Interbank Offered Rate, the Canadian Dollar Offered Rate, the Secured Overnight Financing Rate ("**SOFR**"), the Sterling Overnight Index Average ("**SONIA**"), or any other reference rate, benchmark or index, including in each case, permutations and related credit spread adjustments (together, "**Benchmarks**"), the Fund may be subject to certain material risks, some of which are described below.

LIBOR has historically been an estimate of the rate at which a sub-set of traditional banks can borrow money from other banks and, together with other interbank offered rates (together with LIBOR, each an "**IBOR**"), widely used as a reference for interest rates on credit and other financial instruments globally. LIBOR was subject to phase-out such that, with effect from 30 June 2023, only 3-month sterling and 1-month, 3-month and 6-month USD LIBOR tenors are published, in each case on the basis of spread-adjusted term risk-free rates (specifically the ICE Term SONIA Reference Rates provided by ICE Benchmark Administration for sterling and the CME Term SOFR Reference Rates published by CME Group Benchmark Administration Limited for USD). The continuing transition away from LIBOR and similar developments in relation to other Benchmarks could cause disruption in the credit markets generally, the full extent of which cannot be foreseen, and which could negatively impact the Fund's Investments and/or the Fund's business, financial condition and results of operation. Whilst the Fund does not expect to originate new Investments that reference LIBOR or borrow on the basis of LIBOR, it may originate new Investments that reference other Benchmarks that are subject to change. It may also purchase commitments in existing Investments on the secondaries market that reference LIBOR or other Benchmarks that are subject to change. There are significant commercial, legal, operational and other uncertainties regarding the implementation of transition measures and replacement rates which may have a material impact on the value of Investments.

Prevention of money laundering

As part of the General Partners' and the Manager's responsibility for the prevention of money laundering under applicable laws, the Fund may require a detailed verification of a prospective investor's identity and the source of such prospective investor's Commitment. In the event of delay or failure by a prospective investor to produce any such information required for verification purposes, the Fund may refuse to admit the prospective investor to the Fund. As a result, the General Partners and/or the Manager may from time to time request (outside of the subscription process), and the Investors will be obligated to provide to the General Partners and/or the Manager upon such request, additional information as from time to time may be required for the General Partners, the Manager and the Fund to satisfy their respective obligations under these and other laws that may be adopted in the future. Also, the General Partners and/or the Manager may from time to time be obligated to file reports with regulatory authorities in various jurisdictions with regard to, among other things, the identity of the Fund's Investors and suspicious activities involving the Interests.

In the event that it is determined that any Investor, or any direct or indirect owner of any Investor, is a person identified in any of these laws as a prohibited person, or is otherwise engaged in activities of the type prohibited under these laws, the General Partners and/or the Manager may be obligated, among other actions to be taken, to withhold distributions of any funds otherwise owing to such Investor or to cause such Investor's Interests to be cancelled or otherwise redeemed (without the payment of any consideration in respect of those Interests).

Sanctions

The Fund is subject to laws which restrict it from dealing with persons that are located or domiciled in sanctioned jurisdictions. Accordingly, subject to compliance with applicable law, the Fund will require prospective investors to represent that they are not named on a list of prohibited entities and individuals maintained by the U.S. Department of the Treasury's Office of Foreign Assets Control or under applicable EU and UK regulations and are not operationally based or domiciled in a country or territory in relation to which current sanctions have been issued by the United Nations, the EU or the UK (collectively, "**Sanctions Lists**"). Where the Investor is on a Sanctions List, the Fund may be required to cease any further dealings with the Investor's interest in the Fund, until such sanctions are lifted or a licence is sought under applicable law to continue dealings.

General data protection regulation

Legal requirements relating to the collection, storage, handling, processing and transfer of personal information continue to change and develop globally. The Fund, the General Partners, the Manager and/or the Portfolio Manager may be directly or indirectly subject to requirements of different global privacy laws, including the General Data Protection Regulation (Regulation (EU) 2016/679) ("**EU GDPR**"), which came into effect in the EU in May 2018, and the EU GDPR as it has been incorporated into UK law following the UK's departure from the EU ("**UK GDPR**"). The EU GDPR has direct effect in all 27 members of the EU and extraterritorial effects where the processing of personal data (i) takes place in the context of the activities of an establishment of a controller or a processor in the EU, regardless of whether the processing takes place in the EU or not; (ii) relates to the offering of goods and services to individuals in the EU; or (iii) relates to the monitoring of the behaviour of individuals in the EU. The UK GDPR has direct effect in the UK and has a similar test of its application (in respect of the three limbs referred to in the preceding sentence, the UK GDPR's application is assessed with reference to the UK rather than the EU). The EU GDPR and UK GDPR impose a number of obligations on data controllers and processors and strengthens the rights for data subjects, including, among others: (i) accountability and transparency requirements, which will require controllers to demonstrate and record compliance and to provide more detailed information to data subjects regarding the processing of their personal information; (ii) obligations to consider data protection as any new products or services are developed and to limit the amount of personal data processed; (iii) obligations to comply with data protection rights of data subjects; and (iv) reporting of certain personal data breaches to the supervisory authority without undue delay (and no later than 72 hours where feasible). The supervisory authorities under the EU GDPR and UK GDPR have the power to impose fines for certain serious infringements of up to the higher of 4% of annual worldwide turnover or EUR 20,000,000.

In addition to EU GDPR and UK GDPR, the Fund and certain of its Investments may be subject to the provisions of the U.S. Gramm-Leach-Bliley Act (the "**GLBA**"), and certain rules and regulations promulgated in connection with the GLBA, which limit the disclosure and use of certain non-public personal information. Moreover, the General Partners, the Manager, the Fund and certain of its Investments may now or in the future be subject to certain U.S. state privacy and data security laws requiring safeguards on the privacy and security of consumers' personal data and/or personal information (together with the GLBA, the "**U.S. Data Protection Laws**"). In addition to the foregoing, the General Partners, the Manager, the Fund and certain of its Investments may be required to comply with applicable non-U.S. and non-European data protection and privacy laws, including, without limitation, China's Personal Information Protection Law (the "**PIPL**"), which took effect in November 2021.

While the Fund, the General Partners, the Manager and/or the Portfolio Manager intend to comply with their privacy and data protection obligations under the UK GDPR, the EU GDPR, the U.S. Data Protection Laws, the PIPL and other current or future privacy and data protection laws, as applicable (collectively, the "**Applicable Privacy and Data Protection Laws**"), it is

possible that they will not be able to accurately address the ways in which regulators and courts apply and will apply or interpret the Applicable Privacy and Data Protection Laws. There is a risk that the measures taken to comply with these the Applicable Privacy and Data Protection Laws will not be implemented correctly or that individuals within the business will not be fully compliant with the internal controls and procedures. If there are infringements of the Applicable Privacy and Data Protection Laws, the Fund and the Manager and their respective Associates (as relevant) could face significant administrative and monetary sanctions as well as reputational damage which could have a material adverse effect on the operations, financial condition and prospects of the Fund, and if the Applicable Privacy and Data Protection Laws are implemented, interpreted or applied in a manner inconsistent with the Fund's expectations, that could result in business practices changing in a manner that adversely impacts the Fund. Some of the Fund, the General Partners, the Manager and the Portfolio Manager's employees may have access to, and routinely process, personal information of clients through a variety of media, including information technology systems. The Fund, the General Partners, the Manager, and the Portfolio Manager rely on various internal processes and controls to protect the confidentiality of client information that is accessible to, or in the possession of, the Fund, the General Partners, the Manager, the Portfolio Manager and their employees. It is possible that an employee could, intentionally or unintentionally, disclose or misappropriate confidential client information or that the Fund, the General Partners, the Manager and the Portfolio Manager's data could be the subject of a cybersecurity attack. Moreover, if the Fund, the General Partners, the Manager or the Portfolio Manager suffer a security compromise impacting personal data, there could be obligations to notify government authorities or stakeholders, which could divert the Manager's time and effort and entail substantial expense and reputational impact.

The Fund's, the General Partners', the Manager's or the Portfolio Manager's third-party service providers, including third parties to whom the Fund, the General Partners, the Manager or the Portfolio Manager entrust certain functions, are also subject to the risks outlined above, any one of which could result in damage to the Fund, the General Partners, the Manager and the Portfolio Manager's reputation, the Fund, the General Partners, the Manager and the Portfolio Manager incurring substantial costs and other negative consequences. If the Fund, the General Partners, the Manager and the Portfolio Manager or any of their third-party service providers fails to protect the confidentiality of client information, it could have a material adverse effect on the Fund, the General Partners, the Manager and the Portfolio Manager's business, financial condition, and results of operations.

The above considerations also apply to counterparties with which the Fund conducts investment activities (including Borrowers) as these may be subject to privacy laws and may be required to set up compliance programs to address the different requirements. Additional resources may be required to address the evolving privacy expectations and legal requirements' landscape and therefore impact the profitability of such Investments.

Changes to law

Changes in legal, tax and regulatory regimes within the jurisdictions of the respective Investments and the Investors in the Fund as well as the jurisdictions in which the General Partners, the Manager, the Portfolio Manager, any Adviser and the Fund are established or operate may occur during the life of the Fund. Further, various regulatory changes are expected within the EU which may materially affect the current performance as well as the current projected performance of any given Investment. In countries with greater geopolitical risk, these risks are acute and, therefore, may have a greater impact on Investments in these markets. In particular, tax laws may change or be subject to differing interpretations, possibly with retroactive effect, so that the tax consequences of a particular Investment or funding structure may change after the Investment has been made or the structure has been established, with the result that Investments held or entities through which they are held may be subject to tax, in each case resulting in returns being reduced.

There are currently a number of initiatives in Europe, the U.S. and elsewhere which may result in greater regulation of, or affecting, the management of private funds. It is possible that increased regulation may place limitations and restrictions on the way that the Fund is permitted to operate or the way in which the General Partners and/or the Manager is permitted to manage the Fund, or increase the costs to the Fund, the General Partners and/or the Manager, the Portfolio Manager and any Adviser of operating their businesses, and this may impact negatively on returns to Investors.

In addition, the UK's withdrawal from the European Union (commonly referred to as "**Brexit**") is also expected to have serious, but as yet unknown and unquantifiable, implications for legal, regulatory and tax regimes in the UK and the European Union, as such regimes (which have hitherto been aligned to a large extent) diverge, potentially significantly, over time. The full effect of Brexit and its consequences (including potential future policy responses) on the Fund and the Investments are therefore impossible to predict: however, it is possible that, during the life of the Fund, it may be necessary for the General Partners, the Manager, the Portfolio Manager or service providers to restructure their arrangements with, or the structure of, the Fund and the Investments (including for tax or regulatory reasons resulting from Brexit). If the General Partners or the Manager thinks it appropriate, the Fund and/or its holding of Investments may need to be restructured to avoid, reduce or mitigate potential adverse impacts resulting from Brexit or the developing relationship between the UK and the European Union, and Investors may be liable for some or all of the associated expenses.

General tax risks

There are a number of tax considerations with respect to an investment in the Fund. Accordingly, prospective investors should consult their own tax and other advisers as to the suitability and tax consequences with regard to their particular circumstances of an investment in the Fund. In respect of the Fund, the amount of tax due, if any, with respect to gains and income of the Fund will be determined separately for each Investor. Each Investor will be responsible for keeping their own records and calculating and reporting any gain or loss resulting from a distribution from the Fund.

The tax treaties, tax rules or customary practice relating to tax or their interpretation in relation to the Fund, its Investments, its Investors or an investment in the Fund may change during the life of the Fund. In particular, both the level and basis of taxation may change. Additionally, the interpretation and application of tax rules and customary practice by any taxation authority or court to the Fund, its Investments, its Investors or an investment in the Fund may differ from that anticipated by the General Partners, the Manager and their advisers, such practice (even where published) may not be binding on the taxation authority in question and may change (including with retroactive effect). This may affect returns to Investors.

An investment in the Fund will involve tax considerations in Luxembourg, the United States and the countries in which Investors and Investments are located and possibly in other countries. Investors and the Fund may be subject to tax in some or all of those jurisdictions. For example, interest payable to the Fund on any Investment may be payable subject to withholding tax. Such tax may not be creditable to, or deductible by, Investors in their own jurisdictions. The tax considerations relevant to an Investor may vary depending on the Partnership into which an Investor participates.

Financial and tax situation

The results of the Fund's activities may affect individual Investors differently, depending upon their individual financial and tax situations because, for instance, of the timing of a cash distribution or of an event of realisation of gain or loss. In particular, due to possible differences between the allocation of a gain or income for tax purposes and related distributions of cash, there can be no assurances that Investors who are subject to tax on the allocated gain or income will receive distributions sufficient to fully satisfy their tax liabilities.

The General Partners and the Manager will endeavour to make decisions in the best interests of the Fund as a whole, but there can be no assurance that a result will not be more advantageous to some Investors than others. The tax structuring of the Fund or its Investments may not be tax efficient for any particular Investor. No undertaking is given that amounts distributed or allocated to Investors will have any particular characteristics or that any specific tax treatment will be enjoyed.

Provision and disclosure of tax information

Investors should note that the General Partners or the Manager may be required to disclose information regarding any Investor to any tax authority or other governmental agency to enable the Fund to comply with any applicable law or regulation or agreement with a governmental authority and may in addition disclose such information where the General Partners or the Manager considers it necessary or desirable in connection with an Investment or potential Investment. Investors will be required to provide such information as may be reasonably requested by the General Partners or the Manager to enable the Fund to properly and promptly make such filings or elections as the General Partners or the Manager may consider desirable or as required by law, or when the General Partners or the Manager considers that the provision of such information is necessary or desirable in connection with an Investment or potential Investment.

Investors should note that in certain circumstances the General Partners and/or the Manager shall be entitled to take steps against an Investor who has failed to provide information, including, but not limited to, withholding any taxes required to be withheld, ensuring that the Investor bears the cost of any tax which arises as a result of the failure to provide information, or requiring such Investor to withdraw from the Fund.

OECD's base erosion and profit shifting

In general, changes in tax laws or their interpretation could lead to an increase in the tax liabilities of the Fund or its subsidiaries and could affect the intended tax treatment of Investments. Changes to tax treaties (or their interpretation) between the Investors' jurisdiction and the countries in which the Fund invests may adversely affect the Fund's ability to realise income or capital gains efficiently. Payments with respect to Investments in certain jurisdictions may be subject to withholding taxes and, in some cases, such withholding taxes may be greater than if the Investors held such Investments directly. Although the Fund may where possible make Investments in a way that minimises or eliminates withholding taxes where relevant, there can be no guarantee that these strategies will be successful.

The Fund and its subsidiaries likely will hold some or all Investments through intermediary holding companies and/or asset holding companies (the "**Asset Companies**"). Asset Companies may be subject to tax in the jurisdiction of their establishment or incorporation or in each jurisdiction of their operations or investment activities. No assurance is given that any particular

structure will be suitable for all Investors and, in certain circumstances, such structures may lead to additional costs or reporting obligations for some or all of the Investors.

In addition, tax laws could change or be subject to differing interpretations, possibly with retroactive effect, or the relevant tax authority could take a different view, that may have a negative impact on the Fund. The tax consequences of a particular Investment or Asset Company structure could change after the Investment has been made or the Asset Company has been established with the result that assets held by Asset Companies could be liable to tax or subject to withholding taxes. Also, the Asset Companies themselves could become increasingly liable to tax or be required to withhold tax on payments or distributions to the Fund, or need to be unwound or restructured, in each case resulting in the after-tax returns of the Fund being reduced. The Fund and the Asset Companies may be subject to such risks both in the jurisdiction of their respective establishment or incorporation and in each jurisdiction of their respective operations.

In particular, pursuant to the OECD Base Erosion and Profit Shifting (“**BEPS**”) project, individual jurisdictions are introducing domestic legislation implementing certain of the BEPS actions. Several of the areas of tax law (including double taxation treaties) on which the BEPS project is focusing are relevant to the ability of the Fund to efficiently realise income or capital gains and to efficiently repatriate income and capital gains from the jurisdictions in which they arise to Investors and, depending on the extent to and manner in which relevant jurisdictions implement changes in those areas of tax law (including double taxation treaties), the ability of the Fund to do those things may be adversely impacted. The Fund may make Investments in jurisdictions that have indicated that they would implement the OECD’s Multilateral Instrument. Such instrument aims at amending the terms of existing bilateral tax treaties between signatory countries and introducing enhanced anti-abuse provisions. There remains significant uncertainty as to whether and to what extent the Fund or its subsidiaries may benefit from protections otherwise afforded by such treaties and whether the Fund may look to its Investors in order to derive tax treaty or other benefits.

The comments set out above as regards the OECD’s BEPS project apply equally with respect to the UK, and, despite Brexit, the UK has already implemented several EU directives and may continue to implement future legislation to align with ongoing BEPS actions. However, given Brexit, there can be no guarantee that any such legislation will remain, or be implemented in a way which is, harmonised with equivalent EU legislation and any existing legislation enacted pursuant to an EU Directive may be subject to change.

In addition, in July 2016, the EU adopted the Anti-Tax Avoidance Directive 2016/1164 (commonly referred to as “**ATAD I**”), which directly implements some of the BEPS project actions points within EU law, followed on 29 May 2017, by the Council Directive amending Directive (EU) 2016/1164 as regards hybrid mismatches with third countries (commonly referred to as “**ATAD II**”). ATAD II came into force in member states on 1 January 2020 (subject to relevant derogations, and in particular the reverse hybrid mismatch rules which entered into force from fiscal year 2022).

On 22 December 2021, the EU Commission proposed a new directive aiming at preventing the misuse of so-called “shell” entities for tax purposes within the EU (commonly referred to as the “**ATAD III Proposal**” or “**Unshell**”). Under the current draft of the directive, if an undertaking passes certain gateways indicative of its “shell” nature and does not fulfil the certain minimum substance requirements, such undertaking may no longer benefit from double tax treaties or the EU interest and royalty or parent-subsidiary directives. While there remains uncertainty surrounding the development of the proposal and potential amendments, these rules (if applicable) may have an impact on how returns are taxed and may decrease the amounts available to investors.

Further to Action 1 of the BEPS project, the OECD published blueprints (commonly referred to as “**BEPS 2.0**”), divided into two “pillars” of issues, seeking to address tax challenges arising from digitalisation of the economy, and proposing fundamental changes to the international tax system. Pillar One proposes the reallocation of taxing rights between jurisdictions, and Pillar Two additional global anti-base erosion rules. On 20 December 2021, the OECD published detailed rules to assist in the implementation of Pillar Two. On 14 December 2022, the Council of the EU adopted a directive to implement Pillar Two at EU level, to be transposed into member states’ national law by the end of 2023. The law of 22 December 2023 on minimum effective taxation transposed the Pillar Two rules into Luxembourg national law. While sector-specific exclusions have been included for investment funds and other financial services, it cannot be excluded, depending on the application of the technical detail of BEPS 2.0, that the Fund and its affiliates may suffer additional tax as effective tax rates could increase within the Fund structure or on its Investments, including by way of higher levels of tax being imposed than is currently the case, possible denial of deductions or increased withholding taxes and/or profits being allocated differently.

BEFIT

The Business in Europe: Framework for Income Taxation (“**BEFIT**”) is a European Commission proposal for a directive published on 12 September 2023, intended to produce a comprehensive solution for business taxation in the EU. BEFIT aims to introduce a common set of rules for certain targeted EU companies to calculate their taxable base while ensuring a more effective allocation of profits between EU countries. BEFIT has the potential to alter taxing rights with the EU, and may include substantive changes to applicable tax rules. The BEFIT proposal must now be submitted to the EU Council of the EU for

examination and (unanimous) vote for adoption. Provided that the Member States reach an agreement, the BEFIT directive should be transposed by the Member States into domestic law by 1 January 2028, and apply from 1 July 2028.

Effectively connected income

Because of the “flow-through” principles applicable to partnerships and disregarded entities, if the Partnerships are treated as engaged in a U.S. trade or business, each Non-U.S. Holder (defined below) in the Partnerships will be considered to be engaged in a U.S. trade or business and, consequently, will be subject to regular U.S. federal income tax (including withholding requirements) in respect of any income that is effectively connected with the conduct of a trade or business in the United States (“**ECI**”) (currently, at (i) a rate of 21% for corporate Non-U.S. Holders and (ii) a maximum rate of 37% for non-corporate Non-U.S. Holders, with rates subject to change in the future). In addition, if such Non-U.S. Holder is a non-U.S. corporation, it could be subject to the 30% branch profits tax (unless reduced or eliminated by an applicable tax treaty) on its earnings and profits derived from the Partnerships that are effectively connected with the conduct of such U.S. trade or business. A Non-U.S. Holder that is treated as engaged in the conduct of a U.S. trade or business will be required to file U.S. federal income tax returns (and potentially U.S. state and local tax returns), and the failure by such Non-U.S. Holder to file U.S. federal income tax returns on a timely basis will result in the disallowance of otherwise allowable deductions and credits that are effectively connected with the conduct of such U.S. trade or business. A Non-U.S. Holder could also realise ECI and be subject to additional U.S. withholding tax or payment obligations on a transfer or redemption (including a withdrawal) of all or part of its interest in the Partnerships (and, in certain cases, on each Partnership’s disposition of certain interests that generate ECI).

Unrelated business taxable income

U.S. Tax-Exempt Holders (defined below) should be aware that, as a result of each Partnership’s investments and activities, a portion of each Partnership’s income may be treated as unrelated business taxable income (“**UBTI**”). As a result, a U.S. Tax-Exempt Holder may incur UBTI from an investment in the Partnerships from activities and investments of the Partnerships (including from trade or business activities and/or debt-financed income). U.S. Tax-Exempt Holders generally will be required to report and pay tax on their share of such UBTI. U.S. Tax-Exempt Holders should consult with their own legal and financial advisers regarding the tax and other considerations involved in an investment in the Partnerships.

Controlled foreign corporations and passive foreign investment companies

As described in greater detail below, certain non-U.S. entities directly or indirectly owned by the Partnerships may be classified as controlled foreign corporations (each, a “**CFC**”) and/or passive foreign investment companies (each, a “**PFIC**”), and U.S. Holders (as defined below) in the Partnerships would be subject to special rules applicable to investments in CFCs and/or PFICs. Application of such rules would subject a U.S. Holder to current U.S. federal income tax on certain types of income of the CFCs and/or PFICs regardless of cash distributions from the corporation and to tax on gain from the direct or indirect sale or other disposition of stock of the CFCs and/or PFICs at ordinary income rather than capital gain tax rates. In addition, in the case of a PFIC, an interest charge could be imposed on a U.S. Holder based on the amount of any tax deferred from prior years.

Potential delay in receipt of tax information

The Fund’s ability to provide timely tax information with respect to its Investments will, in some cases, be dependent on the timely provision of relevant information by relevant third parties. If such third parties do not provide such information in a timely manner, Investors may be required to file extensions with respect to, or otherwise delay the filing of, tax returns in their relevant jurisdictions.

7.2 Certain Tax Considerations

7.2.1 General

The taxation of the Luxembourg Partnerships (as defined below) and Investors is subject, *inter alia*, to the fiscal law and practice of Luxembourg, the jurisdictions in which the Luxembourg Partnerships make investments, and the jurisdictions in which Investors are resident or otherwise subject to tax.

The following is a general summary of the anticipated tax treatment in Luxembourg and the United States and does not constitute legal or tax advice. It is not a guarantee to any Investor of the taxation results of investing in the Luxembourg Partnerships.

Investors and prospective investors should consult their own professional advisers on the implications of making an investment in and holding or disposing of an Interest in the Luxembourg Partnerships. In particular, Investors should be aware that the tax legislation of any jurisdiction where an Investor is resident or otherwise subject to taxation (as well as the jurisdictions

discussed below) may have an impact on the tax consequences of an investment in the Luxembourg Partnerships, including in respect of any income received from the Luxembourg Partnerships.

7.2.2 Certain Luxembourg Tax Considerations

The present section is a short summary of certain important Luxembourg tax principles in relation to the Luxembourg Levered Partnership and Luxembourg Unlevered Partnership (the “**Luxembourg Partnerships**”). The summary is based on laws and regulations in force and applied in Luxembourg at the date of this Memorandum. Provisions may change at short-term notice, possibly with retroactive effect.

This section does not purport to be a complete summary of tax law and practice currently applicable in Luxembourg and does not contain any statement with respect to the tax treatment of an investment in the Luxembourg Partnerships in any other jurisdiction. Furthermore, this section does not address the taxation of the Luxembourg Partnerships in any other jurisdiction or the taxation of any subsidiaries or intermediary companies of the Luxembourg Partnerships or of any investment structure in which the Luxembourg Partnerships hold an Interest in any jurisdiction.

Depending on individual circumstances, the taxation treatment for investors may differ from the guidance below and prospective investors are advised to consult their own professional tax advisers in respect of their investment in the Luxembourg Partnerships under the laws of their country of citizenship, residence, domicile, presence or incorporation.

Please be aware that the residence concept used under the respective headings below applies for Luxembourg income tax assessment purposes only. Any reference in the present section to a tax, duty, levy impost or other charge or withholding of a similar nature refers to Luxembourg tax law and/or concepts only. Also, please note that a reference to Luxembourg income tax generally encompasses corporate income tax (*impôt sur le revenu des collectivités*), municipal business tax (*impôt commercial communal*), a solidarity surcharge (*contribution au fonds pour l'emploi*) and personal income tax (*impôt sur le revenu des personnes physiques*). Corporate taxpayers may further be subject to net wealth tax (*impôt sur la fortune*), as well as other duties, levies and taxes. Corporate income tax, municipal business tax and the solidarity surcharge invariably apply to most corporate taxpayers resident in Luxembourg for tax purposes. Individual taxpayers are generally subject to personal income tax and solidarity surcharge. Under certain circumstances, where individual taxpayers act in the course of the management of a professional or business undertaking, municipal business tax may apply as well.

Taxation of the Luxembourg Partnerships

Income tax

From a Luxembourg tax point of view, the Luxembourg Partnerships are generally transparent for corporate income tax purposes and should not be subject to corporate income tax and the employment fund surcharge on their income (subject to the possible application of the Reverse Hybrid Rule, as defined and further described below). Any income of the Luxembourg Partnerships is deemed to have been directly realised by their Limited Partners, irrespective of any distribution thereof.

Similarly, the Limited Partners may be considered as holding directly the net assets of the Luxembourg Partnerships in proportion to their respective Interests in the net assets of the Luxembourg Partnerships. This should be further analysed from the perspective of the countries where the investors are located.

Under certain conditions, the Luxembourg Partnerships may become subject to corporate income tax pursuant to the reverse hybrid rule introduced by the Luxembourg law transposing ATAD II (the “**Reverse Hybrid Rule**”). However, collective investment vehicles are excluded from the scope of the Reverse Hybrid Rule. Provided that the Luxembourg Partnerships are widely held and hold a diversified portfolio of securities, there are arguments in favour of the Luxembourg Partnerships qualifying as collective investment vehicles within the meaning of the Luxembourg law transposing ATAD II. This being said, the Manager is regulated in the US but not in the EU, so that the condition of being subject to investor protection regulation within the meaning of ATAD II might not be met. The Luxembourg Partnerships should however still not be subject to the Reverse Hybrid Rule, if the Luxembourg Partnerships and the Limited Partners are not deemed associated within the meaning of ATAD II.

The Luxembourg Partnerships may also be subject to municipal business tax if (i) they pursue a business activity or (ii) they are deemed to pursue a business activity by virtue of the business-tainted theory (*Geprägetheorie*) (i.e., if the relevant General Partner owns 5% or more of the legal or economic interests in the relevant Luxembourg Partnership). A “business activity” is generally defined as any independent for profit activity that is exercised in a permanent manner and participates to the economic life in general. The Luxembourg tax authorities confirmed in a Circular Letter L.I.R. n° 14/4 dated 9 January 2015 that an SCSp which qualifies as an AIF within the meaning of the AIFM Law (such as the Luxembourg Partnerships) is deemed not to be conducting a business activity and should thus not be subject to municipal business tax, unless its general partner holds 5% or more of the legal or economic interests in the SCSp.

Net wealth tax

The Luxembourg Partnerships are also transparent for net wealth tax purposes ("**NWT**"), thus not subject to net wealth taxation, not even the minimum NWT.

Withholding tax

No withholding tax is due on distributions to the Limited Partners by the Luxembourg Partnerships. Indeed, as the Luxembourg Partnerships are generally tax transparent, distributions are performed for corporate reasons only, but are disregarded from a tax perspective, as any income and loss derived at the level of the Luxembourg Partnerships is directly attributable to the relevant Limited Partners.

Value added tax

In Luxembourg, alternative investment funds are considered as taxable persons for value added tax ("**VAT**") purposes. Accordingly, the Luxembourg Partnerships have the status of a taxable person without as a rule any input VAT deduction right. A VAT exemption applies in Luxembourg for services rendered to an AIF which are qualifying as fund management services. Other services supplied to the Luxembourg Partnerships could potentially trigger VAT and require the VAT registration of the Luxembourg Partnerships in Luxembourg. As a result of such VAT registration, the Luxembourg Partnerships will be in a position to fulfil their duty to self-assess the VAT regarded as due in Luxembourg on taxable services (or goods to some extent) purchased from abroad.

No VAT liability in principle arises in Luxembourg in respect of any payments by the Luxembourg Partnerships to their Limited Partners to the extent such payments are linked to their subscription to the Interests in the Luxembourg Partnerships and do not constitute the consideration received for taxable services supplied.

Other taxes

A EUR 75 registration tax is payable upon establishment of each of the Luxembourg Partnerships. No stamp duty, capital duty or other tax will be payable in Luxembourg upon the issue of Interests in the Luxembourg Partnerships.

Taxation of the Limited Partners

General considerations

It is expected that Limited Partners in the Luxembourg Partnerships will be resident for tax purposes in different countries. Consequently, except as set out below, no attempt is made in this Memorandum to summarise the taxation consequences for each investor subscribing, converting, holding or redeeming or otherwise acquiring or disposing of Interests in the Luxembourg Partnerships. These consequences will vary in accordance with the law and practice currently in force in a Limited Partner's country of citizenship, residence, domicile or incorporation and with its personal circumstances.

Limited Partners should consult their own professional advisers on the possible tax or other consequences of buying, holding, transferring or selling Interests in the Luxembourg Partnerships under the laws of their countries of citizenship, residence or domicile.

Subject to the above-mentioned paragraphs, Limited Partners are generally not subject to any capital gains, income, withholding or other taxes in Luxembourg (except (i) in specific circumstances and (ii) for Limited Partners resident or having a permanent establishment or permanent representative in Luxembourg to which or to whom the Interests in the Luxembourg Partnerships can be attributed).

For Luxembourg income and net wealth tax purposes, due to the tax transparency of the Luxembourg Partnerships, the Limited Partners will be considered as holding a direct investment in the assets held by the Luxembourg Partnerships.

Non-resident Limited Partners

Non-resident Limited Partners are not maintaining or deemed to maintain a Luxembourg permanent establishment or permanent representative by reason only of their Interests in the Luxembourg Partnerships.

Non-resident Limited Partners not having a Luxembourg permanent establishment or permanent representative to which or to whom the Interests in the Luxembourg Partnerships are allocated are generally not liable to any Luxembourg income, gift, inheritance, and other tax in relation to the Interests in the Luxembourg Partnerships (including regarding income received and capital gains realised upon the sale, disposal or redemption of such Interests).

A Luxembourg non-resident Limited Partner will be subject to Luxembourg income tax on capital gains in case (i) it holds indirectly through the Luxembourg Partnerships, a substantial shareholding in a Luxembourg company (i.e. more than ten per cent (10%) of the issued interests or shares of that company, either alone or together with certain close relatives, at any time during the five-year period preceding the alienation) and (ii) (a) the alienation (including liquidation) takes place within six (6) months after acquisition or (b) in case of an alienation after six (6) months or more, it has been a Luxembourg resident taxpayer for more than fifteen (15) years and has become a non-Luxembourg taxpayer less than five (5) years before the alienation takes place. Nevertheless, reference has to be made to the relevant double tax treaties concluded by Luxembourg, if any, to determine which State (residency State or Luxembourg) has the right to tax the capital gains.

Resident Limited Partners

Luxembourg residents or non-residents who have a Luxembourg permanent establishment or permanent representative to which or to whom the Interests in the Luxembourg Partnerships are attributable are taxable in Luxembourg on their share in the income and net worth of the Luxembourg Partnerships under the tax provisions applicable in their individual tax status.

Other taxes

Under Luxembourg tax law, where a Limited Partner in the Luxembourg Partnerships is a resident of Luxembourg for tax purposes at the time of his/her death, such Interests are included in his/her taxable base for inheritance tax purposes. On the contrary, no inheritance tax is levied on the transfer of the Interests upon death of a Limited Partner in cases where the deceased was not a resident of Luxembourg for inheritance purposes at the time of his/her death. Gift tax may be due on a gift or donation of the Interests, if the gift is recorded in a Luxembourg notarial deed or otherwise registered in Luxembourg.

Exchange of Information

FATCA

The Foreign Account Tax Compliance Act ("**FATCA**") was enacted into U.S. law in March 2010 as part of the Hiring Incentives to Restore Employment Act. FATCA aims at reducing tax evasion by U.S. citizens and requires foreign financial institutions outside the U.S. ("**FFIs**") to provide information about financial accounts held, directly or indirectly, by specified U.S. persons to the U.S. Internal Revenue Service ("**IRS**") on an annual basis. A 30% withholding tax is imposed on certain U.S. sources of income of any FFI that fails to comply with this requirement ("**FATCA Withholding**").

To implement FATCA in Luxembourg, Luxembourg entered into a so-called Model 1 Intergovernmental Agreement ("**IGA**") with the U.S., and a memorandum of understanding in respect thereof, on 28 March 2014. The IGA was implemented in Luxembourg domestic law by the Law of 24 July 2015 (the "**Luxembourg FATCA Law**"). Luxembourg FFIs which comply with the requirements of the IGA, will not be subject to FATCA Withholding.

Under the Luxembourg IGA, Luxembourg FFIs are required to perform certain due diligence and monitoring of investors, and to report to the Luxembourg tax authorities on an annual basis information about financial accounts held by (i) specified U.S. persons, (ii) certain U.S. controlled entities and (iii) non-U.S. financial institutions that do not comply with FATCA. Under the Luxembourg IGA, such information will subsequently be remitted by the Luxembourg tax authorities to the IRS.

It is the intention of the Luxembourg Partnerships to procure that they are treated as complying with the requirements that FATCA and the Luxembourg IGA imposes upon them. However, no assurance can be provided that the Luxembourg Partnerships will be able to comply with such requirements and, in the event that they are not able to do so, the Luxembourg Partnerships could be exposed to fines which may reduce the amounts available to them to make payments to their investors. Investors may be required to provide information to the Luxembourg Partnerships to comply with their reporting obligations under the IGA. In furtherance of the compliance of the Luxembourg Partnerships with the IGA and the Luxembourg FATCA Law in accordance with the foregoing, the Luxembourg Partnerships may:

- request information or documentation, including self-certification forms, a global intermediary identification number, if applicable, or any other valid evidence of an investor's FATCA registration with the IRS or a corresponding exemption, in order to ascertain such investor's FATCA status;
- report information concerning an investor and its account holding in the Luxembourg Partnerships to the Luxembourg tax authorities if such account is deemed a U.S. reportable account under the Luxembourg IGA; and
- report information to the Luxembourg tax authorities concerning payments to account holders with the FATCA status of non-participating foreign financial institution.

Investors should contact their own tax advisers regarding the application of FATCA to their particular circumstances and their investment in the Luxembourg Partnerships.

CRS

The Organisation for Economic Co-operation and Development ("**OECD**") has developed the Common Reporting Standard ("**CRS**") which aims at implementing automatic exchange of financial account information among participating countries. The CRS requires Luxembourg financial institutions to identify financial account holders and to determine whether they are tax resident in a country with which Luxembourg has an exchange of information agreement. Luxembourg financial institutions will need to report financial account information of such account holders to the Luxembourg tax authorities which will remit such information to the competent foreign tax authorities of the other country.

The CRS has been incorporated in the revised EU Directive on Administrative Cooperation (EU Directive 2014/107) ("**DAC**") which effectively translates the CRS into EU law. Luxembourg implemented the DAC in Luxembourg domestic law by the Law of 18 December 2015 (the "**Luxembourg CRS Law**").

It is the intention of the Luxembourg Partnerships to procure that they are treated as complying with the requirements that the Luxembourg CRS Law places upon them. However, no assurance can be provided that the Luxembourg Partnerships will be able to comply with the Luxembourg CRS Law and, in the event that they are not able to do so, they could be exposed to fines which may reduce the amounts available to it to make payments to Investors. Investors will be required to provide certain information to the Luxembourg Partnerships to comply with the reporting obligations under the Luxembourg CRS Law. In furtherance of compliance with the Luxembourg CRS Law in accordance with the foregoing, the Luxembourg Partnerships may:

- request information or documentation, including self-certification forms, a tax identification number (if applicable), or any other relevant information in order to ascertain such investor's status; and
- report information concerning an investor and its account holding in the Luxembourg Partnerships to the Luxembourg tax authorities if such investor is a reportable accountholder under the Luxembourg CRS Law.

Investors should contact their own tax advisers regarding the application of the Luxembourg CRS Law to their particular circumstances and their investment in the Luxembourg Partnerships.

DAC 6

On 21 March 2020, Luxembourg adopted a law to implement Council Directive (EU) 2018/822 of 25 May 2018 amending Directive 2011/16/EU as regards mandatory automatic exchange of information in the field of taxation in relation to reportable cross-border arrangements (the "**DAC 6 Law**"). Under the DAC 6 Law, Luxembourg intermediaries and, in certain cases, taxpayers will have to disclose to the Luxembourg tax authorities certain information on cross-border arrangements having a characteristic or feature that presents an indication of potential risk of tax avoidance (as defined in the appendix to the DAC 6 Law). The reported information will be automatically exchanged with other EU member states. Therefore, it is possible that certain cross-border arrangements which may be entered into by the Luxembourg Partnerships will be reportable under the DAC 6 Law.

7.2.3 Certain United States Tax Considerations

The following is a summary of certain U.S. federal income tax consequences of the acquisition, ownership and disposition of interests in each Partnership ("**Interests**"). This summary deals only with initial purchasers of Interests by Investors that will hold the Interests as capital assets. This discussion does not cover all aspects of U.S. federal income taxation that may be relevant to, or the actual tax effect that any of the matters described herein will have on, the acquisition, ownership and disposition of Interests by particular Investors, and does not address U.S. state, local, non-U.S. or other tax laws (including, without limitation, the Medicare tax on net investment income). In particular, this summary does not address all of the tax considerations that may be relevant to certain types of Investors subject to special treatment under the U.S. federal income tax laws (including, without limitation, dealers in securities or currencies, financial institutions or "financial services entities", life insurance companies, holders of Interests held as part of a "straddle", "hedge", "constructive sale" or "conversion transaction" with other investments, U.S. persons whose "functional currency" is not the U.S. dollar, persons who have elected "mark to market" accounting or persons who hold their Interest through a partnership or other entity or arrangement which is a pass-through entity for U.S. federal income tax purposes). The U.S. federal income tax treatment of a partner in an entity or arrangement treated as a partnership for U.S. federal income tax purposes that holds Interests will depend on the status of the partner and the activities of the partnership. Prospective investors that are entities or arrangements treated as partnerships for U.S. federal income tax purposes should consult their tax advisers concerning the U.S. federal income tax consequences to them and their partners of the acquisition, ownership and disposition of Interests by the partnership.

This discussion does not constitute tax advice, and is not intended to substitute for tax planning. No advance rulings have been or will be sought from the U.S. Internal Revenue Service ("**IRS**") regarding any matter discussed in this Memorandum. Prospective investors should consult their own tax advisers to determine all tax consequences with respect to their own particular circumstances.

The summary set forth below is based upon the U.S. Internal Revenue Code of 1986, as amended (the “**Code**”), its legislative history, existing and proposed Treasury regulations promulgated thereunder, published administrative rulings and judicial decisions, all as of the date hereof and subject to change at any time, perhaps with retroactive effect.

THE SUMMARY OF U.S. FEDERAL INCOME TAX CONSEQUENCES SET OUT BELOW IS FOR GENERAL INFORMATION ONLY. IT IS NOT INTENDED TO BE RELIED UPON BY INVESTORS FOR THE PURPOSE OF AVOIDING PENALTIES THAT MAY BE IMPOSED UNDER THE CODE. ALL PROSPECTIVE INVESTORS SHOULD CONSULT THEIR TAX ADVISERS AS TO THE PARTICULAR TAX CONSEQUENCES TO THEM OF ACQUIRING, OWNING, AND DISPOSING OF THE INTERESTS, THE APPLICABILITY AND EFFECT OF U.S. STATE, LOCAL, NON-U.S. AND OTHER TAX LAWS AND POSSIBLE CHANGES IN TAX LAW.

For purposes of this discussion, a “**U.S. Holder**” is a beneficial owner of Interests that is, for U.S. federal income tax purposes, (i) an individual who is a citizen or resident of the United States, (ii) a corporation, or other entity treated as a corporation for U.S. federal income tax purposes, created or organised under the laws of the United States, any state thereof or the District of Columbia, (iii) an estate the income of which is subject to U.S. federal income taxation regardless of its source, or (iv) a trust which (a) is subject to the primary supervision of a court within the United States and one or more U.S. persons have the authority to control all substantial decisions of the trust, or (b) has a valid election in effect under applicable Treasury regulations to be treated as a U.S. person.

A “**U.S. Tax-Exempt Holder**” is a beneficial owner of Interests that is exempt from U.S. federal income taxation under Section 501 of the Code.

A “**Non-U.S. Holder**” is a beneficial owner of Interests that is not a U.S. Holder or a U.S. Tax-Exempt Holder who, in addition, is not (i) a partnership or other fiscally transparent entity, (ii) an individual present in the United States for 183 days or more in a taxable year who meets certain other conditions, or (iii) subject to rules applicable to certain expatriates or former long-term residents of the United States. This summary assumes that Non-U.S. Holders will only invest in the Luxembourg Levered Partnership or the Luxembourg Unlevered Partnership and not in the Delaware Levered Partnership or the Delaware Unlevered Partnership; and that taxable U.S. Holders will only invest in the Delaware Levered Partnership or the Delaware Unlevered Partnership and not in the Luxembourg Levered Partnership or the Luxembourg Unlevered Partnership, and this summary only addresses an investment based on this assumption.

The Partnerships

Classification of the Partnerships

Each Partnership intends to be classified as a partnership for U.S. federal income tax purposes. The following are the tax consequences of partnership classification:

each U.S. Holder that owns an Interest in a Partnership will be required to take into account its distributive share of items of income, gain, loss, deduction and credit of the applicable Partnership for each taxable year of such Partnership ending with or within the U.S. Holder's taxable year; and

each of the Luxembourg Partnerships intends to take the position that it is not engaged in a U.S. trade or business for U.S. federal income tax purposes. However, no assurance can be given in this regard. If the Manager determines that there is a risk that an Investment may give rise to ECI, the Manager may structure such Investments through an alternative structure, such as a parallel fund structure, alternative investment vehicle and/or “blocker” entity classified as a corporation for U.S. federal income tax purposes. Assuming that income incurred directly by each Luxembourg Partnership does not constitute ECI, a Non-U.S. Holder's allocable share of certain types of U.S. source income (such as dividends and interest) incurred by the applicable Luxembourg Partnership generally may be subject to U.S. federal withholding tax at the rate of 30% (unless reduced or eliminated by an applicable tax treaty), except that interest income that qualifies as “portfolio interest” will not be subject to U.S. federal withholding tax. Although not currently anticipated given the investment strategy of each Luxembourg Partnership, capital gains derived from the sale of stock of a “United States real property holding corporation” or a U.S. real property interest (within the meaning of Section 897 of the Code) (if any) will be subject to U.S. withholding tax as well as corporate income tax at the rate applicable to U.S. corporations, as discussed below. If a Luxembourg Partnership is treated as engaged in a U.S. trade or business for U.S. federal income tax purposes, each Non-U.S. Holder that owns an Interest in a Luxembourg Partnership would be required to file a U.S. federal income tax return on its share of the ECI from the applicable Luxembourg Partnership and to pay U.S. federal income tax on a net basis, plus an additional 30% branch profits tax for corporate Non-U.S. Holders (unless reduced or eliminated by an applicable tax treaty).

An entity or arrangement that would otherwise be treated as a partnership for U.S. federal income tax purposes may nonetheless be treated as a corporation if it is classified as a “publicly traded partnership”. A partnership which meets certain “safe harbor” requirements or certain other exceptions is not subject to the “publicly traded partnership” rules. In certain years, a Partnership may not comply with any of the applicable “safe harbors”. In such a case, there can be no guarantee that the

applicable Partnership will not qualify as a “publicly traded partnership” classified as a corporation for U.S. federal income tax purposes. The discussion herein assumes that each Partnership will be classified as a partnership, and not as a “publicly traded partnership”, for U.S. federal income tax purposes.

FATCA considerations

Pursuant to the Foreign Account Tax Compliance Act (“**FATCA**”) provisions of the U.S. Hiring Incentives to Restore Employment Act of 2010, payments of most types of income from sources within the United States (as determined under applicable U.S. federal income tax principles), such as interest and dividends (collectively, “**Withholdable Payments**”), in each case, to a “foreign financial institution” will be subject to a 30% U.S. federal withholding tax, unless certain reporting and other applicable requirements are satisfied. It is expected that each Luxembourg Partnership will be treated as a “foreign financial institution” for this purpose. As a foreign financial institution, in order to be permitted to receive Withholdable Payments without deduction of the 30% withholding tax, it is expected that each Luxembourg Partnership generally may need to be a party to an agreement with the IRS (an “**IRS Agreement**”) requiring each Luxembourg Partnership to provide certain information on its U.S. account holders to the IRS and to meet other requirements. As an alternative to an IRS Agreement, a number of countries (including Luxembourg) have entered into, or have stated that they intend to enter into, an agreement with the United States to help implement FATCA (an “**IGA**”). Each Luxembourg Partnership will be required to report certain information on its U.S. account holders to the relevant Luxembourg authority in order (i) to obtain an exemption from FATCA withholding on payments it receives, and/or (ii) to comply with any legislation implementing an IGA. With respect to “foreign passthru payments,” proposed Treasury regulations have been issued that provide that such withholding would not apply prior to the date that is two years after the date on which final Treasury regulations defining “foreign passthru payments” are published in the U.S. Federal Register. In the preamble to the proposed Treasury regulations, the U.S. Treasury Department indicated that taxpayers may rely on these proposed Treasury regulations until the issuance of final Treasury regulations. To avoid being subject to this U.S. federal withholding tax, each Luxembourg Partnership will require each Investor to provide information regarding themselves and their investors. The Luxembourg Partnerships may be unable to satisfy its reporting obligations (including if the applicable Luxembourg Partnership cannot collect the requisite information from some or all of the Investors) and, as a result, payments received by the Luxembourg Partnerships may be subject to withholding in respect of FATCA. Each prospective investor should consult its own tax advisers regarding the possible implications of this withholding tax (and the reporting obligations that will apply to such prospective investor, which may include providing certain information in respect of such prospective investor’s beneficial owners).

Investment in the Delaware Unlevered Partnership or the Delaware Levered Partnership by U.S. Holders

Each U.S. Holder of Interests in a Delaware Partnership will be required to take into account its distributive share of items of income, gain, loss, deduction and credit of the applicable Delaware Partnership for each taxable year of such Delaware Partnership ending with or within the U.S. Holder’s taxable year. Each item generally will have the same character and source (either U.S. or foreign) to a U.S. Holder as though the U.S. Holder realised the item directly. Each U.S. Holder will be required to report on its own U.S. federal income tax return its share of the applicable Delaware Partnership’s income, gains, losses, deductions and credits for the taxable year of the U.S. Holder, whether or not cash or other property is distributed to that U.S. Holder. For U.S. federal income tax purposes, a U.S. Holder’s allocable share of items of income, gain, loss, deduction or credit of a Delaware Partnership will be determined in accordance with the allocation provisions in the applicable Partnership Agreement, provided such allocations have “substantial economic effect” or are determined to be in accordance with the U.S. Holder’s Interest in such Delaware Partnership. If the IRS were to challenge such allocations successfully, the resulting allocations to a particular U.S. Holder for U.S. federal income tax purposes could have adverse consequences to such U.S. Holder. The Manager decides how to report the partnership items on each Delaware Partnership’s tax returns. It is possible that the IRS will disagree with the manner in which one or more of such items are reported.

The Delaware Partnerships may own equity investments in other entities that are treated as transparent entities for U.S. federal income tax purposes (e.g. other entities treated as partnerships for U.S. federal income tax purposes), and may invest in certain securities (such as preferred stock with redemption or repayment premiums, convertible securities that provide for adjustments to conversion rates, or hedging or derivative investments) that could cause a Delaware Partnership, and consequently U.S. Holders, to recognise taxable income without receiving any cash, or to lose or defer the deductions for certain otherwise deductible items. The Delaware Partnerships may be required to use any available cash to service and retire the applicable Delaware Partnership indebtedness. Thus, taxable income allocated to a U.S. Holder may exceed cash distributions, if any, made to the U.S. Holder, in which case such U.S. Holder may have to use its own funds to satisfy tax liabilities arising from an investment in a Delaware Partnership.

Each U.S. Holder will (subject to certain limits discussed below) be entitled to deduct its allocable share of a Delaware Partnership’s losses (if any) to the extent of its tax basis in its Interest in the applicable Delaware Partnership at the end of the tax year of such Delaware Partnership in which such losses are recognised. A U.S. Holder’s tax basis in its Interest in a Delaware Partnership is, in general, equal to the U.S. Holder’s contributions to the applicable Delaware Partnership, increased

by the U.S. Holder's share of income and direct and indirect liabilities of such Delaware Partnership, and decreased by the amount of actual or deemed distributions to the U.S. Holder and the U.S. Holder's share of losses and reductions in such liabilities. U.S. Holders are urged to consult their tax advisers concerning the treatment of any leverage for the purpose of determining the U.S. Holder's basis in its Interests in a Delaware Partnership. The deductibility of various Delaware Partnership expenses allocable to certain U.S. Holders may be subject to various limits for U.S. federal income tax purposes. It is possible that losses of a Delaware Partnership or of a particular activity of a Delaware Partnership could exceed income in a given year. Any such losses may be passive losses, which may subject individuals, closely-held corporations and other U.S. Holders to limits on deductions for such losses, and investment income of the applicable Delaware Partnership that does not qualify as passive income may not be offset by a U.S. Holder's passive losses from such Delaware Partnership or from other sources.

Loss deductions for such U.S. Holders may also be disallowed, subject to the so-called "at-risk" limits, or subject to various other limitations for U.S. federal income tax purposes. Deductions for Delaware Partnership expenses may be treated as miscellaneous itemised deductions with respect to which individuals generally will not be entitled to a deduction for taxable years beginning after December 31, 2017 through December 31, 2025 (and, for taxable years beginning after December 31, 2025, other limitations on such deductions may apply). Any "investment interest" allocable to a U.S. Holder will not be deductible to the extent that it exceeds the U.S. Holder's "net investment income" (as specially calculated for these purposes). In general, organisational expenses of a partnership must be capitalised and may not be deducted by the partnership or its partners. However, a partnership may elect (i) to deduct organisational expenses of up to USD 5,000, subject to certain limitations, in its first taxable year, and (ii) to amortise any remaining organisational expenses over a 180-month period beginning with the month in which the partnership begins business. The Delaware Partnerships may make this election. Syndication fees (which would include placement fees or commissions paid by the Delaware Partnerships), on the other hand, must be capitalised and cannot be amortised or otherwise deducted.

In addition, deductions are disallowed with respect to business interest expense that exceeds the sum of business interest income and 30% of the adjusted taxable income of the business (as determined for this purpose). Business interest includes any interest on indebtedness related to a trade or business, but excludes investment interest, to which separate limitations apply.

The deductibility of capital losses is subject to limitations. In the case of a U.S. Holder that is a corporation, capital losses may offset only capital gains and unused capital losses can generally be carried back three years and carried forward five years. In the case of a U.S. Holder that is an individual, capital losses offset capital gains and a limited amount of capital losses can be used to offset ordinary income in a year in which capital losses exceed capital gains. Any unused portion of such excess capital losses can be carried forward to future years but cannot be carried back. U.S. Holders should consult their own tax advisers regarding potential limitations on the deductibility of their allocable share of items of losses and expenses of the applicable Delaware Partnership.

With respect to creditable foreign taxes paid on the income and gains of the Delaware Partnerships, U.S. Holders may be entitled to claim either foreign tax credits or, subject to limitations generally applicable to all deductions, a deduction for their share of such foreign taxes. The rules for determining eligibility for and limits on foreign tax credits are extremely complex and depend on a number of factors that are unique to each U.S. Holder's own circumstances. For example, a credit for foreign taxes is subject to the limitation that it may not exceed the U.S. Holder's federal tax (before the credit) attributable to its total foreign source taxable income. For purposes of the foreign tax credit limitation, foreign source income is classified in one of two "baskets", and the credit for foreign taxes on income in any basket is limited to U.S. federal income tax allocable to that income.

In addition, foreign taxes may offset U.S. tax liability only with respect to income that is treated as foreign source income, so that, for example, foreign taxes imposed on any income or gains of the Delaware Partnerships that are treated as U.S. source for U.S. federal income tax purposes will not be eligible to offset the U.S. taxes imposed on such income or gains and may be credited, if at all, only against U.S. taxes imposed on other foreign source income or gains in the same category of income for U.S. foreign tax credit purposes. Further, while foreign taxes imposed on a flow-through entity in which a Delaware Partnership invests may be eligible to be claimed as foreign tax credits, foreign taxes paid by a corporation in which the applicable Delaware Partnership invests generally cannot be claimed as a credit by a U.S. Holder.

A U.S. Holder that sells or otherwise disposes of an Interest in a Delaware Partnership in a taxable transaction generally will recognise gain or loss equal to the difference, if any, between the adjusted basis of such Interest and the amount realised from the sale or disposition. The amount realised will include the U.S. Holder's share of the applicable Delaware Partnership's direct or indirect liabilities outstanding at the time of the sale or disposition. If the Interest is a capital asset in the hands of the U.S. Holder, such gain or loss will be capital gain or loss except to the extent of proceeds attributable to "unrealised receivables" and substantially appreciated "inventory items". Any capital gain or loss generally will be long-term capital gain or loss if the Interest was received solely in exchange for a capital contribution and held for more than one year on the date of such sale or disposition. However, a contribution by the U.S. Holder within the one-year period ending on the date of such sale or disposition will cause part of such gain or loss to be short-term. As discussed above, the deductibility of capital losses

is subject to limitations. U.S. Holders should consult their own tax advisers regarding potential limitations on the deductibility of capital losses on a sale or disposition of an Interest in a Delaware Partnership.

Because of the complexities of the tax accounting required, the Delaware Partnerships do not intend to file an election under Section 754 of the Code to adjust the U.S. tax basis of the applicable Delaware Partnership's property in case of a transfer of an Interest in such Delaware Partnership. However, the basis adjustments associated with a Section 754 election are mandatory in certain situations. For example, a Delaware Partnership must make such basis adjustments following a transfer of an Interest in the applicable Delaware Partnership if a Delaware Partnership has a built-in loss of USD 250,000 or more, or if the transferee would be allocated a loss of more than USD 250,000 if the applicable Delaware Partnership's assets were sold for cash equal to their fair market value immediately after such transfer, whether or not a Code Section 754 election is in effect. The effect of such basis adjustments would be that, with respect to a transferee of an Interest in a Delaware Partnership, the basis of the applicable Delaware Partnership property would either be increased or decreased by the difference between the transferee's basis for its Interest and its proportionate share of such Delaware Partnership's adjusted basis for all such property. Any increase or decrease resulting from such adjustment would be allocable among the applicable Delaware Partnership assets in accordance with rules established under the Code. After such adjustment has been made, the transferee's share of the adjusted basis of a Delaware Partnership's property would equal the adjusted basis of its Interest in the applicable Delaware Partnership.

As described in greater detail below, if the Delaware Partnerships invest directly or indirectly in the equity of non-U.S. entities that are treated as corporations for U.S. federal income tax purposes, U.S. Holders may be subject to special rules applicable to indirect investments in non-U.S. corporations, including investments in CFCs and PFICs. Application of such rules could subject a U.S. Holder to current U.S. tax on certain types of income of the non-U.S. corporation regardless of cash distributions from the corporation and to tax on gain from the direct or indirect sale or other disposition of stock of the non-U.S. corporation at ordinary income rather than capital gains tax rates. In addition, in the case of a PFIC, an interest charge could be imposed on a U.S. Holder based on the amount of any tax deferred from prior years.

If a U.S. person actually or constructively owns at least 10% of the stock (by vote or value) of a non-U.S. corporation, such person is considered a "U.S. Shareholder" with respect to the non-U.S. corporation. If U.S. Shareholders in the aggregate own more than 50% of the voting power or value of the stock of such corporation, the non-U.S. corporation will be a CFC. A number of complex attribution and classification rules apply, however, in determining ownership of stock for purposes of the CFC rules. U.S. Shareholders of a CFC are generally subject to current U.S. tax on certain types of income of the CFC (e.g. dividends and interest, as well as other types of income, such as "global intangible low-taxed income") regardless of cash distributions from the CFC. In addition, gain on the direct or indirect sale of the CFC's stock by a U.S. Shareholder (including gain on an indirect disposition of CFC stock resulting from the sale of an interest in a Delaware Partnership by a U.S. Holder) may be treated as ordinary income rather than capital gain. It is possible that a U.S. Holder may be treated as a U.S. Shareholder of one or more non-U.S. corporations that a Delaware Partnership invests in and that any such non-U.S. corporation may be classified as a CFC.

In general, a non-U.S. corporation will be classified as a PFIC in any taxable year in which either (i) 75% or more of the corporation's gross income is "passive income", or (ii) 50% or more of the corporation's assets (by value) produce "passive income". A corporation may be a PFIC regardless of the level of ownership by U.S. persons. Once a corporation qualifies as a PFIC with respect to a shareholder, it is, subject to certain exceptions, always treated as a PFIC with respect to such shareholder regardless of whether it satisfies either of the qualification tests set forth above in subsequent years. However, if a PFIC is also a CFC, the PFIC rules discussed below generally will not apply to "U.S. Shareholders" (as defined above) of the CFC.

If the Delaware Partnerships make an equity investment, either directly or through its ownership interest in a flow-through entity, in a non-U.S. corporation that is classified as a PFIC or if any other direct or indirect subsidiary of a Delaware Partnership is a PFIC (e.g. a blocker), any gain on the direct or indirect disposition of the stock of the PFIC (including gain on a deemed disposition resulting from the sale of an interest in the applicable Delaware Partnership by the U.S. Holder), as well as income realised on certain "excess distributions" by the PFIC, would be treated as though realised ratably over the shorter of the U.S. Holder's holding period for its interest in a Delaware Partnership or a Delaware Partnership's (or flow-through entity's) holding period for the PFIC stock. Such gain or income would be taxed as ordinary income and subject to tax at the highest marginal rate of tax in effect for the taxable year to which such gain or income is allocated. In addition, an interest charge would be imposed on the U.S. Holder on the amount of tax deemed deferred from prior years.

If the Delaware Partnerships invest in a PFIC, either directly or solely through one or more non-U.S. flow-through entities, and that PFIC agrees to provide the applicable Delaware Partnership (whether directly or through such flow-through entity) and, if necessary, the IRS, with certain financial information, the applicable Delaware Partnership (or any other U.S. person that may make such election) may elect to treat that company as a "qualified electing fund" (any such election, a "QEF Election") provided the applicable Delaware Partnership provides such information to a requesting U.S. Holder. A U.S. Holder that holds stock of a PFIC with respect to which a QEF Election is made generally will not be subject to the penalty tax described above. Rather, such an electing U.S. Holder generally will be subject to U.S. federal income tax currently on its share of the ordinary

earnings and net capital gain of that PFIC, regardless of whether that PFIC actually distributes cash or other property to a Delaware Partnership. A QEF Election generally will not result in current inclusions of the PFIC's earnings for any year in which the PFIC has no net ordinary earnings and no net capital gains. However, a QEF Election does not allow for flow-through or carry-forward of a PFIC's losses. Alternatively, if such PFIC stock is publicly traded, the U.S. Holder may be able to value the stock annually on a "mark-to-market" basis and treat any resulting gain or loss as ordinary income or ordinary loss (to the extent of prior ordinary income inclusions, and otherwise as capital loss) to avoid the PFIC tax. There can be no assurance that a non-U.S. corporation in which a Delaware Partnership directly or indirectly invests will not be a PFIC, that a PFIC in which a Delaware Partnership directly or indirectly invests will provide information necessary for QEF elections or that the applicable Delaware Partnership will make and maintain a QEF election, or that the stock of a PFIC in which a Delaware Partnership invests directly or indirectly will be "marketable stock."

If the Delaware Partnerships engage in transactions involving foreign currencies, the Delaware Partnerships and its U.S. Holders may experience foreign currency gain or loss with respect to such Delaware Partnership's Investments. In general, foreign currency gain or loss is treated as ordinary income or loss. U.S. Holders should consult with their individual tax advisers with respect to the tax treatment of foreign currency gain or loss.

Investment in the Partnerships by U.S. Tax-Exempt Holders

U.S. Tax-Exempt Holders generally are subject to U.S. federal income tax on their UBTI. Subject to certain exceptions, UBTI is gross income derived by a tax-exempt entity from an unrelated trade or business (including a trade or business conducted by an entity that is treated as a flow-through entity for U.S. federal tax purposes (such as a partnership in which the tax-exempt entity is a partner)), less the deductions directly connected with that trade or business. UBTI generally does not include dividends, interest, certain types of rents from real property and gain or loss derived from the sale of property (other than gain or loss derived from the sale of inventory and property sold to customers in the ordinary course of a trade or business and gain taxed as recapture income). However, if a U.S. tax-exempt entity's acquisition of an interest in a partnership or other flow-through entity is debt-financed, or the entity incurs "acquisition indebtedness" that is allocated to the acquisition of an investment by the entity, then UBTI would include a percentage of the gross income (less the same percentage of deductions) derived from the investment regardless of whether the income would otherwise be excluded from UBTI. A U.S. Tax-Exempt Holder with an interest in more than one unrelated trade or business may be required to separately compute its UBTI with respect to each trade or business. As a result, deductions or losses from one unrelated trade or business may not be used to offset UBTI from a different unrelated trade or business, although the final Treasury regulations permit a U.S. Tax-Exempt Holder to aggregate its UBTI, deductions and losses in respect of multiple trades or business if certain requirements are met.

Further, it is possible that a Partnership or a flow-through entity owned by a Partnership will borrow money (particularly in the context of the Delaware Levered Partnerships and the Luxembourg Levered Partnerships). Accordingly, there can be no assurance that a U.S. Tax-Exempt Holder's investment in the applicable Partnership will not generate UBTI in any taxable year. Prospective U.S. Tax-Exempt Holders should consult their own tax advisers with respect to the potential tax consequences associated with receiving UBTI from the applicable Partnership.

Investment in the Luxembourg Unlevered Partnership or the Luxembourg Levered Partnership by Non-U.S. Holders

In general, a non-U.S. person that invests in a partnership that is "engaged in a trade or business within the U.S." is itself considered to be engaged in a trade or business within the U.S. and is subject to U.S. federal income tax (including, possibly, the "branch profits" tax), withholding and income tax return filing requirements with respect to its ECI. Although not currently anticipated given the investment strategy of the Luxembourg Partnerships, gain or loss of a non-U.S. person from the disposition of an interest in U.S. real property ("**USRPI**") or certain securities of a "United States real property holding corporation" ("**USRPHC**") (including any deemed gain resulting from a distribution) (if any) is required to be taken into account as if the non-U.S. person were engaged in a trade or business within the U.S. and such gain or loss were ECI.

Each Luxembourg Partnership intends to take the position that it is not engaged in a U.S. trade or business for U.S. federal income tax purposes and accordingly that Non-U.S. Holders are not subject to U.S. federal income tax solely as a result of their investment in the applicable Luxembourg Partnership. However, no assurance can be given in this regard. If the Manager determines that there is a risk that an Investment may give rise to ECI, the Manager may structure such Investments through an alternative structure, such as a parallel fund structure, alternative investment vehicle and/or "blocker" entity classified as a corporation for U.S. federal income tax purposes.

If a Luxembourg Partnership is treated as engaged in a U.S. trade or business for U.S. federal income tax purposes, each Non-U.S. Holder of Interests in a Luxembourg Partnership would be required to file a U.S. federal income tax return and pay U.S. federal income tax on a net basis in respect of its share of the applicable Luxembourg Partnership's ECI. Moreover, a Luxembourg Partnership or other applicable withholding agent would be required to withhold and pay over to the U.S. tax authorities a percentage equal to the highest applicable U.S. tax rate of each Non-U.S. Holder's distributive share of such

Luxembourg Partnership's ECI. In addition, a Non-U.S. Holder that is a non-U.S. corporation may be subject to an additional U.S. branch profits tax of 30% of its share of the applicable Luxembourg Partnership's ECI, adjusted as provided by law (subject to reduction by an applicable tax treaty).

In addition, fee income actually received or deemed to be received by the Luxembourg Partnerships or the Investors in the Luxembourg Partnerships (including any fee income that might be deemed to be received because, although paid to the Manager or its Associates, such income results in a reduction in fees paid by a Luxembourg Partnership to the Manager) may cause the applicable Luxembourg Partnership and the Investors in the applicable Luxembourg Partnership to be treated as engaged in a U.S. trade or business in certain circumstances.

A Non-U.S. Holder is subject to U.S. federal withholding tax at the rate of 30% on its distributive share of any U.S. source interest (unless such interest qualifies as "portfolio interest"), dividends and certain other fixed determinable annual periodic income (if any) received by a Luxembourg Partnership (unless treated as ECI, as described above). However, a Non-U.S. Holder may be entitled to a complete or partial exemption from such U.S. withholding tax under an applicable income tax treaty with the United States.

In general, Non-U.S. Holders who are not themselves engaged in a U.S. trade or business will not be subject to U.S. tax with respect to gains from the sale or other disposition of Interests in a Luxembourg Partnership, provided that those gains are not attributable to assets used in a U.S. trade or business by the applicable Luxembourg Partnership. However, a non-resident individual present in the United States for 183 or more days in the taxable year of the sale would be subject to U.S. federal income tax on any such gain if either (i) the individual's tax home for U.S. federal income tax purposes were in the United States or (ii) the gain were attributable to an office or other fixed place of business maintained by the individual in the United States.

Although not currently anticipated given the investment strategy of the Luxembourg Partnerships, to the extent any of the assets of the Luxembourg Partnerships are considered to be USRPIs or USRPHCs, gain realised by a Non-U.S. Holder on a sale or other disposition of its Interests in the Luxembourg Partnerships may be taxed as ECI to the extent the gain is attributable to any such assets (and the transferee of such Interests may be required to withhold U.S. federal tax on the amount realised on the disposition). To the extent any of the assets of a Luxembourg Partnership are considered to be assets used in a U.S. trade or business, gain realised by a Non-U.S. Holder on a sale or other disposition of its Interests generally will be taxed as effectively connected income to the extent that such Non-U.S. Holder would have been allocated effectively connected income if a Luxembourg Partnership sold all of its assets for fair market value as of the date of the sale or exchange. Further, if any portion of the gain on any disposition of an interest in the applicable Luxembourg Partnership would be treated as effectively connected income, the transferee of an interest in such Luxembourg Partnership generally would be required to withhold 10% of the amount realised on the sale or exchange unless the transferor certifies that the transferor is not a foreign person or another applicable certification is provided. If the transferee fails to withhold the correct amount, the applicable Luxembourg Partnership would be required to deduct and withhold from distributions to the transferee an amount equal to the amount the transferee failed to withhold. Potential investors in the Luxembourg Partnerships should consult their own tax advisers regarding all aspects of these rules and as to how they affect their particular circumstances.

Special rules may apply to a Non-U.S. Holder that is, for U.S. federal income tax purposes, a CFC, PFIC, a corporation that accumulates earnings to avoid U.S. federal income tax, or an individual who is a U.S. expatriate and therefore subject to special treatment under the Code. Non-U.S. Holders should consult their own tax advisers to determine U.S. federal, state, local and other tax consequences that may be relevant to them.

Backup withholding and information reporting

Payments of dividends and other proceeds with respect to Interests by a U.S. paying agent or other U.S. intermediary will be reported to the IRS and to the U.S. Holder as may be required under applicable regulations. Backup withholding may apply to these payments if the U.S. Holder fails to provide an accurate taxpayer identification number or certification of exempt status or fails to report all interest and dividends required to be shown on its U.S. federal income tax returns. Certain U.S. Holders are not subject to backup withholding. U.S. Holders should consult their tax advisers as to their qualification for exemption from backup withholding and the procedure for obtaining an exemption. Non-U.S. Holders may be required to provide certifications (on an IRS Form W-8BEN, W-8BEN-E, or other appropriate form) upon which the U.S. paying agent or other U.S. intermediary may rely to treat the payments as made to a non-U.S. person. Non-U.S. Holders should consult their tax advisers with respect to this or any other reporting requirement that may apply to an acquisition of Interests.

Information reporting to U.S. Holders by the Delaware Partnerships

Delivery of tax reporting information by the Delaware Partnerships may be subject to delay, including in the event of the late receipt of any necessary tax information from an entity in which a Delaware Partnership holds an interest. It is therefore possible that, in any taxable year, U.S. Holders will need to apply for extensions of time to file their tax returns.

U.S. Holders' information reporting requirements

A U.S. Holder who purchases Interests in a Delaware Partnership will be required to file Form 8865 (or similar form) with the IRS if the purchase, when aggregated with all transfers of cash or other property made by the U.S. Holder (or any related person) to the applicable Delaware Partnership within the preceding 12-month period, exceeds USD 100,000 (or its equivalent). A U.S. Holder who fails to file any such required form could be required to pay a penalty equal to 10% of the gross amount paid for the Interests (subject to a maximum penalty of USD 100,000, except in cases of intentional disregard). U.S. Holders should consult their tax advisers with respect to this or any other reporting requirement that may apply to an acquisition of the Interests.

Investors engaging in certain "reportable transactions", including certain loss transactions above a certain dollar threshold, may be required to disclose to the IRS information relating to such transactions, and to retain certain documents and other records related thereto. It is possible that a Delaware Partnership may engage in transactions that would subject a Delaware Partnership and its Investors to such disclosure. A U.S. Holder disposing of an Interest at a taxable loss may also be subject to such disclosure. The foregoing discussion is only a brief summary of certain information reporting requirements. Substantial penalties may apply if the required reports are not made on time. Potential U.S. Holders should consult their tax advisers regarding such reporting requirements.

Foreign financial asset reporting

U.S. taxpayers that own certain foreign financial assets, including equity of non-U.S. entities, with an aggregate value in excess of certain thresholds may be required to file an information report with respect to such assets with their U.S. tax returns. The Interests are expected to constitute foreign financial assets subject to these requirements unless the Interests are held in an account at a financial institution (in which case the account may be reportable if maintained by a non-U.S. financial institution). U.S. Holders should consult their tax advisers regarding the application of the rules relating to foreign financial asset reporting.

The U.S. tax treatment of an investment in a Partnership by an Investor is complex and will vary depending upon the circumstances and activities of such Investor and a Partnership. Each prospective investor in a Partnership is strongly urged to consult its own tax advisers concerning the U.S. federal tax consequences, as well as any state, local or foreign tax consequences, relating to an investment in a Partnership.

Tax returns, audits and partnership representative

Pursuant to the rules for U.S. federal income tax audits of partnerships, adjustments to the amount of tax due (including interest and penalties) generally will be payable by a partnership unless a partnership qualifies for and affirmatively elects an alternative procedure. Under the alternative procedure, if elected, a partnership would issue information returns to persons who were partners in the audited year, who would then be required to take the adjustments into account in calculating their own respective tax liability, and such partnership would not be liable for the adjustments. If a Partnership is able to and in fact elects the alternative procedure for a given adjustment, the amount of taxes for which such persons will be liable will be increased by any applicable penalties and a special interest charge.

There can be no assurance that a Partnership will be eligible to make such an election or that it will, in fact, make such an election for any given adjustment. If a Partnership does not or is not able to make such an election, then (i) the then-current investor in the applicable Partnership, in the aggregate, could indirectly bear income tax liabilities in excess of the aggregate amount of taxes that would have been due had the applicable Partnership elected the alternative procedure, and (ii) a given investor may indirectly bear taxes attributable to income allocable to other investors or former investors, including taxes (as well as interest and penalties) with respect to periods prior to such Investor's ownership of Interests in the applicable Partnership. Accordingly, it is possible that an investor will bear tax liabilities unrelated to its interest in the applicable Partnership. Amounts available for distribution to investors may be reduced as a result of the applicable Partnership's obligations to pay any taxes associated with an adjustment.

The partnership representative of a Partnership will be the only person with the authority to act on behalf of a Partnership with respect to audits and certain other tax matters and may decide not to elect (or may be unable to elect) the alternative procedure for any particular adjustment. In addition, a Partnership and each investor will be bound by the actions taken by any partnership representative on behalf of the applicable Partnership during any audit or litigation proceeding concerning U.S. federal income taxes.

Potential investors in a Partnership should consult their own tax advisers regarding all aspects of these rules as it affects their particular circumstances.

7.3 Certain Legal and Regulatory Considerations

7.3.1 General

Investor's rights against service providers

The Fund is reliant on the performance of third-party service providers, including the Manager, the Portfolio Manager, the Administrator, the Auditor, and the FX Manager. Further information in relation to the roles of the service providers is set out in Section 6.2 entitled "Fund Management".

Investors will not be contractual parties to the agreements with service providers of the Fund, and therefore Investors will not be able to bring any contractual claims against a service provider. Only the Fund, the General Partners, the Manager or the Portfolio Manager (as applicable) will have a right to enforce its contracts with service providers. Any action sought to be taken by an Investor directly against a service provider may result in the service provider calling on its indemnity from the Fund, if applicable.

Fair treatment of investors

In performing its duties under the Partnership Agreements, the Manager seeks to ensure fair treatment of all Investors and to act in a manner it believes in good faith to be in the best interests of the Fund or the Investors as a whole.

Calculation of the Net Asset Value and valuation of the Fund's assets

The Net Asset Value of the Partnerships will be calculated in accordance with U.S. GAAP.

The Net Asset Value will be calculated by the Administrator in consultation with and subject to the supervision of the Manager.

The Manager may suspend at its discretion the determination of the Net Asset Value during the existence of any state of affairs which constitutes an emergency as a result of which it is impracticable or impossible to perform accurate valuations of a substantial portion of the Fund's assets.

The Investors will be informed of any such suspension if, in the opinion of the Manager, it is likely to last beyond a full calendar quarter.

Placement agents

The General Partners, the Manager, the Portfolio Manager or their respective Associates may appoint one or more third-party placement agents or distributors in connection with the marketing or placement of interests in the Fund or any Feeder Partners or Parallel Vehicles. Any such placement agent or distributor is expected to receive remuneration on customary terms with respect to their clients that invest in the Fund. The full amount of such remuneration will either be paid directly by the General Partners, the Manager, the Portfolio Manager or their applicable Associates, or will be borne by the Fund and subsequently applied to reduce the Management Fee.

Considerations specific to the Luxembourg Partnerships

Legal implications of contractual relationships

The Luxembourg Partnerships are established under the laws of Luxembourg. While Investors will subscribe for Interests, the Fund may, directly or indirectly, have sole legal and beneficial title to the assets of the Fund. An Investor's interest is the Investor's personal property, but such Investor has no interest in specific Fund property and no direct or indirect legal or beneficial interest in the ultimate investments of the Fund. The liability of an Investor for the debts and other obligations of the Fund is limited to the amount committed pursuant to the Partnership Agreements relating to the Luxembourg Partnerships (the "**Luxembourg Partnership Agreements**") and the applicable laws of Luxembourg, and such other amounts as the Investor has agreed to pay under the terms of the Luxembourg Partnership Agreements provided that the Investor does not participate in the control of the business of the Fund. An Investor's rights in respect of its investment in the Fund are governed by the Luxembourg Partnership Agreements, the applicable laws of Luxembourg and the Subscription Agreement entered into by each Investor with respect to the Luxembourg Partnerships.

The Luxembourg Partnership Agreements, the Management Agreements relating to the Luxembourg Partnerships and the Subscription Agreement relating to the Luxembourg Partnerships shall be governed by and construed in accordance with the laws of Luxembourg.

As provided in the Luxembourg Partnership Agreements, any disputes arising out of or connected to the Luxembourg Partnerships are subject to the law of the Grand Duchy of Luxembourg and the jurisdiction of the Court of Luxembourg City.

Final judgments in respect of the relevant Luxembourg Partnership Agreement will be enforceable in Luxembourg subject to applicable enforcement proceedings as provided for in, inter alia (i) Regulation (EU) No. 1215/2012 of the European Parliament and of the Council of 12 December 2012 on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters, (ii) the Council Regulation (EC) No. 805/2004 of 21 April 2004 creating a European enforcement order for uncontested claims, (iii) the Convention on Jurisdiction and the Recognition and Enforcement of Judgments in Civil and Commercial Matters entered into in Lugano on 30 October 2007, and (iv) article 678 of the New Code of Civil Procedure.

In respect of all other jurisdictions (including the U.S.), judgments are not automatically enforceable in Luxembourg and would be required to be enforced in Luxembourg under applicable Luxembourg law.

Luxembourg anti money laundering

The Luxembourg Partnerships must comply with the Luxembourg laws and regulations regarding the prevention of money laundering and terrorist financing, including, but not limited to, the Luxembourg Law of 12 November 2004 on the fight against money laundering and terrorist financing, as amended. In particular, anti-money laundering measures in force in the Grand Duchy of Luxembourg require the Luxembourg Partnerships or their agent to establish and verify the identity of subscribers for Interests (as well as the identity of any intended beneficial owners of the Interests if they are not the subscribers) and the origin of subscription proceeds, and to monitor the relationship on an ongoing basis. Failure to provide information or documentation may result in delays in, or rejection of, any subscription or conversion application and/or delays in any redemption application. The Investors shall provide the Luxembourg Partnerships with all such documents as the Luxembourg Partnerships may reasonably require to comply with its obligations under the applicable anti-money laundering laws.

Recognition and enforcement of foreign judgments

Regulation (EC) 593/2008 ("**Rome I**") must be applied in all member states of the European Union (other than Denmark). Accordingly, where a matter comes before the courts of a relevant member state, the choice of a governing law in any given agreement is subject to the provisions of Rome I. Under Rome I, the member state's courts may apply any rule of that member state's own law which is mandatory irrespective of the governing law and may refuse to apply a rule of governing law if it is manifestly incompatible with the public policy of that member state. Further, where all other elements relevant to the situation at the time of the choice are located in a country other than the country whose law has been chosen, the choice of the parties shall not prejudice the application of provisions of the law of that other country which cannot be derogated from by agreement.

Investors should note that there are a number of legal instruments providing for the recognition and enforcement of foreign judgments in England. Depending on the nature and jurisdiction of the original judgment, Regulation (EC) No 805/2004 of the European Parliament and of the Council of 21 April 2004 creating a European Enforcement Order for uncontested claims, the Convention on Jurisdiction and the Recognition and Enforcement of Judgments in Civil and Commercial Matters entered into at Lugano on 30 October 2007, the Administration of Justice Act 1920 and the Foreign Judgments (Reciprocal Enforcement) Act 1933 may apply. There are no legal instruments providing for the recognition and enforcement of judgments obtained in jurisdictions outside those covered by the instruments listed above, although such judgments might be enforceable at common law.

EMIR considerations

The Regulation (EU) no. 648/2012 of the European Parliament and of the Council of 4 July 2012 OTC derivative products, central counterparties and trade repositories ("**EMIR**"), as amended, requires that certain eligible OTC derivatives be subject to the clearing obligation for regulated central counterparties and the reporting of certain details to the central repositories. In addition, EMIR imposes requirements as to the procedures and the means enabling to measure, monitor and mitigate operational and counterparty risks related to OTC derivatives not subject to the clearing obligation. Ultimately, these requirements may require the exchange and separation of guarantees to the parties, including by the Luxembourg Partnerships, and may result in additional operational efforts and costs, as well as, if applicable, an additional counterparty risk associated with the mandatory exchange of collateral, in the event the Luxembourg Partnerships were to engage in such instruments. In addition, further changes to the EMIR framework were made by so-called "EMIR 3" (a legislative package containing a regulation and a directive, approved by the European co-legislators, still to be published in the Official Journal of the EU).

Each Luxembourg Partnership may, but is not required to, use interest and currency rate hedging for prudent portfolio management purposes. The Luxembourg Partnerships will not utilise derivative instruments for speculative investment purposes.

SFTR considerations

Each Luxembourg Partnerships does not intend to enter into securities financing transactions nor total return swaps as defined in Regulation (EU) no. 2015/2365 of the European Parliament and of the Council of 25 November 2015 on transparency of securities financing transactions and of reuse and amending Regulation (EU) no. 648/2012, as amended.

If the Luxembourg Partnerships were to contemplate entering into such securities financing transactions or total return swaps, this Memorandum will be amended accordingly.

Benchmark regulation

Each Luxembourg Partnership does not use any benchmark for purposes of the requirements of Regulation (EU) no. 2016/1011 of the European Parliament and Council of 6 June 2016 on indices used as benchmarks in financial instruments and financial contracts or to measure the performance of investment funds, as amended.

If the Luxembourg Partnerships were to contemplate making use of such benchmark, this Memorandum will be amended accordingly.

7.3.2 ERISA Considerations

ERISA considerations

Fiduciaries and managers of employee benefit plans subject to the Employee Retirement Income Security Act of 1974, as amended ("**ERISA**" and such plans, "**ERISA Plans**"), including U.S. private pension plans, certain insurance company accounts, and other entities that are deemed to hold "plan assets" with respect to such plans should have in mind certain considerations under ERISA, including those described below. The Code also has certain provisions that apply to such plans as well as to plans described in Section 4975 of the Code, including individual retirement accounts and so-called "Keogh Plans" (together with ERISA Plans, "**Plans**").

Certain plans, such as government plans, church plans, and plans maintained outside of the United States, may be subject to other similar state and other local statutory rules and restrictions; fiduciaries of these plans should be familiar with and take into consideration the rules governing those plans.

Fiduciary duty

Section 404(a)(1) of ERISA sets forth a general standard of behaviour and restrictions for fiduciaries of ERISA Plans. It requires that a fiduciary discharge its duties with respect to an ERISA Plan (i) solely in the interest of the participants and beneficiaries, (ii) for the exclusive purpose of providing benefits to participants and their beneficiaries and defraying reasonable expenses of administering the ERISA Plan, (iii) in accordance with a prudent-man rule (that is "with the care, skill, prudence and diligence under the circumstances then prevailing that a prudent man acting in a like capacity and familiar with such matters would use in the conduct of an enterprise of a like character and with like aims"), (iv) by diversifying the investments of the ERISA Plan so as to minimise the risk of large losses, unless under the circumstances it is clearly prudent not to do so, and (v) in accordance with the documents governing the ERISA Plan insofar as they are consistent with ERISA.

In determining whether a particular investment is appropriate for an ERISA Plan, the U.S. Department of Labor provides in regulations that the ERISA Plan fiduciaries must give appropriate consideration to, among other things, the role that the investment plays in the ERISA Plan's portfolio, taking into consideration whether the investment is designed reasonably to further the ERISA Plan's purposes, an examination of the investment objectives and risk and return factors, the portfolio's composition with regard to diversification, the liquidity and current return of the total portfolio relative to the anticipated cash flow needs of the ERISA Plan, the projected return of the total portfolio relative to the ERISA Plan's funding objectives, and the limited right of Limited Partners to withdraw all or any part of their capital accounts or to transfer their interests in the Partnerships.

Before investing the assets of a Plan, or similar benefit arrangement in the Fund (whether or not such Plan is subject to ERISA), a fiduciary should determine whether such an investment is consistent with its fiduciary responsibilities, including the foregoing rules to the extent applicable, taking into account among other things the limitations and risks pertinent to an investment in the Fund as set forth in this Memorandum. For example, a fiduciary should consider whether an investment in the Fund may be too illiquid or too speculative for a particular plan, and whether the assets of the plan would be sufficiently diversified if such an investment is made. Each fiduciary of a Plan will be required to represent (amongst other things) that neither the General Partners, the Manager, any Portfolio Manager nor any of its Associates, agents, or employees (i) exercises any authority or control with respect to the management or disposition of assets of the Plan used to invest in the Fund, or (ii) has rendered any investment advice or has made any recommendations, with respect to an investment in the Fund or otherwise with respect to any such assets of the Plan, or has the authority to do so. In addition, an authorised fiduciary of such Plan may be required to represent, among other things, that the Plan's purchase and holding of an interest in the Fund will not

constitute a non-exempt prohibited transaction under ERISA or Section 4975 of the Code or under any similar law or other federal, state, local, foreign or other law applicable to the plan and its investments.

Plan asset exception

Under regulations issued by the U.S. Department of Labor at 29 CFR 2510.3-101, as modified by Section 3(42) of ERISA (the “**Plan Asset Regulations**”), if a Plan invests in an equity interest of an entity that is neither a publicly-offered security nor a security issued by an investment company registered under the U.S. Investment Company Act, the Plan’s assets will generally include both the equity interest in the entity and an undivided interest in each of the underlying assets of the entity (and therefore the entity will be considered to hold plan assets), unless it is established that the entity is an “operating company” or that equity participation in the entity by “benefit plan investors” is not “significant”. The term “benefit plan investor” is defined as (i) any employee benefit plan (as defined in Section 3(3) of ERISA), that is subject to the provisions of Title I of ERISA, (ii) any plan to which Section 4975 of the Code applies, and (iii) any entity whose underlying assets include plan assets by reason of a plan’s investment in the entity. Under the Plan Asset Regulations, equity participation in an entity by benefit plan investors is “significant” on any date if, immediately after the most recent acquisition or disposition of any equity interest in the entity, 25% or more of the total value of any class of equity interests of the entity is held by benefit plan investors. The Plan Asset Regulations provide additional special rules that affect this calculation, including disregarding investments made by certain affiliates of the entity and a “look through” rule for certain pooled entities that invest in the entity. The significant participation test would be determined upon any acquisition, disposition or transfer of interests, including compulsory withdrawal of any equity interest issued by the entity.

The General Partners intend to limit investment in the Fund by investors that are “benefit plan investors” (as defined in Section 3(42) of ERISA, and in reliance upon the information provided by Limited Partners or Feeder Investors in their completed subscription agreements) to less than 25% of the total value of each class of equity interest in the Fund. As a result, the General Partners expect that the Partnerships will not hold “plan assets” subject to ERISA or Section 4975 of the Code. The General Partners will have broad powers to do what they believe is necessary to avoid the Partnerships from being deemed to hold “plan assets” under ERISA and the Plan Asset Regulations. Such action the General Partners may take includes, but is not limited to, limiting purchases by Benefit Plan Investors, forcing Benefit Plan Investors to sell or redeem their interests in the Partnerships or denying transfers or sales of Partnership interests by Limited Partners.

If the Partnerships were deemed to hold plan assets of benefit plan investors, various provisions of ERISA and the Code would apply. Among other things, the Partnerships and an investing Plan could become involved in a “prohibited transaction” under Section 406 of ERISA and/or Section 4975 of the Code, which prohibit certain transactions in which a Plan and a fiduciary or other “party in interest” (under ERISA) or “disqualified person” (under Section 4975 of the Code) participate. In addition, if the assets of the Partnerships include plan assets, various reporting, bonding and custody obligations may apply. There can be no assurance that, in such event, the Partnerships would be able to comply with these requirements.

Form 5500, Schedule C.

To the extent that any of the compensation arrangements described herein constitute eligible indirect compensation, any descriptions of such compensation are intended to satisfy the disclosure requirements for the alternative reporting option for eligible indirect compensation.

THE ABOVE DISCUSSION IS A SUMMARY OF ONLY SOME OF THE MATERIAL CONSIDERATIONS UNDER ERISA AND SECTION 4975 OF THE CODE APPLICABLE TO PROSPECTIVE INVESTORS THAT ARE PLANS. IT IS INTENDED NEITHER TO BE A COMPLETE DISCUSSION NOR TO BE CONSTRUED AS LEGAL ADVICE OR A LEGAL OPINION. PROSPECTIVE INVESTORS SHOULD CONSULT THEIR OWN COUNSEL ON THESE MATTERS.

TRUSTEES, INVESTMENT MANAGERS AND OTHER FIDUCIARIES OF EMPLOYEE BENEFITS PLANS (WHETHER OR NOT SUBJECT TO ERISA) ARE ADVISED TO CONSULT THEIR COUNSEL WITH RESPECT TO QUESTIONS ARISING UNDER TITLE I OF ERISA, THE RELATED PROVISIONS OF THE CODE AND ANY APPLICABLE SIMILAR LAWS THAT MAY APPLY TO AN EMPLOYEE BENEFIT PLAN NOT SUBJECT TO ERISA.

8. Useful Definitions

Term	Meaning
“Administration Agreements”	has the meaning given to it in Section 6.2 entitled “Administrator”
“Administrator”	means (i) SEI Investments – Luxembourg S.A., acting as the administrator of the Luxembourg Partnerships; and (ii) SEI Investments – Global Fund Services Limited acting as the administrator of the Delaware Partnerships, and such other firm or corporation as may be appointed and from time to time acting as administrator to the Partnerships
“Adviser”	means any adviser appointed by the Manager or Portfolio Manager (with the approval of the Manager) from time to time
“Advisers Act”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Advisory Committee”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“AIFM Law”	means the Luxembourg law of 12 July 2013 on alternative investment fund managers, as amended from time to time
“Allocation Policy”	has the meaning given to it in Section 4.4 entitled “Investment Allocation”
“Alternative Investment Vehicle”	means any vehicle or investment structure through which one or more Investors participate in a particular investment opportunity (other than the Partnerships or any Parallel Vehicle), as determined by the relevant General Partner to be necessary or desirable for legal, Tax, regulatory, accounting, currency considerations and/or other similar reasons
“Asset Backed Financing”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Associate”	means, in relation to the person concerned: (a) a parent undertaking of such person, a subsidiary of such person, or a subsidiary or of a common parent undertaking of such person; (b) if the person concerned is a firm or other unincorporated body, any person (including any individual, group, partnership or other entity) that Controls, is Controlled by, or is under common Control with, the person concerned; (c) if the person concerned is a natural person: (i) a spouse, civil partner, lineal ascendant or lineal descendant of such person; or (ii) a company, a firm or other unincorporated body Controlled by such person and/or such person’s Associates; or (d) any person whom the relevant General Partner has designated in writing as such, provided that the General Partner shall not so designate any person as an Associate of any member of the Macquarie Group pursuant to this paragraph (d), provided that the Fund, any Feeder Partner, any Investments (including any Investments held through any Intermediate Vehicle or Alternative Investment Vehicle) shall not be Associates of any member of the Macquarie Group or Macquarie Fund
“Auditor”	means PricewaterhouseCoopers or such other firm of auditors of international standing as may from time to time be appointed by the General Partners to be the auditors of the Fund
“Benchmark Threshold”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Benefit Plan Investor”	means a “benefit plan investor” within the meaning of the ERISA Regulations as modified by Section 3(42) of ERISA
“Borrower”	means a company or entity that is the obligor, owner or lessee with respect to, or issuer of (or similar) one or more Investments (excluding any Intermediate Vehicle)
“Borrower Paid Investment Fees”	has the meaning given to it in Section 5 entitled “Summary of Terms”

Term	Meaning
"Broken Deal Expenses"	means all fees, disbursements, costs and expenses (together with any Irrecoverable VAT thereon) incurred by the Fund in connection with: (a) Investments that are pursued, but which ultimately are not acquired; (b) co-investments that are pursued, but which ultimately are not completed, including any costs, fees or expenses incurred directly or indirectly by a co-investor in a co-investment if that co-investment had been completed; (c) financings or re-financings in relation to actual or potential Investments, but where such financings or re-financings ultimately are not implemented; or (d) Investments that are proposed for sale, but which ultimately are not disposed of
"Business Day"	means a day (other than a Saturday or a Sunday or a public holiday) on which banks in New York, Luxembourg, Ireland and London are open for general business
"Capital Account"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Capital Contribution"	means, (i) with respect to each Investor, amounts contributed or deemed to be contributed by such Investor to the Fund from time to time pursuant to the Partnership Agreements, and (ii) with respect to any Special Limited Partner, the amount contributed as required by the relevant General Partner
"Cause Event"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Closing Date"	means any date on which one or more Subscription Agreements are accepted in respect of the Fund
"Code"	means the United States Internal Revenue Code of 1986
"Commitment"	means, in relation to each Investor, the amount agreed to be contributed to the Fund by such Investor and accepted by the relevant General Partner in accordance with the Partnership Agreements (whether or not such amount has been contributed in whole or in part and whether or not it has been repaid to the Investor in whole or in part)
"Committed Investment"	means any potential investment: (i) in respect of which the Manager, the Portfolio Manager and/or the Fund has been granted exclusivity; (ii) in respect of which a commitment to invest has been undertaken, or a written offer letter or other written binding obligation has been issued by or with respect to the Fund; or (iii) in respect of which initial screening has been conducted by the Investment Committee, prior to (as the case requires): (a) a Withdrawal Date, if applicable; or (b) a Suspension Period
"Control"	means: (i) possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a person, whether through the ownership of voting securities, by contract or otherwise; or (ii) a direct or indirect interest in more than 50% of the profits of, or equity interests in, a person, whether through ownership of securities, by contract or otherwise, and " Controlled " shall be interpreted accordingly
"Credit Facility"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Credit Watch Asset"	means any Investment that is designated by the relevant General Partner or Manager as being on the credit watch monitoring list maintained by the Manager's portfolio monitoring team on behalf of the relevant Partnership due to determination of the relevant General Partner or the Manager, acting reasonably, that such Investment is or is reasonably likely to perform significantly below expectations and there is an expectation of a deterioration in the credit quality of the Investment during the next fiscal quarter of the relevant Partnership, including Investments for which portfolio company payments are not being met, for which forbearance measures are in place, that are subject to an event of default or are subject to impairment in value for accounting purposes, which designation as a Credit Watch Asset shall be notified to Investors no later than the next quarterly report; provided that each General Partner shall, and shall cause the Manager to, use commercially reasonable efforts to monitor and promptly designate each such Investment as a Credit Watch Asset promptly upon becoming aware of such reasonable likelihood of significant underperformance, deterioration in credit quality or impairment in value of the Investment

Term	Meaning
“CRS” or “Common Reporting Standard”	means the common standard on reporting and due diligence for financial account information developed by the OECD, bilateral and multilateral competent authority agreements, and treaties facilitating the implementation thereof, and any law implementing any such common standard, competent authority agreement, intergovernmental agreement, or treaty, in each case, as amended from time to time
“DAC”	means EU Directive 2011/16/EU on administrative co-operation in the field of taxation
“Defaulting Investor”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Delaware Administration Agreement”	means the administration agreement, pursuant to which SEI Investments – Global Fund Services Limited will be appointed to act as the administrator, registrar and transfer agent of the Delaware Partnerships
“Delaware Levered Partnership”	Macquarie Specialized Infrastructure Global 3 (USD) Lev Onshore Fund LP, a Delaware limited partnership
“Delaware Partnerships”	means the Delaware Unlevered Partnership and the Delaware Levered Partnership
“Delaware Unlevered Partnership”	Macquarie Specialized Infrastructure Global 3 (USD) UnLev Onshore Fund LP, a Delaware limited partnership
“Delayed Funding Investment”	means an Investment structured as a revolving credit or similar facility, delayed draw term loan or staged draw investment, equity commitment or other committed but unfunded obligation
“Drawdown Notice”	means the written notice specifying (amongst other details) the amount of the call on the Investors for Capital Contributions to the Fund
“EEA”	means the European Economic Area
“ERISA”	means the United States Employee Retirement Income Security Act of 1974, as amended from time to time
“ERISA Regulations”	means the regulations promulgated by the United States Department of Labor at 29 C.F.R. § 2510.3-101 as modified by ERISA Section 3(42)
“ESG”	has the meaning given to it in Section 4.3 entitled “Sustainability”
“EU”	means the European Union
“Euro” or “EUR”	means the lawful currency for the time being of the participating EU Member States which have adopted the single currency in accordance with the EC Treaty of Rome dated 25 March 1957 as amended
“Executive Partner”	means an Investor or a Feeder Investor (as the context requires) who is: (a) a current or former member of the Macquarie Group; (b) a current or former member, director, officer, employee, consultant or adviser of any member of the Macquarie Group; (c) a family member of a person falling within paragraph (b) above; (d) a person who is Controlled by or whose beneficial ownership or direct or indirect economic owners are persons falling within paragraph (b) or (c) above; or (e) a trust, partnership, foundation or other similar arrangement of which any person or persons falling within paragraph (b) or (c) above is or are a principal beneficiary or beneficiaries, and/or any organisation or charitable trust established or formed by any such person or persons, and for the avoidance of doubt, any persons or entity that has made a Commitment which forms part of the Sponsor Commitment, and any Special Limited Partner shall be considered an Executive Partner for the purposes of the Partnership Agreements
“Expected Maturity”	means, in relation to an Investment, the date on which, in the opinion of the General Partners, such Investment could reasonably be expected to be refinanced or repaid in full. For this purpose, the General Partners may consider, in their discretion (a) the date on which repayment

Term	Meaning
	is highly likely through commercial incentives (such as a 100% equity cash sweep or a material increase in the cost of debt designed to incentivise refinancing) as opposed to the point at which refinancing is possible (for example the expiry of a non-call period); and (b) in respect of any Lease Investment, the anticipated exit date of: (i) the relevant Lease Investment; or (ii) the portfolio to which the Lease Investment belongs
"FATCA"	means Sections 1471 through 1474 of the Code as modified by U.S. Treasury Regulations, guidance from U.S. Internal Revenue Service and intergovernmental agreements and implementing non-U.S. laws and regulations and all rules, regulations and other guidance issued thereunder, and all administrative and judicial interpretations thereof
"FCA"	means the UK Financial Conduct Authority or any successor
"Feeder Investor"	means each person admitted to a Feeder Partner as an investor
"Feeder Partner"	means an entity or legal arrangement created specifically for the purpose of investing in the Fund, and designated by a General Partner (or equivalent with respect to a Parallel Vehicle) as a "Feeder Partner" at the time of its admission to the Fund as an Investor (or at the time of its admission to a Parallel Vehicle, as the case may be)
"Fee Discount"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Final Closing Date"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"First Closing Date"	means the first Closing Date designated as such by the General Partners
"Follow-On Investment"	means an additional investment in respect of an existing Investment, including following any refinancing, restructuring or prepayment (other than, for the avoidance of doubt, a Delayed Funding Investment, a Committed Investment or a Rescue Investment)
"Fund"	means the Partnerships, together with any Parallel Vehicle and any Alternative Investment Vehicles
"Fund Commitments"	means the aggregate Commitments of all Investors with respect to the Fund
"Fund Sponsor Commitment"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Further Investments"	means any Follow-On Investments and Rescue Investments
"FX Manager"	has the meaning given to it in Section 6.2 entitled "FX Manager"
"General Partner"	has the meaning given to it in Section 6.2 entitled "General Partner"
"General Partner Fee"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Hurdle"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Hurdle Rate"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Income Account"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Indemnified Party"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Information Reporting Regime"	means CRS, DAC, FATCA and any: (i) legislation, treaty, agreement, regulations or guidance entered into or enacted or promulgated by or between any jurisdiction, jurisdictions or international organisation (including the OECD) which seeks to implement similar reporting and/or withholding Tax regimes; (ii) other intergovernmental agreement between any jurisdictions concerning the collection and sharing of information, and any legislation, regulations or guidance relating to or giving rise to or effect to such an agreement; and (iii) legislation, regulations or guidance requiring collection and/or disclosure of beneficial ownership information
"Initial Closing Date"	means the date on which Subscription Agreements are first accepted by the relevant General Partner or any of its Associates
"Interest"	means an entire limited partnership interest in the Fund and all rights and obligations in relation thereto

Term	Meaning
“Intermediate Vehicle”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Invested Capital”	means, in respect of an Investment, the aggregate amount invested (or committed) by the Fund in or to such Investment (including any amount funded or to be funded by a Credit Facility), reduced by an amount equal to: (i) principal amounts that have been realised (or any other return of invested capital) and deemed distributed to Investors and (ii) any impairment in value of such Investment, in each case as reasonably determined by the relevant General Partner
“Investment”	means an investment made or proposed to be made by or for the account of the Fund in the course of carrying on the business of the Fund, whether made directly or through one or more Intermediate Vehicles and howsoever constituted or represented and, where the context requires, includes any investment made by any Alternative Investment Vehicle, including but not limited to any Lease Investment, debt and debt-related instruments, including those with a partial equity-linked component (whether or not subordinated), public or private bonds, loans (including but not limited to term loans and revolving loans), notes, shares, securitisation (including synthetic securitisation), debentures, letters of credit, convertible loan stock, options, warrants, or any other instruments, assets or obligations in or in respect of the capital of any Borrower
“Investment Committee”	means the investment committee appointed by the Portfolio Manager
“Investment Objective”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Investment Restrictions”	means the investment restrictions of the Fund, as set out in Section 5 entitled “Summary of Terms”
“Investment Strategy”	has the meaning given to it in Section 3.3 entitled “Investment Strategy”
“Investment Team”	means the existing team of investment professionals focused on infrastructure debt within MAM Private Credit, with the composition, duties and functions as set out in Section 4.2 entitled “Investment Management Expertise”
“Investor Special Consent”	has the meaning given to it in the Partnership Agreements
“Investors”	means investors who have acquired Interests and, where applicable, shall include any investors in any Feeder Partner
“IRR”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Irrecoverable VAT”	means any amount paid in respect of VAT or any amount of VAT accounted for under the reverse charge procedure by the person in question, in each case which is not recoverable as input tax by it or the representative member of any VAT group of which it forms part, subject to that person or representative member using reasonable endeavours to recover such amount of VAT
“Key Person Event”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Key Persons”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Lease Investment”	means any Investment which does, or the relevant General Partner anticipates will, generate lease income, whether made directly or through one or more Intermediate Vehicles and howsoever constituted or represented
“Legal Adviser”	means Linklaters LLP (as to English, Luxembourg, and United States Law)
“Lender”	means any person from whom the Fund has borrowed amounts or raised other indebtedness in accordance with the Partnership Agreements together with any person acting for or on behalf of such persons (including any agent, assignee, trustee, security agent or security trustee)
“Levered Commitments”	means, at any time, the aggregate of Commitments made to the Levered Partnerships
“Levered Invested Capital”	means, in respect of an Investment of the Levered Partnerships, the aggregate amount invested (or committed) by the Levered Partnerships in or to such Investment (including any amount funded or to be funded by a Credit Facility (or equivalent)), reduced by an amount equal to: (i) principal amounts that have been realised (or any other return of invested capital) and deemed

Term	Meaning
	distributed to Investors in the Levered Partnerships; and (ii) any impairment in value of such Investment, in each case as reasonably determined by the relevant General Partner
“Levered Partnerships”	means the Luxembourg Levered Partnership and the Delaware Levered Partnership
“Levered Undrawn Commitments”	means, at any time, the aggregate of Undrawn Commitments made to the Levered Partnerships
“Limited Partner”	means any limited partner in the Partnerships for such time as it remains a limited partner in accordance with the terms of the Partnership Agreements
“Listing”	means the admission to, continued listing of a security on, or the granting of permission for securities to be listed or dealt in on, any recognised stock exchange or market for dealing in securities or quoted on an internationally recognised national automated inter-dealer quotation system, and for the avoidance of doubt any securities that are traded over-the-counter only will not be deemed to be an Investment in respect of which there has been a listing
“Loan Administrator”	means (i) SEI Investments – Luxembourg S.A., acting as the loan administrator of the Luxembourg Partnerships; and (ii) SEI Investments – Global Fund Services Limited acting as the loan administrator of the Delaware Partnerships, and such other firm or corporation as may be appointed and from time to time acting as loan administrator to the Partnerships
“Located”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Luxembourg Administration Agreement”	means the administration agreement, pursuant to which SEI Investments – Luxembourg S.A. will be appointed to act as the administrator, loan administrator, registrar and transfer agent of the Luxembourg Partnerships
“Luxembourg Levered Partnership”	means Macquarie Specialized Infrastructure Global 3 (USD) Lev Offshore Fund SCSp, a Luxembourg special limited partnership (<i>société en commandite spéciale</i>)
“Luxembourg Partnerships”	means the Luxembourg Levered Partnership and the Luxembourg Unlevered Partnership
“Luxembourg Unlevered Partnership”	means Macquarie Specialized Infrastructure Global 3 (USD) UnLev Offshore Fund SCSp, a Luxembourg special limited partnership (<i>société en commandite spéciale</i>)
“Macquarie” or “Macquarie Group”	means the Macquarie group of companies, which comprises Macquarie Group Limited ABN 94 122 169 279 and all of its Associates, excluding any Macquarie Fund
“Macquarie Affiliated Borrower”	means any Borrower: (a) which is a member of the Macquarie Group; or (b) which is managed by a member of the Macquarie Group or a Macquarie Fund; or (c) in which a member of the Macquarie Group has an existing equity investment greater than 25% of the Borrower's issued capital
“Macquarie Asset Management”	means one of four operating groups within Macquarie that undertakes full-services funds management activities through various Macquarie companies
“Macquarie Capital”	has the meaning given to it in Section 1 entitled “Executive Summary”
“Macquarie Fund”	means any fund, collective investment scheme, investment vehicle or managed account established, operated, managed or advised by a member of the Macquarie Group, whether or not such investment vehicle has a similar investment strategy to that of the Fund
“Macquarie’s Conflicts of Interest Policy”	means the Macquarie Group’s conflicts of interest policy which is summarised at: https://www.macquarie.com/assets/macq/about/disclosures/EMEA-Conflicts-of-Interest-summary-policy.pdf
“MAM”	means Macquarie Asset Management global credit platform, one of the four internal operating divisions of MAM, incorporating both private and public investment product offerings
“MAM Credit & Insurance”	means Macquarie Asset Management global credit platform, one of the four internal operating divisions of MAM, incorporating both private and public investment product offerings

Term	Meaning
"MAM Private Credit"	means Macquarie Asset Management's private credit business as further described in Section 1 entitled "Executive summary", under the heading "About MAM Private Credit"
"MAM Private Credit Products"	has the meaning given to it in Section 4.4 entitled "Investment Allocation"
"MAM Private Markets ESG Policy"	has the meaning given to it in Section 4.3 entitled "Sustainability"
"Management Agreements"	means the management agreement to be entered into between the Partnerships and the Manager, as amended or restated from time to time
"Management Fee"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Manager" or "MAMCA"	means Macquarie Asset Management Credit Advisers US, LLC, a member of the Macquarie Group that is a Delaware limited liability company, or any successor thereto
"Memorandum"	means this private placement memorandum dated February 2026 in relation to the placement of Interests, as amended or supplemented from time to time
"Minimum Fund Sponsor Commitment"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"MSIG 1"	has the meaning given to it in Section 1 entitled "Executive Summary" under the heading "Specialised Infrastructure Debt Strategy"
"MSIG 2"	has the meaning given to it in Section 1 entitled "Executive Summary" under the heading "Specialised Infrastructure Debt Strategy"
"MSIG 3 (EUR)" or "Macquarie Specialized Infrastructure Global 3 (EUR) Fund"	has the meaning given to it in Section 1 entitled "Executive Summary" under the heading "Macquarie Specialized Infrastructure Global 3 (EUR) Fund"
"MSIG 3 Strategies"	means MSIG 3 (EUR) and the Fund
"Net Asset Value"	means the net asset value of the Fund calculated in accordance with the applicable valuation methodology
"OECD"	means the Organisation for Economic Co-operation and Development
"Opening NAV"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Operating Expenses"	has the meaning given to it in Appendix 1 entitled "Fund Costs and Expenses"
"Organisational Expenses"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Service Fees"	means any amounts payable to a member of the Macquarie Group or a Macquarie Fund (other than the Fund) by a Borrower for goods or services, including goods or services relating or ancillary to, or in connection with, an Investment, such as: (a) the acquisition, disposal, or sale of Borrower assets; (b) restructuring advice or support; (c) hedging arrangements; (d) cash management, depositary, or account services; and/or (e) other banking, financial advisory or similar services
"Parallel Vehicle"	has the meaning given to it in Section 6.1 entitled "Fund Structure"
"Participating Capital Account"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Partnership Agreement"	means the limited partnership agreement with respect to each Partnership, and if applicable, and where the context requires, the limited partnership agreement of any Parallel Vehicle, in each case as amended and/or supplemented from time to time

Term	Meaning
“Partnership Sponsor Commitment”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Partnerships”	means the Luxembourg Levered Partnership, the Delaware Levered Partnership, the Luxembourg Unlevered Partnership and the Delaware Unlevered Partnership
“Performance Fee”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Portfolio Management Agreements”	means the portfolio management agreements between the Manager and the Portfolio Manager, pursuant to which the Manager will appoint the Portfolio Manager to provide certain portfolio management functions
“Portfolio Manager” or “MIMEL”	means Macquarie Investment Management Europe Limited of Ropemaker Place, 28 Ropemaker Street, London EC2Y 9HD (or any other member of the Macquarie Group that is appropriately authorised, as may be appointed from time to time in accordance with the Partnership Agreements
“Portfolio Monitoring Team”	means the Portfolio Monitoring Team overseeing the monitoring of performance of every Investment within the portfolio with the composition, duties and functions as set out in Section 4.2 entitled “Investment Management Expertise”
“Re-Up Commitments”	means any Commitments accepted by the General Partners following the Final Closing Date
“Re-Up Investor”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Related Party Transaction”	means: (a) any co-investment with, or investment in which, a Related Person or one or more of the Macquarie Funds, holds a participation or any transfer or sale of (all or part of) an Investment to or from Macquarie Funds or a Related Person; (b) any transaction with a Macquarie Affiliated Borrower; and (c) (including on a standing basis) any transactions or contractual arrangements that may be or are to be entered into between the Fund and a Related Person including, for the avoidance of doubt, any arrangement or transaction between any Related Person and an Investment whereby any transaction fees, break up fees, directors' fees and/or other investment related fees are paid by, that Investment to the Related Person, in each case, excluding any Seed Investment
“Related Person”	means the relevant General Partner, the Manager, the Portfolio Manager and any Adviser, and in each case, their Associates
“Requested Withdrawal Date”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Rescue Investments”	means a further Investment with respect to an existing Investment relating to any extension, amendment, restructuring or other similar action in relation to that Investment or, in relation to a Lease Investment, relating to the maintenance, repair, upgrade or reconfiguration of the assets underlying that Lease Investment, in each case whose purpose is the recovery of capital contribution towards the Investment
“SEC”	means the U.S. Securities Exchange Commission
“Seed Investment”	means an Investment purchased by the Fund from a member of the Macquarie Group which was committed to by such member prior to the Initial Closing Date and disclosed to Investors prior to making their Commitment
“Side Letters”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“SOFR”	means the secured overnight financing rate administered by the Federal Reserve Bank of New York (or any other person which takes over the administration of that rate) published by the Federal Reserve Bank of New York (or any other person which takes over the publication of that rate)
“Special Limited Partner”	means any Associate of the Manager admitted to the Fund as a partner by the relevant General Partner (upon the request of the Manager) for the purposes of receiving the Performance Fee

Term	Meaning
	and any such Special Limited Partner shall contribute such amounts as required by the relevant General Partner
“Sponsor Commitment”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Sponsor Lock-Up Period”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Starting Quarterly Capital Account”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Subscription Agreement”	means an agreement in such form as may be approved by the relevant General Partner or any of its Associates, pursuant to which an Investor subscribes for an Interest in the Fund or Feeder Partner, as the case may be
“Subscription Line Financing”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Subsequent Closing Date”	means any Closing Date after the Initial Closing Date
“Suspension Period”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“Tax” or “Taxation”	means all forms of taxation and statutory, governmental, state, provincial, local governmental or municipal impositions, duties, contributions and levies, in each case in the nature of tax, whether levied by reference to income, profits, gains, net wealth, asset values, turnover, added value or otherwise (including social security contributions and any other payroll taxes and transfer taxes), and shall further include payments to a tax authority on account of Tax, whenever and wherever imposed, and whether direct or indirect or imposed by way of a withholding or deduction for or on account of tax or otherwise) and in respect of any person and all penalties and interest relating thereto
“Transaction Fees”	has the meaning given to it in Section 5 entitled “Summary of Terms”
“UK”	means the United Kingdom
“Undrawn Commitments”	means, in relation to an Investor, the aggregate of such person’s Commitment which remain capable of being called pursuant to the Partnership Agreements and shall include, for the avoidance of doubt, those amounts repaid and available for further drawdown pursuant to the Partnership Agreements. For the avoidance of doubt, the repayment of any payment-in-kind interest (being interest that has been capitalised or added to the principal balance of an Investment rather than paid in cash) shall not increase an Investor’s Undrawn Commitment
“Undrawn Fund Commitments”	means the aggregate of all Undrawn Commitments and the undrawn commitments of Investors in the Parallel Vehicles and Alternative Investment Vehicles (without double counting)
“Unlevered Commitments”	means, at any time, the aggregate of Commitments made to the Unlevered Partnerships
“Unlevered Invested Capital”	means, in respect of an Investment of the Unlevered Partnerships, the aggregate amount invested (or committed) by the Unlevered Partnerships in or to such Investment (including any amount funded or to be funded by a Credit Facility (or equivalent)), reduced by an amount equal to: (i) principal amounts that have been realised (or any other return of invested capital) and deemed distributed to Investors in the Unlevered Partnerships; and (ii) any impairment in value of such Investment, in each case as reasonably determined by the relevant General Partner
“Unlevered Partnerships”	means Macquarie Specialized Infrastructure Global 3 (USD) UnLev Offshore Fund SCSp, a Luxembourg special limited partnership (<i>société en commandite spéciale</i>) and Macquarie Specialized Infrastructure Global 3 (USD) UnLev Onshore Fund LP, a Delaware limited partnership
“Unlevered Undrawn Commitments”	means, at any time, the aggregate of Undrawn Commitments made to the Unlevered Partnerships
“U.S.”	means the United States of America, its territories and possessions, any state of the United States of America and the District of Columbia

Term	Meaning
"U.S. GAAP"	means generally accepted accounting principles applied in the United States
"U.S. Investment Company Act"	means the United States Investment Company Act of 1940, as amended, and all rules and regulations promulgated thereunder
"U.S. Securities Act"	means the United States Securities Act of 1933, as amended, and all rules and regulations promulgated thereunder
"VAT"	means, (i) in the United Kingdom, value added tax charged in accordance with the Value Added Tax Act 1994; (ii) within the European Union such Taxation as may be levied in accordance with (but subject to derogations from) Directive 2006/112/EC, and (iii) outside the United Kingdom and the European Union, any similar Taxation levied by reference to added value or sales
"Withdrawal Date"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Withdrawing Account"	has the meaning given to it in Section 5 entitled "Summary of Terms"
"Withdrawing Investor"	has the meaning given to it in Section 5 entitled "Summary of Terms"

9. Contact Details

General Partner

- **Luxembourg Levered Partnership:** MSIG 3 (USD) Lev General Partner S.à r.l., a private limited liability company (*société à responsabilité limitée*), which will be incorporated in Luxembourg and registered with the Luxembourg Register of Commerce and Companies
- **Luxembourg Unlevered Partnership:** MSIG 3 (USD) UnLev General Partner S.à r.l., a private limited liability company (*société à responsabilité limitée*) incorporated in Luxembourg and that is registered with the Luxembourg Register of Commerce and Companies under number B295793
- **Delaware Levered Partnership:** MSIG 3 (USD) Lev General Partner LLC, a limited liability company formed in the State of Delaware and registered as a limited liability company with the State of Delaware Division of Corporations
- **Delaware Unlevered Partnership:** MSIG 3 (USD) UnLev General Partner LLC, a limited liability company formed in the State of Delaware and registered as a limited liability company with the State of Delaware Division of Corporations

Manager

Macquarie Asset Management Credit Advisers US, LLC
660 Fifth Avenue
New York, 10103
United States

Portfolio Manager and UK Distributor

Macquarie Investment Management Europe Limited
Ropemaker Place,
28 Ropemaker Street
London EC2Y 9HD

Administrator and Loan Administrator

SEI Investments – Luxembourg S.A. (acting as the administrator of the Luxembourg Partnerships)
26, Boulevard Royal
L-2449 Luxembourg
Grand Duchy of Luxembourg

SEI Investments – Global Fund Services Limited (acting as the administrator of the Delaware Partnerships)
One Charlemont Square
Charlemont St, Dublin 2
Ireland, D02 X9Y6

UK Legal Advisers to the Fund

Linklaters LLP
20 Ropemaker Street
London EC2Y 9AR

Luxembourg Legal Advisers to the Fund

Linklaters LLP
Allegro Building
35, Avenue John F. Kennedy
L-1855 Luxembourg
Grand Duchy of Luxembourg

U.S. Legal Advisers to the Fund

Linklaters LLP
1290 Avenue of the Americas
New York, NY 10104
USA

Auditor

PricewaterhouseCoopers LLP
300 Madison Ave
New York
NY 10017
United States

PricewaterhouseCoopers
2 Rue Gerhard Mercator
2182 Gasperich
Grand Duchy of Luxembourg

Appendix 1: Fund Costs and Expenses

As set out in “Fund Expenses” in Section 5 entitled “Summary of Terms”, each Partnership shall be responsible for all operational costs, liabilities, expenses and taxes it incurs, including all such accounting, legal, tax (including regulatory tax compliance), regulatory, marketing and other administrative costs and expenses (the “**Operating Expenses**”), including, without limitation, in connection with:

- (a) all fees, costs, expenses and liabilities in connection with the sourcing, evaluating, negotiating, arranging, structuring, organising, making, managing, acquiring, operating, maintaining, monitoring, holding, realising, winding-up, liquidating, dissolving and disposing of Investments (including Further Investments and refinancing and any Broken Deal Expenses), including (i) investment banking fees, bank charges, brokerage commissions, clearing and settlement charges, syndication and solicitation fees, sales commissions, arranger fees, and other investment, execution, closing, insurance and administrative fees, costs and expenses, (ii) any costs and expenses in connection with the establishment and operation of any Alternative Investment Vehicle or Intermediate Vehicle, and (iii) any travel and travel-related costs and expenses, including accommodation and meals, incurred in connection therewith (provided that any air travel will be limited to the cost of business class commercial airfare);
- (b) the costs, fees, expenses or liabilities of all brokers, auditors, accountants, Tax advisers, administrators, custodians, lawyers, investment bankers, consultants, underwriters, auditors, appraisers, valuers, valuation advisers, hedging advisers (including the FX Manager and/or other providers of services in relation to the management of currency exposures), calculation agents, process agents, loan administrators, loan servicers and other similar advisers or service providers who are engaged in relation to the operation of the Fund or any Investment or to advise the relevant General Partner, the Manager or their respective Associates in respect of the Fund or any Investments, including where any such services are provided in-house by an employee or member of the Macquarie Group, provided that:
 - a. any fees paid shall not exceed the rate the relevant General Partner determines, acting reasonably, would be payable if such services were provided by a third party; and
 - b. if the aggregate amounts earned, from the relevant Partnership or in relation to the making of Investments, by an employee or member of the Macquarie Group exceed USD 100,000 per annum (as may be increased with Advisory Committee consent), such services shall not be engaged by the relevant Partnership without prior Advisory Committee consent,

which for the avoidance of doubt excludes, with respect to the Luxembourg Partnerships only, the General Partner Fee;

- (c) any domiciliation expenses and fees relating to the relevant General Partner;
- (d) the costs, fees, expenses or liabilities, including any principal or interest expenses, required to be paid in connection with any borrowings (including any credit facility), guarantees and other indebtedness, or undertakings incurred by the Fund in accordance with this, including, but not limited to, the legal fees and expenses of Lender's legal counsel, the fees and expenses of the Fund's legal counsel, or broker's fees, Lender's assumption or transfer fees and required reserves;
- (e) all costs, fees, expenses or liabilities incurred in connection with any hedging transaction, including such transactions hedging any foreign exchange or other risks associated with any Investments or the Fund;
- (f) all fees, costs expenses or liabilities incurred in connection with obtaining external credit ratings (if any);
- (g) all fees, costs, expenses and liabilities incurred in connection with the ongoing operation and administration of the Fund and safeguarding and/or holding assets of the Fund, including (i) investor communications, reports and notices (including in relation to calling capital from and making distributions to the Investors) and other required or requested information, including ESG reporting, (ii) the administration of assets including the appointment of any third-party administrator (including the Administrator, any loan administrator or loan servicer) and any custodian or sub-custodian, transfer registration and other similar fees and expenses incurred in respect of such person's appointment in accordance with the relevant Partnership Agreement, (iii) any amendments, restatements or other modifications to, and compliance with, the relevant Partnership Agreement or other related documents of the relevant Partnership or equivalent in respect of any Parallel Vehicle, and (iv) negotiation of and compliance with any Side Letters and any most favoured nation election process;
- (h) all fees, costs, expenses and liabilities incurred in relation to the preparation of the annual audit of the Fund, valuations of Investments, and preparation and maintenance of the financial records of the relevant Partnership and the Fund, including expenses associated with the preparation of the Partnership's and the Fund's financial statements, tax

returns, tax estimates or any other administrative, regulatory or other Partnership-related or Fund-related reporting or filing obligations, including the fees of the Auditors and independent valuers in connection therewith;

- (i) any fees, costs, expenses and liabilities incurred in connection with the legal, tax and regulatory compliance of the Fund and its activities including any Intermediate Vehicle, including making or maintaining any filings, registrations and/or applications with any governmental or regulatory authority (including any filings, registration and/or applications made on behalf of one or more Investors or Feeder Investors), to comply with an Information Reporting Regime, or in connection with Listing any Investment on any exchange, or relating to any activities with respect to protecting the confidential or non-public nature of any information (including Confidential Information (as defined in the relevant Partnership Agreement)) but excluding any amounts allocated to an Investor, in each case, pursuant to the relevant Partnership Agreement;
- (j) all fees, costs, expenses and liabilities incurred in connection with the offering and sale of Interests to prospective investors in any additional closing following the Final Closing Date, including but not limited to fees and expenses of independent accountants, tax and legal advisers and other professional fees, as well as marketing and promotional expenses (including printing costs) and travel, meals and accommodation expenses (provided that any air travel will be limited to the cost of business class commercial airfare);
- (k) all Taxes, fees and other statutory fees or other governmental charges levied against or in respect of the Fund or on its income or assets or in connection with its business, operations or Investments, including the business, operations or Investments of any Intermediate Vehicles and the expenses incurred in connection with such Taxes, fees and other statutory charges or other governmental charges (in each case to the extent not otherwise paid and borne by any Intermediate Vehicle) other than any such sums imposed as a result of the status, identity or residence of an Investor or as a result of an Investor's failure to provide the Fund with any information or certification to prevent the imposition of such Taxes, fees and other statutory charges, or otherwise attributable or allocable to an Investor as determined by the relevant General Partner, which shall be borne by the relevant Investor or Investors;
- (l) any Irrecoverable VAT incurred by the relevant General Partner, the Manager, the Portfolio Manager, or any member of the Macquarie Group in relation to, or in connection with, the business of the Fund including (for the avoidance of doubt) any Irrecoverable VAT in connection with all costs, fees or expenses relating to the offering and operations of the Fund, including any of the items set out in the other paragraphs of this Appendix 1 entitled "Fund Costs and Expenses";
- (m) any premiums and fees for insurance for the benefit of the Fund or the relevant General Partner (including directors' and officers' liability, errors and omissions or other similar insurance policies, and any other insurance for coverage of liabilities incurred in relation to the activities of, or on behalf of, the Fund);
- (n) all costs, fees, expenses or liabilities incurred in: (i) any actual or potential litigation or other dispute related to the Fund or any actual or potential Investment, including expenses incurred in connection with the investigation, prosecution, defence, judgment or settlement of litigation, and the appointment of any agents for service of process on behalf of the Fund or the Investors, excluding, for the avoidance of doubt, any expenses with respect to which an Indemnified Party would not be entitled to indemnification or advancement by reason of the limitations set forth in the relevant Partnership Agreement; (ii) any audit, enquiry, examination, investigation, litigation or other proceeding by any Tax or regulatory authority or incurred in relation to a government inquiry, litigation or proceeding, including the amounts of any judgments, fines, interest or settlements paid; and (iii) the Fund's indemnification obligations under the relevant Partnership Agreement, including advancement of any such fees, costs and expenses to an Indemnified Party as provided for in the relevant Partnership Agreement;
- (o) all fees, costs, expenses and liabilities related to data rooms established for prospective Investors and/or Feeder Investors in the Fund, and procuring, developing, implementing or maintaining information technology, data subscription and licence-based services, research publications, materials, equipment and services, computer software or hardware and electronic equipment in connection with providing services to the Fund (including investor reporting and relationship management), in connection with identifying, investigating (and conducting diligence with respect to) or evaluating, structuring, consummating, holding, monitoring, or selling potential and actual Investments, or in connection with obtaining or performing research related to potential or actual Investments, industries, sectors, geographies or other relevant market, economic, geopolitical or similar data or trends, including risk analysis software;
- (p) all costs and expenses of all meetings pursuant to the relevant Partnership Agreement (or adopting consents or decisions in writing in lieu of meetings), including meetings of the Investors (including reasonable travel and lodging expenses incurred by the relevant General Partner, the Manager, the Portfolio Manager or any member of the Macquarie Group, Investors or their employees) and of the Advisory Committee, conferences or meetings with certain Investors or Feeder Investors, and costs of the Advisory Committee (including reasonable travel and lodging expenses incurred by the relevant General Partner, the Manager, the Portfolio Manager or any member of the Macquarie Group,

and members of the Advisory Committee or their employees in relation to their activities pursuant to the relevant Partnership Agreement);

- (q) all costs and expenses relating to: (i) the potential transfer or actual transfer of an Investor's interest (to the extent not paid by the transferor or transferee) or (ii) the default by a Defaulting Investor or a withdrawal of an Investor, in each case only to the extent not paid or otherwise borne by the relevant Investor;
- (r) any overhead costs, fees, expenses or liabilities and salaries and benefits in connection with maintaining an office and/or directors, officers or employees of any investment structures, including Alternative Investment Vehicles and Intermediate Vehicles, including all fees, costs, expenses and liabilities relating to the appointment and engagement of independent and non-executive directors (or equivalent) acting on behalf of the relevant General Partner, any Intermediate Vehicle, Alternative Investment Vehicle or Feeder Partner;
- (s) all fees, costs and expenses incurred in connection with: (i) terminating, winding-up, liquidating and dissolving the relevant Partnership, or any Intermediate Vehicle or Investment; (ii) in the case of each of the foregoing items in this Appendix 1 entitled "Fund Costs and Expenses", all similar items in connection with any Feeder Partner, Alternative Investment Vehicles and Intermediate Vehicles (to the extent not otherwise paid and borne by such Feeder Partner, Alternative Investment Vehicles or Intermediate Vehicles); and (iii) all other costs and expenses of the Fund, the relevant General Partner, the Manager, the Portfolio Manager or any member of the Macquarie Group in connection with the business or operation of the Fund, any Intermediate Vehicles and its Investments;
- (t) with respect to the Luxembourg Partnerships only, the General Partner Fee; and
- (u) any extraordinary expense arising in connection with the Fund.

Appendix 2: Certain Offering Notices

The distribution of this Memorandum and the offering of Interests in the Fund in certain jurisdictions is restricted by law or regulation and, accordingly, it is the responsibility of any prospective investor to satisfy itself as to compliance with relevant laws and regulations of any territory in connection with any application to participate in the Fund, including obtaining any requisite governmental or other consent and observing any other formality prescribed in such territory. No action has been taken or is expected to be taken in any jurisdiction by the Fund, the Manager or Macquarie that would permit a public offering of Interests or possession or distribution of this Memorandum in any jurisdiction where action for that purpose is required.

NOTICE TO RESIDENTS OF THE UNITED KINGDOM

For the purposes of this section, the “Fund” may refer to each of the Partnerships, as applicable.

For the purposes of the Alternative Investment Fund Managers Regulations 2013, as amended (“**UK AIFM Regulations**”), the Fund will constitute a non-UK AIF whose AIFM is the Manager, itself a non-UK AIFM. Marketing to any investor domiciled or with a registered office in the UK will be restricted by the UK AIFM Regulations and no such marketing shall take place except as permitted by the UK AIFM Regulations.

The Fund is a collective investment scheme whose promotion is restricted by sections 238 and 240 of the Financial Services and Markets Act 2000 (“**FSMA**”), and which has not been authorised or recognised by the FCA nor has the content of this Memorandum been reviewed or approved by the FCA. The Interests are only offered to, and this Memorandum is only addressed to, or directed at, persons in the United Kingdom who are “**professional investors**” (being investors that are considered to be professional clients within the meaning of Article 2(1)(8) of Regulation EU No 600/2014 as it forms part of retained EU law as defined in the European Union (Withdrawal) Act 2018, as amended). This Memorandum is distributed by the Portfolio Manager in the United Kingdom. The Portfolio Manager is authorised and regulated by the Financial Conduct Authority (Firm Reference Number: 733534).

Accordingly, this Memorandum is not being distributed, and must not be passed on, to the general public in the United Kingdom. This Memorandum is not to be distributed, delivered or passed on to any person resident in the United Kingdom, unless it is being made only to, or directed only at, persons falling within the following categories:

- (a) If made by a person who is not an FCA-authorised person, such offer or distribution is being made only to or, directed only at:
 - (i) Persons who are professional investors within the meaning of Article 19(5) of the Financial Services and Markets Act 2000 (Financial Promotion) Order 2005 (as amended) (the “**FPO**”);
 - (ii) Persons to whom Article 49(2) of the FPO (high-net-worth companies, unincorporated associations, etc.) applies;
 - (iii) Persons falling within the categories of “certified high-net-worth individual” described in Article 48(2) of the FPO (being individuals who have certified their net worth in the form and as required by the FPO) and “self-certified sophisticated investor” described in Article 50a(1) of the FPO (being individuals who have certified that they are a sophisticated investor, in the form and as required by the FPO); or
 - (iv) Other persons to whom it may otherwise lawfully be offered or distributed (all such persons together being referred to as “**Relevant Persons I**”).
- (b) If made by a person who is an FCA-authorised person, such offer or distribution is being made only to, or directed only at:
 - (i) Persons who are professional investors within the meaning of Article 14(5) of the Financial Services and Markets Act 2000 (Promotion of Collective Investment Schemes) Exemptions Order 2001 (the “**CIS Promotion Order**”);
 - (ii) Persons to whom Article 22(2) of the CIS Promotion Order (high-net-worth companies, unincorporated associations, etc) applies; or
 - (iii) Other persons to whom it may otherwise lawfully be offered or distributed (all such persons together being referred to as “**Relevant Persons II**”, and collectively with the Relevant Persons I: the “**Relevant Persons**”).

No person, other than Relevant Persons, may act on the Memorandum and any investment or investment activity to which this Memorandum relates is available only to Relevant Persons and will be engaged in only with such persons. Persons of any other description in the United Kingdom may not receive and should not act or rely on this Memorandum or any other

marketing materials relating to the Fund. In addition, the rules made under FSMA for the protection of retail clients shall not be available to investors and investors shall not be entitled to compensation under the UK Financial Services Compensation Scheme.

Interests are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the UK. **“Retail investor”** has the meaning given in Regulation EU No 1286/2014 as it forms part of retained EU law as defined in the European Union (Withdrawal) Act 2018, as amended (the **“UK PRIIPs Regulation”**). Consequently, no key information document required by the UK PRIIPs Regulation for offering or selling the Interests or otherwise making them available to retail investors in the UK has been prepared and therefore: (i) neither this Memorandum nor any other offering or marketing material relating to the Fund or the Interests may be distributed to a retail investor and any dissemination by the recipient in breach of this restriction is not authorised and shall be at the liability of the recipient; and (ii) offering or selling the Interests or otherwise making them available to any retail investor in the UK may be unlawful under the UK PRIIPs Regulation.

If the recipient of this Memorandum is in any doubt about the investment to which this Memorandum relates, they should consult a person authorised under FSMA who specialises in advising on investing in collective investment schemes.

This Memorandum is not an approved prospectus for the purposes of Section 85 of the FSMA.

NOTICE TO RESIDENTS OF SOUTH KOREA

The Interests described herein may not be offered, sold and delivered directly or indirectly, or offered or sold to any person for re-offering or resale, directly or indirectly, in Korea or to any resident of Korea except pursuant to the applicable laws and regulations of Korea, including the financial investment services and capital markets act and its subordinate decrees and regulations thereunder (collectively **“FSCMA”**) and the foreign exchange transaction law of Korea and its subordinate decrees and regulations thereunder (collectively, **“FETL”**). The Interests in the Fund are being offered and sold in Korea only to “Qualified Professional Investors” as such term is defined in the FSCMA and pursuant to the requirements or applicable exemptions thereunder. The Fund has not been registered with the financial services commission of Korea for a public offering in Korea including the FSCMA. Furthermore, the sale and purchase of Interests in the Fund should comply with the requirements under the FETL. Neither the Fund nor any placement agent (if any) makes any representation with respect to the eligibility of any resident of Korea to acquire the Interests under the laws of Korea, including but without limitation the FETL.

This offer is distributed by Macquarie Securities Korea Limited on behalf of the Manager.

NOTICE TO RESIDENTS OF JAPAN

The Interests, which fall under “securities” as set out in Article 2, Paragraph 2, Item 6 of the Financial Instruments and Exchange Act (Act No. 25 of 1948, as amended, the **“FIEA”**), have not been and will not be registered for a public offering in Japan pursuant to Article 4, Paragraph 1 of the FIEA. Accordingly, the Interests will not be directly or indirectly offered or sold in Japan or to a resident of Japan except pursuant to the private placement exemption as set out in Article 2, Paragraph 3, Item 3 of the FIEA and/or any other applicable rules or regulations. For this purpose, the term “resident of Japan” means a natural person having his/her place of domicile or residence in Japan, or a juridical person having its main office in Japan as defined in Article 6, Paragraph 1, Item 5 of the Foreign Exchange and Foreign Trade Act (Act No. 228 of 1949, as amended).

In the case that the Interests are being offered in Japan pursuant to an exemption from the licensing requirements pursuant to Article 63 of the FIEA, the Interests must be held by Qualified Institutional Investors (*tekikaku kikan toshika*) (as defined in the Cabinet Office Ordinance on Definitions under Article 2 of the Financial Instruments and Exchange Act (Ministry of Finance Ordinance No. 14 of 1993, as amended), the **“QII”**) and persons prescribed in Article 17-12, Paragraph 1 of the Order for Enforcement of the Financial Instruments and Exchange Act (Cabinet Order No. 321 of 1965, as amended, the “Cabinet Order”) and Article 233-2, Paragraph 1 through 4 of the Cabinet Office Ordinance on Financial Instruments Business, etc. (Cabinet Office Ordinance No. 52 of 2007, as amended, the **“Cabinet Office Ordinance”**), the **“Permitted Investors”**). As far as the Permitted Investors are concerned, the Interests may not be held by 50 persons or more of the Permitted Investors as a result of the offering of the Interests, together with any Permitted Investors that have acquired interests which are of the same kind as the Interests, as provided under Article 234 of the Cabinet Office Ordinance, and which were issued within six months prior to the issuance of the Interests, in accordance with Article 17-12, Paragraph 4, Item 2-(ro) of the Cabinet Order; provided that the QII will not be counted towards the foregoing 50 person limitation.

If an investor is a QII, transfer of the Interests to any person other than a QII shall be prohibited, and if an investor is a Permitted Investor, transfer of Interests will be allowed only when such Permitted Investor is to transfer all of the acquired or purchased Interests in a lump sum to a QII or a Permitted Investor.

In addition to the paragraph above, the Interests shall not be held by those persons that fall within the category of a person listed in Article 63, Paragraph 1, Item 1-(i) through (ha) of the FIEA. A subscription for an Interest by such person or the transfer

of an Interest to such person shall be prohibited and shall not be accepted by the General Partner. This offer is distributed by Macquarie Asset Management Japan Co., Ltd on behalf of the Manager.

NOTICE TO RESIDENTS OF AUSTRALIA

In respect of prospective investors in Australia, this Memorandum is issued by the General Partner. The General Partner is not licensed in Australia to provide financial product advice in relation to the Interests. A Feeder Investor will not have cooling off rights. For clarity, neither the Manager nor the Portfolio Manager makes any statement in this document. In respect of prospective investors in Australia, to the extent any statement in this document is attributed to the Manager or the Portfolio Manager, such statement will be deemed to be made solely by Macquarie Fund Advisers Pty Ltd (Australian financial services licence no. 318123) and by no other person. The offer of Interests contained in this Memorandum is directed only to persons who qualify as “Wholesale Clients” within the meaning of Section 761G of the Corporations Act 2001 (Cth). (“**Corporations Act**”) and “Sophisticated Investors” or “Professional Investors” for the purposes of Section 708 of the Corporations Act.

If the Interests are to be on sold or transferred to prospective investors in Australia without a product disclosure statement, or other regulated Australian disclosure document, within 12 months of their issue, they may only be on sold or transferred to persons in Australia who are “Wholesale Clients” under Section 761G of the Corporations Act and applicable regulations and “Sophisticated Investors” or “Professional Investors” for the purposes of Section 708 of the Corporations Act. Each recipient of this Memorandum warrants that it is, and at all times will be, a “Wholesale Client” and a “Sophisticated Investor” or “Professional Investor” within the meaning of the Corporations Act and applicable regulations.

This Memorandum is not a product disclosure statement under Part 7.9 of the Corporations Act or other regulated disclosure document under Part 6D of the Corporations Act. This Memorandum has not been, and will not be, reviewed by, nor lodged with, the Australian Securities and Investments Commission and does not contain all the information that a product disclosure statement or other regulated disclosure document is required to contain. The distribution of this Memorandum in Australia has not been authorised by any regulatory authority in Australia.

This Memorandum is provided for information purposes only and does not constitute the provision of any financial product advice or recommendation. This Memorandum does not take into account the investment objectives, financial situation and particular needs of any person. Neither the Partnership, nor any other person referred to in this Memorandum, other than Macquarie Fund Advisers Pty Ltd, Macquarie Bank Limited and Macquarie Group Limited, holds an Australian financial services licence. You should consider carefully whether the investment is suitable for you, having regard to your investment objectives, financial situation and particular needs. There is no cooling-off regime that applies in relation to the acquisition of these Interests in Australia.

This Memorandum has not been prepared specifically for Australian investors. It:

- may contain references to dollar amounts which are not in Australian dollars;
- may contain financial information which is not prepared in accordance with Australian law or practices;
- may not address risks associated with investment in foreign currency denominated investments; and
- does not address Australian tax issues.

This document has been prepared without taking account of your objectives, financial situation or needs and you should obtain independent professional financial advice that considers your circumstances before making any financial or investment decisions. There is no cooling-off regime that applies in relation to the acquisition of any Interest in Australia.

This Memorandum does not constitute or involve a recommendation to acquire an offer or invitation for issue or sale, or offer or invitation to arrange the issue or sale, of Interests to a “retail client” (as defined in section 761G of the Corporations Act and applicable regulations) in Australia.

NOTICE TO RESIDENTS OF ISRAEL

This Memorandum has not been approved by the Israel Securities Authority and will only be distributed to Israeli residents in a manner that will not constitute “an offer to the public” within the meaning of Section 15(a) of the Israeli Securities Law 5728-1968, and prospective investors in the Interests will not be able to rely on such securities law in many matters related to or deriving from this Memorandum and/or their investment in the Fund. This Memorandum does not constitute a “prospectus” for the purposes of the Israeli Securities Law 5728-1968 (the “**Israeli Securities Law**”). Accordingly, this memorandum is directed at and intended for investors that fall within at least one category of the first schedule of the Israeli Securities Law (“**Sophisticated Investors**”).

Accordingly, each Israeli purchaser of the Interests will be required to make certain representations and undertake that it is purchasing the Interests for investment purposes only, with no intention to sell or distribute them.

Neither the Fund nor any of the General Partners are registered and do not intend to register as an investment adviser or an investment portfolio manager under the Israeli Regulation of Investment Counselling, Investment Marketing and Portfolio Management Law, 5755-1995 (the “**Investment Advice Law**”). Furthermore, the Interests are not being offered by a licensed marketer of securities pursuant to the Investment Advice Law. Therefore, all Israeli investors will be required to be “Qualified Clients” within the meaning of the Investment Law.

It is the responsibility of any prospective investor wishing to purchase Interests to satisfy themselves as to the full observance of the laws of Israel in connection with any such purchase, including obtaining any governmental or other consent, if required. This Memorandum may not be reproduced or used for any other purpose, nor be furnished to any other person other than those to whom copies have been sent.

The information within this Memorandum does not constitute investment advice or investment marketing. In making an investment decision, prospective investors must only rely on their own examination of the Fund and the terms of the offering, including the merits and risks involved. Investors are encouraged to seek competent investment counselling from a locally licensed investment counsel prior to purchasing any Interests in the Fund including advice from appropriate advisers with respect to the legal, accounting, tax and financial ramifications of purchasing Interests. The Manager does not hold a licence under the Investment Advice Law, nor does it carry the insurance as required of a licensee thereunder. As a prerequisite to the receipt of a copy of this Memorandum a recipient may be required by the Fund to provide confirmation that it is a Sophisticated Investor purchasing Interests for its own account or, where applicable, for other Sophisticated Investors. This Memorandum does not constitute an offer to sell or solicitation of an offer to buy any securities other than the Interests offered hereby, nor does it constitute an offer to sell to or solicitation of an offer to buy from any person or persons in any state or other jurisdiction in which such offer or solicitation would be unlawful, or in which the person making such offer or solicitation is not qualified to do so, or to a person or persons to whom it is unlawful to make such offer or solicitation.

NOTICE TO RESIDENTS OF THE UNITED STATES OF AMERICA

Interests in the Fund have not been and will not be registered under the U.S. Securities Act, in reliance upon the exemption from registration provided by Section 4(a)(2) thereof and/or Regulation D and Regulation S promulgated thereunder, or under the securities laws of any of the states of the United States in reliance on exemptions of similar import in the laws of the states where the offering will be made, and no such registration is contemplated.

There is no public market for the Interests in the Fund and no such market is expected to develop in the future. The Interests in the Fund offered hereby are subject to restrictions on transferability and resale and may not be transferred or resold except as permitted under the U.S. Securities Act, the U.S. Investment Company Act and applicable U.S. state securities laws pursuant to registration or exemption therefrom.

The Interests in the Fund are suitable only for sophisticated investors who do not require immediate liquidity for their investments, for whom an investment in the Fund does not constitute a complete investment program and who fully understand and are able to bear the loss of their investment in the Fund. The Fund’s investment program, by its nature, may be considered to involve a substantial degree of risk. Subscribers for Interests in the Fund must represent that they are acquiring the Interests in the Fund for investment purposes only and not with a view to resale or distribution thereof. With respect to the Luxembourg Levered Partnership and the Luxembourg Unlevered Partnership, a subscriber that is a U.S. Person (as defined in Rule 902 of Regulation S under the U.S. Securities Act) will also be required to represent, among other things, that it is (i) an “accredited investor” as defined in Rule 501 of Regulation D promulgated under the U.S. Securities Act and (ii) (a) a “qualified purchaser” as defined in Section 2(a)(51) of the U.S. Investment Company Act or (b) a “knowledgeable employee” as defined in Rule 3c-5 under the U.S. Investment Company Act. With respect to the Delaware Levered Partnership and the Delaware Unlevered Partnership, all subscribers will be required to represent, among other things, that it is (i) an “accredited investor” as defined in Rule 501 of Regulation D promulgated under the U.S. Securities Act and (ii) (a) a “qualified purchaser” as defined in Section 2(a)(51) of the U.S. Investment Company Act or (b) a “knowledgeable employee” as defined in Rule 3c-5 under the U.S. Investment Company Act.

None of the Partnerships or other entities comprising the Fund will be registered as an investment company under the U.S. Investment Company Act, as each Partnership and other entity will rely on one or more exclusions or exemptions thereunder. Therefore, the Fund will not be subject to the provisions of the U.S. Investment Company Act designed to protect registered investment company investors.

Each of the General Partners and the Manager, as applicable, is exempt from registration with the U.S. Commodity Futures Trading Commission (“**CFTC**”) as a commodity pool operator (“**CPO**”) pursuant to CFTC Rule 4.13(a)(3). Therefore, unlike a registered CPO, neither the General Partners nor the Manager are required to deliver a CFTC disclosure document to prospective investors, and neither the General Partners nor the Manager are required to provide investors with certified annual reports that satisfy the requirements of CFTC rules applicable to registered CPOs.

Offering materials for the offering of the Interests in the Fund have not been filed with or approved or disapproved by the SEC or any other state or federal regulatory authority, nor has any such regulatory authority passed upon or endorsed the merits of this offering or passed upon the accuracy or completeness of any offering materials. Any representation to the contrary is unlawful.

This offer is distributed by Macquarie Capital (USA) Inc. on behalf of the Manager.

NOTICE TO RESIDENTS OF CANADA

Interests may be sold in Canada only to purchasers purchasing, or deemed to be purchasing, as principal that are accredited investors, as defined in National Instrument 45-106 Prospectus Exemptions or subsection 73.3(1) of the Securities Act (Ontario), as applicable, and are permitted clients, as defined in National Instrument 31-103 Registration Requirements, Exemptions and Ongoing Registrant Obligations. Any resale of Interests must be made in accordance with an exemption from, or in a transaction not subject to, the prospectus requirements of applicable Canadian securities laws.

No securities commission or similar authority in Canada has reviewed or in any way passed upon this document or the merits of the Interests, and any representation to the contrary is an offence.

Securities legislation in certain provinces or territories of Canada may provide a purchaser with remedies for rescission or damages if this Memorandum (including any amendment thereto) contains a misrepresentation, provided that the remedies for rescission or damages are exercised by the purchaser within the time limit prescribed by the securities legislation of the purchaser's province or territory. The purchaser should refer to any applicable provisions of the securities legislation of the purchaser's province or territory for particulars of these rights or consult with a legal adviser.

This Memorandum is distributed in Canada by Macquarie Infrastructure and Real Assets (Sales) Canada Ltd. ("**MIRASCL**"), a Canadian exempt market dealer. Pursuant to section 3A.3 of National Instrument 33-105 Underwriting Conflicts (NI 33-105), MIRASCL is not required to comply with the disclosure requirements of NI 33-105 regarding underwriter conflicts of interest in connection with this offering.

NOTICE TO RESIDENTS OF ARGENTINA

This Memorandum includes a private invitation to invest in interests in the Fund. It is addressed only to you on an individual, exclusive, and confidential basis, and its unauthorised copying, disclosure, or transfer by any means whatsoever is absolutely and strictly forbidden. The Manager or its Associates will not provide copies of this prospectus, or provide any kind of advice or clarification, or accept any offer or commitment to purchase the interests herein referred to from persons other than the intended recipient. The offer herein contained is not a public offering, and as such it is not and will not be registered with, or authorised by, the applicable enforcement authority. The information contained herein has been compiled by the Manager, who assumes the sole responsibility for the accuracy of the data herein disclosed.

NOTICE TO RESIDENTS OF BRAZIL

The interests in this Fund may not be offered or sold to the public in Brazil. Accordingly, the interests in the Fund have not been nor will be registered with the Brazilian Securities Commission nor have they been submitted to the foregoing agency for approval. Documents relating to the interests in the Fund, as well as the information contained therein, may not be supplied to the public in Brazil, as the offering of interests in the Fund is not a public offering of securities in Brazil, nor used in connection with any offer for subscription or sale of securities to the public in Brazil.

NOTICE TO RESIDENTS OF CHILE

This offer is subject to *Norma de caracter general n° 336* issued by the Superintendencia of Securities and Insurance of Chile ("**SVS**") and will commence from the date hereof. This offer is on interests not registered in the Registry of Securities or in the Registry of Foreign Securities of the SVS, and therefore, it is not subject to the SVS oversight. The issuer is under no obligation to release information on the interests in Chile. The interests cannot be subject of a public offering if not previously registered in the Pertinent Registry of Securities.

ESTA OFERTA SE REALIZA CONFORME A LA NORMA DE CARÁCTER GENERAL N° 336 DE LA SUPERINTENDENCIA DE VALORES Y SEGUROS (SVS) Y COMIENZA EN LA FECHA DE ESTE MEMORANDUM EN FECHA DEL PRESENTE. ESTA OFERTA VERSA SOBRE VALORES NO INSCRITOS EN EL REGISTRO DE VALORES O EN EL REGISTRO DE VALORES EXTRANJEROS QUE LLEVA LA SVS Y EN CONSECUENCIA, ESTOS VALORES NO ESTÁN SUJETOS A SU FISCALIZACIÓN. NO EXISTE DE PARTE DEL EMISOR OBLIGACIÓN DE ENTREGAR EN CHILE INFORMACIÓN PÚBLICA RESPECTO DE ESTOS VALORES. ESTOS VALORES NO PODRÁN SER OBJETO DE OFERTA PÚBLICA MIENTRAS NO SEAN INSCRITOS EN EL REGISTRO DE VALORES CORRESPONDIENTE.

NOTICE TO RESIDENTS OF COLOMBIA

This Memorandum is for the sole and exclusive use of the addressee as a determined individual/entity and cannot be understood as addressed or be used by any third party, including but not limited to third parties for which the addressee can legally or contractually represent, nor any of its shareholders, administrators or by any of the employees of the addressee. Any material to be delivered in Colombia or to any person located, domiciled or established in Colombia, shall be for the sole and exclusive use of the recipient.

This Memorandum has not been and will not be filed with or approved by the Colombian Financial Superintendency or any other regulatory authority in Colombia.

The issuance of the interests, its trading and payment shall occur outside Colombia; therefore, the interests have not been and will not be registered before the Colombian National Registry of Securities and Issuers, nor with the Colombian Stock Exchange.

The delivery of this Memorandum does not constitute a public offer of securities in the Republic of Colombia. The offer of the Fund is addressed to less than one hundred specifically identified investors. This Memorandum does not constitute and may not be used for, or in connection with, a public offering as defined under Colombian law and shall be valid in Colombia only to the extent permitted by Colombian law. Under Colombian regulations, any offering addressed to one hundred or more named individuals or companies shall be deemed to be an offering to the public requiring the prior approval of the Colombian Financial Superintendency and listing on the Colombian National Registry of Securities and Issuers.

The interests may not be solicited, publicly offered, transferred, sold or delivered, whether directly or indirectly, to any individual or legal entity in Colombia.

The addressee acknowledges the Colombian laws and regulations (including but not limited to foreign exchange and tax regulations) applicable to any transaction or investment made in connection with this Memorandum and acknowledges and represents that it is the sole responsible party for full compliance with any such laws and regulations.

Additionally, Colombian investors are solely liable for conducting an investment suitability analysis as per their applicable investment regime.

NOTICE TO RESIDENTS OF MEXICO

The interests have not been and will not be registered with the National Registry of Securities, maintained by the Mexican National Banking and Securities Commission and, as a result, may not be offered or sold publicly in Mexico. The Fund and any underwriter or purchaser may offer and sell the interests in Mexico on a private placement basis to Institutional and Accredited Investors pursuant to Article 8 of the Mexican Securities Market Law.

NOTICE TO RESIDENTS OF PARAGUAY

The offer of the Interests described in this Memorandum does not constitute a public offering of securities or other financial products or services in Paraguay. The recipient acknowledges that (i) the Interests were issued outside Paraguay, (ii) any legal matter arising from the offer of the interests will not be submitted to any Paraguayan government authority and (iii) the Paraguayan deposit insurance legislation does not insure investments in the interests. The Paraguayan central bank (*banco central del paraguay*), the Paraguayan national stock exchange commission (*comisión nacional de valores del paraguay*) and the Paraguayan banking supervisory authority (*la superintendencia de bancos del banco central del paraguay*) do not regulate the offering of the interests or any obligations that may arise from such offering. Prospective investors must make their own decision as to whether this offering meets their investment objectives and risk tolerance level.

NOTICE TO RESIDENTS OF PERU

The interests and the information contained in this Memorandum are not being marketed or publicly offered in Peru and will not be distributed or caused to be distributed to the general public in Peru. The interests and the information contained herein have not been and will not be confirmed, approved or in any way submitted to the Peruvian Securities and Exchange Commission - *Superintendencia del Mercado de Valores* - nor have they been registered under the Peruvian Securities Market Law (*Ley del Mercado de Valores*), whose single revised text was approved by Supreme Decree No. 093-2002-ef.

Notwithstanding the foregoing, the interests and the information contained herein may be submitted and registered with peruvian pension Funds — *administradoras privadas de fondos de pensiones*—, as required by Superintendence of Banking, Insurance and Pension Funds — *Superintendencia de banca, seguros y administradoras privadas de fondos De pensiones*— as a result of private offerings of the interests addressed to certain institutional investors in accordance with Peruvian Regulations.

NOTICE TO RESIDENTS OF URUGUAY

The sale of the interests qualifies as a private placement pursuant to section 2 of Uruguayan law 18,627. The interests must not be offered or sold to the public in Uruguay, except in circumstances which do not constitute a public offering or distribution under Uruguayan laws and regulations. The interests are not and will not be registered with the Financial Services Superintendency of the Central Bank of Uruguay. The interests correspond to investment funds that are not investment funds regulated by Uruguayan law 16,774 dated September 27, 1996, as amended.

NOTICE TO RESIDENTS OF HONG KONG

WARNING: The contents of this Memorandum have not been authorised or reviewed by the securities and futures commission of Hong Kong or any other regulatory authority in Hong Kong. The Fund is a complex product and you are advised to exercise caution in relation to the offer. If you are in any doubt about any of the contents of this Memorandum, you should obtain independent professional advice.

The Interests have not been and will not be offered or sold in Hong Kong, by means of any document, other than: (i) to “professional investors” as defined in the Securities and Futures Ordinance (Cap. 571) of Hong Kong (the “SFO”) and the securities and futures (professional investor) rules and any other rules made under the SFO; or (ii) in other circumstances which do not constitute an offer of the Interests in the Fund as permitted under the SFO; and no advertisement, invitation or document relating to the Interests has been issued, possessed for the purposes of issue, circulated or distributed, nor will be issued, possessed for the purposes of issue, circulated or distributed, whether in Hong Kong or elsewhere, which is directed at, or the contents of which are likely to be accessed or read by, the public of Hong Kong (except if permitted to do so under the securities laws of Hong Kong) other than (i) with respect to Interests which are or are intended to be disposed of only to persons outside Hong Kong or only to “professional investors” as defined in the SFO and the securities and futures (professional investor) rules and any other rules made under the SFO, or (ii) in circumstances that do not constitute an invitation to the public for the purposes of the SFO.

This offer is distributed by Macquarie Funds Management Hong Kong Limited on behalf of the Manager.

NOTICE TO RESIDENTS OF SINGAPORE

This Memorandum has not been registered as a prospectus with the Monetary Authority of Singapore, and the offer of the Interests is made in reliance on the institutional investor exemption under Section 304 of the Securities and Futures Act 2001, Chapter 289 of Singapore (“SFA”). Accordingly, this Memorandum and any other document or material in connection with the offer or sale of the Fund may not be circulated or distributed, nor may the Interests be offered or sold, whether directly or indirectly, to any person in Singapore other than (i) to an institutional investor (as defined in Section 4A of the SFA) pursuant to Section 304 of the SFA or (ii) otherwise pursuant to, and in accordance with the conditions of, any other applicable provision of the SFA. First sales of the Interests acquired pursuant to Section 304 of the SFA are subject to the requirements under Section 304A of the SFA.

This offer is distributed by Macquarie Infrastructure Management (Asia) Pty Limited (Singapore Branch) on behalf of the Manager.

NOTICE TO RESIDENTS OF THE PEOPLE’S REPUBLIC OF CHINA

The Interests may not be offered or sold directly or indirectly in the People’s Republic of China (which, for such purposes, does not include the Hong Kong or Macau Special Administrative Region or Taiwan). Neither this Memorandum nor any material or information contained or incorporated by reference herein relating to the Interests, which have not been and will not be submitted to or approved/verified by or registered with the China Securities Regulatory Commission (“CSRC”) or other relevant governmental and regulatory authorities in the People’s Republic of China pursuant to relevant laws and regulations, may be supplied to the public in the People’s Republic of China or used in connection with any offer for the subscription or sale of the Interests in the People’s Republic of China. The material or information contained or incorporated by reference herein relating to the Interests does not constitute an offer to sell or the solicitation of an offer to buy any securities in the People’s Republic of China.

The Interests may only be invested in by People’s Republic of China investors that are authorised to engage in the investment in the Interests of the type being offered or sold. People’s Republic of China investors are responsible for informing themselves about and observing all legal and regulatory restrictions, obtaining all relevant government regulatory approvals/licences, verification and/or registrations themselves, including, but not limited to, any which may be required from the People’s Bank of China, CSRC, the State Administration of Foreign Exchange, the China Banking and Insurance Regulatory Commission and other relevant regulatory bodies, and complying with all relevant People’s Republic of China regulations, including, but not limited to, all relevant foreign exchange regulations and/or overseas investment regulations. Persons who come into

possession of this Memorandum are required by the issuer, the Manager and each of their respective representatives to observe these restrictions.

NOTICE TO RESIDENTS OF SWITZERLAND

The Interests in the Fund, this Memorandum and any related services, information and opinions described or referenced in this Memorandum are not, and may not be, offered or marketed to or directed at persons in Switzerland who are non-qualified investors in the meaning of the Federal Act on Collective Investment Schemes (“**CISA**”) and its implementing Ordinance (“**CISO**”) or high-net-worth-individuals (including private investment structures for high-net-worth-individuals that do not have professional treasury operations), even if they have opted out of customer protection under Art. 5(1) of the Financial Services Act (“**FinSA**”) and elected to be treated as professional clients and qualified investors under the FinSA and the CISA, respectively (“**Elective Qualified Investors**”). Therefore, this Memorandum may not be provided to, and Interests may not be offered or marketed to persons in Switzerland who are not qualified investors as defined in Art.10(3) and (3ter) of the CISA (“**Qualified Investors**”), to the exclusion of the subset of Elective Qualified Investors.

None of the information provided in this Memorandum should be construed as an offer for the purchase or sale of, or advertising for, the Interests, nor as an offer of, or advertising for, any related services to non-qualified investors. Circulating this Memorandum and offering advertising or selling Interests to other persons as Qualified Investors may trigger, in particular, licensing requirements, a requirement to appoint a representative and paying agent in Switzerland and other regulatory consequences in Switzerland.

This Memorandum does not constitute a prospectus pursuant to Art. 35 et Seqq. of FinSA and may not comply with the information standards required thereunder. No key information document pursuant to Swiss law, nor any equivalent document recognised under the FinSA, has been established in connection with the Interests and this Memorandum and, therefore, the Interests may not be offered or recommended to retail clients within the meaning of the FinSA in Switzerland (irrespective of their status and eligibility under the CISA), but may only be placed with, and solely made available to, such clients under a long-term, remunerated investment management agreement in accordance with Art. 58 para. 2 FinSA. The Interests will not be listed on the SIX Swiss Exchange, and consequently, the information presented in this Memorandum does not necessarily comply with the information standards as set out in the relevant listing rules.

The documentation of the Fund has not been and will not be approved by or filed with, and may not be able to be approved by or filed with the Swiss Financial Market Supervisory Authority (“**FINMA**”) under the CISA or any other Swiss regulatory authority. Therefore, investors do not benefit from protection under the CISA or supervision by FINMA. This memorandum does not constitute investment advice. It may only be used by those persons to whom it has been handed out in connection with the Interests and may neither be copied nor directly or indirectly distributed or made available to other persons. The legal documents of the Fund may be obtained free of charge from the Manager.

NOTICE TO RESIDENTS OF TAIWAN

The offer of the Interests has not been and will not be registered or filed with, or approved by, the Financial Supervisory Commission of Taiwan and/or other regulatory authority or agency of Taiwan pursuant to relevant securities laws and regulations of Taiwan and the Interests may not be issued, offered or sold within Taiwan through a public offering or in circumstances which constitute an offer within the meaning of the Securities and Exchange Act of Taiwan or relevant laws and regulations that requires a registration, filing or approval of the Financial Supervisory Commission of Taiwan and/or other regulatory authority or agency of Taiwan. No person or entity in Taiwan has been authorised to offer or sell the Interests in Taiwan.

NOTICE TO RESIDENTS OF MALAYSIA

No action has been, or will be, taken to comply with Malaysian laws for making available, offering for subscription or purchase, or issuing any invitation to subscribe for or purchase or sale of the Interests in Malaysia or to persons in Malaysia as the Interests are not intended by the issuer or the Manager to be made available, or made the subject of any offer or invitation to subscribe or purchase, in Malaysia. Neither this Memorandum nor any document or other material in connection with the Interests should be distributed, caused to be distributed or circulated in Malaysia. No person should make available or make any invitation or offer or invitation to sell or purchase the Interests in Malaysia unless such person takes the necessary action to comply with Malaysian laws.

NOTICE TO RESIDENTS OF THE UNITED ARAB EMIRATES ("UAE") (DUBAI INTERNATIONAL FINANCIAL CENTRE ("DIFC"))

This document, and the information contained herein, does not constitute or form part of any offer to issue or sell, or any solicitation of any offer to subscribe for or purchase, any Interests in the UAE (including the Dubai International Financial Centre) and accordingly should not be construed as such.

This document is only made available to persons in the Dubai International Financial Centre to the extent its distribution is approved by a Dubai Financial Services Authority ("DFSA") Authorised Firm or is made only to, and is only capable of being accepted by, persons satisfying the "deemed" Professional Clients criteria set out in Rule 2.3.4 of the Conduct of Business Module of the DFSA rulebook and who are not natural persons; or following such person's request for this document.

By receiving this document, the person or entity to whom it has been delivered understands, acknowledges and agrees that this document relates to a Fund which is not subject to any form of regulation or approval by the UAE Central Bank, the DFSA, the UAE Securities and Commodities Authority, the Financial Services Regulatory Authority or any other relevant licensing authority or governmental agency in the UAE (the "**Authorities**"). The Authorities have no responsibility for reviewing or verifying any document or other documents in connection with this Fund. Accordingly, the Authorities have not approved this document or any other associated documents, nor taken any steps to verify the information set out in this document, and have no responsibility for it. The Fund Interests to which this Memorandum relates may be illiquid and/or subject to restrictions on their resale. Prospective purchasers should conduct their own due diligence on the Fund Interests. If you do not understand the contents of this document, you should consult an authorised financial adviser.

NOTICE TO RESIDENTS OF THE UAE (EXCLUDING DIFC AND ABU DHABI GLOBAL MARKET)

This Memorandum, and the information contained herein, does not constitute, and is not intended to constitute, a public offer of securities in the UAE and accordingly should not be construed as such. This Memorandum is strictly private and confidential and is being distributed to a limited number of prospective investors in the UAE who fall under one of the following categories:

- (a) "**Professional Investors**" within the meaning of the UAE Securities and Commodities Authority ("**SCA**") Board of Directors Decision No. 13 of 2021 Concerning the Financial Activities Rule Book who fall under one of the following: (i) federal or local governments, (ii) government institutions and agencies, or (iii) companies wholly owned by any of them; or
- (b) investors who (i) are willing and able to conduct an independent investigation of the risks involved in an investment in Interests in the Fund, (ii) upon their specific prior written request, and (iii) have confirmed that they understand that the Interests have not been approved or licensed by or registered with the UAE Central Bank, the SCA, the Dubai Financial Services Authority, the Financial Services Regulatory Authority or any other relevant licensing authorities or governmental agencies in the UAE (the "**Authorities**").

By receiving this Memorandum, the person or entity to whom it has been issued understands, acknowledges and agrees that this Memorandum has not been approved by the UAE Central Bank, the SCA, the DFSA, the Financial Services Regulatory Authority or any other relevant regulatory or licensing authorities in the UAE, nor has the placement agent, if any, received authorisation or licensing from the UAE Central Bank, the SCA or any other authorities in the UAE to market or sell Interests within the UAE. The Authorities assume no liability for any investment that the named addressee makes as an exempt Professional Investor. No marketing of any financial products or services has been or will be made from within the UAE and no subscription to any securities, products or financial services may or will be consummated within the UAE. It should not be assumed that the placement agent, if any, is a licensed broker, dealer or investment adviser under the laws applicable in the UAE, or that it advises individuals resident in the UAE as to the appropriateness of investing in or purchasing or selling securities or other financial products. The Interests may not be offered or sold directly or indirectly to the public in the UAE.

Nothing contained in this Memorandum is intended to constitute investment, legal, tax, accounting or other professional advice. This Memorandum is for your information only and nothing in this Memorandum is intended to endorse or recommend a particular course of action to any prospective investor. This Memorandum is for your use only and should not be given or shown to any other person (other than employees, agents or consultants in connection with your consideration thereof). You should consult with an appropriate professional for specific advice rendered on the basis of your situation. It is possible that some of the investments that will be made by the fund could be described as "relatively high risk" or even "high risk". Often the decrease in value of certain investments held by the Fund will be balanced by the increase in value of other investments in the Fund's portfolio. However, this will not always be the case. If there is an overall decrease in the value of the Fund's portfolio of investments, this could substantially affect the value of your Interests.

NOTICE TO RESIDENTS OF SAUDI ARABIA

This document may not be distributed in the Kingdom of Saudi Arabia (“KSA”) except to such persons as are permitted under the Investment Funds Regulations issued by the KSA Capital Market Authority (“CMA”). The Manager is an entity registered and operating under the laws of Luxembourg. This document is only intended for a limited number of investors who are permitted to receive it pursuant to the Securities Business Regulations (“SBRs”) of the CMA, namely (A) Exempt Persons, (B) Capital Market Institutions and (C) any other persons to whom this document may be delivered under the SBRs and related CMA guidance.

This document is not an offer of units of a foreign fund under the Investment Funds Regulations, or an offer of a security under the Rules on the Offer of Securities and Continuing Obligations, issued by the CMA, or any other successor regulation.

The Interests to which this document relates have not been approved by or registered with the CMA. The CMA has no responsibility for reviewing or verifying this document or any other materials in connection with the Interests. Accordingly, the CMA has not approved this document or any other associated documents nor taken any steps to verify the information set out in this document, and has no responsibility for it. The KSA Capital Market Authority does not make any representation as to the accuracy or completeness of this document, and expressly disclaims any liability whatsoever for any loss arising from, or incurred in reliance upon, any part of this document.

The Interests to which this Document relates may be illiquid and/or subject to restrictions on their resale. Prospective subscribers of the Interests offered hereby should conduct their own due diligence on the accuracy of the information relating to the Interests to be offered.

If you do not understand the contents of this document, you should consult an authorised financial adviser.

NOTICE TO RESIDENTS OF QATAR (INCLUDING QATAR FINANCIAL CENTRE (“QFC”))

This Memorandum is restricted and provided on an exclusive basis to the specifically intended recipient thereof, for the recipient’s personal use only and on the basis that the recipient is willing and able to conduct an independent investigation of the risks involved in this Memorandum, the underlying instruments and any related documents.

Nothing in this Memorandum constitutes, is intended to constitute, shall be treated as constituting or shall be deemed to constitute, any offer or sale of securities in the State of Qatar or in the QFC to the public or the inward marketing of securities or an attempt to do business or conduct activities, as a bank, an investment company or otherwise in the State of Qatar or in the QFC.

This Memorandum, the underlying instruments and any related documents have not been reviewed, approved, registered or licensed by or with the Qatar Central Bank, the Qatar Financial Markets Authority, the Qatar Financial Centre Regulatory Authority or the Qatar Stock Exchange or any other relevant Qatari authority in accordance with their regulations or any other regulations in the State of Qatar, the QFC or under any laws of the State of Qatar or the QFC.

No transaction will be concluded in your jurisdiction of the State of Qatar and the QFC. Recourse against the dealer, and those involved with it, may be limited or difficult and may have to be pursued in a jurisdiction outside the State of Qatar and the QFC.

Any distribution or release or publication in whole or in part directly or indirectly of this Memorandum or the information contained herein by the recipient to third parties in the State of Qatar or the QFC beyond the terms hereof is not authorised and shall be at the liability of such recipient.

NOTICE TO RESIDENTS OF KUWAIT

This Memorandum is not for circulation in Kuwait. The Interests have not been licensed for offering in Kuwait by the Kuwait Capital Markets Authority or any other relevant Kuwait government agency or regulatory authority. The offering of the Interests in Kuwait on the basis of a private placement or public offering is, therefore, restricted in accordance with Law No. 7 of 2010 and the bylaws thereto (as amended). No private or public offering of the Interests is being made in Kuwait, and no agreement relating to the sale of the Interests will be concluded in Kuwait. No marketing or solicitation or inducement activities are being used to offer or market the Interests in Kuwait.

NOTICE TO RESIDENTS OF BAHRAIN

The Memorandum has not been approved by the Central Bank of Bahrain which takes no responsibility for its contents. No offer to the public to purchase the Interests will be made in the Kingdom of Bahrain and this Memorandum is intended to be read by the addressee only and must not be passed to, issued to, or shown to the public generally.

NOTICE TO RESIDENTS OF NEW ZEALAND

This Memorandum is not a product disclosure statement for the purposes of the Financial Markets Conduct Act 2013 (the “**FMCA**”) and does not contain all the information typically included in such offering documentation. This offer of Interests in the Fund does not constitute a “regulated offer” for the purposes of the FMCA and, accordingly, there is neither a product disclosure statement nor a register entry available in respect of the offer. The Interests in the Fund may only be offered in New Zealand in accordance with the FMCA and the Financial Markets Conduct Regulations 2014.

NOTICE TO RESIDENTS OF BRUNEI

This Memorandum relates to a private collective investment scheme which is not subject to any form of domestic regulations by Brunei Darussalam Central Bank (the “**Authority**”). This prospectus is intended for distribution only to specific classes of investors as specified in section 20 of the Securities Market Order, 2013, and must not, therefore, be delivered to and/or relied on by a retail client or made available to the public generally in Brunei Darussalam. The Authority is not responsible for reviewing or verifying this Memorandum or other documents, in connection with this Fund. The Authority has not approved this Memorandum or any other associated documents nor taken any steps to verify the information set out in this Memorandum and has no responsibility for it. The Interests to which this Memorandum relates may be illiquid or subject to restrictions on their resale. Prospective investors of the Interests offered should conduct their own due diligence on the Interests.